

FIFTY YEARS A DETECTIVE

BY

THOMAS FURLONG

Late Chief of the Secret Service of the Missouri Pacific Railway, known as the Gould System; the Allegheny Valley Railway of Pennsylvania,
and first Chief of Police of
Oil City, Pa.

35 REAL DETECTIVE STORIES

Hitherto unpublished facts connected with some of Mr. Furlong's greatest cases—Other interesting incidents of his long and strenuous career which really began on September 14, 1862, when he was detailed from his company, (Co. G., 1st Pennsylvania Rifles, better known as the Pennsylvania Buck-tails) for special service.

ILLUSTRATED

For sale by all reputable newsdealers, or can
be obtained by addressing

C. E. BARNETT, CHEMICAL BUILDING,
ST. LOUIS, MO.

Post Office Box 575

PRICE, \$1.50

FIFTY YEARS A DETECTIVE

BY

THOMAS FURLONG

Late Chief of the Secret Service of the Missouri Pacific Railway, known as the Gould System; the Allegheny Valley Railway of Pennsylvania, and first Chief of Police of Oil City, Pa.

35 REAL DETECTIVE STORIES

Hitherto unpublished facts connected with some of Mr. Furlong's greatest cases—Other interesting incidents of his long and strenuous career which really began on September 14, 1862, when he was detailed from his company, (Co. G., 1st Pennsylvania Rifles, better known as the Pennsylvania Buck-tails) for special service.

ILLUSTRATED

For sale by all reputable newsdealers, or can be obtained by addressing

C. E. BARNETT, CHEMICAL BUILDING,
ST. LOUIS, MO.

Post Office Box 575

PRICE, \$1.50

The Project Gutenberg eBook of Fifty Years a Detective: 35 Real Detective Stories

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Fifty Years a Detective: 35 Real Detective Stories

Author: Thomas Furlong

Release date: December 31, 2018 [eBook #58576]

Language: English

Other information and formats: www.gutenberg.org/ebooks/58576

Credits: E-text prepared by Martin Pettit and the Online Distributed Proofreading Team (<http://www.pgdp.net>) from page images generously made available by Internet Archive (<https://archive.org>)

*** START OF THE PROJECT GUTENBERG EBOOK FIFTY YEARS A
DETECTIVE: 35 REAL DETECTIVE STORIES ***

**E-text prepared by Martin Pettit
and the Online Distributed Proofreading Team
(<http://www.pgdp.net>)
from page images generously made available by
Internet Archive
(<https://archive.org>)**

Note: Images of the original pages are available through Internet Archive.
See <https://archive.org/details/fiftyyearsadetec00furl>

Transcriber's Note:

The Table of Contents is located at the
[end](#).

Copyright, 1912, by Thomas Furlong.

FIFTY YEARS A DETECTIVE

BY

THOMAS FURLONG

Late Chief of the Secret Service of the Missouri Pacific Railway, known as the Gould System; the Allegheny Valley Railway of Pennsylvania, and first Chief of Police of Oil City, Pa.

35 REAL DETECTIVE STORIES

Hitherto unpublished facts connected with some of Mr. Furlong's greatest cases—Other interesting incidents of his long and strenuous career which really began on September 14, 1862, when he was detailed from his company, (Co. G., 1st Pennsylvania Rifles, better known as the Pennsylvania Buck-tails) for special service.

ILLUSTRATED

**For sale by all reputable newsdealers, or can
be obtained by addressing**

**C. E. BARNETT, CHEMICAL BUILDING,
ST. LOUIS, MO.**

Post Office Box 575

PRICE, \$1.50



THOMAS FURLONG.

PREFACE.



his book was not published for the purpose of displaying any literary ability I may possess, as I have never aspired to win fame by the wielding of a pen. Within its pages, however, I have attempted, in my own way and in my own manner, to make clear to the reader the inside or hitherto unpublished facts about some of the big cases I have handled during the fifty years I have made the prevention of crime and the tracking and punishment of criminals my profession. How well I have succeeded, I will leave it to the reader to judge.

I am today, I believe, the oldest detective, in point of continuous service, in this or any other country. During my long career I have handled many important cases, of which the reading public knows nothing about, for the reason that the men, or corporations, by whom I was employed, did not hire me for the purpose of furnishing newspapers with the material with which to amuse or entertain their readers. Within these pages I tell how the work was done, and how the clues were found and put together. On the other hand, many cases referred to in this book have received much newspaper publicity, but in these articles the writers were not permitted to tell all the inside facts—how the work was really accomplished. These facts are made public for the first time.

In a few instances I have changed, or veiled, the names of the culprits about whom the articles were written. For doing this I do not propose to apologize, however. These men are alive today and are leading upright lives. They have paid the penalty demanded by the law and society, and I cannot see where it would do any good to again publish their early digressions to the world. I have no disposition to willfully malign any one, and names are only used in cases in which the facts are supported by documents in the archives of the courts of this country, Canada and Mexico, the scenes of my greatest activity.

In selecting material for this book I have only used cases which were out of the ordinary, or in the unraveling of which some original or unique

detective work was done. No attempt has been made to enlarge on the facts at hand. The book is just a simple narration of real detective work done on real cases handled by me—no attempt having been made to color them as an experienced writer would do, or is done to the work or the deductions of the phantom detectives by the writers of fiction.

Hoping that the book will serve the purpose for which it is issued I am,

Yours truly,
THOS. FURLONG.

SIDE-LIGHTS ON THE BUSINESS.

ELEMENTS NECESSARY TO MAKE A GOOD DETECTIVE.
HONESTY AND TENACITY VALUABLE ASSETS.
THE PROFESSION HAS ITS PARASITES.

All professions have their parasites and crooks. Among the lawyers you will find men who will commit a felony for a few paltry dollars to clear a client of a charge of petty larceny—providing he does not think there is a chance of his being caught.

Among the doctors you will find men (and they have diplomas with larger red seals on them than has the commission of the President of the United States) who make a specialty of committing illegal operations, and doing other things that are not considered either lawful or ethical.

Among bankers you will find men who every day violate both the laws of the state and the government—high finance, they call it.

The general public, however, knows and freely admits there are honest, upright, truthful lawyers, doctors and bankers, and highly honor each of these professions.

But the aforesaid general public is not so charitable to detectives. The pettifogging lawyers and irresponsible penny liners of the press have educated it up to believing that all detectives are thieves, thugs and black guards, just because there are some men in the business who make the peddling of family secrets and the working up of evidence in divorce cases a specialty. I could never quite understand why this state of affairs should be true, for I know many men of as good moral character and just as honest and upright in the detective business as I have found in any of the other professions.

Detectives are born, not made—that is the successful ones—just as are the successful lawyers or doctors or mechanics or merchants. Education does not always make a man a success in his chosen profession or calling. Unless

he really possesses the peculiar make-up, or fitness, for what he chooses to make his life work, he will never reach the top round of the ladder of fame. Education, however, will help develop these necessary qualities, but that is all.

In addition to all these qualifications there are others which the detective must possess.

He must be scrupulously honest at all times, with himself and with those with whom he has dealings.

He must be sober, truthful and reliable, and, in addition, at all times and under all circumstances, a gentleman.

Tenacity and nerve are other valuable assets. A lazy man, or a coward, has no business in the ranks. And he must at all times be firm.

To my mind, a real detective should possess all the elements within his general make-up, which would be necessary to make him a success at any of the leading professions. He should possess the keen perceptive abilities of a trained or successful journalist, be able to read between the lines, as it were, or recognize the value of a clue, as the journalist does the value of a bit of news. He must be well posted on the law, especially that part pertaining to criminals. He must have the foresight and judgment of the successful merchant or tradesman. He must be sympathetic and just to the same degree as is the beloved pastor of a large congregation. And he must be an actor, one of the versatile kind of actors, who can play any kind of a part or assume any character without month's of rehearsing. He should at all times act natural, even while assuming a character, for if he overdoes the part he assumes, it is more than likely to attract unusual attention to him, which a real detective should avoid at all times.

Remember another thing: All crimes, nine hundred and ninety-nine out of every thousand, have a motive. True, these motives are often veiled and are not discernable at a mere glance. You must be a good diagnostician to handle these veiled cases—to diagnose them, as it were, as a learned physician diagnoses his case when called to the bedside of a very sick patient—find the cause. When you have found the motive for a crime, the balance of the work is usually easy.

There is one more phase of the detective business that I want to refer to briefly. Many men believe they were created or born for the express purpose of becoming detectors of crime. They believe they have missed their calling—it makes no difference by what means they are making a living now—because they have not been "called" into the detective business and many of them actually put in all their leisure time trying to "catch on" to a job, either in some municipal department or with some private agency. The truth is, not one in ten thousand of these men would "make good" if the opportunity to do so was offered them.

The chief of a detective agency does not go among these men who are laboring under the delusion that they have been "called," when he wants men to do real detective work. He selects his recruits from among acquaintances in whom he has recognized the talents necessary for the making of good thief-catchers or investigators. These are found in all professions and trades. Among the men in my employ can be found men who are capable of running the mechanical end of almost any kind of business, from a boiler shop to a composing room in a large printing house, or who could easily find, because of their qualifications, a good job in any large commercial or mercantile establishment.

In conclusion, I will add that after the natural qualifications for a good detective have developed themselves, it takes more hard work and study to reach the pinnacle of fame than other professions require, and the remuneration is a great deal less, taking into consideration the hazardousness of the business.

THE PRELLER MURDER CASE.

TRUE STATEMENT AS TO HOW THE EVIDENCE WHICH HUNG
MAXWELL WAS OBTAINED PUBLISHED FOR THE
FIRST TIME.

The Preller murder occurred in the summer of 1885, in one of the rooms of the Southern Hotel, St. Louis, Mo. Clarence Preller was a young Englishman, as was also his slayer, Hugh M. Brookes. The discovery of the body, the apprehension of the murderer, his trial and execution, attracted the attention of the civilized world. The true story of the conviction of the perpetrator of this foul crime has never before been published.

Hugh M. Brookes was a native of Hyde Park, a suburb of London, England. His father and mother were respectable people, and school teachers by professions. The young man was about twenty-five or six years of age when he committed this crime. He had never done anything but go to school, consequently was well educated. The last school he attended was a law school. He ran away from this institution, after stealing a lot of property that belonged to fellow students. The plunder he secured consisted mostly of ornaments and bric-a-brac, which he pawned at Liverpool, England, to secure enough money with which to purchase a first-class ticket to Boston, Mass. After boarding the vessel he met and formed the acquaintance of Clarence Preller.

Preller was a trusted employee of a large export establishment of London. His duties required him to travel nearly all over the world, or, at least, to visit the principal cities of the world. He was a young man, being about thirty years of age, and finding Brookes, a fellow-countryman, an agreeable companion, took very kindly to him.

Brookes represented himself as being a titled nobleman, who had just finished his course at college, and was making a pleasure tour of America. He called himself Maxwell.



HUGH M. BROOKES, ALIAS MAXWELL

The young Englishman hung for murdering Arthur Preller in the Southern Hotel.

During the voyage from Liverpool to Boston, Preller told Maxwell, as I will call him hereafter, that after he had attended to a matter of business for his firm at Boston he had to go to Toronto, Canada, where he would be detained but a day or two. Then he would leave Toronto for St. Louis, Missouri, where he also had some business to do for his firm, which would require but a short time, and that from there he would go through to San Francisco, California, and sail from there on the first steamship to Auckland, New Zealand. Maxwell told him that he believed he would go from Boston to St. Louis, where he (Maxwell) would await the arrival of Preller from Toronto, then accompany him to Auckland just for the trip. This proposition pleased Preller.

They arrived safely in Boston, where they remained two or three days together, and where Maxwell learned that Preller had in his possession seven one hundred dollar bills. After Preller had finished his business in Boston they settled their bills at the Adams House, where they had stopped, went to the depot together and separated, Preller going to Toronto and Maxwell to St. Louis. They had agreed that Maxwell was to stop at the Southern Hotel in St. Louis, there to await Preller. Maxwell arrived at that hotel and engaged a room, where Preller joined him a couple of days later. I

think it was Saturday when he arrived, and they occupied the same apartments.

On the following Sunday, after they had eaten their dinner and returned to their room, Preller complained of suffering from stomach trouble. Maxwell claimed to have some knowledge of medicine, and administered an overdose of morphia, hypodermically. A short time after administering the drug, and when he saw that Preller was beginning to breathe his last, he poured more than half the contents of a four ounce bottle of chloroform into Preller's almost lifeless lips. When Preller was dead, Maxwell stripped the body and placed a suit of his own underwear on him. Maxwell was small in stature, being only about five feet five inches in height, while Preller was much larger and about six feet tall. Maxwell's clothing was marked with the name of Hugh M. Brookes, and they were entirely too small for the body of Preller.

In removing the underwear Maxwell used a candle snuffer, which is very much like a pair of scissors, only the cutting surface had a half-circle. He cut the undergarments the full length of the limbs so that he could easily strip them off. Then he managed to pull his own garments on the body. He emptied out the trunk belonging to Preller, and pressed the body into it. He had to almost double it into a circle to get it into the trunk, but he succeeded. Then strapping and locking the trunk, he put his own, as well as Preller's effects into his own trunk, and retired for the night.

The next morning, after breakfast, he called at the cashier's office, settled his bill, and stated to the clerk that his friend Preller had been obliged to make a short run out of town, and would be back to the hotel in two or three days, and desired that the room be held for him, as his trunk and effects would remain there until he called for them. Maxwell explained that he had to leave that morning and expected his friend Preller to join him later.

He instructed the head porter to bring his large trunk down into the corridor. The one he had ordered brought down contained the dead body, but, to his consternation, the porter brought down the one in which his and Preller's effects had been packed. He became very much alarmed, and had his trunk taken to Union Station and checked to San Francisco, buying a ticket for that place. He departed over the Frisco Road, and arrived in San Francisco,

where he remained one night, and the following day bought a ticket for Auckland, New Zealand, and sailed that afternoon.

The weather was quite warm in St. Louis, and after a few days decomposition set in upon the corpse in the trunk. The odor from the room attracted the attention of the servants. They reported to the office, the room was entered and the body found. The police were notified at once. A good description of Maxwell was furnished by the hotel people, and telegrams were sent in all directions, giving this description, and requesting Maxwell's arrest.

Capt. Leas, Chief of Police of San Francisco, received one of these telegrams, started his detectives to investigate, and succeeded in learning that the murderer had sailed for Auckland some three or four days before he had received the telegraphic description of him from St. Louis. Whereupon Chief Leas cabled the proper authorities of Auckland a full description of Maxwell, and even the number of the stateroom he occupied on the ship. Of course, Capt. Leas' telegram reached Auckland several days before the ship arrived.

When the ship arrived at Auckland, the police sent out two of their detectives with the pilot, who was to guide the steamer on which Maxwell had taken passage into port. They arrested him as soon as they boarded the ship, and when the vessel landed immediately notified the St. Louis authorities, in accordance with Capt. Leas' instructions to them. After obtaining proper extradition papers, the Chief of Police of St. Louis sent two of his detectives to Auckland to bring Maxwell back to St. Louis. They went to Auckland by way of San Francisco, found Maxwell in jail there and brought him back to St. Louis. It was a long and expensive trip, and cost the city of St. Louis a great deal of money.

On arriving in St. Louis the prisoner was locked up without bail, on the charge of murdering Preller. He immediately employed two lawyers to defend him. After having consulted with his lawyers, Maxwell became jubilant—so much so that he became obnoxious to his fellow prisoners. He was naturally inclined to be overbearing, and seemed to hold himself aloof from the other prisoners. He was rather inclined to braggadocia, and attracted a lot of attention. The daily papers devoted a great deal of space to

him, which he seemed to enjoy immensely. In fact, the notoriety appeared to be very pleasing to him.



MARSHALL F. McDONALD

The Famous Criminal Lawyer who prosecuted Brookes, alias Maxwell

A few days after he had been lodged in jail in St. Louis, Ashley C. Clover, Circuit Attorney of St. Louis, in company with Marshall F. McDonald, Assistant Circuit Attorney, drove out to my residence one night. I was then Chief Special Agent for the Missouri Pacific Railroad Company, and both Messrs. Clover and McDonald were personal friends of mine.

Mr. Clover stated that the object of their visit was in reference to the Maxwell case. He went on to state that although the arrest and returning of Maxwell from Auckland to St. Louis had cost the city of St. Louis a great deal of money, and the case had become one of international importance, yet he did not believe that the officers of the St. Louis police department had made any efforts to get at the real facts in the case. So far they had not found enough evidence to procure a conviction, in case the defendant went on the stand and testified that the giving of too much chloroform to Preller

was an accident. Mr. Clover said that he wanted the real facts in the case. "For," he said, "while there is scarcely any doubt that Maxwell caused the death of Preller by an over-dose of chloroform, yet he may have done it innocently, and if such is the case, under our laws, he could not be convicted of the murder, and ought not to be, in my opinion. But, on the contrary, if he dosed him purposely and feloniously with forethought and malice, he ought to be convicted. If he did it innocently, and I could be assured of that, I would be pleased to ask the jury to acquit him, but, as I said before, if he is guilty it would be my duty as circuit attorney to insist on his conviction. And now, Tom, I want you to get the facts in this case for me."

To which I replied, "Mr. Clover, I really do not know anything about this case, except what I have read in the newspapers, and, of course, you know as well as I do that a man cannot base much of an opinion on a case of this kind on newspaper accounts, and, therefore, I wish you would give me a little time to think the matter over. I fully approve of the sentiments that you have expressed in connection with the case, and will be glad, indeed, to do all in my power to assist you."

Both gentlemen said they wished that I would take the matter under advisement until the following evening at eight o'clock, at which time they would again call at my house to talk the matter over with me.

The following evening at the appointed time they called and were both apparently anxious to learn what I thought I could do in the way of obtaining the facts pertaining to the case.

After the usual greeting, and when both had been seated, I said, "Gentlemen, I have been thinking about the case in question, and have become satisfied that there were but two people who knew the whole facts connected with the case, and the facts that you now desire to know. One of these persons is now in jail, and the other is dead. In my opinion Maxwell is the only living person who knows the facts, and, therefore, he is the only person from whom these facts can be obtained. I believe I can get those facts from him, but I want you gentlemen to understand that I am in the employ of the Missouri Pacific Railroad Company, and, of course, they are paying me for all my time, but if I were not in their employ I could not do

this myself on account of my being so well known. For that reason it would be necessary for me to select a competent operative to do this work under my instructions. I shall be glad to do this, or anything else that I can do to assist you in unraveling this case, with the understanding that I am not to receive any compensation for what I may do myself, but I shall expect you gentlemen to pay the operative that I may use in this work the same amount of salary that we are paying him, and his actual expenses. As I said before, I will do all that I can, but will neither expect nor receive any remuneration for my services."

"Tom," replied Mr. Clover, "There is no fund provided by the city for the employment of outside talent for such work as this in question, but I expect to pay the expense out of my own pocket, and I shall insist on paying you for your services in connection with this matter."

I answered, "I will receive nothing for any work that I may do in the matter."

At this point in the conversation Mr. McDonald, who had been sitting quietly, listening to Mr. Clover and myself, said, "Tom, how do you expect to obtain the facts in this case? That's what I would like to know."

"Mr. McDonald," I responded, "I feel that it would be easier for me to go ahead and do this work, than it would be for me to undertake to tell you how I propose to do it."

Mr. Clover then said, "Tom, I am going to place this matter in your hands. I want you to go ahead and get this thing started as soon as possible, as the defendant's attorneys are clamoring for a speedy trial, and I do not wish to keep them waiting any longer than I can help. You do this work in your own way and I will pay the bills."

I said, "All right."

The next day I telegraphed to Philadelphia to an operative in my employ there. He was an entire stranger in St. Louis. I wired him to come at once, and not to stop at my office, but to come direct to my house on his arrival in the city, which he did.

His name was John McCulloch. He was about thirty-five years of age, about five feet, ten inches in height, and weighed about two hundred pounds. He was well built, had a sandy complexion, and was rather a good-looking fellow. He was wearing side-whiskers, or burnsides, as they were called, and a blonde mustache, and looked very much like an Englishman. He was truthful and honest, and of sober habits, but a little thick-headed, or, in other words, dull of comprehension. In instructing him it was necessary to explain each detail fully, and sometimes it would seem as if it were necessary to take a hammer and pound the instructions into his head, but when he once understood thoroughly what you wanted him to do he would carry out instructions to the letter.

Right here it might be well to take the reader into my confidence. I had decided to get my operative (McCulloch) into jail, where he could meet Maxwell, without the knowledge of the local police officers.

After explaining the nature of the case to him, I instructed him to procure the leading daily papers of St. Louis, dating back to the time of the murder, and to read every line that had been published relative to the case. This he did, and it took him about three weeks. I met him each evening during the time and rehearsed with him what I wanted him to do, from the time he was arrested, and how he should act after his arrest and incarceration.

Early in February, 1886, I succeeded in getting possession of a few blank checks from the office of D. S. H. Smith, who was local treasurer of the Missouri Pacific Railroad Company in St. Louis. Being Chief Special Agent of the road I had occasion to visit the local treasurer's office frequently, and being well known, not only to the local treasurer, but to all of his office force as well, I had no difficulty in obtaining the blank checks without the knowledge of Dr. Smith, as the local treasurer was called by most of the people who knew him, or any of his clerks.

My chief clerk was a good penman, and was familiar with the signature of Dr. D. S. H. Smith. I had him practice for some time on imitating Dr. Smith's signature, and found that he could imitate it so clearly that it would have been accepted as genuine by any bank teller. While I wanted a fairly good imitation of the signature, I did not want it to be so good that it would be received at the bank. After practicing for a time he succeeded in making

a signature which I thought would answer my purpose. I had him fill out one of the blank checks for the amount of one thousand one hundred and eighty-eight dollars and ten cents. I then gave this check to McCulloch, with instructions to him to present it to the paying-teller of the Mechanics Bank, which was then on Fourth street. He was to present this check at 9:45 sharp, the following morning. I had received a check, a day or two before this, which bore the signature of Dr. Smith, and had purposely held this out, and was waiting across the street from the bank when I saw McCulloch, whom I will hereafter call Frank Dingfelter, as this was the name he assumed, and was the name to which the check had been made payable.

On entering the bank Dingfelter went to the window of the paying-teller, Mr. Warner, and presented the check. Warner examined the check very carefully, and by reason of its being for so large an amount, and Dingfelter being an entire stranger to him (I, having allowed Dingfelter time enough to have reached the paying-teller's window, entered the bank with my check in my hand), held the check that Dingfelter had presented, and when he saw me he excitedly motioned to me to come to his window. On reaching the window Warner commanded me, in an excited manner, to arrest that man, pointing to Dingfelter.

I said, "What do you want him arrested for?"

Warner, holding up the check said, "Why he has presented a large fake check bearing the name of Dr. Smith, for nearly twelve hundred dollars. Why, you know Dr. Smith's signature?"

I replied, "Yes, here is one of Dr. Smith's checks. I know this is genuine, for I saw the doctor sign it."

He compared the fake check with mine, and I said to Mr. Warner, "While I am not an expert on hand-writing, I do not believe that Dr. Smith wrote that signature."

Mr. Warner exclaimed, "I am positive he did not." Then turning to Mr. Dingfelter I asked, "Where did you get this check?"

"I got it from Dr. Smith," was his reply.

"Does Dr. Smith know you?" I asked.

In rather a gruff manner he answered, "Yes, he knows me."

"Will you go with me and see Dr. Smith?" I asked.

"Well, I do not know whether I will or not. I don't know who you are," he replied. Whereupon I laid my hand on his shoulder and said, "You will either accompany me to Dr. Smith's office, or I will send for a patrol wagon, take you to police headquarters and have you locked up."

"Are you an officer?" he asked.

To which I replied, "Yes, I am the Chief Special Agent of the Missouri Pacific Railroad Company."

"Oh, well," said he, "that is different. I will go with you and see Dr. Smith."

It was drizzling rain the morning of this occurrence, was quite chilly and the streets and sidewalks were wet and slippery and dirty, as the streets of St. Louis were not kept as clean at that time as they are now. I took the fake check and Dingfelter and myself started for Dr. Smith's office, which at that time was in the Missouri Pacific general office building on the corner of Sixth and Locust streets. We walked west on Pine from Fourth. When we reached the corner of Sixth and Pine streets I gave Dingfelter a signal, which had been pre-arranged. This signal was for him to hit me a good, stiff punch, as the fighters call it. There was a large, clumsy patrolman, wearing a raincoat, standing under an awning near the corner saloon. I was walking on the left-hand side of Dingfelter, and when I gave him the signal he cut loose with his right hand, which landed just over my right eye and a little back of it. I had instructed him to hit me hard, and if he succeeded in knocking me down and I became groggy from the blow he was to stumble and fall himself, so as to give the big, clumsy police officer time to reach us. The officer was standing about ten feet from us when Dingfelter struck me, but I knew how slow he was and I wanted to be sure and give him an opportunity of getting hold of Dingfelter. I went down all right, and in fact, was a little dazed from the effects of the blow. Dingfelter stumbled and fell, and the policeman made a dash (such as a heavily loaded ice wagon going up hill would make) and succeeded in reaching him, not, however, until he had arisen, and I also had got to my feet. He got to Dingfelter about the same time that I did. The latter made a good fight and tore off most of the

uniform of the policeman and my coat, vest and collar. All of us went down in the street and rolled around in the mud. Our ears and faces were filled with mud, before we finally succeeded in subduing Dingfelter, but I am satisfied if he had tried his best he could have gotten away with both of us, as he was a powerful man.

My office was on Eighth street, just north of Pine, and this fight occurred just two blocks from my office, and after we had subdued Dingfelter I suggested that we take him there, so as to give us an opportunity of washing ourselves while we were waiting for a patrol wagon to take the prisoner to police headquarters. This we did, and on arriving at my office we turned the prisoner over to my chief clerk and one of my operatives, who happened to be there, while the policeman and myself began digging the mud out of our ears and washing our faces. After washing I found that my right eye was very much discolored, and where my face had come in contact with the pavement there were a number of small cuts and scratches, which were somewhat inflamed, and I really had a sore face.

The operative who I have mentioned before, whose name was Phillips, on seeing my face said to me, "Why, you sure ought to go and see a doctor at once. Your eye is in bad shape, and you need medical attention immediately. Let me go up to police headquarters with this fellow. I can attend to the matter for you."

I thanked him, and said that I wished he would do so. I told him what had occurred at the bank, and instructed him to make a complaint against Dingfelter accordingly. In due time the patrol wagon arrived and the police officer and Phillips escorted Mr. Dingfelter to police headquarters. At this time Hughie O'Neil was chief of detectives, and Major Lawrence Harrigan, was chief of police for the city of St. Louis.

As soon as Dingfelter was hustled into the detectives' office in the Four Courts, Chief O'Neil and a squad of his men immediately set about searching him. They found in one of his inside pockets a letter, addressed, sealed and stamped, but apparently which Dingfelter had forgotten to mail. It was directed to San Francisco. They also found about seventy-five or one hundred dollars, and some other articles, all of which were taken from him and placed in the police department archives for safe keeping. The letter

was eagerly opened and read. This letter was quite lengthy, and was just such a letter as one crook would write to another. There was then, and had been for some time previous, a gang of bank swindlers working the cities of the Pacific Coast, and the newspapers had been printing a great deal about the operations of this gang several weeks prior to the time of which I write; and for this reason the detectives of St. Louis were led to believe by the finding of the letter that they had struck something which might lead to the capture of the bank swindlers. The contents of the letter appeared in the afternoon papers. Some of these papers censured me for having failed to discover this letter.

After reading the comments of the papers regarding this letter, I would have considered myself very stupid, indeed, for having missed the letter, were it not for the fact that I knew that I had not had an opportunity to search Mr. Dingfelter up to the time he assaulted me and the officer on Pine street, and then I also knew it had taken me about two hours to compose and dictate that same letter.

Dingfelter was locked up, of course, and the time was set for his preliminary hearing, to be several days later. In the meantime the St. Louis papers were devoting lots of space to Dingfelter and his alleged crime; a relief to the newspaper readers, as they had begun to grow tired of reading day after day about Maxwell and what his attorneys expected to do for him. From the time of Dingfelter's arrest up to the time of Maxwell's trial, the newspapers scarcely mentioned the latter's name. Some of them occasionally mentioned my name in rather a joking manner, because I had been stupid enough to miss that letter. When Dingfelter was called for his preliminary hearing he was promptly remanded to jail to await the action of the Grand Jury.

He was besieged by lawyers who were anxious to defend him, but he declined their offers, telling them when the time came he had lawyers selected to defend him, and steadfastly refused to divulge their names. The second day after his arrest Dingfelter was allowed to mingle with the other prisoners in what was called the "bull ring." An allotted time is given to the prisoners each day in this place for exercise. Maxwell noticed that almost immediately after his arrest the newspapers were giving Dingfelter all the notoriety, and had dropped himself, so he hastened to make the

acquaintance of one so notorious when they met in the "bull ring." This was the only opportunity of meeting him, and from the first time that Maxwell saw Dingfelter he never lost an opportunity of talking with him, and he stuck to Dingfelter like the proverbial fly to the horse. The first time Maxwell approached Dingfelter he rushed up to him and said, "You are Dingfelter, I believe." Dingfelter replied that he was and Maxwell then said, "They seem to have a strong case against you." "You will have to excuse me, sir, I don't want to be considered impolite," Dingfelter replied, "but I must decline to talk to any one in this place about my case, as you call it. I don't believe it would be a good thing for me or any other person to talk about a charge that is pending against them in a place of this kind. I shall be glad to talk with you on any other subject, however, but I trust that you will hereafter refrain from asking me any questions regarding the charge now pending against me in court, and then, I don't know you."

Maxwell hastily said, "Oh, I am Maxwell. I am the fellow who is charged with the murder of that man Preller, who was killed in the Southern Hotel, and whose body was found in a trunk. I was arrested at Auckland, New Zealand, and brought back here to St. Louis to stand trial, but I have been assured by my attorneys that I will be acquitted. They have no proof against me, and just as soon as I can get a trial, why, of course, I will go free."

"So you are Maxwell," said Dingfelter. "I have been reading in the papers about you, and if you will pardon me for saying it, it seems to me that you have already been talking too much about your case. If you are not guilty of the crime with which you stand charged, why you ought to be acquitted, and I hope you will be."

After this first interview between Maxwell and Dingfelter, he and many other prisoners looked upon Dingfelter as being a wise and unusually smart prisoner. Dingfelter was in jail forty-seven days, and during all that time Maxwell never let an opportunity pass without talking to him. I received daily reports from my operative, a task which I found very difficult, and it became more difficult by reason of the Southwestern Railroad strike, which broke out on March 4, 1886, and continued during Dingfelter's stay in the St. Louis jail. Being Chief Special Agent for the Gould system, my time was occupied in protecting the railroad company's property, and in

apprehending people who were continually committing illegal acts. I was occupied almost day and night in this work.

From Dingfelter's daily reports I learned that Maxwell had admitted that he had killed Preller for the purpose of obtaining seven one hundred dollar bills that he knew Preller to have, as he had shown him the money in the Adams House at Boston, before they separated there. He also had pawned the plunder for the money which had brought him to America, and that he had made Preller believe that he was connected with the titled family of Maxwell, that his right name was Hugh M. Brookes, and that he would like to place himself under the guidance and advice of an able crook, as he believed Dingfelter to be, when he gained his liberty, as he was sure he would, in the near future. He told Dingfelter in detail how he had killed Preller by administering an overdose of morphia, hypodermically; of how, after dinner on the fatal Sunday, Preller had complained of a pain in his stomach; that he, Maxwell, saw that was his opportunity for carrying out the plan he had already formed for taking Preller's life in order to secure the money; that he had provided himself with a large quantity of morphia and the hypodermic syringe, and that he had also procured four ounces of chloroform, for the purpose of administering it to Preller immediately before death, to prevent the body from becoming rigid, as it does immediately after death, "as," said Maxwell in his explanation to Dingfelter, "I had to conceal his long body in the trunk, which was so much shorter, and I did not want to cut off his limbs, fearing that the trace of the blood would betray me."

On receiving Dingfelter's report relative to the use of the morphia in the murder, I at once reported the fact to Messrs. Clover and McDonald, who immediately arranged with two of the most prominent doctors in St. Louis to examine the body of Preller for traces of the morphia. Messrs. Clover, McDonald, the doctors, an official of Bellefontaine Cemetery, and myself, went to the cemetery, where Preller's body had been buried, exhumed the body, and the doctors made the necessary examination, keeping what they discovered to themselves, and they did not divulge anything about it until called on to testify at Maxwell's trial, when they said that the traces of the hypodermic syringe were plainly visible on the arm, and that traces of morphia were found. When Maxwell was arrested a quantity of morphia was found among his effects, and also the hypodermic syringe, but up to

this discovery neither had been considered in connection with the murder, as it had been taken for granted that Preller's death had been caused by chloroform. Of course, the exhuming of the body, and the arrangement that had been made were known to no one but Messrs. Clover, McDonald, the two doctors, the cemetery official and myself, and was treated as a profound secret.

Meanwhile, after Dingfelter had been in jail and had obtained the information we wanted from Maxwell, I decided that it was unnecessary to keep him there longer, so I arranged to have Dingfelter released on bail, which had been fixed at three thousand five hundred dollars. I had ex-Judge Henry D. Laughlin, of St. Louis, sign Dingfelter's bond. I did this without Judge Laughlin's knowledge that I even knew who Dingfelter was. Upon his release I immediately sent him to New York, where he entered into correspondence with friends of Maxwell's. Just before being released he asked Maxwell if he could keep a secret, and Maxwell said that he could, whereupon Dingfelter said:

"I expect to leave this place soon."

"How are you going to get out?" asked Maxwell.

"Ah," said Dingfelter, "that is none of your business. You said you could keep a secret, and the first thing you are doing is to pry into my business by asking how I am going to get out. After I am gone from here, of course, you will know it, but if you do not know how I propose to get out it will be impossible for you to tell any one about it. For that reason it is better that you should not know anything further than what I have already said."

Maxwell apologized and promised not to be so inquisitive again. Dingfelter then said:

"Now, Maxwell, after I am on the outside and away from this place, if I can do anything for you consistently I shall be glad to do it."

"You can do a whole lot for me," Maxwell answered, "by getting two of your friends to come here when my trial is called and have them testify that they met Preller and myself in Boston, and that they accompanied us to the depot when we were leaving Boston; that at the depot I proposed that the party take a parting drink; that Preller, these two men and myself, went to a

cafe, and that I ordered two bottles of champagne, and that when I paid for it I displayed a roll of seven one hundred dollar bills; that I explained that I wanted to change one of these hundred dollar bills so that I might have some smaller change to pay expenses on my way to St. Louis. If they will testify to this it will account for the six one hundred dollar bills I took from Preller."

Dingfelter asked, "Are you sure that your lawyers will not get these friends of mine into trouble or let the police get next to them if I can get them to come?"

Maxwell assured Dingfelter that his friends would be perfectly safe in coming to St. Louis, and that the police would not get next to them, providing, of course, that the parties were not already known to the police. He took a card bearing his name from his pocket and tore it in two halves, giving one half to Dingfelter and retaining the other himself, saying, "Be sure and give these witnesses half of the card, which will serve to identify them to my attorneys when they arrive here, as that half of the card will match the half that I will retain, the edges of the torn card will match and will answer the purpose of an introduction."

It was about five o'clock in the evening when Dingfelter was released from jail on bond, and at that hour the courts in the building had adjourned for the day, and the newspaper correspondents and all others had left the building except the few attaches who were on duty. Thus Dingfelter left the jail unobserved. On his release from the jail he came to my house by a circuitous route, where he remained until a late hour that night, when he left to take a train for New York. I instructed him to open a correspondence with Maxwell on his arrival in New York, so as to get positive instructions from Maxwell as to what the witnesses were to testify to when they appeared on the stand in his defense. He carried out these instructions to the letter. His letters reached Maxwell through his attorneys, and Maxwell's letters reached him through the same source, and in due time, all the letters were sent to me with his report. They kept up this correspondence at intervals until Maxwell's trial was called. I told Dingfelter to appear in St. Louis on the morning of the trial, which he did. On arriving here he went to a private lodging house, and being a stranger in the city, his presence was unknown to any person but himself and the circuit attorneys, Clover and McDonald.

When his trial was called, Maxwell took the stand in his own defense, and testified that he had administered chloroform to his friend Preller on the fatal evening at the Southern Hotel for the purpose of allaying the pain that he was suffering from, as both Messrs. Clover and McDonald had predicted he would testify. Maxwell went on to state that Preller's suffering was caused by an acute attack of stricture, from which he had been suffering more or less for some time.

On hearing this testimony from Maxwell, it was decided to again exhume the body of Preller so that the two doctors could make another examination of the remains, and either corroborate or disprove Maxwell's testimony, as this was one of the most vital points in the trial. When the body was exhumed the doctors removed the organs, taking them to their laboratory, where the examination was made, and they later came into court and testified that their examination had shown beyond a doubt that Preller had never suffered from stricture.

Frank Dingfelter was among the first witnesses called by the prosecution. In answer to his name, he entered the court room from the private office of the circuit attorney, and after being duly sworn, took his seat on the witness stand. After sitting down he turned his face towards Attorney McDonald, who was conducting the prosecution for the state. Maxwell got a full view of Dingfelter for the first time since he had seen him in the jail. From where I was sitting I could get a good view of Maxwell's countenance. I was watching him closely, and when he saw Dingfelter he recognized him instantly. He turned ashy pale and nearly fainted, and would have fallen out of his chair were it not that he was partly supported by one of his attorneys who was sitting beside him. He hurriedly communicated to his attorney that he had recognized Dingfelter, whereupon the attorneys for the defense became very much excited. Dingfelter was asked by Attorney McDonald the following questions:

Question: What is your name? A. John F. McCulloch.

Q. Where were you born? A. Wilmington, Delaware.

Q. How old are you? A. Thirty years.

Q. What is your business? A. Detective.

Q. By whom are you employed? A. Thomas Furlong.

Q. Do you know the defendant in this case (pointing to Maxwell)? A. Yes, sir.

Q. Where did you first become acquainted with him? A. In the city jail.

Q. Were you a prisoner in the jail? A. Yes, sir.

Q. What were you charged with? A. I believe it was forgery.

Q. When and where were you arrested? A. I was arrested at the Mechanics Bank on the corner of Fourth and Pine streets, this city, by Thomas Furlong, who was afterwards assisted by a police officer, whose name I do not know.

Q. Why did Furlong arrest you? A. He was commanded to do so by the paying teller of the Mechanics Bank.

Q. Why did the teller cause your arrest? A. Because I presented a check bearing what purported to be the signature of D. S. H. Smith, local treasurer of the Missouri Pacific Railroad Company. The paying teller told Furlong, in my presence, that the signature was a forgery.

Q. Did you know it to be a forgery? A. I did not.

Q. Where did you get this check? A. Mr. Furlong gave me the check and instructed me to present it at the bank, as I did, and told me that he would be at the bank when I presented it.

Q. Was Mr. Furlong there? A. Yes, he came into the bank while I was at the teller's window. That was when Mr. Warner, as I believe the teller's name is, told him to arrest me.

Q. Then you do not know whether the check was a forgery or not? A. No, sir. I was only obeying the instructions of my employer, Mr. Furlong. I guess he can tell you all about that check.

The court room was crowded, and as soon as Dingfelter stated that he was a detective one of the city detectives rushed out of the court, pellmell, to the office of the Chief of Police, which was in the opposite end of the building, and informed the Chief of what had occurred. The Chief rushed into the

court room, and from that time on consternation seemed to prevail among all the authorities around the Four Courts building.

Dingfelter was kept upon the witness stand for about two days, and during his entire direct testimony, nearly every question asked him by the prosecuting attorney was objected to by the attorneys for the defense. After McCulloch, as I will call him by his right name hereafter, had been excused from the witness stand, I was called. After being duly sworn and the preliminary questions asked, I was told, by the prosecuting attorney, to state to the court and jury how I had been approached by Mr. Clover and himself, and what I had done in connection with the case. I gave a detailed account of my work from the start up to that moment, being interrupted occasionally by an objection from the defendant's counsel. When I had finished my direct testimony, all of which has already been related, the counsel for the defense began to cross-examine me. My cross-examination consumed nearly a day and a half.

The defendant's counsel first wanted to know how long I had been in the detective business. I answered that I had first become engaged in the business in September, 1862. The attorney said, "Then you have had a great deal of experience?" I answered that I had, and then he said, "Where did you get this check?" exhibiting the check in question. I asked permission to examine the check, which was granted by the court, and after looking at it carefully I answered, "This is one of the blank checks that I took from Dr. Smith's office in the manner already described."

Question: Then you stole this check from Dr. Smith's office? A. I took that blank check from Dr. Smith's office without his knowledge or consent.

Q. Who filled out this check and signed Dr. Smith's name to it? A. That check was filled out by one of my employes. I stood alongside of him while he filled it out. He did it under my instructions, and if he had refused to do it I would have discharged him and he knew it; and if the law has been violated in any way I am responsible for it.

The attorney for the defense insisted that I give the name of the person who filled out the check, but the court overruled the question on the ground that I had assumed the responsibility. The counsel for the defense then said,

"You know that you were violating the law by having this check made out as you did, did you not?"

I replied, "Under certain conditions, it might have been a violation of the law."

Counsel for the defense asked, "You know that it was a forgery and forgery is a crime under the law?" My answer was the same as before, that it would have been forgery under certain conditions. But he insisted on me answering him direct "yes" or "no." At this Prosecuting Attorney McDonald appealed to the court, stating that the witness could not answer the question with a direct "yes" or "no" unless permitted to explain what the certain conditions referred to were. The court permitted me to explain under what conditions the making of the check would not be considered forgery. To which I replied that inasmuch as that intent is the essence of crime, and that as there was no intent to obtain money or other valuables by means of this check on my part, who was responsible for the making of it, and that I was at the bank on the morning that McCulloch presented the check for the purpose of preventing the teller from cashing the check, if he, perchance, had not noticed that the signature of Dr. Smith was not genuine, and for the further reason that I had promptly apprehended the man who had presented the check at the bank for having done so. This was all a matter of court record.

Here I wish to say that almost every person in the courtroom, after hearing my testimony as to my obtaining the blank checks and causing one to be filled out and presented at the bank, were of the opinion that I had gotten myself into serious trouble. Many clung to that opinion until they heard my explanation, and the competent court attorneys saw at a glance that I was safe when I explained that intent was what constituted a crime.

I have been asked many, many times since the arrest of McCulloch and my tussle with him, why I caused him to knock me down and to strip the policeman and myself, leaving us in almost a nude condition, and which compelled me to go around several days with my right eye and one side of my face discolored—as some of them said, "in mourning"—and my answer has always been that I had decided everything I did in connection with the case was absolutely necessary so that I might obtain the true facts of the

case, which were very essential for the proper prosecution of the perpetrator of this heinous crime, as he was the only living person who knew the real facts. I knew that Maxwell was enjoying the notoriety the newspapers were giving him, and I also knew that the public was growing tired of reading about him, and, therefore, believed that if I could paint my operative as a more desperate criminal for the time being, by the notoriety he would obtain through the papers, it would have the effect of attracting Maxwell's attention to him, so that he might bask in the light that was being attracted to McCulloch. And, as it turned out, my predictions proved true. I deemed it necessary to have McCulloch slug me and make the fight that he did with the police officer and myself in order to allay any suspicion that might arise in the mind of the Chief of Police or any of his men. The Chief was an alert and experienced officer, and if he suspected for a moment that McCulloch was not what he represented himself to be, or that he was connected with me, he would have undoubtedly exposed our scheme, and thereby destroyed our efforts, which were for the honest purpose of serving the ends of justice.

Both McCulloch and myself were acting parts, and from the result it seems that the parts were acted well. I could have gotten the blank check from Dr. Smith, I have no doubt, merely by asking for it, but he, of course would have wanted an explanation from me, and if I had explained why I wanted them he would have been obliged to state the facts on the witness stand when called before the Grand Jury, and this would have been fatal to my scheme. Had I told my operative Phillips, who lodged the first complaint against McCulloch, or Dingfelter, as he called himself, he would have been compelled, under oath, to have stated the truth. This, too, would have been fatal. My keeping the matter a secret, resulted in every person telling the truth, or what they believed to be the truth. I myself, did not appear either at police headquarters or at the preliminary hearing, nor before the Grand Jury, and was not called upon to testify until Maxwell was on trial.

Marshall F. McDonald was sitting in his office one day alone, about a month after Dingfelter had been in jail and had made such good progress with Maxwell, when William Marion Reedy, better known then as Billy Reedy, entered his office. Reedy was, at that time, a reporter for the Globe-Democrat, and was very popular. He knew every official around the Four Courts and in fact, every man in St. Louis who was worth knowing. He was a warm friend and great admirer of Mr. McDonald, and on entering his

office and noting that he was alone, he said, "Mac, why don't you select the right kind of a fellow and have him locked up in Jail with Maxwell. He might succeed in getting the facts as to Preller's murder from him."

Mr. McDonald was startled to hear this suggestion from Mr. Reedy, but, being a man of steady nerves, he managed to conceal his surprise. He told Reedy that he did not believe that anything could be accomplished by locking a man up in jail for that purpose. "For," said Mac, "there are nearly four hundred prisoners in that jail and a man might be there for months before he could get to Maxwell, and then it is quite likely that his attorneys have already advised him not to talk to any person about his case."

Reedy said, "It occurred to me that it might be a good thing to do, and I therefore made the suggestion to you for what it is worth, but, as you do not think it worth while to try it, just let it go."

He left the office, and just as soon as McDonald could don his hat and coat and leave his office unobserved, he hastened to me. I saw at a glance that he was excited and believed something unusual had happened. I greeted him and asked him to be seated, and then said, "Mac, what is the matter?" He extended his long right arm and exclaimed, "Why, the whole thing is up."

"What's up?" I asked, "Mac, what do you mean?"

"Why, Billy Reedy came into my office a little while ago and suggested that I pick out the right kind of a fellow and have him locked up in jail so that he might work on Maxwell," he said.

"Is that all Reedy said?" I asked.

He then went on and detailed as nearly as he could recollect just what Reedy had said. I asked him what he had said to Reedy and he told me. I then said, "Do you think that Reedy noticed your excitement when he made the suggestion to you?"

"No, he could not have," he replied, "I was not excited, I never get excited."

"You were excited when you came in here, and if Billy Reedy noticed it when he made that suggestion it might set him to thinking, and inasmuch as

you did not take kindly to the suggestion, he might possibly make the suggestion to Chief Harrigan," I said.

"Oh, no," replied Mac, "Billy would not make any suggestions to the chief. He is my friend and I appreciate the feeling that prompted him to make the suggestion, but confound it, I wish he had not thought of it."

I said, "Mac, we know that Billy Reedy is a bright young fellow, and a great news gatherer, and a loyal friend of yours. I do not believe he will say anything more about it, and now I think the best thing to do is to quietly await developments."

My advice was followed, and I do not believe that William Marion Reedy, who is now proprietor and editor of the St. Louis Mirror, has ever known just how much that friendly suggestion of his worried his friend Marshall F. McDonald. I have told in my story how McCulloch remained in jail and got the facts from Maxwell, and our scheme was not spoiled by Mr. Reedy's suggestion, for he never repeated it to any other person.

The testimony at the trial was overwhelming against Maxwell, and the jury before whom this case was tried quickly returned a verdict of guilty of murder in the first degree, and Hugh M. Brookes, alias Maxwell, was hung for one of the most cold-blooded murders of the age.

The St. Louis police department had an exhibit in the Educational Building during the Louisiana Purchase Exposition, St. Louis, which consisted of photographs and police records of criminals, burglars, tools and various weapons. This exhibit also had the noose with which Brookes, alias Maxwell, was hung, and his photograph and the picture of the two St. Louis officers who brought him back from Auckland, New Zealand. There were thousands of people who viewed this exhibit, and I deem it proper to tell the public that the police department had positively nothing to do with obtaining the evidence that convicted Maxwell. They had really nothing to do with his arrest, other than sending out his description. He was arrested through the efforts of Capt. Leas, Chief of Police of San Francisco, Cal. His conviction was due to my efforts and the work of my operative, McCulloch, and to Messrs. Clover and McDonald. Mr. Clover paid the expenses from his own pocket and Mr. McDonald deserved a great deal more credit than he was accorded for the masterful way in which he handled the prosecution,

but not one of these names were mentioned in the exhibit at the World's Fair. Mr. Clover paid about six hundred dollars out of his own personal funds for the expenses incurred in obtaining the evidence, and I got a black eye and a swollen jaw as my compensation.

Dingfelter, while in the jail, also made the acquaintance of two brothers by the name of Johnston, who had been arrested in New Orleans and brought to St. Louis for safe keeping by the United States authorities, on the charge of having had a large number of Brazilian bonds printed. These bonds were counterfeit, utterly worthless to any one who purchased them. The government secret service had captured a lot of these spurious bonds and had brought the prisoners to St. Louis until they could be tried in the Federal Court.

The Johnstons took a liking to Dingfelter and told him all about their scheme, where they had gotten the printing done, by whom, and all the other facts of their crime. Dingfelter did not solicit any confidences, but they, supposing him to be a shrewd crook, thought their secret was safe, until Maxwell was on trial and Dingfelter, as he was known to them, took the stand and testified, giving his right name, John F. McCulloch, and his business, that of a detective. As soon as the Johnston brothers learned who and what Dingfelter was, they sent word to the United States authorities that they had admitted to Detective Dingfelter everything pertaining to their guilt, and they were willing to plead guilty to the charges pending against them in the Federal Court. This they did when they were arraigned for trial.

THE BIG COTTON SWINDLE.

TRAGIC ENDING OF A BIG CASE ON WHICH A GREAT DEAL OF
REAL DETECTIVE WORK HAD BEEN DONE.

The cotton swindle occurred at Sherman, Texas, on the Texas & Pacific Railroad, early in the fall of 1883. It was in the cotton shipping season, and Sherman was a point from which a very large amount of cotton was shipped annually, it being the principal shipping point, or outlet, for one of the largest cotton producing districts in the state. For this reason the eastern cotton buyers and cotton mill owners were represented by agents at these shipping points. These agents were really brokers. It was the practice of these brokers, as soon as they had purchased cotton, to have it delivered at once to the railroad company for shipment, when they would receive from the railroad company's agent a bill of lading, setting forth the number and weight of each bale. This bill of lading, when signed by the railroad agent, was negotiable at any bank in the cotton producing district. The bank would take the bill of lading, allowing the depositor ninety per cent cash on the face value and would hold ten per cent back until the exact value of the cotton was ascertained by the proper officials. The practice of cashing these bills of lading was then general in the cotton-growing country, and, I presume, it is at the present time.

It was early in the month of January, 1884, when I was suddenly called to the office of Capt. C. G. Warner, who was then General Auditor for the Gould Railway System. The Texas & Pacific was one of the many Gould lines. I occupied the position of Chief Special Agent for that system.

On my arrival at Capt. Warner's office, he informed me that he had just received from Sherman, Texas, a long telegraph message from one of his traveling auditors, which stated that a large amount of cotton, which had been shipped from that station, had undoubtedly been diverted in transit, as the cotton had not reached its proper destination. Capt. Warner instructed me to go to Sherman at once, where I would find the traveling auditor, Mr. Finby, and make a thorough investigation.

I left St. Louis on the first train, and arrived at Sherman in due time, where I found Mr. Finby, who informed me that the company's agent, in charge at Sherman (whom I will call No. 4) had left there on the Saturday night previous, since which time not one word had been heard from him. He further stated that No. 4 had told his assistant on Saturday evening, that he was going to take a run down to Galveston on personal business, and expected to return on the following Monday. It then being Wednesday, and No. 4 not having returned, Mr. Finby had become aroused and wired the head of his department at St. Louis, which accounted for my appearance in Sherman. I at once began my investigation, with a view of locating No. 4, the missing agent. I remained in and about Sherman several days, during which time the traveling auditor was busily engaged, with some of his assistants, in auditing and trying to straighten out the accounts of the station.

In the meantime, telegraph messages of inquiry were pouring into Sherman from parties in New York, Philadelphia, Fall River, Mass., and Providence, Rhode Island. These parties had purchased and paid for large quantities of cotton, the total amount aggregating \$121,000, and they wanted to know why they had not received it. Messages of this kind had been pouring into Sherman for a month or six weeks prior to the time Mr. Finby had been called there.

The officers of the railroad became alarmed, believing from the facts learned up to this time, that the cotton for which the eastern buyers were inquiring, had been shipped and had been diverted, and probably stolen. If this were true the railroad company would be responsible for the loss of the cotton to the buyers and would probably have to pay additional damages. Thus the loss of this cotton was a serious matter for the company.

After I had worked at Sherman for about ten days, as hard and earnestly as I had ever worked on a case in my life, I succeeded in obtaining information that led me to believe that there were three other men connected with No. 4, the missing agent, in this swindle. I had also succeeded in locating the family and friends of No. 4, and the other three suspects, whose names I withhold for the reason that some of them were connected with respectable families and have near relatives living today, who were in no way responsible for the wrong-doing of these men and ought not to be subjected

to the humiliation which the publication of these names might inflict upon them.

During my investigation I learned that one of these men (whom in mentioning I will call No. 1) had a brother living in New Orleans. (I will call the other two confederates No. 2 and No. 3, withholding their names for the reasons I have already given.) I had decided to go to New Orleans direct from Sherman and there quietly investigate the brother of No. 1. I had also telegraphed to my office at St. Louis, Mo., instructing George W. Herbert, one of my assistants, to meet me in New Orleans, which he did.

We located No. 1's brother in New Orleans very easily, and after I had previously obtained information that No. 1's wife might be stopping temporarily with her brother-in-law's family, who were living in a large and rather pretentious mansion in that city, I began to watch the mansion for the purpose of learning, if possible, whether or not No. 1's wife was staying there. I had a photograph of No. 1 and also of his wife. She was a beautiful woman. She was born and raised in the state of Tennessee, where her mother and other near relatives resided.

I had learned that a man answering the description of No. 1 in all respects had registered at the then leading hotel of Sherman under the name of J. D. Dillard, Jr. This man had reached the hotel at a late hour at night, was assigned to a room and remained in it all the following day, ordering his meals sent to the room, explaining to the hotel people that he was ill. During the day No. 4 called at the hotel and quietly visited the room occupied by Dillard, where he (No. 4) had remained an hour or more. He went to Dillard's room without making any inquiries at the office, merely consulting the register.

Dillard, who was really No. 1, left his room about midnight the following night, and took a north-bound train from Sherman. Nobody had seen the supposed Dillard during the time of his stay at Sherman, except the night clerk, who had not noticed him particularly when he assigned him to his room, and a chamber-maid, a mulatto, who had charge of the room of No. 1, or Dillard, as he called himself, had waited on him while he was there. She had become familiar with his features and stated to me that she would know him on sight any place. She described Dillard accurately, after which

I exhibited No. 1's photograph. She instantly identified it as a good picture of Mr. Dillard. This is what caused me to place No. 1's brother's house in New Orleans under surveillance. I also traced Dillard from Sherman, Texas, to Emporia, Kansas, where the photographs of himself and wife were identified by the proprietor of the hotel and the employes there, at which the Dillards had stopped for a period of a month prior to Dillard's recent visit to Sherman. Mrs. Dillard had remained at Emporia during her husband's absence, and he joined her at Emporia on his return from Sherman, and they departed from there immediately for parts unknown. I traced them to Topeka, Kansas, where the trail was lost.

My assistant and myself kept up a steady watch on the home of the brother of No. 1, in New Orleans, day and night, for about three weeks. We divided the time into eight hour watches, one of us sleeping while the other was on duty. It was one of the most difficult tasks of the kind I had ever undertaken, for the reason that I was personally known to the chief of police of New Orleans, who was a friend of mine. I was also known to a number of police detectives of that city, and owing to the prominence of the family and connections of No. 1 I did not deem it expedient to meet any of the police authorities, as by so doing I, of course, would feel compelled to explain to them the cause of my presence in their city. I had no doubt that some of them would render me all the assistance they could, but I was afraid that some of them might talk about my presence in the city, and the friends of No. 1 might hear of it, and thereby be the means of hindering me in my efforts to locate the whereabouts of No. 1. For this reason it required more vigilance on my part to keep out of sight of the police, who knew me, than what I was bestowing to the watching of the house in question.

During the long vigil many humorous incidents occurred. One morning, after we had been on watch several days, I hit upon a plan to find if there were any women about the big house, as we had seen none up to this time, hoping thereby to locate the wife of No. 1. A few blocks down the street a couple of good-looking young Italian girls were playing a hand organ. The instrument was a fine new one and of exceedingly loud tone. I quietly bargained for their services to take up their station in front of the house I was watching, telling them to play there as long as the police would permit them. The music and the performance of the monkeys brought several women from the house to the veranda, but to my disappointment, the much

wanted woman was not among them. The performance was repeated several mornings, with the same results. Mrs. Dillard was not in the house, as we afterwards learned.

Meanwhile the brother, a gentleman of leisure, was in the habit of strolling each morning from his house to the postoffice, where he usually mailed several letters. He always dropped these letters in the general receptacle, which had an opening in the main corridor at least a foot in length and three inches wide, and led to a large box in the basement below the main floor. This box would hold probably a wagon load of letters and packages, and when a letter was dropped in this mass it was almost impossible to find it again.

No. 1's brother was a man middle-aged, rather slow in his movements, and very deliberate in everything that he did. He carried these letters in an inside pocket of his dress coat, and walked with a cane. He would approach the general mail box, placing his cane under his left arm and carefully removing his snug-fitting glove from his right hand, would take the letters, consisting of three or more, and in an exasperatingly deliberate and slow manner deposit them in the box with the other mail. He would watch them until they had disappeared down the chute and out of sight. This operation was repeated by him daily, except Sundays, during the three weeks, and witnessed each time by either Herbert or myself, and had grown very tiresome to both of us. Finally I concluded that we would prepare two letters and address them to ourselves, stamp them properly and then cover the back of each envelope with a thick coating of mucilage. Herbert was given one of the letters, I keeping the other. Herbert placed himself on one side of the chute, while I took my position on the other side, each of us being some distance away from the receptacle.

The main corridor of the postoffice, in the forenoon, was generally crowded with people passing to and fro, between the hours of ten and twelve o'clock; for this reason we attracted no special attention. We knew about the time that No. 1's brother was in the habit of visiting the postoffice, and, therefore, we were not kept waiting but a few moments for his appearance. He approached the mail box in his usual manner, and was as painfully deliberate as he had been on previous occasions, and after he had gone through the customary maneuvers, but before he had time to drop the three

letters from his hand, Herbert rushed up to the receptacle from the left side and I from the right, and we both reached out our hands at the same time with the letters we held having the mucilaged surface, in such a way that they came in contact with the three letters he had in his hand, and forcing the letters into the chute with ours, the mucilage sticking the bunch of five letters together. All slid into the chute. No. 1's brother became very indignant and muttered something about rudeness and awkwardness. I attempted a hasty apology and disappeared around the corner to the office of the Assistant Postmaster, whose acquaintance I had previously formed. I told him that I had just deposited two letters in the main repository and that I had discovered that I had placed the letters in the wrong envelopes, and wished to get them so that I might rectify my mistake. He at once conducted me to the main mail box below, where there were at least a half a wagon load of letters and general mail matter. I at once found the bunch of five letters which were stuck together with the mucilage, and in separating them had ample time to note the different addresses on the three envelopes mailed by No. 1's brother. One of these was addressed to a relative of Mrs. Dillard, to her home in Tennessee. Another was addressed to another brother of No. 1, who resided in Atlanta, Georgia. The third letter was addressed to J. D. Dillard, Jr., Ocean Springs, Mississippi. I knew of the relatives in Tennessee and of the brother in Atlanta, Georgia, and also that J. D. Dillard, Jr., was the man I wanted to locate, and for the first time learned that he was at Ocean Springs, Mississippi. Ocean Springs was then a small winter resort located on the Louisville & Nashville Railroad, between Montgomery and New Orleans. It was also an harbor on Mobile Bay and near Biloxi, Mississippi.

Upon the receipt of this information I went to Ocean Springs, Miss., arriving there about midnight on the night that I had seen the letter addressed by No. 1's brother to this place. There I found that the postoffice of the town was kept in a grocery store, which was part of the principal hotel of the town. I learned that the landlord, who was a very genial, clever man, and proprietor of the grocery store, was postmaster. I quietly showed him the photograph of No. 1 and his wife, and he immediately identified them as Mr. and Mrs. Dillard, Jr. He told me that Dillard had represented himself to him as a rich iron manufacturer from Chattanooga, Tenn., that his wife was in ill health and that they had been there for the past month or

more and had rented a beautiful cottage known as the Montgomery Cottage, where they were living. This cottage was situated on a small peninsula, which extended from the main land, dividing Biloxi Bay from Mobile Bay. It was about two miles from the postoffice at Ocean Springs. The positive and ready manner in which the postmaster identified the photographs satisfied me beyond any doubt that I had succeeded in locating No. 1. I gave the postmaster to understand that No. 1 had fallen heir to a sum of money and property, and that neither he nor his wife had become aware of the fact, and that I was very desirous of apprising him of his good fortune as a surprise, and before doing so, I desired to have all necessary papers prepared, which would require a week or ten days, and, therefore, I was anxious to have the matter kept a profound secret until everything was ready. The postmaster readily promised me that he would not mention the matter to any person until I gave him permission to do so, and after making these arrangements I felt perfectly safe in not arresting No. 1 until I had secured the proper papers authorizing the same.

It was necessary for me to obtain requisition papers from the Governors of Mississippi and Texas. It would take about eight or ten days to accomplish this, as proper complaint had to be lodged at Sherman, Texas, request for the requisition had to be sent from Sherman to Austin, Texas, and the request of the Governor of Texas to the Governor of Mississippi for the extradition papers, at Jackson, Miss., where the agent for the state of Texas had to appear in person to receive the papers. I had myself appointed as the agent for the state of Texas.

At the conclusion of my understanding with the postmaster of Ocean Springs, I took a night train to New Orleans, where I met George Herbert, and instructed him to go on the first train to Ocean Springs, and on arriving there to represent himself as an invalid and to act the part. He was naturally thin and had a sallow complexion, usually without any color.

He represented himself as having just passed through a severe attack of rheumatism, and claimed that he had been advised by his physician to come to Ocean Springs, where he should spend at least a month during his convalescence. He equipped himself with two heavy walking canes, which he carried continuously during his stay at Ocean Springs, and while he made good progress walking, he seemed to bystanders to do so with some

difficulty, but the balmy climate of the resort seemed to benefit him greatly, and he appeared to improve daily while there. He was instructed by me to meander around and to get to the Montgomery Cottage, providing, of course, if he could succeed in so doing without arousing any suspicion, and if he did succeed in getting inside of the cottage, that he was to make a diagram of the place and surroundings, which Herbert could do nicely, as he was a good draftsman. He succeeded admirably. He formed the acquaintance of No. 1, whom he met at the postoffice on the second day after his arrival. He also met him again the following day at the same place, when No. 1 gave him an invitation to come over to the cottage and take a sail on the bay, as he (No. 1) had a very nice sailing yacht, which he kept anchored in front of the cottage. Herbert accepted the invitation and visited the cottage the following day, when No. 1 introduced him to his wife, mother-in-law and brother-in-law, who happened to be at the cottage making a visit. He belonged in Tennessee. Herbert was also introduced to a young woman, about thirty years of age, who was rather good-looking, a brunette and of medium size. This woman was introduced to him under an assumed name, as we learned within a few days thereafter that she was really the wife of the missing agent.

Herbert was invited to luncheon at the cottage, and took a short sail with No. 1, No. 1's wife and the brunette lady before mentioned. The yacht was a schooner-rigged, of about twenty tons burden, and was skillfully manned by a man about thirty-five years of age, black curly hair, a little bald, about five feet, five or six inches in height, weighing probably one hundred and thirty or thirty-five pounds, dark complexioned, and inclined to be slender, hollow cheeked, and had somewhat of a consumptive appearance. Herbert was not introduced to this man by his host, but thought nothing of the matter, believing the sailing master, who was always in uniform, to be simply an employe of No. 1.

Herbert made a good diagram of the interior of the cottage, as well as the entrances and the grounds and outbuildings. After that he made daily visits to the cottage, when the weather permitted, the occupants seeming to enjoy and encourage his visits. He had made arrangements with the livery stable for the services of an old, but gentle horse, and an old-fashioned buggy, in which he drove around every day.

Herbert forwarded the diagram to me along with his daily reports during my absence from Ocean Springs. All this time I was busily engaged in procuring the necessary papers and making arrangements to effect the arrest of both No. 1 and No. 4, as upon receipt of Herbert's accurate description of the sailing master of the yacht, I had become satisfied that the sailing-master was none other than No. 4, the much wanted agent.

In due time I procured the papers and proceeded to Canton, Miss., which was the county seat for Ocean Springs. I there found Sheriff Clark of that county. As sheriff he was commanded in the requisition papers to render me, as agent for the state of Texas, all assistance I needed in making the arrests. I found Sheriff Clark to be a fine, affable gentleman of the "old school." He was an ex-Confederate captain, having served through the Civil War, had been elected sheriff of his county at the close of that conflict, and had succeeded himself in office up to the time of which I write. I requested the sheriff to go with me himself and furnish one of his deputies.

We left Canton, which was about twenty miles north of Ocean Springs, about ten o'clock at night, and arrived at a station five miles north of the Springs an hour later, where we left the train, as we did not deem it safe to get off the train at Ocean Springs. I had been informed by Herbert, with whom I was in daily communication, that No. 1's brother-in-law visited the depot at Ocean Springs at night so as to see everybody who got off the night trains at that station. He also stated that all passenger trains passing that station were seen by some person connected with the cottage.

I omitted stating heretofore that both No. 1 and No. 4 were good telegraph operators, and Herbert, while inspecting the premises, had noticed two tiny copper wires running into the cottage, and had followed them from the cottage to the Louisville and Nashville Railroad, and later discovered that these wires were connected with the commercial wire of the Western Union Telegraph Co., that ran between New Orleans and the north. He also found that they had a telegraph office fixed up in one of the rooms of the cottage where they could find out all that was passing over the wires of the Western Union Co., and take their ease.

The peninsular upon which the cottage was situated was thickly covered with pine and cedar trees, and the wires were entirely hidden and could not

have been discovered by any person unless one who was engaged as Herbert was, so that these gentlemen could while away their time listening to what was going over the wires.

After leaving the train, Sheriff Clark, his deputy and myself leisurely walked down the tracks to within a quarter of a mile of Ocean Springs, and then making a detour around the station, we reached the peninsula south from Ocean Springs, at which point I had arranged to meet Herbert.

It began raining the evening before we had left Canton, and continued to rain all night. It was in the month of February, and was a cold and chilly rain. The night was inky dark.

When we reached the peninsula we were sheltered by the dense foliage of the trees, and we approached the cottage to within about one thousand feet, and then decided to remain quietly among the trees until we could see daylight begin to appear in the east. At the first appearance of daylight Herbert and myself reconnoitered, circling the cottage, he going one way and I the other. We found that every one was apparently asleep. We then went back and reported to Sheriff Clark and his deputy. We surrounded the place, Herbert and the deputy covering the rear of the cottage, and the sheriff and myself going to the front door and rapping for admission, which was denied. After we had rapped for admission we could hear the window shutters being pushed open and the inmates peered out of the windows and discovered that the place was surrounded, or rather guarded, on each side. Finally Sheriff Clark told the occupants that unless they opened the door that we would force it. After some parleying the front door was opened. The door was a double door and only one-half of it was opened, and very suddenly No. 1's brother-in-law, a very tall and slender individual, appeared in the open door with a double-barreled shotgun in his hands, but before he had time to raise the gun to a shooting position, he found himself covered with two double-barreled guns, one in the hands of the sheriff and the other in my hand. Upon being ordered to drop the gun he did so promptly. The sheriff took possession of him and I started down the wide hall, which ran directly through the center of the cottage. As I was passing the second door from the front door No. 1 stepped out of the room into the hall with a pistol in his hand. I recognized him and promptly arrested him.

I said to him, "Where is No. 4?"

He answered, "In the room across the hall."

I went to the room indicated and rapped, but was refused admission. I then forced the door and found No. 4 standing in the middle of the room partly dressed. After some trouble with No. 4 and his wife, we took them all to Ocean Springs. We walked over there, a distance of about two miles. It was breakfast time when we reached there, and the rain had stopped. We went to the hotel and got something to eat, and the landlord learned for the first time the true nature of the surprise that I had in store for No. 1.

There was an early train to New Orleans, and Herbert and I took the two prisoners and left on this train for that city. I telegraphed ahead to have a carriage meet us outside of New Orleans, and we left the train a short distance from that city. Here we entered the carriage, which conveyed us to the ferry boat at New Orleans. We took the ferry and went across to Algiers. Our object in doing this was that I wished to avoid newspaper notoriety. The newspaper men we were sure to meet in the main station at New Orleans had we gone there.

At Algiers we boarded a Southern Pacific train for Houston, Texas. At Houston we took a Houston & Texas Central train, which took us through to Dallas, Texas.

The prisoners were lodged in jail before the newspapers had mentioned the capture or arrest, for the reason that I knew that there were two others connected with the swindle, who resided in Dallas, and had not yet been arrested, who were not even suspected of having any connection with the swindle or any other crime by the people of Dallas.

We arrived at Dallas at night with the prisoners. The following morning the Chief of Police, Jim Arnold, and myself picked up and arrested the other two accomplices. These men were Hebrews. One of them had been a respectable and prominent cotton buyer up to his connection with the swindle. The other was an educated man and somewhat noted for having been mixed up in crooked dealings. He was a lawyer, but was not practicing law for a livelihood.

The reader should remember that No. 1 was an ex-railroad agent and telegraph operator, and had been employed as such up to about one year and a half before he became engaged in this cotton swindle. He had become thoroughly familiar with the railroad system of receiving and handling cotton.

No. 2, who lived in Dallas, was also familiar with the buying and selling, and value of cotton, as well as the customary way of obtaining cash from the banks on bills of lading for the same.

No. 3 was the reputable cotton buyer, or broker, before mentioned in this story. He also lived in Dallas.

The arrests at Dallas added greatly to the excitement which was caused by the incarceration of No. 4 and No. 1 the night before.

The prisoners all waived preliminary hearings and were committed to jail in default of bail to wait the action of the Grand Jury, which convened a month or six weeks later. In the meantime, three of the defendants succeeded in getting bonds and were released from jail. My recollection now is that the bonds were fixed at \$10,000 each.

No. 3 was taken sick immediately after his arrest and continued to steadily grow worse until he died, which was about two months after he was arrested.

No. 1 and No. 2 almost immediately after they had been released on bonds fled the country, No. 1 going to Old Mexico, and No. 2 seeking refuge in London, Ontario, Canada.

When the cases were called for trial in court at Dallas, Texas, No. 1 and No. 2 failed to appear, and their bonds were declared forfeited. No. 3, having died, his bond, of course, was not forfeited.

No. 4, it appears either did not try to procure bail, or if so, did not succeed, as he remained in jail. Meanwhile I was employed in procuring duplicates of the bills of lading, which had been issued and sold to the purchasers of the cotton, which caused me to visit the cities of Philadelphia, New York, Providence, Rhode Island and Fall River, Mass. The procuring of these

duplicates proved no easy task, but I finally obtained certified copies of all of them. These duplicates were to be used as evidence at the trial.

I was at Dallas on the date set for the trial, and, on learning of the absence of the defendants, and that the court had postponed the trial of No. 4, he being the only one within the reach of the court, I at once reported the situation to the railroad officials at St. Louis, in reply to which I received instructions by wire from Vice-President Hoxie, of the Missouri Pacific to proceed at once to locate and arrest the fugitives and take them back to Dallas, and there to turn them over to the proper authorities, so that they might be dealt with according to law.

Upon receipt of these instructions, I detailed operatives Bailey and Herbert of my staff to locate and arrest No. 1, which they succeeded in doing after a lot of hard and good work. They arrested him at Guymas, Old Mexico. This city is located on the Pacific Coast. They brought their prisoner back to Dallas and lodged him in jail.

I had assumed the task of locating No. 2. After considerable work I discovered that he was in London, Canada, which is just one hundred miles east of Detroit, Michigan. I visited London, where I saw No. 2, without being seen by him. He would have known me at sight, as it was I who had arrested him in Dallas.

I found that he had surrounded himself with a number of sympathizing friends in London, many of whom were fugitives from justice from the United States, as he was. Many of them, he among them, had money and felt safe while on Canadian soil.

The extradition treaty then in force between Great Britain and the United States was known as the Ashburton and Webster Treaty, and was passed, I believe, in 1844. This treaty only permitted the extradition of fugitives charged with one of seven crimes; murder, felonious assault with intent to murder, arson, rape, forgery, uttering of forged paper and perjury.

After I had seen No. 2 in London, I communicated the facts by wire code to Mr. Hoxie, he giving my report to ex-Governor John C. Brown, the General Solicitor for the Gould System of railroads. His headquarters were in the same building with Mr. Hoxie's at St. Louis.

Governor Brown was thoroughly conversant with this case, and had a national reputation as a lawyer, and when told by Mr. Hoxie of the whereabouts of No. 2, he at once wired me, by code, to try my best to induce No. 2 to accompany me across the line of Canada into either Michigan or New York state. If I succeeded in getting him across the boundary line I could hold him in either state until extradition papers could be secured from the Governor of Texas.

From the instructions Gov. Brown had wired me, I was satisfied that the Governor was not familiar with the statutes of Canada pertaining to extradition. If I had attempted to induce the fugitive across the Canada line for the purpose of arresting him without legal authority I would be subjecting myself to prosecution for kidnapping. If convicted of that charge under the Canadian statutes, I would have been sent to prison for a term of from two to seven years. Knowing that it was impossible for me to obey Gov. Brown's instructions, I employed a young attorney, or barrister, as they are called in Canada, whose name was McBride, and while he had been practicing law but a few years, he was recommended to me very highly for his ability and integrity.

During my consultation with him I explained to him fully that the bills of lading, which had been used in the cotton swindle, had been signed by the company's agent in blank and then turned over by the agent to No. 2 in blocks. No. 2 had then filled out each blank for various numbers of bales of cotton, setting forth the number of bales and the weight of each bale in the regular way. He then turned the bills of lading thus prepared by him over to No. 3, whom the reader will remember was a cotton buyer. No. 3 placed these bills of lading in various banks at Sherman, Dallas and other Texas towns. He drew cash from the banks for the face value, less ten per cent, for the purpose heretofore stated. After explaining all this to Mr. McBride, I asked him what crime these men had committed under the statutes of Canada. He promptly answered without even referring to the statutes, that under the Canadian law, they were all guilty of forgery and having uttered and published forged paper, including the company's agent who had signed each of these bills as agent.

I said, "Supposing these men had fled from the United States and were found in Canada, could they be arrested and extradited back to the United

States for trial?"

"Yes," he said, "they surely could, under the provisions of the Ashburton and Webster Treaty, which provides for the extradition of fugitives who are legally charged with the crime of forgery, or of uttering and publishing forged paper."

"But," I said, "Mr. McBride, the company's agent signed these bills of lading."

He replied, "I understand from you that the agent had received no cotton. Am I right?"

I answered, "Yes, he received no cotton."

"Then," said Mr. McBride, "the agent signed the bills of lading for fraudulent purposes, and therefore his signature was unauthorized by the company who employed him, and under the Canadian law he is a forger, while the other conspirators would be guilty of uttering and publishing forged paper. The penalty would be just as severe for the latter offense, under the Canadian law, as it would be for forgery."

I neglected to state that after I had located No. 2, at London, Ontario, the railroad company's attorneys were informed by the judge who presided over the criminal court at Dallas, Texas, that in his opinion the fraudulent bills of lading heretofore described were not forgeries, as they had been signed by the company's agent, and for this reason, I presume, Gov. Brown instructed me as he did, he knowing that the fugitive, No. 2, could not be extradited from Canada unless we could substantiate a charge for forgery against him. No doubt, at the time, Gov. Brown believed the ruling of the Texas judge was correct. All of which I fully explained to Mr. McBride, to which he replied, "A Texas judge has no jurisdiction in Canada, and his opinion or construction of our law would amount to nothing here. And if you find any fugitive from the United States in Canada, who has been connected with the swindle, you will have to identify them as being the right parties, and then set forth the manner in which the swindle was enacted and the amount of money or property secured by the swindlers, and it does not make any difference what name the Texas statutes or the Texas judge gives the crime committed in the manner you have described to me, it would be forgery

here. You must understand that you must comply with the requirements of the Canadian laws in order to extradite a fugitive from Canada. If you should find your fugitive here in London you can, if you desire, go to any other county or city in the province of Ontario and make your complaint, have a warrant issued for the arrest of the fugitive, bring an officer from that county or city to serve the warrant, arrest him here and take him immediately before the magistrate who issued the warrant, and have the prisoner committed to jail for two weeks without bail. At the expiration of the two weeks, should you desire an additional two weeks, you can secure same by convincing the magistrate that you were unable to secure the presence of the necessary witnesses to substantiate the identity of the prisoner, and his connection with the swindle; our law will allow you these continuances. After the prisoner had had his preliminary hearing, if the testimony offered should be sufficient to satisfy the magistrate, he would then fix the bond at the amount of four times the amount involved in the swindle, which would be in this case nearly one-half million dollars."

After McBride had finished the foregoing advice to me, I thanked him and paid him his fee, which was only \$10.00, and went to Chatham, Ontario. Chatham is the county seat, about fifty miles west of London, and just half way between London and Detroit, Michigan.

I found the queen's counsel at Chatham, to whom I fully explained my case. Whereupon, he verified and approved the advice I had received from Mr. McBride of London. I at once filed the necessary complaint, and procured a warrant for the arrest of No. 2. The warrant was addressed and given to the chief of police of Chatham, who accompanied me back to London, where I pointed out the fugitive to him.

We arrested him immediately and took him to Chatham, where he was locked up as a fugitive, and his hearing set for two weeks later in accordance with the Canadian law.

The reader will remember that when I first located No. 2 in London he was surrounded by newly found friends there, a number of whom were fugitives like himself. For this reason I felt it prudent to begin legal proceedings against him in a country where both he and I were strangers and avoid the

annoyance and trouble which his sympathizing fugitive friends were sure to cause.

As soon as No. 2 was safely lodged in jail I wired Gov. Brown at St. Louis, Missouri, stating that I had arrested and locked up No. 2 on the charge of being a fugitive from the state of Texas, United States of America, that the hearing was set for two weeks later and that while passing through St. Louis on my way to Texas, I would stop over long enough to report in person to him. In about two hours I received his reply, which was a severe reprimand, and read as follows: "Why did you disobey my instructions when you knew that I had instructed you as to what the Texas judge had decided, and therefore, the fugitive could not be extradited from Canada under the existing treaty, nor in accordance with the act of Congress, which provides for said treaty. Answer." (Signed) John C. Brown.

To which I answered as follows:

"Hon. John C. Brown, General Solicitor, Missouri Pacific Railroad Co., St. Louis, Missouri:—I disregarded your instructions, finding them erroneous, and that you did not understand the law pertaining to this case. Have also learned that a Texas Judge's ruling are not considered in Canada, as I find that I can legally extradite the fugitive from Canada under the present law." (Signed) Thomas Furlong.

After sending the above message, I borrowed a copy of the revised statutes of Canada from the Crown Counsel, who would be called prosecuting attorney in the United States. He marked each section of the statutes which pertained to our case. I at once put the law book in my grip, and started for St. Louis, arriving there the following morning.

I immediately reported to Vice-President Hoxie, whom I found in his office. After the usual greeting Mr. Hoxie said to me, "Tom, Gov. Brown showed me a message that he had received from you yesterday. He appeared to be quite angry."

To which I replied, "I am here to explain my actions fully, and I wish you would kindly request Gov. Brown to come to your office at his convenience, as I think my explanation should be made to him in your presence so that one explanation may serve both. My time is limited, as I

must go to Texas and procure certain witnesses and return with them to Chatham, Ontario, within two weeks, the time set for the hearing."

Whereupon, Mr. Hoxie sent for Gov. Brown, who appeared in a few moments. After the usual salutation, I repeated the instructions I received from him. I then stated that I had found it impossible for me to have carried out the instructions in Canada without subjecting myself to prosecution, and probably a sentence to the penitentiary, and I, therefore, concluded to do the next best thing, which was to employ a competent attorney, who advised me as to my rights and how to proceed legally under the laws of that country. I then produced the copy of the statutes, which I had borrowed from the crown counsel, and directed Gov. Brown's attention to the marked sections before mentioned, which he carefully read. After he had finished I produced and read the telegram I had received from him, at the same time calling his attention to the question he had asked me to answer in his message.

He then compared his message with the one he had received from me in dignified silence, and then without a word handed the two messages to Mr. Hoxie, near whose chair he was standing. Mr. Hoxie read them and then looked up at the Governor and said, "Governor, what do you think of this matter?"

For answer Gov. Brown deliberately walked around the table to where I was sitting and extended his hand to me, and I arose and took it. He turned to Mr. Hoxie and said in a pleasant manner, "Furlong was right all the way through." Then turning to me he said, "Furlong, you ought to have been a lawyer. I was a little angry when I received your message yesterday, but I see that it was all right, as you only answered the questions I had asked you."

I left St. Louis for Dallas that night, and while there I arranged with the Chief of Police, Jim Arnold, and other well-known citizens, to accompany me to Chatham, Ontario, as witnesses in the case pending against No. 2. These witnesses had all known No. 2 for years, and were familiar with his reputation as to truth and veracity, his business connections, etc. The witnesses and myself arrived in Chatham in time for the hearing of No. 2.

The judge, after hearing the evidence, committed No. 2 to jail without bail to await extradition papers from the President of the United States and the

Governor General of Canada. No. 2 was defended in the hearing by two noted barristers, who at once appealed to a higher court. In due time the appeal was argued and the action of the lower court sustained; whereupon No. 2's counsel had the case taken up to the Privy Court at Toronto. This court affirmed the action of the lower courts, and it being the highest tribunal in Canada its decision was final and No. 2 was committed without bail for extradition.

I immediately left Toronto for Washington, D. C., having already received the necessary papers from the state of Texas. I presented these to the Department of Justice in Washington, on the evening of my arrival there, and they were promptly approved and sent to President Cleveland for his signature. By the way, these papers were the first of their kind ever signed by President Cleveland, it being but four days after his inauguration for his first term as President of the United States. The papers were delivered to me and I left for Chatham, Ontario, for the purpose of taking No. 2 back to Dallas, Texas, for trial and bearing the commission of President Cleveland to do so.

The following day the train on which I was riding stopped twenty minutes at Canandaigua, New York, for dinner. As I was eating my dinner a messenger boy called out my name at the dining room door. I answered and he handed me a telegram, which was from the high sheriff of Chatham, and read as follows:

"When my jailor went to the cell occupied by No. 2 at twelve o'clock to day he found him dead. Had apparently been dead an hour. Cause of death yet unknown. Probably heart failure."

I wired him that I would be in Chatham on the following morning. On my arrival there a post-mortem autopsy was made of the body of No. 2, and it developed that he had committed suicide by taking laudanum. The sheriff and the jailor have never been able to satisfy themselves as to how No. 2 got possession of the poison. He had friends and relatives who lived at Jackson, Michigan, who called at Chatham and identified the body, and took it to Jackson for burial.

I then returned to Dallas, Texas, so as to be present at the trial of No. 1 and No. 4, they being the only two of the swindlers left for trial.

When I had first arrested the swindlers and placed them in jail at Dallas, the Prosecuting Attorney called me to his office and told me that the defendants had employed a number of the most able attorneys at that bar to defend them, and he said that he thought that the railroad company ought to permit him to select an attorney to assist him in the prosecution of the defendants. I told him that I had no doubt but that General Solicitor Brown would do so if he would make the request of him.

He replied that as I was going direct to St. Louis that he wished me to make the request for him, which I did. When I delivered his request to Gov. Brown, he replied that Capt. Tom Brown, of Sherman, Texas, was the railroad company's attorney in that district, an able lawyer, and he would be glad to instruct him to assist the Prosecuting Attorney in every way that he could, or, he would furnish him any other of the company's attorneys in Texas, should he believe their assistance necessary, and that he would take it up with the Prosecuting Attorney at Dallas and make all the necessary arrangements.

I communicated these facts to the Prosecuting Attorney. Later Gov. Brown informed me that he (the prosecuting attorney) had selected a lawyer to assist him who was not in any way connected with the railroad service, and that he had suggested that this assistant should be paid a fee of five or six thousand dollars by the railroad company for his services. Gov. Brown further stated that the attorney selected for an assistant was not looked upon with favor by either himself or any of his assistants. Some of the assistants connected with the legal department of the railroad company, under General Solicitor Brown, refused to associate themselves with the cases if the man selected by the Prosecuting Attorney was connected in any way with them. His services were refused and Capt. Tom Brown went to Dallas for the purpose of assisting in the prosecution of the two remaining accused swindlers.

I had turned the duplicate bills of lading over to Capt. Brown and on the morning of the trial of No. 1 and No. 4, he placed these papers in his overcoat pocket with other documentary evidence. He was a little late and hastened into the dining room, leaving his coat and hat on a rack in the corridor of the hotel. When he finished his breakfast and returned to his overcoat he discovered the papers had been stolen. When the cases were

called into court, the prosecuting attorney asked that a nolle prosequi be entered in the cases, thus letting two of the principals in the swindle go free.

Thus ended the cotton swindle, the most gigantic swindle of this kind that had ever taken place in the United States, or, I believe, in any other country up to that time.

Capt. Tom Brown was afterwards elected as Judge of the Supreme Bench of Texas, and was always esteemed as an able jurist and a thorough gentleman.

A REMARKABLE CASE.

IDENTIFICATION OF A LITTLE GIRL FROM A DESCRIPTION GIVEN OF HER FATHER, LEADS TO THE LATTER'S ARREST.

Identification of criminals from descriptions is not always an easy task, for two reasons. First, there are but few men who can intelligently describe a person from memory. This is an art within itself. The second reason is, it takes so little to change the general appearance of a man to such a degree that it is hard to pick him up from a mere description, that is, unless the man wanted has some peculiar feature or form that is very noticeable. The ordinary man, to change his general appearance, has to do but little. A change of shape or style of hat or clothing, the cutting off or growing of a mustache, or even a haircut or shave will often serve the purpose. I have never claimed to have what is today called "a camera eye" but I did a piece of identification work while special agent of the Allegheny Valley Railroad in the early '70s of which I have always been proud, for the reason that there has absolutely never been another case like it in the police annals of the entire country.

During the spring 1874, a man giving the name of Joseph Chalfont applied to Mr. Thomas M. King, the Division Superintendent of the Allegheny Valley Railroad, at Pittsburg, Pa., for a situation as locomotive engineer. This man, Chalfont, was a rather remarkable person, appearing to be about thirty-six years of age. He stood more than six feet in height, with extremely long arms and legs. His complexion was dark and sallow, and his hair coarse and black. His neck was very long, with a noticeable "Adam's Apple." His cheek-bones were high, and his nose straight and long. His eyes were beady and black, being set far back in his head and very close together; they were crowned with a bushy pair of eyebrows, which met above the ridge of his nose. Then to make the picture more complete, his forehead was low, giving his head a small, bullet-like appearance. The reader can see that a description of this man, if given accurately and with any care could be almost as good as a photograph.

Chalfont presented a letter of recommendation from the Master Mechanic of the Lake Shore & Michigan Southern Ry., at Buffalo, N. Y. The letter was very good, and stated that Chalfont had been in the employ of that company for a couple of years, and that he had left its service of his own accord, because he hoped to benefit himself by a change of climate. Supt. King was a close observer, and a good judge of human nature. He was badly in need of men at the time, and being rather impressed with Chalfont's appearance and manner, he examined him as to the rules governing the movement of trains. He stood a fair examination and was engaged. It is usual for an engineer who has not been promoted on a road, or who comes from another road, to spend several weeks in riding on the engines back and forth over the portion of the road on which he is expected to run. In this way a man could become familiar with all the grades, switches, side-tracks, curves, signals and so forth. Chalfont was given a copy of the company's rules and an order to learn the road. When he had done this he was given freight engine No. 42 to haul freight between South Oil City and Pittsburg. One day he was given a train of empty oil tanks at Pittsburg, and started for South Oil City with them. He arrived there in due time and turned the cars in safely. The following evening he was given a train of forty-five full oil tanks with orders to take them to Pittsburg. When he reached Sarah's Furnace, about half the distance to Pittsburg, he received orders to run upon the side-track there and allow a north-bound freight to pass him. He took the siding as he had been ordered, and in due time the first section of the freight met and passed him there. The engine on this section carried two red lights, which is the warning to railroad men that another section is following the first one, and it has the same roadway privileges as the first section. It therefore became the duty of Chalfont to remain upon the siding until the second section had passed him. Instead of doing this, however, Chalfont pulled out on the main line and started for Pittsburg. About one and a half miles south of Sarah's Furnace there is a curve known as Hard Scrabble Curve, which is one of the shortest and most dangerous curves on the road. Here on this curve Chalfont's train collided with the second section which was going north. Both engines were about the same size and weight, so when they met the force of ninety-five empty cars going north and forty-five loaded cars going south caused the engines to rear up in front, crushing the machinery of both. The fire from the boilers immediately spread, and soon the oil tanks were a mass of flame. As the

heat grew greater the tanks exploded, scattering the blazing oil over the surface of the Allegheny River. The current was quite strong and it carried the blazing oil down-stream for miles, spreading destruction as it went. The heat from the oil changed the wreckage into a mass of molten metal. Chalfont's fireman was crushed to death, as was his front brakeman. The same fate overtook the engineer, fireman and brakeman of the north-bound train. The bodies were cremated in the blazing oil.

At this time oil was worth from \$7.00 to \$8.00 per barrel. The amount of oil lost totals up to nearly \$200,000 in value. The company's loss in property was not less than \$500,000, besides being responsible for the loss of the five lives. All this destruction was caused by the incompetency of Chalfont and the negligence of his conductor.

Chalfont luckily, or rather unluckily, escaped with his life by springing from his engine cab out upon the bluff side of the track. Here he climbed an almost perpendicular cliff about 400 feet high. The blaze from the oil had burned nearly all the clothing from his back, and had singed the back of his head and neck into a blister. He escaped into the hills.

The officers of the company at Pittsburg were notified immediately by wire, and a wrecking train and crew were sent to the scene post haste, in charge of Supt. King. They arrived at the wreck early the following morning. Here Supt. King learned what facts he could as to the cause of the wreck. He then wired to me to come to the wreck on the first train. I was at Oil City at the time, and left immediately, arriving at the wreck about noon. On my arrival Mr. King walked a little distance down the track, out of earshot from the noise of the wrecking crew, and sat down upon a log. He then told me what he had learned and as to the cause of the wreck. He also proceeded to describe Chalfont to me. He was so deliberate and careful in this description that it took him nearly an hour to do it. He had that rare faculty of being able to describe one person to another with accuracy. He then said, "Tom, do you think you could recognize this man from the description I have given you?" I answered, "Yes, I believe I could. The description you have given me reminds me very much of 'Morg' Erwin, a passenger engineer on the road." At this Mr. King, usually very quiet and sedate, grew very excited and clapped his hands as if in joy, exclaiming, "Why didn't I think of that before? He looks like 'Morg' Erwin."

I then said, "No, Mr. King, he looks very much like Erwin, but not exactly like him. He is very much like him in some respects, though, being taller than Erwin. Chalfont's neck is longer and his 'Adam's Apple' is much larger and more prominent. His eyes are not so large and are set back farther in his head than Erwin's. Chalfont's cheek-bones are much higher, while his hair is more coarse and much like horse hair. In short, Erwin is a more refined man than Chalfont."

To this Mr. King replied, "Tom, I feel sure that you will be able to identify that man on sight, and I want you to get him at all hazards. Spare no time or trouble, but 'GET HIM.' Take him to Katanning (the county seat of Westmoreland Co., Pa., where this wreck occurred) and lodge him in jail."

Mr. King then told me that I would find the letter of recommendation Chalfont had given him on file in his office at Pittsburg. I took the first train for Pittsburg, where I applied to Mr. Joe Reinhart, Mr. King's chief clerk, who was later President of the great Atchison, Topeka and Santa Fe System, and he turned the letter over to me. I then concluded to go to Buffalo and see the Master Mechanic of the Lake Shore, from whose office the letter purported to come. At Buffalo I found the Master Mechanic and showed him Chalfont's letter. After reading the letter he told me that the letter head was genuine, but the letter itself, with stamp, seal and signature, were forgeries. He had neither written the letter nor authorized it, but he identified Chalfont's hand-writing. I learned that Chalfont had been a country school teacher earlier in his life, and that he received such small pay as such that he could not support his wife and children. He came to Buffalo, where he applied for work in the round-house of the Lake Shore shops there. He was given a position at wiping engines in the round-house. Here also his salary was too small to support his family and pay rent at the same time, so he was forced to move once a month to avoid paying rent. One day he got into the Master Mechanic's office and stole a part of a block of the official letter heads of the company. He then wrote himself a letter of recommendation which he had shown to Mr. King, and when the chance offered he stamped and sealed the letter, after stealing the stamp one night from the office. About this time he became so lazy and indolent that he was reprimanded by the Master Mechanic.

The Master Mechanic told me that he had discharged Chalfont, previous to his going to Pittsburg, because of failure to pay his grocery bills and his rent. The grocers and landlords were garnisheeing his wages, and as the company did not tolerate such things, he was discharged. He also said that Chalfont's family was somewhere in Buffalo, but he did not know their whereabouts because they had moved so often. I thanked him for this information and then decided to see the Superintendent of Police.

I called at the office of Superintendent Phillips, and asked him to give me an officer who was more familiar with the haunts and dwellings of railroad men in Buffalo than I was. He gladly assented and assigned Detective Tony Collins to assist me. We started out by canvassing the grocers, butchers and milkmen in the neighborhood where the Lake Shore Railway men resided. During the forenoon we found many who knew of Chalfont's family, but did not know where they were at present. About 3:00 P. M., as Collins and I were going down a side street called Hayward St., I noticed a group of six or eight children playing before a row of wooden cottages, or more properly, shacks. One little girl in a dirty blue dress attracted my attention because of the likeness she bore to Chalfont, according to my description of him. I also noticed a grocery on the corner below us. When we got to the grocery I told the man with me, Detective Collins, to go back to the group and ask the little girl in the blue dress to deliver a package to his wife. He was to tell her that he lived in the large white house down the street. I then told him to return to the grocery with the girl so that I could get a chance to speak to her without exciting her. He returned in a few moments with the little girl, who looked uncommonly like a little Indian squaw, and who proved to be the living image of her father. While Collins was inside the store examining the vegetables I said to the girl, "Why, hello, sis, where is your uncle Charlie now?" She smiled and said, "Oh, do you know Uncle Charlie?" I said, "Oh, sure; I know him well." She then said, "He is down in Pennsylvania firing on a railroad." (Uncle Charlie was Chalfont's brother-in-law, and had gotten a position as fireman at the same time Chalfont got his job as engineer.) I then said to her, "Is your father home now?" She looked up and said, "Yes, he got home a couple of days ago, but he is sick, and—oh, he said I mustn't tell any one." I said, "That's all right, but tell me which one of those houses do you live in?" She said, "We live in that middle one, with the bunch of rags stuffed in the window."



"Oh, do you know Uncle Charlie?"

I attracted Collins' attention, and told him to send the girl away on some pretext. We then went up to the house the girl had pointed out. I sent Collins around to the back door and I went to the front door and knocked. Mrs. Chalfont opened the door, and when I asked for Joe Chalfont she attempted to slam the door in my face. I pushed the door open and entered the house. Seeing no one in the front room I walked through it to the door of the back room. Here I saw Chalfont seated before a window with his head and neck all swathed in bandages. As I entered the room he said, without moving,

"Well, Mr. Furlong, you have got me." I answered, "Yes, Joe, I am sorry to say I have." This showed conclusively that I had been pointed out to him while he was on the road without my knowledge. Here I will state that up to the time I entered that room I had never seen Joe Chalfont himself, nor a picture or photograph of him. He had seen me and had heard me speaking so that he knew my voice. I had suspected from the first that Chalfont might know me, so when I saw the little girl, whom I believed was his daughter, I did not stop in front of the houses in which I supposed the children lived, but kept on to the grocery store.

This is the only case of its kind on record in which an officer picked out a child from a group of children and recognized her from a description of her father, whom the officer had never seen.

I arrested Chalfont and took him to Katanning, as Mr. King had ordered. I then went to Pittsburg and reported in detail to General Superintendent J. J. Lawrence. Meanwhile it dawned upon me that I had done a rather commendable thing in arresting this man Chalfont, and I was expecting a little praise from the General Superintendent. Imagine my surprise, upon being ushered into his office, at his beginning to reprimand me for arresting Chalfont. He said, "Furlong, you have gotten this company into a lot of trouble by arresting this man."

To this I replied, "Why sir, Mr. King ordered me to get him at all hazards, and I simply carried out his orders."

He then went on, in a most bitter tone, "Well, you should not have done it. I think I shall be forced to discharge you for so doing. From your reports from Buffalo I see that Chalfont was not an engineer, and, therefore, an incompetent employe. That makes this company liable to damages for the lives lost, and for all the property destroyed in that wreck. Don't you see what you have done?"

I was angered at his words, and said, "Col. Lawrence, if you did not want that man arrested Mr. King should not have ordered me to get him. I believe I am entitled to some little credit for the capture of this man, in view of the fact that the feat is so far unparalleled. So far as discharging me goes, that will be unnecessary, for I have already quit the service of a company which does not approve of my work."

To this Col. Lawrence replied, "Furlong, I beg your pardon, and want to compliment you on your good work on this and other cases, but when this case comes to trial all the facts of Chalfont's incompetency will be laid bare, and it will cost us a lot of money."

I then said, "Oh, I can fix that."

"What can you suggest?" he asked me.

"I will get some prominent lawyer," I said, "to sign his bond; he will be released, and as the quarterly session is nearly three months away it will be hard to find him in three months."

Col. Lawrence said, "See that that is done and I will greatly appreciate it."

A few days later a prominent lawyer of Katanning signed a bond for Chalfont's appearance in court. He was released and at once set out for parts unknown. Of course, he did not appear for trial and the bond was declared forfeited. Through professional courtesy the bond was never collected.

Chalfont was not heard from until the railroad strike at Pittsburg in 1877, when he again appeared in Pittsburg under an alias, and got a job on the Panhandle Ry., running a passenger engine on the MacDonald Accommodation. He got partly over the road on his first trip, and failing to get the proper amount of water in the boiler the crown-sheet blew out of the locomotive, scalding his fireman badly. He again took to the woods and disappeared, and to my knowledge has not been heard of since.

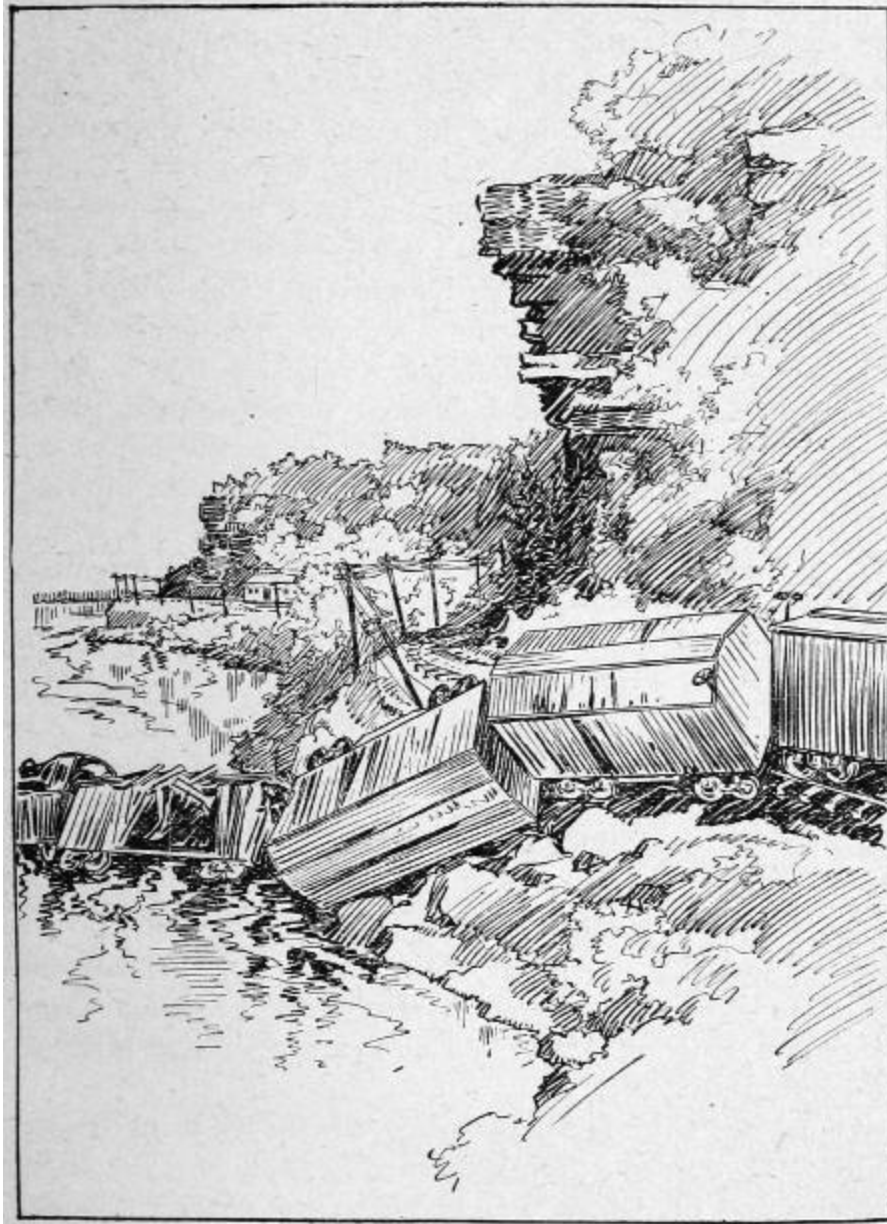
TRACING TRAIN WRECKERS.

REVIEW OF A CRIME WHICH RANKS WITH THE LOS ANGELES
DYNAMITING CASE FOR HEINOUSNESS—HOW CON-
FESSION WERE OBTAINED.

What many of my friends, who are familiar with the case in all of its details, believe to have been my best piece of real detective work during my long career at the business, was done on what is known as "The Wyandotte Wrecking Case" in 1886. While much has been written about this case, yet all the real facts have never appeared in print. The crime, which was the aftermath of the Knights of Labor strike on the Gould Southwest System that spring, occurred on the early morning of April 26th. Freight train No. 38 on the Missouri Pacific was pulling slowly into Wyandotte, now Kansas City, Kansas, and on reaching a point near the north depot on the banks of the Kaw River, the engine and several cars suddenly left the track, rolling down the embankment and some of them into the river. The fireman, Benjamin F. Horton, and the head brakeman, George Carlisle, who were on the engine, were pinioned beneath the wreckage and were dead when taken out. The engineer, J. H. Fowler, was severely injured, dying within a few months from his injuries. The conductor, A. Spaulding, who was in the cupola of the caboose, was thrown from his seat to the floor and painfully bruised and badly shaken up. The rear brakeman, whose name I do not now remember, was the only one of the crew to escape either death or injury.

The discovery immediately after the wreck of unmistakable evidence that it had been caused by wreckers, and because of the prominence of the men who had lost their lives thereby, caused a great sensation and much indignation. The dead fireman was a member of the Brotherhood of Railway Firemen and the brakeman a member of the Brotherhood of Railway Trainmen. All of the newspapers, not only of Kansas City, but of the entire country, denounced the wreckers in no uncertain terms, as did all decent and law-abiding citizens. I will add right here that the facts brought to light at the trial of the men charged with this crime, more than to any other one thing, caused the disintegration or dissolution of the Knights of

Labor. In other words, it was the beginning of the end of that once powerful organization. For the benefit of those readers who are not familiar with the history of this order, I will state that it had in 1886 something over a million members. It had a veritable mushroom growth. No class of people were ineligible to membership; all trades and professions, as well as races and tongues, provided they were males over 18 years of age, and had the price of the initiation fee, usually one dollar, could join. The color line was not even drawn, as it is in most secret societies. Of course, some good honest men were on its roster rolls, but it was dominated by a brazen gang of mountebanks, agitators and crooked politicians and others seeking power and prominence. To gain a point the officers of the organization would stop at nothing. If coercion failed in its purpose, the boycott and more harsher methods were substituted. In short, a veritable reign of terror existed throughout the Middle West. To illustrate their methods better, I will state that if a merchant or other person in business, through a slip of the tongue or otherwise, made even the slightest remark reflecting on the order, or even one of its leaders, he was a marked man thereafter, his business ruined, and he, of course, driven from the country. Business men were often subjected to this treatment—and worse—for simply refusing to join the order. In many of the Western cities it was impossible for a man who did not "jine" the order to be elected to office, however deserving or competent he might be.



Scene at the Wyandotte wreck, a crime only paralleled by the Los Angeles dynamiters.

At the time the wreck occurred, I was very busy in St. Louis looking after cases that had grown out of the great strike on the Gould System, of which I was Chief Special Agent. The strike, which had been over but about a month, was a long, bitter struggle, entailing much work on my department, and had resulted in a victory for the company. I could not get to Wyandotte to investigate the wreck until nearly a month had elapsed. In the meantime the railroad company had offered \$2,500 reward for the arrest and

conviction of the guilty parties, and \$1,000 for any information which would lead up to such conviction. After looking the ground over, I became satisfied that this diabolical crime had been committed by some member, or members, of the Knights of Labor, either out of revenge or to harrass the company and divert traffic from the road. After satisfying myself on this point, I returned to St. Louis and requested Vice-President Hoxie to withdraw the offer of a reward for the conviction of the criminals, as I was then, and am now, opposed to offering rewards in such cases. Mr. Hoxie was in bed sick at the time, but he issued the order as requested, and I promised him that I would personally go to work on the case. A few days later, while I was engaged in laying plans for working out a solution of the case, a bold attempt was made to wreck another train near Tampoo, a short distance north of where the first wreck had occurred. A couple of guards were on this train and these men and some of the crew, who saw the wreckers, gave chase and succeeded in arresting one of them. This man proved to be O. J. Lloyd, a member of the Executive Board of the Knights of Labor, in charge of the late strike. Prior to the strike he had been employed by the Missouri Pacific Company as a switchman and had been a very active member of the committee.

About this time my department was badly in need of a thoroughly trained criminal lawyer to prosecute the cases growing out of the big strike, and at my earnest solicitation, Marshall F. McDonald, former Circuit Attorney of St. Louis, one of the best criminal lawyers of his time, was retained by the company for the purposes named, and given authority by Vice-President Hoxie to employ all other counsel needed. Mr. McDonald accordingly employed Ex-Judge Laughlin and Judge R. S. McDonald to assist him. A few days later, these three lawyers and myself met the Hon. Bailie P. Waggoner, General Attorney for the State of Kansas for the company, by appointment at Kansas City. We visited the scene of the crime. As we were on the bank overlooking the place where the engine and cars had left the rails, I told the lawyers that I was satisfied that Lloyd, the man in jail for the Tampoo affair, was also implicated in the Wyandotte crime, and that I proposed to get a confession from him.

"How are you going to go about it, Tom?" asked Judge McDonald.

"I am going to get it through a Knight of Labor," I replied, and gave the gentlemen a short outline of the plan I had evolved in my mind for getting the confession. After I had finished the lawyers all thought my scheme was a good one, but not one of them thought it could be carried out. I will admit that, because of the peculiar situation in Wyandotte County at that time, I knew I would have to be very careful or my scheme would not work. The mayor, sheriff, jailor and, in fact, all of the city and county officials, even policemen and constables, excepting Judge Hineman of the Circuit Court, were members of the Knights of Labor, and of the same local lodge as the prisoner, consequently were very friendly disposed towards him. As every one familiar with such organizations as the Knights of Labor knows, I would have had but little trouble to find a member among them who would betray the secrets of the order for a few paltry dollars and thus enable me to obtain the information I so much desired from Lloyd, but I decided on another plan, as I never considered a man who would violate his obligation to be upright and honorable. In a word, in trusting such men one is liable to receive what is known in slang parlance as "the double cross."

Locked up in a safe in my office was a ritual and by-laws of the Knights of Labor, and a book of instructions showing how to initiate new members, together with the annual and semi-annual pass words, and the "hailing" and "distress" signs and various signals used by the members of the order, so I decided to set up a little Knight of Labor factory of my own and make a member that I could trust with the work in hand. I had an operative in my employ at that time named George Fowle. He had for a long time been in the train service of different railroads of the country, and I selected him as the man to be trusted with securing the confession from Lloyd. I took Fowle into my private office, and after instructing him carefully as to how to carry out my plans, he was initiated into the mysteries of the order. We took our time and went through the initiatory work carefully, so that when Fowle left for Wyandotte the next day to play the part of Brother Alfred in the drama that I had staged for that town, he was as well posted on the secret work of the order as though he had just passed through the Grand Assembly, as the governing body of the order was called.

On arriving at Wyandotte, Brother Alfred proceeded at once to the headquarters of the organization, where he made himself known as a special envoy and minister plenipotentiary of the head assembly of the order at

Scranton, Pa. His mission was to investigate the conditions as he found them in Wyandotte, so that the head officers at Scranton would know exactly what was going on in the west. He also hinted that the General Master Workman and Grand Treasurer Hayes had empowered him to use his own judgment about what was to be done in the case of Lloyd, who was in jail on the train wrecking charge.

Brother Alfred also called on the sheriff, who was a Knight of Labor, and after giving him the grip, asked to be allowed to consult with Lloyd. The sheriff readily granted the request and Brother Alfred was ushered into the jail, where he was closeted with Lloyd for more than an hour and a half. After introducing himself to Lloyd, Brother Alfred dispensed with all formalities and at once began a discussion of the charge against the prisoner. "Of course, Mr. Powderly, Mr. Hayes and the other head officers of the order and myself, know that you are all right, Lloyd, and that you will not make a confession, but in cases of this kind, where there are so many on the job, some one will squeal when they are arrested, as they all will be, for the Goulds have a lot of detectives on the case, headed by Tom Furlong, and it is only a question of time until they are all run down. Furlong, as you know, is not only a great detective, but he is also very unscrupulous and will not stop at anything to secure a conviction in these cases. Now, the order at this time cannot afford to have this crime laid at its door. If one of the men implicated in it would confess, which some of them would be sure to do, as I stated before, it would be a great blow to the order and cast an odium over it that would take years to eradicate. Another thing, the men charged with this crime could not get a fair trial here at this time, as the people here are very sore, as are the members of the Brotherhood of Firemen and Brotherhood of Trainmen, of which orders the two men killed in the wreck were members. I have, therefore, evolved a scheme to outwit these capitalistic bloodhounds, and thus save the order. I have a lawyer over in the city from headquarters, Brother Thomas, who will get you out of here on bond, and I will take you east and get you a job on a railroad where Furlong cannot find you, and will do the same thing with the other men who were with you."

"That is true about some of the gang squealing," replied Lloyd. "We have been afraid of at least two of them giving the snap away, and I know they will do it if they ever fall into the clutches of Furlong and his hirelings."

Lloyd further expressed himself as being delighted with the scheme, and within a few hours he was released from jail and taken by Brother Alfred in a circuitous route through Kansas City to Independence, Mo., where the two boarded a train for St. Louis. I had been informed of their movements by wire, and had one of my operatives meet them at the Union Station and escort them to the room of another operative in my employ at 17th and Pine Streets. That evening Marshall F. McDonald and myself and a stenographer called at the room, and I was introduced to Lloyd as the "headquarters' attorney," Brother Thomas. I corroborated all that Brother Alfred had told Lloyd, and O. K.'d the scheme to get all of these men in the job out of the country, and promised to do all I could to further the scheme. Lloyd then gave us the names of his partners in the crime. They were George H. Hamilton, Mike Leary, Robert Geers, Fred Newport and William Vassen, all prominent and active members of the local executive board of the Knights of Labor.

The next morning, Lloyd, in charge of Operatives Bonnell, McCabe and two guards, and myself, boarded a special car at Union Station, and it was attached to west-bound passenger train No. 1. Of course, Lloyd did not know he was in charge of officers. At Independence the special car was placed on a siding and I went on to Kansas City. The next morning, which was Sunday, a conference was held at the St. James Hotel between the attorneys for the Pacific Company and myself. It was late in the evening when the conference ended, after which I decided to at once arrest the men named by Lloyd as his partners in the Wyandotte crime. I proceeded to Wyandotte and procured the warrants. As the arrests had to be made quickly, and all my experienced men in that vicinity were in Independence guarding the special car, I secured the services of Frank Tutt, who had been employed by me as a guard for the railroad during the strike, to go with the sheriff and myself to make the arrests.

The first man arrested was George Hamilton, chairman of the executive committee in charge of the strike. We found him in ViceRoy Park, Armourdale, where he was acting as a special policeman. When Hamilton was pointed out to me, I approached him saying:

"I want you, officer."

"What for?" asked Hamilton.

"Murder," I replied.

Had Hamilton been cracked on the head with his own club he would not have been more surprised. Before he could recover the club was taken from his hand and his pistol from his pocket, and his big star from over his palpitating heart. He made a feeble attempt to get indignant, but failed lamentably and broke down completely, and wanted to confess. He was taken to jail and locked up.

We then got in the hack and were driven to Armourdale, where we arrested Robert Geers, after breaking through several doors. While arresting Geers we came near getting our heads blown off by an irate roomer, whose door we had broken open by mistake. After locking up Geers, we went across the river and stopped in front of a shack in the bottoms, and entering it arrested Fred Newport and took him to jail, leaving his wife and six children in tears.

We then visited Kansas City and arrested Mike Leary. He was locked up about 4:30 A. M. There was one man yet missing, William Vassen. We experienced considerable trouble in locating him. He had left his home to go to work for Wood Bros., the Kansas City ice dealers, where he was employed as a driver to deliver ice. We obtained a list of his customers, and finally overtook him near the Kansas City Union Depot, at about seven o'clock. He broke down at once and wanted to confess. After a good breakfast I took him to the St. James Hotel in Kansas City and into the presence of the attorneys for the company. The prisoner broke into tears, as soon as we entered the room, and made a piteous appeal to the gentlemen to see that the wants of his sick wife and children were attended to. "I have never been arrested before, and I was led into this. I went into it at the point of a pistol," he said, crying bitterly. "Damn the Knights of Labor," he continued, and expressed the intention of making a clean breast of the whole affair. He was told by both the lawyers and myself that he did not have to talk if he did not want to. "I have been weighted down too long; I want to tell all about it. I will suffer, I guess, but I deserve it." Then he made a full confession, giving the most minute details of the terrible crime.

It was the intention of the gang, according to the confession, to wreck a passenger train. The tools with which the spikes were pulled, and the fish plates removed, were stolen from a tool house of the company, located between the depot and the scene of the wreck.

Geers and Newport also made confessions, and all these men took the stand at the trial of the defendants when they were arraigned the following January. The testimony of these men was corroborated in every detail, but the jury failed to reach a verdict, standing 7 to 5 for acquittal. The Knights of Labor representatives, through the court officers, who were all, excepting Judge Hineman, members of the order, had succeeded in getting several of its members on the jury. The Knights of Labor employed the best attorneys in the west to defend the men. Among them were Ex-Governor Chas. P. Johnson, Ex-Senator William Warner, Thomas P. Fenlon and others; in fact, the officers of the order spent money very freely to bring about the desired end.

After the mistrial, the attorneys for the defense made application for a change of venue, and the cases were sent to Olathe. The officers of the Knights of Labor immediately sent a swarm of organizers into Olathe and Johnson County, and through coercion and other mysterious methods, succeeded in getting almost every male citizen of the county into the order. The second trial resulted in another farce, the jury again being packed with Knights of Labor.

About this time there was a change of management in the legal department of the road, and the cases were all nollied at the request of the company—even the three men who had made confessions were turned loose.

Peculiar conditions existed in the west at that time. The laboring men knew nothing about the real benefits of unionism. They had been herded into the Knights of Labor like sheep into a pen, and were educated by those who led them into believing that any kind of crime was all right when committed during a strike, or against a firm or company against which there was a grievance, and the latter were often, as in the case of the big strike on the Gould System, proved to be imaginary.

I and my men were only interested in this strike in so far as it was our duty to see that no acts of violence were committed; in short, to protect the

company's property from vandals and thieves. The rank and file of the order were led to believe by their leaders, however, that we were a lot of crooks, who regarded a man's liberty and life lightly and would violate any of the laws on the statute books to secure a conviction in any case we were called into. And strange to say, there are some men who believe this to be true, even to this day.

I want to say right here, that this crime was one of the most diabolical and fiendish crimes of the century. Had it not been for a mere accident, a loaded passenger train would have been wrecked instead of the freight, but, luckily, the passenger was late, and the freight was given orders at Leavenworth to proceed into Wyandotte on the passenger train's time, with the disastrous results told in the preceding portions of this narrative. The officers of the Knights of Labor knew these men were guilty, for three of them had gone on the witness stand and testified to the facts, while Lloyd, one of the leaders, had furnished evidence to corroborate them.

The investigation, at the next grand assembly of the Knights of Labor, at the insistence of a few good men in the order as to how much money had been spent in defense of these men, revealed a big scandal within the order. While it was true that a great deal of money had been expended, yet it was learned that the sum was not more than one-fourth of the amount claimed by the officers in charge of this fund.

The amount of money expended by me for the company, in working up the case, was very small, as all of the men who did any work on the case were employed by the month on a regular salary and expenses. In fact, there were not cents expended in this case, when dollars were expended in running down the dynamiters who blew up the Los Angeles Times, the latter crime being the only one which has occurred within my time that could at all compare with the Wyandotte wrecking case for cold-blooded fiendishness. It is also the only case in which big rolls of money were expended by labor organizations, knowing that the men were guilty.

Because of my work in this case, I incurred the lasting enmity of all the heads of the Knights of Labor, from Terrance V. Powderly, the Grand Master, on down the line. This was evidenced several years later. In 1889, I was tendered the position as chief of the secret service bureau of the

treasury department at Washington by President Harrison. I was not overly anxious to accept the job, as the pay at that time was only \$3,600 per year, and I had a good business in St. Louis, as head of the agency which bears my name, but at the solicitation of friends, I agreed to accept the position. Somehow, the fact that I was to be the new chief of the secret service had leaked out in Washington, and immediately the Knights of Labor "tipped their hand," to use a slang phrase. The President had gone to Deer Park, Maryland, to recover from the fatigue caused by his inauguration, and his few first months of service. Telegrams poured in on him from all points of the United States. They came from the east and the west, and from the north and the south, and from towns I had not known were on the map. Some of these telegrams were long and others short, but all showed the vindictiveness of the members of the order towards me. After the President returned from Washington he sent for me, and on my arrival at the White House, told me of the protests. To offset these, I presented letters from Ex-Governor Johnson and Major William Warner, chief counsel for the men I had arrested for the Wyandotte crime, which stated in terms that could not be misconstrued, that I had done nothing but my duty in that case, and testifying further that I had been very respectful and magnanimous to the prisoners on trial—in short, that I had done nothing to secure a conviction that was not entirely honorable.

"You are all right, Furlong, and I am going to appoint you, as soon as this storm dies down a little," said the President. Of course, I was a little put out by the delay, and told the President that if I accepted the place my commission would have to be handed me not later than January 1st. After further assurance from the President that I would have my commission before the date mentioned, I returned home. A few days before January 1st I was again called to Washington by the President. I visited the White House in company with the Hon. Richard Kerens. After a short discussion of the matter, the President told me to go over to the treasury department and get my commission. On my arrival there, I did not find the Secretary, Mr. Windom, in, he being detained at home on account of sickness. My presence in Washington again revived the rumors that I was to be appointed, and these rumors also put the Knights of Labor to work again, with the result that the White House was again flooded with a lot of telegrams

protesting against my appointment, and my commission was again held up. I then dropped the matter and returned to St. Louis.

In conclusion, I wish to state that I assumed at the time all the responsibility for the manner in which the evidence in this case had been secured. The plan for obtaining the confession from Lloyd, which, in reality, was the beginning of the case against the men, was worked out myself; Fowle, or Brother Alfred, as he was known, simply played, or acted the part assigned him. True, he played the part fairly well, and carried out my instructions to the letter. At the time of the arrests, and on several occasions thereafter, a certain strike guard employed by the company, succeeded in getting his name and picture into the papers of Kansas City as one of the chief unravelers of the mystery surrounding the crime, but he had absolutely nothing whatever to do with the capture of the criminals, beyond guarding them after the arrests had been made by Sheriff Ferguson and myself. The "dope" he handed the papers was mere rot. There was also considerable said in the papers about the part a wig would play in the case prior to the trial, but all who were present at the trial will remember that the wig was not introduced in evidence. This wig was a "pipe dream," to use a slang expression.

"MOONSHINING" IN THE OIL REGIONS.

DESPERATE STRUGGLE ON A BRIDGE WITH A THIEF CARRYING
A CARBOY FILLED WITH NITROGLYCERINE—NARROW
ESCAPE FROM DEATH OF PRISONER
AND CAPTOR.

Early in the 70's, while I was Chief of Police of Oil City, Pa., a long, wooden covered bridge spanned the Allegheny River at Oil City. This bridge was at least fifteen hundred feet in length, had a driveway through its center wide enough for two vehicles to pass each other. This driveway was boarded up closely with siding, which separated it on either side from the footwalks, which were about six feet in width with a high railing on the outside. There were lights at intervals along the footwalks, about a hundred feet apart. The main structure of the bridge was about forty feet above the river.

The bridge connected Oil City and South Oil City, extending from the south end of Seneca Street in Oil City to South Oil City. South Oil City then, as it is now, was the principal residence portion of the city, while the north side of the river was, and is, the business portion. This bridge was a toll bridge, and there were night and day toll collectors stationed at the little house provided for their use at the north end of the bridge. Their duty was to collect the toll from all drivers of vehicles, and two cents from each pedestrian who passed their window at the toll house.

There lived in Oil City at that time a notorious character by the name of Tommy Griffith, whose face and form had become familiar to all the residents of the town, also of the adjacent country. Griffith was a Welchman by birth, middle aged, stout and heavily built in stature; had a wife and a large family, and resided in South Oil City, at that time owning his own home, and was apparently fairly prosperous. He was a man addicted to drink, and was known throughout the country as the "Prince of Moonshiners."

Moonshiners, in the oil region, were men who made a business of putting explosives, which were called torpedoes, into oil wells for the purpose of increasing the flow of oil. The oil-bearing rock, or crevices in the oil-bearing rock, which were usually found near the bottom of the oil wells, would get clogged with an accumulation of parafine. After the well had been producing for a while the inlet to the well would become clogged with this accumulation, when the owner of the well would resort to the torpedo. These torpedoes were composed of a tin can or case, which would hold from one to four quarts of nitro-glycerine, which is a liquid that resembles lard oil very much, and is one of the most powerful explosives known, if not the most powerful. The cases, or tin cans, were round and nearly the size of the wells in diameter. The oil wells in those days were usually four and one-half or five inches in diameter. The cases were long enough to hold the quantity required for the explosion, and were lowered from the top of the well by means of a copper wire, which was attached to the percussion cap at the proper depth in the well, then a heavy weight, the wire through its center, would be sent down from the top over the wire and would strike the cap on the torpedo. This would cause the explosion, and would shatter the oil-bearing rock and jar the parafine, thereby making the opening by which the oil found its way into the well, and increased the production wonderfully for a period, or until the opening became clogged again from the same causes. Then the same remedy would be applied, and for this reason the torpedo business was a very profitable business, as this nitro-glycerine was sold at the rate of about ten dollars per quart.

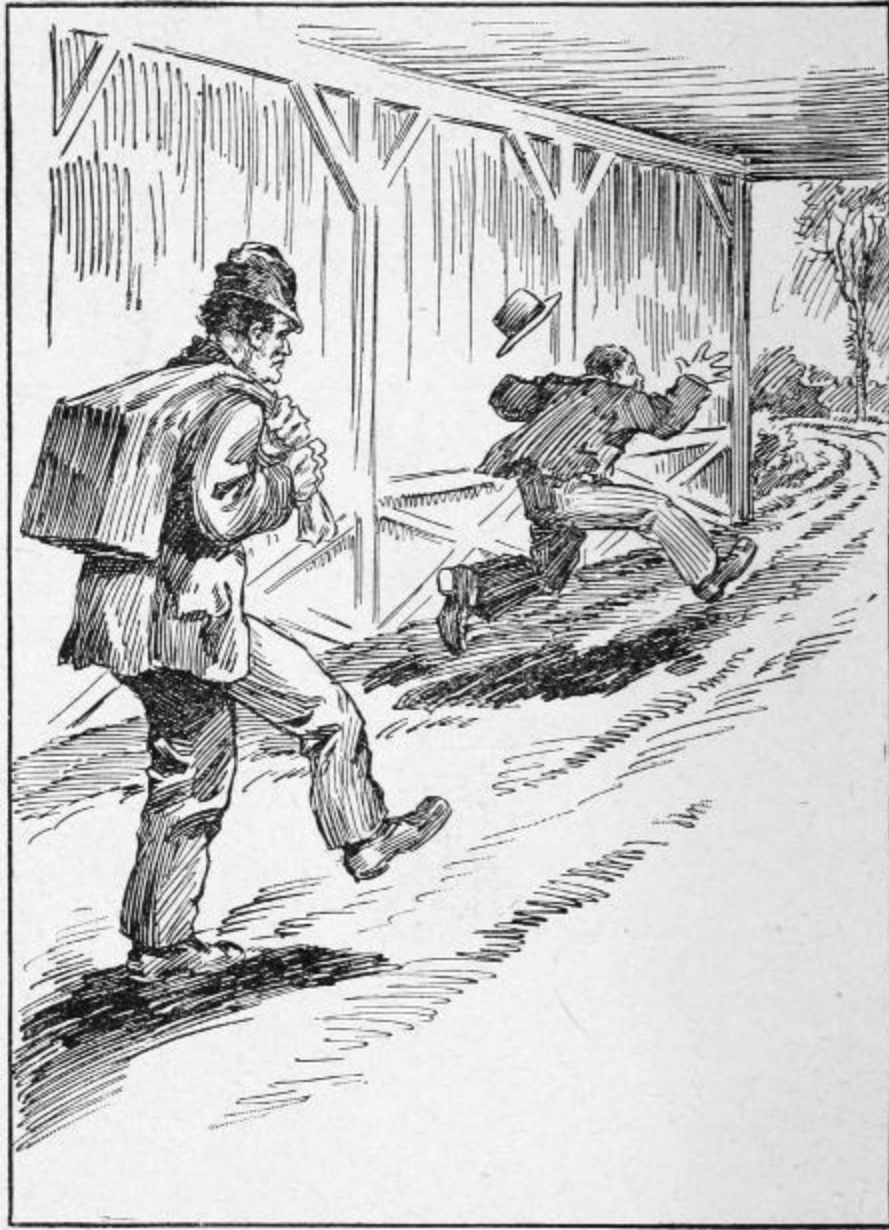
There was, at the time I am writing of, a company known as the Roberts Torpedo Co., who had a monopoly of all the explosives and torpedoes used in the oil wells for the purpose before mentioned. The Roberts Company owned and operated the factories at which nitro-glycerine was made. They employed only men who were experts in the torpedo business, as the handling of torpedoes was very hazardous and dangerous, the nitro-glycerine being treacherous and liable to explode at any time, either from concussion, friction or heat. In fact, nitro-glycerine is liable to explode spontaneously or without any apparent cause, so that the most expert handler of the stuff does not really know when he may consider himself safe when near a quantity of it. The Roberts Company also had a number of what they call magazines, which were located in isolated spots all through

the oil regions. These magazines were places for storing quantities of the nitro-glycerine, and usually close to a producing district, so that the operator in charge of said district could obtain a supply of it when he required it for use in his territory. The moonshiner made a practice of breaking into these magazines and stealing the explosives, which usually were placed in a square tin can which held from twenty to forty pounds. These heavy tin cans, or cases, were called carboys, and had a heavy wire handle attached to the top with a short spout at one corner of the top of the carboy from which the nitro-glycerine could be poured. As I said before, it was like lard oil, and of about the same consistency.

These moonshiners would steal three or four carboys at a time, concealing it in the mountains, and when they got an order from a producer for a torpedo they would fill the order and put in the torpedo in proper shape, as they were as expert in the handling of this dangerous explosive as the Roberts Company's men were, as many of them were ex-employees of that company. Prejudice existed among the smaller producers against the Roberts Torpedo Company, as they complained that the Roberts Company were charging them extortionate prices for torpedoes, therefore the moonshiners were protected to an extent in their nefarious business.

Upon the night of which I am writing it was after midnight when I left my office at the City Hall on the north side, and started for my home on the south side. I started on foot, and when I reached about the middle of the bridge before described, I heard footsteps coming towards me on the same foot-walk that I was on. I looked up and saw and recognized the familiar form of Tommy Griffith, as he was passing a light which was about a hundred and fifty feet from me. He was coming directly towards me, and was evidently intoxicated, as he staggered from side to side of the foot-walk. First he would stagger against the enclosed side, and then back to the outside railing. Every time he came in contact with the bridge I could hear a slight thud. He was carrying a gunnysack upon his shoulder, containing a carboy of nitro-glycerine, and I thought it would explode any moment, as he was continually striking it against the sides of the bridge as he staggered. Then again he was liable to stumble and let it fall, which would have been fatal both to himself, me and the bridge. I thought of all of these things in a great deal shorter time than it has taken me to write about it. It was in the winter, and I was wearing rubber overshoes, and for this reason I made no

noise in walking. After recognizing Griffith and his condition, I instantly turned and started back for the north side of the bridge. I am satisfied that I made a record-breaking sprint until I got safely to the toll house at the end of the bridge, where I hastily told Samuel Ervin, who was on duty as night toll collector. I insisted on Ervin remaining at his position as usual until Griffith arrived at the window, where I felt sure he would stop long enough to pay his toll. Ervin was sitting in a bay window with a slide in front of him through which he could take the toll, and he could also see every person coming or going over the bridge. I hid myself around the angle of the bay window in such a manner that Griffith could not see me as he approached the toll window, and when he neared the window he presented his toll with his right hand while he was holding the end of the gunnysack with his left hand. This bag contained the carboy and was hanging over his back. I noiselessly approached him from behind, and, seizing the gunnysack containing the carboy, jerked it away from him, while Ervin held on to his collar so firmly that he could not get away or interfere with me until I had deposited the case of nitro-glycerine on the ground, which, of course, did not take me very long. I then grabbed Mr. Griffith, and he being a husky, stout little fellow, and full of pluck and whiskey, made a struggle, but I quickly overpowered him and promptly conveyed him to the lock-up.



"Recognizing Griffith and seeing he was loaded down with nitro-glycerine, I hot-footed it to the end of the bridge."

I then returned to where I had deposited the nitro-glycerine. I found Mr. Ervin standing upon the railroad crossing, which was about seventy-five or a hundred feet from the tool house. I was then obliged to carry the carboy of nitro-glycerine on my shoulder to the nearest Roberts magazine, which was located in a ravine known as Sage Run, and about three miles from the north end of the bridge. The carboy weighed about forty pounds, and the walking was icy and slippery, and of course my progress was necessarily

very slow. It was nearly daylight when I got home. It is needless to say that I was very tired.

We had been informed of the theft of more than a ton of nitro-glycerine from a Roberts magazine, which occurred a few days prior to the night in question, and after daylight the following morning I visited the home of Griffith, which was situated in a good residence portion, and surrounded by a number of good homes and families. I found in the basement of Griffith's house the remainder of the ton of nitro-glycerine, which was hidden under a stairway running from the kitchen of the house into the basement. At the time I entered the house I found Griffith's children playing and running up and down these steps under which the explosive was standing in the original packages. There was nitro-glycerine enough under those stairs to have blown up the entire city.

I was then compelled to procure a team and sleigh and do the driving myself, and to load the stuff into the sleigh and drive it to the magazine and there unload it. I could not induce any person to assist me, as I did not have time, being compelled to move the stuff immediately for the safety of not only Griffith's family, but the whole neighborhood, and, therefore, could not wait to send word to the Roberts Co. and have them send their own men, who were accustomed to handling it. It was one of the most trying situations I ever found myself placed in.

Griffith was tried in the court in due time, and was sentenced for seven years in the state penitentiary at Allegheny, on the charge of grand larceny.

Col. Roberts, who at that time lived at Titusville, Pa., and was president of the Roberts Torpedo Company, sent me a check for five hundred dollars, which I accepted.

Griffith served out his sentence, and returned to Oil City, where he was living at my last account of him, and was following his old vocation, that of moonshining, in a more moderate manner than of yore.

THE CAPTURE OF WESS WATTS.

**AFTER STANDING OFF A SHERIFF AND POSSE, THE NOTORIOUS
BANDIT IS TAKEN SINGLE HANDED.**

During the years of 1875-6 I was Chief Special Agent of the Allegheny Valley Railroad. One morning I was called to Brookville, Pennsylvania, to investigate the burglary of the company's office at that point during the preceding night. On arriving in the little town I found the office of the company almost a wreck, the safe having been blown to pieces with dynamite or some other explosive, and its contents, including quite a sum of money and a number of Centennial Exposition and railroad tickets were missing. After some hard work, I obtained a clue which led me to believe that the job had been done by the notorious Watts gang.

This outlaw band, which originally consisted of eight men, had long terrorized the good citizens of Jefferson, Clarion, Forest and Elk Counties—in much the same manner as had the James Boys and their gang of cut-throats the citizens of western Missouri.



WESS WATTS.

Noted Pennsylvania bandit leader run down and captured
by Detective Furlong.

There was no crime too big or too little for them to commit, but they made a specialty of arson, murder, robbery and safe-blowing. The organizer and leader was Wess Watts, who, before he had adopted outlawry as a profession, had been a gun and locksmith in Brookville, and had the reputation of being a skilled mechanic. He was about 28 years of age, 5 feet 11 inches in height, and weighed in the neighborhood of 190 pounds. There had never been any question of his gameness and he was known as the crack shot of that portion of Pennsylvania. He often gave exhibitions of his expertness in the handling of firearms. One of his favorite stunts was to shoot an apple from the head of his brother at a distance of twenty paces with either a gun or revolver.

In reporting to Mr. David McCargo, the General Superintendent of the road, a day or so later, that I was convinced that the Watts gang was responsible for the Brookville job, and venturing the opinion that this gang would continue to prey upon the railroad at intervals until they were exterminated; whereupon Mr. McCargo said, "You are hereby instructed to bend every effort toward the suppression of this gang, and you will be relieved from all other duties until this has been accomplished."

I at once took up the work, by visiting the Western Penitentiary at Allegheny City, where I found a former member of the Watts gang, who had been convicted of horse stealing and was at that time serving a ten-year sentence for the same. This man's name was Lafayette Edwards, and he had been connected with the Watts gang for a number of years and was a member at the time of his arrest. He was about thirty-five years of age. He had a younger brother by the name of Horace Edwards, who had been connected with the gang until about a year previous to the arrest of Lafayette, when he grew tired of the life he had been leading, and, as the gang was daily growing bolder in their depredations, he was afraid they would all be brought to justice sooner or later, so he disappeared, no one knowing his whereabouts in Brookville. On approaching Lafayette, at the penitentiary, I told him who I was, that I had learned of both his and his brother's connection with the Watts gang and that I desired to find Horace, so that I might get the facts from him as to his knowledge of the crimes

perpetrated by the gang while he was a member of it. Lafayette Edwards said he believed that his brother would tell all he knew, providing he would not be punished for the part he had taken while working with the gang. I explained to him that so long as Horace had severed his connection with the gang, that I had no doubt but that the prosecuting officers would use his testimony against the other members of the gang and nolle prosequi all charges against him, which is a custom, as the prosecuting attorney in criminal cases has the right, with the permission of the court, to annul proceedings against a criminal, where he has been used as a State's witness. I also told him if he would assist me in locating Horace, that I would do all that I could, consistently, with the proper officers to have the charges annulled against his brother. Finally he told me that Horace was engaged as a farm hand at a point near Vermillion, Illinois. He said that Horace had joined the church and was living an honest and conscientious life. I went to Vermillion and located Horace Edwards, who was working as a farm hand under an alias, and found that he had established a good reputation, joined the church, and was respected by all who knew him. In other words, he had made friends with everybody with whom he came in contact during his few months' stay in that neighborhood. This information I verified before approaching Horace. I finally called on him and told him who I was, that I was from Pennsylvania, and that I had seen his brother Lafayette, who was in the penitentiary in Allegheny City, who had given me his address, and, in fact, I told him the line of facts that I knew he would recognize as facts. I then proposed to him that he go back to Pennsylvania with me, at my expense, promising that I would keep him quietly in a small town near Brookville, where he would not be known until I had apprehended the balance of the Watts gang, and that I would pay his expenses back to Illinois, where he had so many friends, and was favorably known, and that the people would not become aware of his identity after his return among them. In this connection, I wish to say that Horace had adopted his mother's maiden name. To this Horace replied promptly that, as he had become a church member, he would render all the assistance in his power towards bringing his former companions to justice, and thereby preventing them from committing further depredations. I told the parties by whom he was employed that his presence was required as a witness in an important case in court in Pennsylvania, and that I had come after him and had no doubt but that he would return again in a few weeks. I took him back to

Pennsylvania, and rounded up the balance of the gang, with the exception of the leader, Wess Watts. I learned that he had last been heard from at Paducah, Kentucky. This I learned through the assistance of a sister of Mrs. Watts, who was in correspondence with her. I went to Paducah and found Mrs. Watts. From my investigations I had become so familiar with the depredations of the gang, the dates and places where they had been committed that I decided to approach Mrs. Watts by representing myself as a friend of her husband and other members of the gang. At this she became angry and excited, and told me that if she had a kettle of boiling water convenient she would scald me, as she had no further use for her husband or any of his friends. He had deserted her and their child, and had run away with another man's wife. It was then my turn to sympathize with her, which I did to the best of my ability, and of course, denounced Wess Watts in plain words for having deserted his wife and child in such a manner. Mrs. Watts, who, by the way, was really a good natured woman and rather good looking, of the blonde type, about 25 years of age, finally told me that her husband had taken this other woman, and that she had heard, a few days prior to my visit, that he and Oliver Brooks had opened a gun and locksmith repair shop at Shawneetown, Illinois. She said Watts and this woman and Oliver Brooks and the Brooks woman were living together, and that they had their shingle out for gun and lock repairing, but in reality were committing burglaries and thefts almost nightly in the vicinity of Shawneetown. I took a boat at Paducah for Shawneetown, which is on the Ohio river some 50 miles from Paducah. I arrived at Shawneetown, which was then a very small place, about 3 o'clock in the morning. The town is very low, the Ohio river being held out of the town by a high levee along its banks. After leaving the boat I went over the levee to the only street in the town parallel to the river and had no trouble in locating the gun shop, by reason of the sign over the door. Directly opposite this shop was a general merchandise store with a large pile of empty dry goods boxes standing in front of it. I seated myself upon one of these boxes, as it was not quite daylight when I found the place and, as I had had some sleep coming up on the boat, I was not sleepy. I could not go to a hotel at that time without arousing some comment, and, therefore, concluded I would wait in the vicinity of the gun shop and watch for developments. I had been sitting on the box for perhaps three-quarters of an hour, and day was just beginning to break, when I noticed a little cloud of smoke coming out of the stovepipe

(which served as a chimney) in the shanty in which the gun shop was located. A few minutes later the door of the gun shop was opened and I could see, from my perch on the box across the street, that some one was sweeping. I could see the broom, but could not see who was operating it. I watched the broom for a few minutes and then concluded I would go over to the shop and look in and see who was doing the sweeping.

This shop was a one-story frame shanty, about 16 feet wide, by perhaps, 24 feet long. It was divided in the middle by a partition, making two rooms. The front room, being the gun shop, contained a vise bench to the right of the front door, upon which were a lot of tools, such as files, wrenches, one or two old guns and a couple of pistols.

Diagonally across the shop and to the left was a door opening into the rear room, which was used as a living room. When I peered into the front room or gun shop there was no one in the room, but the door leading into the rear room was open and I rapped on the shop door. My knock was answered by a man, who came from the rear room and had a broom in his hand. He was clad in blue overalls, a knit undershirt and wore a pair of rubbers, but no socks. I saw at a glance that it was Wess Watts, himself. I had a very good description of him and had seen his brother, sister and mother, and he resembled them very strongly. I noticed that he had nothing in the shape of arms on him except the broom. I decided then and there to arrest him. When he came from the rear room I saluted him, saying, "Good-morning," and he replied in the same way. I then said, "Are you the gunsmith?" He said he was. I said, "I have a job for you. I have an old gun here, but I don't know whether you can do anything with it or not."

In this connection I wish to state that before I left my perch on the boxes across the street, I placed my revolver, which was a 41-Colts, short barrel, double action, in my right-hand coat pocket. I also had a pair of automatic hand-cuffs, which I placed in my left-hand pocket. I was wearing a sack coat, and when Watts replied that he was the gunsmith, I took the revolver out of my right-hand pocket in an awkward manner, holding it about in the middle. He turned around, in a leisurely manner, and set the broom in the corner near the door, and while he was doing this, I placed my gun in working position, and as he turned extending his hand, evidently for the purpose of taking and examining my pistol, I leveled it at his head and told

him to "throw up his hands." He hesitated for an instant, but I commanded him a second time, telling him to throw them up at once, or I would blow his head off. He threw up his hands, and, just at the time I commanded him the second time to throw up his hands, a man with a bushy head of red hair peered through the door leading into the rear room, but when he saw what was going on, he ducked back his head, as he was in direct range with my gun. I then commanded Watts to about face, and step forward to the door, which he did, keeping his hands up. I was right behind him with my gun at the back of his head, and told him to step down and out of the door. He obeyed. I then took my hand-cuffs out of my left-hand coat pocket, and snapped them on his wrists, while his hands were still above his head. I then told him he could drop his hands, and marched him up the street to the hotel, which was but a few hundred feet from the shop. In the meantime Watts did not utter a word, but merely complied with my commands. On our arrival at the hotel I found the night clerk or porter in charge, but asleep in a chair in the office, and as we marched in he awoke and appeared to be frightened at our intrusion. I told him that I was an officer and that Watts was my prisoner. I told him we were hungry and asked him how soon we could get something to eat. He awakened the help and in about half an hour breakfast was announced.

All this time Watts and I were sitting in the office gazing at each other, not a word having been spoken by either, and when we went into the dining room and sat down to the table, Watts looked at me and then at the hand-cuffs as much as to say, "Aren't you going to remove these hand-cuffs?" He did not speak, however. I shook my head, looked at the table and food and then at Watts, as much as to say, "There it is, you can eat it or leave it alone." I sat opposite him at the table and he helped himself to some ham and managed to eat a pretty good breakfast with the hand-cuffs on.

On arising from the table it occurred to me for the first time that my prisoner was not very well dressed to make a long journey. I espied a large-sized, old-fashioned linen duster, and a big-brimmed straw hat hanging on the wall of the hotel sitting room. After some dickering with the porter I purchased them for 75c and put them on my prisoner. The addition of these garments made Watts look more like the leader of a rube band, than the bold, bad man that he really was.

At that time there was a branch of the Wabash Railroad running into Shawneetown, and I had ascertained there was a train leaving there shortly for McLeansboro and East St. Louis. We boarded the train at 6:00 a. m. and started for East St. Louis. After we had been on the train for half an hour or more, Watts, who was sitting in the seat with me, and to the left, next to the window, turned around facing me and said, "Who are you, and where are you taking me, and what have you arrested me for?"

I replied that I was a deputy sheriff from Vermillion and that I had arrested him on suspicion of committing a burglary there a week before.

He said, "Why, I was never in Vermillion in my life. You have made a big mistake."

"I guess I am not very much mistaken," I replied, "some of our citizens saw the burglars when they left the bank, and have described you accurately. Of course, if they fail to identify you on your arrival at Vermillion, I will apologize to you, and then be obliged to pay your expenses back to Shawneetown."

He then said, "You say you are a deputy sheriff? Well, don't deputy sheriffs have to give bond for the careful performance of their duties?" I replied, "Yes, they have to give bond."

"Well," he continued, "these people won't identify me and I will make your bondsmen pay dearly for this outrage."

"We'll see about this," I replied. "I can't be mistaken. I have been a deputy sheriff for the past two years, and I have arrested two house thieves and they were convicted, so I can not be mistaken."

"Well, you are very badly mistaken now," he answered, and with this he stopped talking and seemed to be at ease, as he knew he could not be identified at Vermillion, and felt sure that he would be released. In due time we arrived at East St. Louis, and I explained to him that I did not care to proceed to Vermillion that night, as I had some little business to attend to in St. Louis, and therefore, I proposed to come over to the city, remain over night and take the first train out in the morning to Vermillion. He seemed perfectly satisfied. I brought him across the river and took him to the Four Courts and turned him over to Major McDonough, who was then Chief of

Police of St. Louis. I had known Chief McDonough for years. He locked Watts up, and I, of course, had his meals taken in to him and had him well cared for. The next morning we took an early train for Indianapolis over what is now a part of the Big Four system. We got along very nicely until we reached the Wabash river, which separates Illinois from Indiana, when Watts suddenly turned to me and in a loud and excited manner said, "Where in h—l are you taking me? You haven't told me the truth."

"No," I replied, "I did not tell you the truth about where I am taking you, but I will do so now. I am taking you to Brookville, Pennsylvania."

"Why didn't you tell me this in the first place?" he asked.

I replied, "My reason for not telling you this in the first place was, that after I had located you, as I supposed, at Paducah, Kentucky, I reported the facts to Sheriff Steele of Jefferson County and asked him to apply for the proper papers so that you might be taken back to Pennsylvania. Sheriff Steele obtained the papers and insisted on bringing a posse of men to assist in your capture, to which I objected and I told him that I did not think it necessary for anybody to come after you, but he and myself. He reluctantly consented to accompany me. He had the papers and came as far as St. Louis. The weather was very warm and when we arrived in St. Louis, Steele was very feverish and complained of being sick, and was afraid that he was taking typhoid fever, and insisted on returning to Pennsylvania immediately, which he did. He insisted on me going back with him, but I told him that I was going to get hell before I returned. He left me and returned home."

"Why, he wasn't sick at all, he was just afraid of me," said Watts. "He was afraid to meet me, for he knew if I saw him I would kill him. I stood off Steele and seventeen of his men, all armed, in Brookville once. Those fellows are all afraid of me. So you came down here to get me yourself? Well, you haven't any papers for my arrest, have you?"

"No," I said, "I haven't any papers. I have nothing but you."

"Suppose I object to going any farther with you," he remarked.

"In that case," I replied, "I would simply have to have you locked up and wait until the papers arrive. They are all made out, therefore you can raise all the objections you like. I am a deputy sheriff, and I could have locked

you up in Illinois, but I did not know what that red-headed fellow and your other associates in Shawneetown would do, and not wanting to be bothered with them, I decided to just bring you right along."

Watts then said, "You saw that fellow with the red hair, did you?"

"Yes," I answered.

"Where did you see him?"

"At the time I pointed my gun at your head he peered in at the door leading into the back room, but when he saw the condition of things, he ducked back into the rear room," I told him.

"Oh!" Watts said, "he is a coward. If I ever get my eyes on him I'll kill him on sight." Continuing, Watts said, "Did you notice when you told me to throw up my hands, that I hesitated for a second?"

I said, "Yes, I did."

"Do you know what I thought of when I hesitated?" he asked.

"No, I don't," I answered.

"Why, I thought of just jumping forward and taking that gun away from you."

I said, "Why didn't you do it?" looking him straight in the eye.

He replied, with an oath, "I thought you'd shoot."

"I guess you were right about that," I answered.

He stopped talking for a few minutes and then began to cry. He became almost hysterical. We were riding in the smoking car when this conversation occurred and his sobbing and crying attracted the attention of the passengers in the car, and it was really pitiful to see a strong, athletic looking young man like Watts sob and cry like a child. He finally ceased and said, "Well, I am glad you got me. I have never had an hour's peace or rest since that night at Catholicsburg, Kentucky."

"Why," I said, "What happened at Catholicsburg?"

He answered, "Oliver Beach shot my father, James Watts, in our boat at Catholicsburg, and he and Brooks put the body into the Ohio River. He killed him with my gun. I knew they were going to do it, but I did not take any part in the killing. Now, I am going to tell you all about myself and my companions since I left Brookville."

I told him that while I would be interested in hearing what he had to say, it would be used against him at his trial at Brookville, and that I would, therefore, prefer that he would not tell me anything about his crimes until we got back to Brookville, and then if he felt like talking and making a confession, he could do so to the prosecuting attorney, and the authorities there; that my part in the matter would end upon my delivering him to the officers, and I would rather that he defer talking until we arrived in that city. However, he insisted on telling me about the numerous crimes that he and his associates had committed while going down the Ohio River, about his capture at Paducah, Kentucky; his conviction, his pardon and the conviction and pardon of two members of his gang from the penitentiary.

He was especially proud of one piece of work done by the gang while making their home in a house-boat anchored on the Illinois side of the river opposite Paducah. Watts, Beach and Alston rowed across the river to the Kentucky side in a four-oared skiff. It was cold and freezing. They were looking for plunder and spied a large egg-shaped coal stove in the office of a coal company on the levee. This stove had been filled with coal and was red hot, and the fire had been banked for the night with ashes, and the "gentlemen" before named, broke open the door of the coal office, procured a wide, strong plank, run it under the red-hot stove and took it to their house-boat, where they installed it without permitting the fire to go out. So that they thus succeeded in stealing and getting away with a red-hot stove, which was a verification of the old saying that "there was nothing too hot or too heavy for them."

In due time we arrived at Brookville, where he insisted on making a full confession, which he did, in the presence of Prosecuting Attorney Reed, Sheriff W. P. Steele and myself. This confession, which was voluntarily made and sworn to before the clerk of the court, witnessed and attested by Mr. Reed, Steele and myself, is as follows:

CONFESSION OF J. W. WATTS.

Left Brookville, June 20, 1874, for Parkers Landing. Got a boat there and went down the river. My father, James Watts, traded a gun for the boat. We built a shanty on the boat as we proceeded down the river. The names of the parties on that boat were: Charles Beach, Oliver Brooks, James Watts, J. W. Watts, Sarah M. Watts and Myrta Watts. There was no difficulty on the boat until we arrived at a point near Ironton, Ohio. We got a woman by the name of Fanny Rose on board the boat, and from there down to Maysville there seemed to be some trouble between Oliver Brooks and James Watts, my father, about Fanny Rose, the girl above named. My father had been talking of turning state's evidence, and on Sunday, the 6th of September, 1874, he took an axe and cut a hole in the bottom of the boat. I remonstrated with him and he was going to strike me with the axe. The water began filling the boat, which necessitated our landing. On the night of the 6th of September, 1874, Oliver Brooks shot James Watts, killing him almost instantly, for threatening to turn state's evidence, concerning what had been stolen during our trip down the river, by the male portion of the gang on the boat. James Watts stole nothing himself. He only lived a few minutes after Brooks shot him. I was on another boat about sixty yards above the one James Watts was on. I knew that Oliver Brooks was going to shoot my father, and it made me very nervous. It made me sick and I laid down. I got up and started down to tell my father, when I heard a gun shot, but having an idea of what had occurred I was very much frightened, and was very weak through fear, and did not go into the shanty on the boat, where James Watts and Oliver Brooks were. During this Sunday afternoon Oliver Brooks and James Watts had some difficulty, and Brooks told us all, except James Watts, that he would shoot James Watts. Alston told Brooks that he would get my father to play a game of cards by a window, in order that Brooks could slip around and shoot him from the bank of the river through the window, and he did shoot him.

I am here to tell the whole truth, and want to keep nothing back. My father stole nothing, but he did help conceal what the rest of us stole.

After he was shot, and when I came up, either Brooks and Beach, or Brooks and Alston, were gathering up stones on the bank and carrying them into the shanty on the boat where my father was lying, and I suppose they were

taking them in to tie around his neck to sink him in the river, from what they said before the deed was committed. After they got everything fixed up, I heard them putting my father into a skiff and rowing out into the river and I heard them throwing him overboard. They used sixty or eighty feet of half-inch rope to tie the stones to him, judging from the amount that was gone from the boat. Alston told me he had just dealt the cards and turned trump. The old man passed, and he (Alston) turned it down. My father said he would make it hearts, but turned and looked towards the window from where the shot came and then fell. Alston caught him to keep him from falling so hard. This is what Alston told me. After they took my father out into the river and threw him in, Oliver Brooks said he felt just as well as he did before he committed the deed and better, too. After this there was no more conversation about it in my presence as I would not listen to them, nor permit them to talk to me about it. I did not go into the room where he was killed, for five or six weeks. It was my rifle that he shot him with and it was the best rifle I ever saw or used, but after Brooks used it to shoot my father, I never shot out of it, or looked into the muzzle of it, but what I saw blood, or thought I saw blood in it. Other persons saw blood in the muzzle of the gun after shooting it. I showed it to them without giving them any other information. There was an understanding and mutual agreement between us that we were never to say anything about the killing of James Watts. We pushed the boat off that evening, after my father had been killed and thrown into the river and went on down stream following our usual avocation of stealing, etc., and we did not stop permanently until we got to Paducah, Kentucky. At Paducah, all the males in our party were arrested on the Illinois side by Marshal Geary of Paducah, Frank Farland, Wood Morrow and Bill Green, on a charge of grand larceny, committed at Buddsville, Ky. We were tried, convicted and sent to the penitentiary at Frankfort, Ky. I got three years, Oliver Brooks got two years and nine months, Pete Alston got one year and six months and Charlie Beach got three years. Brooks got pardoned through his wife on the 14th of May, or June, 1875, and I got pardoned on the 7th of July, 1875, and M. P. Alston on the 10th of August, 1875.

Brooks and his wife got Beach pardoned. Brooks' wife, as I understood it, had illicit relations with the son of the Governor of Kentucky, and through the influence of the son on his father, Beach was pardoned. My wife got

Governor King to write to Governor Leslis, then acting Governor of Kentucky, and through his intercession I was pardoned. After Brooks was pardoned out he stayed until Beach and I got out. As soon as I got out I started for or back to Paducah, Ky., and left Brooks and Beach in Frankfort. I left there on the 7th day of July, 1875, and have never seen any of them since. Alston, a short time after he got out of the penitentiary, went down the Kentucky river, broke into a store, and got shot in the back. He was sent back to the penitentiary for five years, and is there at the present time. Up to the time I left Brookville I was in the habit of going out with a gang composed of Dan Miller, Frank Watts, John Johnson, Frank Loader, Oliver Brooks, John Lyons, and his father, and Charlie Beach. Frank Watts and myself went through Eshelman's grocery store at Dowlingville, and at other places, I cannot now remember.

I make this confession of my own free will and without the expectation of any reward or through any fear. I make it because this thing has been lying on my mind like a lead weight, and I concluded I would tell the whole thing just as it occurred. My wife and I had a conversation at one time in regard to the affair and we thought of going to the officers and telling all about it, but for some reason we did not do it. This was when we were in Paducah.

Made, signed and sworn to in the presence of Thomas Furlong, detective for the Allegheny Valley Railroad Company, Wm. P. Steele, deputy sheriff of Jefferson County, Pennsylvania, and John W. Reed, Attorney-at-law, August 22, 1876.

Watts made the above statement with a view to shielding himself as much as possible. He, himself, killed his father, and Mrs. Brooks so testified. She said it was not only Wess Watts' gun that killed old man Watts, but the gun was in the hands of Wess Watts.

I, having been subpoenaed as a witness for the state against Wess Watts, arrived at Brookville on the morning set for his trial. The whole forenoon was consumed in selecting a jury. When the last juror had been selected it was about twelve o'clock, and the court took a recess until one p. m. At that time, his Honor, Judge Sterritt, stated that the prisoner, Wess Watts, should be brought into court, when the testimony for the prosecution would begin. I went to the hotel, ate my dinner and had returned to the sheriff's office in

the courthouse a few minutes before one o'clock. While sitting there talking to Sheriff Steele an old man entered the office, whom the sheriff familiarly greeted, calling him Uncle John, in the following manner:

"Hello, Uncle John. I haven't seen you for a long time. How've you been?"

Uncle John replied, "Quite well, but I'm getting old. Mammy wanted to get some things in the store and we drove in this morning from Beechwoods. I've been reading in my paper about Wess Watts and it says that he is to be put on trial today. You know, Bill, I knew old Bill Watts, Wess' father, before Wess was born. I've been reading all about the boy and his gang and he surely must be a very bad and desperate man. While I'm here in town, I'd like to get a look at him."

To this Sheriff Steele replied, "Court will convene at one o'clock, which will be only a few minutes now, and I've been ordered by the Judge to bring Wess into court at that time. If you will go up and sit in the courtroom, Uncle John, you will have a good chance to see him when I take him in."

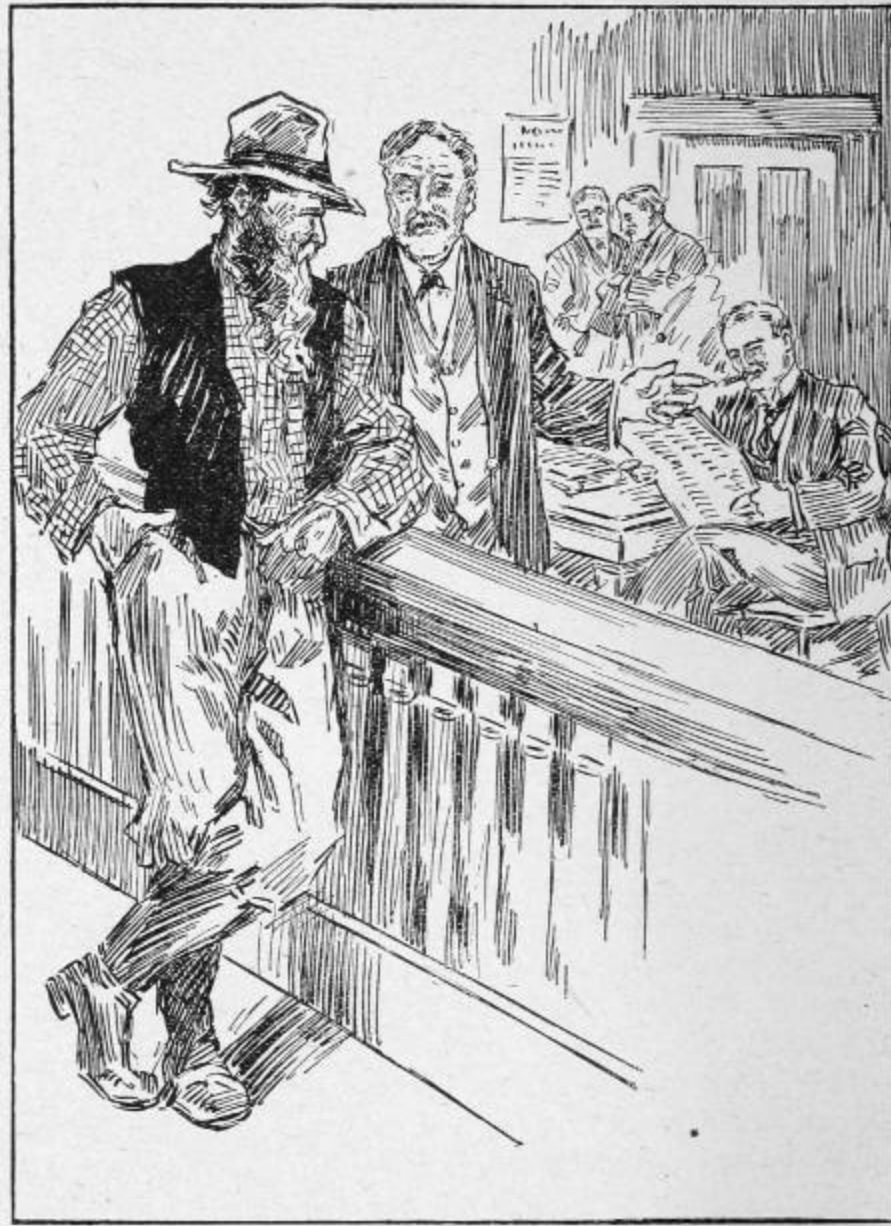
Uncle John was a man more than seventy years of age, was a good citizen and had lived in the backwoods in Jefferson county all his life. He knew everybody in the county. His home was on a small farm about eighteen miles from Brookville. He was a strong, hale man for his age, and had a full, heavy, white beard. He was an inveterate tobacco chewer and a typical backwoods farmer.

At the close of his conversation with the sheriff, Uncle John walked to the door leading into the hall, but, just before reaching the door, he suddenly turned and said, "Bill, I see in the paper that Wess Watts was captured down in Egypt by one man, and that man brought him back here all alone. The paper said that man would be at the trial here today. I'd like very much to see him, too."

The sheriff (pointing to me) said, "Uncle John, here's the man who captured Wess Watts and brought him back here."

Whereupon, Uncle John quietly walked across the room to where I was sitting, keeping his eye upon me all the time, till within a few feet of me, when he said, "Young man, I wish you would stand up, I want to look at you."

I stood up, and the old man walked about half way around me, eyeing me from head to foot. He then turned without saying a word and started for the door. Before leaving, he said, stroking his long beard with his left hand and pointing his right at me, "Bill, by jove, it didn't take much of a man, either."



"Bill, by jove, it didn't take much of a man either!"

Then he left the room.

Court convened at one o'clock and everything appeared to be ready for the beginning of the trial. The courtroom was packed with spectators as the Watts trial had aroused a great deal of interest, and people were attracted from local and neighboring counties to see the prisoner and witness his trial. The sheriff did not appear with his prisoner, however, and the judge sent an officer to notify him that the Court was waiting. In a few minutes the sheriff appeared, with the officer, but without the prisoner. He approached the judge's stand and informed him that he had been unable to induce the prisoner to leave his cell, and Watts had said he would kill any person who attempted to take him into court.

The jail was an old-fashioned stone jail, and the doors leading into the cells were only about two and one-half feet wide and four feet high, therefore, a person above four feet in height was obliged to stoop on entering or leaving the cell. They had old-fashioned wooden bedsteads in each cell, and Watts had torn his bedstead to pieces that morning and had taken off one of its legs, which was about three feet long and four inches square, and of heavy hardwood. He was a powerfully strong man, and had declared his intention of massacring any person attempting to enter his cell. He defied the sheriff or any of his officers to enter. After Judge Sterritt had listened to the sheriff's report, he summoned me to his chair and said, "Mr. Furlong, you arrested this man in Illinois and brought him to Brookville. Now I deputize you to go to the jail and bring Wess Watts, the prisoner, to this bar, as soon as possible."

I left the court with the sheriff and went to the jail, in the rear of the courthouse, and direct to the door of Watts' cell, where I found him standing in the center of his cell armed with the big club. I tried to persuade him to leave his cell, and accompany me to the courtroom, but in vain. He was obstinate and declared he would kill me or any one else who tried to enter that cell. I found that persuasion was unavailing and called the sheriff to one side, out of ear shot, and said, "How long will it take you to heat a few gallons of water to a boil?"

The sheriff said he thought there was a lot of boiling water in the jail kitchen, as it was just after dinner. We went to the jail kitchen where we found a large amount of hot water on hand. We secured a tin wash boiler and put about five gallons of boiling water into it. I also obtained a large tin

dipper with a long handle. We carried the boiler of water to the door of Watt's cell. I also armed a big, burly deputy sheriff named Clover Smith, with an axe handle, and as Smith was left-handed I placed him at the right hand side of the cell door, while I placed the boiler of hot water on the left side. I then dipped up a dipper full of boiling water (about two quarts) and with the long handle I could reach any part of the cell with the hot water. I threw the first dipper full at Watts, which struck his breast and upper part of his body. As he was lightly clad, and the water struck him squarely, he yelled like a mad lion. I threw two more dippers of scalding water at him in quick succession, each time the water striking him fairly, and after I had thrown the third dipper, he made a lightning-like spring for the open door. As he was obliged to stoop so low that his head almost touched his knees, Smith, whom I had instructed, struck him with the axe handle, on the head, felling him to the floor, unconscious. Thereupon, the sheriff, Smith and myself picked him up and carried him into the courtroom and laid him on a table before the Judge's stand. There were a number of doctors present who applied restoratives and brought him to his senses in a few minutes.

He was scalded slightly in spots on his neck and body, but otherwise uninjured, except a good sized bump on the back of his head where Smith had struck him.

He showed no further signs of obstinacy and was perfectly easy to control and handle thereafter until he was landed safely in the state prison at Allegheny. He pleaded guilty of having made a criminal assault on a school girl of about sixteen years of age. She was returning to her home from school between 4 and 5 o'clock in the evening, her home being on a mountain on the outskirts of Brookville. Watts met her in a lonely spot on the road and committed a violent and criminal assault. The girl knew him by sight. He left her by the wayside in an unconscious condition, from which she partly recovered and managed to reach her home a few hours later. She told her parents what had happened and that Wess Watts was her assailant. Whereupon, the father immediately saddled a horse and rode rapidly to the sheriff's office, and informed that officer of the crime.

William P. Steele was sheriff at the time, and immediately summoned a posse of seventeen men. These men hastily armed themselves with rifles, shotguns, and pistols and, headed by the sheriff, went to the home of the

Watts', and surrounded the house, which stood on a country road in the outskirts of Brookville. After the house had been surrounded the sheriff and one of his men went to the front door where they rapped for admission. The door was opened by Wess' mother. The sheriff addressed her as follows: "Mrs. Watts, I have a warrant for Wess' arrest. I am satisfied that he is here, and your house is surrounded. He had better give himself up, peaceably, at once."

Mrs. Watts was about to reply, but before she had time to do so, the large bony hand of her son Wess was ruthlessly placed upon her shoulder and she was pulled back into the house, he taking her place in the doorway. He had a belt about his waist in which could be seen two Colts navy revolvers. He also had a Colts navy in each hand, and as he stepped into the doorway he said, "Mother, you need not lie to shield me. I will take care of myself."

And turning around he addressed the sheriff thus: "Bill, I counted your men as they surrounded the house. There are eighteen of you, and I want to say to you that I have got twenty-four shots right here (referring to the four six-shooters he was carrying). I know all of you fellows and, Bill, you know as well as your men know, that I never miss a mark that I shoot at. Now, I am going to leave this place at once and I will not bother Brookville again, unless you or any of your men attempt to stop me. If you do I will kill every man of you and will still have shots left." Whereupon he extended his hands in front of him so as to brush Sheriff Steele and his assistant to one side, and suddenly sprang forward, ran to the gate in front of the house and then across the road to where there was a high rail fence. He placed one hand on the top rail and vaulted over the fence and disappeared into a patch of laurel brush and timber.

In the meantime the sheriff and his posse, or at least a portion of them who were in sight of Watts, quietly stood and watched the proceedings without raising a gun, or attempting to do so. It was after this escape that Wess and his father, Brooks and the others made their notorious voyage down the Ohio river to Paducah.

In conclusion, I will add that on the morning that I arrested Watts at Shawneetown, I had not the remotest idea of either arresting or attempting to arrest him, as I was alone and in a strange state and had no papers

authorizing me to make the arrest, as Sheriff Steele had retained the papers when he became ill at St. Louis. I knew that Watts had never seen me, therefore, he could not possibly know me or my business; but, then the terrible reputation he bore in Pennsylvania would preclude the possibility of almost any sane man attempting to arrest him without what might be considered proper assistance. Knowing that he did not know me, and having an irresistible desire to see this terrible criminal, as I had heard him called, I ventured into his shop merely to get a look at him, believing that I could give him a plausible excuse for my early visit; but when I saw him and that he was entirely unarmed, and he did not really look to be as desperate, or even as powerful a man as he had been described to be to me, I, being armed, instantly concluded I could never expect a more favorable opportunity to arrest him than right then and there, and, as a matter of fact, I found myself carrying out this resolution really before the resolution had been fully formed in my mind. I saw before me the man who was much wanted by the Pennsylvania authorities and believed I could get him then and there, which I did.

SOLVING A TRUNK MYSTERY.

**A VERY SLENDER CLUE FASTENS A ROBBERY UPON A BOSOM
FRIEND OF THE VICTIM—THE LOOT RECOVERED.**

Early in 1872, while I was Chief of Police of Oil City, Pennsylvania, I was sitting in my office in the City Hall one morning, talking to Col. E. A. Kelley, who was at that time City Comptroller. His office adjoined mine. The colonel was a jolly, good-natured gentleman, middle-aged, very portly, scholarly, and of military bearing. He was a graduate of Annapolis Naval Academy, and had spent a portion of his early life in the United States navy. He had traveled a great deal, and was generally well-informed. He had formed a great liking to me, and took an interest in the police department, and especially in the detection of criminals and the capture of them, and loved to talk with me during our leisure moments relative to that portion of my duties as chief of the department.

We were thus engaged in a pleasant conversation, when two young men, who were probably from twenty-five to twenty-eight years of age, entered the office and inquired of the Colonel for the Chief of Police. Colonel Kelley pointed to me saying, "There is the Chief," and arose to leave the office. I knew that there was no cause for his leaving at the moment, so asked him to remain, feeling that he would be interested in the young men's business with me.

The spokesman of the two said to me that his name was William Brewer, and that he was the superintendent of an oil company which was operating a large number of oil wells on the Blood farm, which was located on Oil Creek, Venango County, Pennsylvania, and about six miles north of Oil City. He stated that his home was in the state of Ohio, near Cleveland, where he had bought a small farm for a home for his parents, who were getting old, and who were now living on this farm. He said that he was earning a fairly good salary, and that he had been saving his money so as to make the annual payment on the farm, as he had made the purchase on the installment plan. His next annual payment of seven hundred dollars,

including the interest, would be due in about a week from that date. He had been laying his money away in a trunk, which he kept in his room in the boarding-house. He stated that he had nine hundred dollars in bank notes, which he kept in a large, leather wallet, and which he placed in this trunk. He said that he kept the trunk locked, and on that morning he had occasion to unlock his trunk to take out some clothing, and to his dismay discovered that the wallet and its contents were missing. In answer to my question, he stated that he had found the trunk locked, and apparently intact. I believe I only asked him the one question. He did all the talking, clearly and distinctly, had a good face, and his general manner impressed me very much.

His companion, who looked near enough like him to be a brother, which in fact, I at first judged him to be, had nothing to say. After listening attentively to his story, I was silent for a few moments, and finally asked him how long it would take him to go to his boarding-house and bring his trunk to my office, in exactly the same condition in which he had found it. He replied that as the roads were quite bad he thought he could have the trunk in my office in about four hours. I then explained to him that as his boarding-house was outside of my jurisdiction as Chief of Police, that I really would have no right to go there, but that I would be glad to aid him to the best of my ability; to which he replied that he would bring the trunk to my office as requested, and thanked me for my trouble.

The boys then left the office, and I noticed that they had a horse and buggy, in which they departed. While this conversation was going on between myself and Brewer, Col. Kelley was sitting with his arms folded, intently interested, but silent. When they had gone I returned to my office, and sat down, where the colonel was waiting for me. After I had seated myself and lighted a cigar the colonel said to me, "Tom, why did you ask those boys to bring that trunk here to your office?" I unhesitatingly replied, "Colonel, I don't know." Right here I want to assure the reader that my reply was absolutely the truth. I really had no idea at the time that I asked the young fellow to bring his trunk to my office why I did so, other than that I had seen, while in the company of other Chiefs of Police and detectives, that they, as a rule, invariably cast as much mystery as possible about their work when dealing with people outside of their departments. Neither did I feel at liberty to admit to these young men that I felt incapable of solving the

mystery surrounding the disappearance of the money. All of which I explained to the colonel. He laughingly shook his head and said, "Tom, you are a detective, sure enough. You are not candid in this explanation that you have given to me, but I beg your pardon, as it is really presumptuous on my part to ask you such questions. However, I will just wait and watch the outcome, which I believe will be all right." I tried to answer the colonel that I had been candid with him, but it was in vain.

In due time, during the afternoon of the same day, the boys returned to my office, carrying the trunk between them. Col. Kelley was on hand, as he had evidently been watching for them and had seen them as they entered my office. I asked him to be seated, and said to Brewer, "I wish that you would place that trunk in this room in as near the same position as it was in your room at the boarding-house."

Brewer said, "Our room is square and nearly the shape of this office, but not so large. There are two windows in the west side of our room. They are about five feet apart." And he placed the trunk against the wall of the office between two windows, which were farther apart than the windows in his room. After he had placed the trunk, I said to him, "Now, I want you to approach the trunk just as you did this morning, when you missed your money, unlock the trunk, and go through the same motions that you did until you discovered the loss."

He approached the trunk, got down on his right knee, unstrapped the trunk, produced a key, unlocked it, turned the lid back against the wall, then removed the tray which covered the portion of the trunk below the lid. This trunk was a cheap one, covered with an imitation of leather, and was comparatively new. The trunk and tray were lined with a delicate blue paper. The tint was of such a color that it would easily soil. The tray had sides and ends which were perhaps two inches deep, and slid down into the lower half of the trunk from the lid, where it rested upon two cleats at either end. It fitted the trunk snugly. There were two straps of light colored tape, which were about an inch wide and were fastened with carpet tacks to the center of each end of the tray. These tapes acted as handles by which the tray could be lifted from the trunk. Brewer had to work for some time to get the tray up out of the trunk, for the reason that one of the tape straps had evidently been recently jerked from its fastenings. As stated before, these

tapes had been fastened to the tray by means of four large-sized carpet tacks. When the one strap had been jerked off the tack remained firm in the tray, but the heads of the tacks had been pulled off. This left a sharp point on one of the tacks, which projected from the wood about one-sixteenth of an inch, and like a needle point.

While Brewer was trying to remove the tray I was kneeling down at one end of the trunk and noticed the sharp point on the tack. I also noticed the mark of a thumb, which had been greasy and dirty, and which had been pressed over the tack as the light paper plainly showed.

Meanwhile, the young man whom I supposed was the brother, was standing at the other end of the trunk opposite me, when I happened to look up just as he turned around towards me, with his hands by his side. I noticed that the thumb on his right hand, which was calloused and dirty, had been cut diagonally across, leaving the cut about three-quarters of an inch long, and about a thirty-second of an inch deep. The cut was fresh and was beginning to gape open, although not deep enough to bring blood. The hands of all men employed around oil wells become more or less saturated with oil, and are rough and calloused. Generally they present a dirty and greasy appearance. As the fellow turned and I got a glimpse of the cut in the thumb, I rose from beside the trunk, faced him, and instantly seized his right hand. I carefully examined the cut, then looked at the imprint on the end of the tray, and pointing to the stain, said to him in a sharp, commanding tone, "Where is this man's money?"



"Where is this man's money?"

He began to cry, and said, "If you will let me go I will get the money."

I asked him where the money was, and he said, "I hid it yesterday under the carpet in the hall at the boarding-house."

Meanwhile, Brewer had turned ashy pale, and burst into tears, exclaiming, "My God, Chief, I am sorry to learn that he, above all other men, has taken my money. He knew all about it. He was the only person who knew that I

kept the money where I did. We have been raised together. He was my schoolmate and is now my room-mate. His father and mother live in Ohio and are our nearest neighbors. It would kill them to know that Jim would do a thing like this. His name is Jim Davis."

I said to Davis, "Will you go with Brewer and get that money and turn it over to him, intact?" He promised that he would do so, but he said, "Chief, I cannot get the money from its hiding place unobserved until after the people in the house have gone to bed, tonight."

"That will be all right," said Brewer, "I know Jim will do as he promises. Now, Chief, if you will not arrest him I will gladly pay you anything that you may charge me, but please do not arrest him. I could not appear against him in court, for if I did so it would kill his mother, and probably my mother too."

I replied that I would make no charges for my services, and if he was satisfied it did not matter to me. I said, "You may take charge of him, and if he does not turn the money over to you at once, I will take the matter up and have him punished according to law."

The boys left with the trunk, and the next day Brewer called upon me and told me that Davis had turned all the money over to him, and had then attempted to commit suicide. He had gone to a near-by drug store and purchased a quantity of poison with suicidal intent. Suspecting that Davis had contemplated ending his life, Brewer had detailed a trusted and mutual friend to watch him, unknown to Davis, and who seized him and took the poison away from him before he could use it.

Davis and Brewer were friends afterwards and became inseparable, as they had been before that time. If the parents of either of them ever heard of the occurrence I am not aware of it.

After the boys had left, Col. Kelley, who had taken in the entire proceedings in silence, came to me with moisture in his eyes, and said, "Chief, you are a brick."

THE GLENCOE TRAIN ROBBERY.

ARREST AND CONVICTION OF BILLY LOWE AND GEORGE EBBER- LING.—A PIECE OF QUICK WORK.

Glencoe is a small station on the Missouri Pacific Railway, twenty-nine miles west of the city of St. Louis. An east bound train which carried both mail and passengers was boarded on the night of February 21, 1910, by two men, who climbed on the front end of what is known by railroad men as the blind baggage, next to the tender of the engine. These men were unobserved until the train had passed Glencoe station, when they climbed over the top of the tank to the engine and covered the engineer and fireman with drawn revolvers. They were both masked with handkerchiefs tied over the lower portion of their faces, which entirely concealed their features below the eyes. They wore slouch hats and were described by the engineer and fireman and other members of the train crew who saw them—one as a short, stout built man with very black hair; the other as a tall, square-shouldered fellow with light-brown hair, and apparently younger than his stout partner. The stout man was described as having handled and carried his revolver in his left hand, while his right hand was bandaged and appeared to have been injured. He also was reported as having acted as chief and to have given all orders, and to have handled the locomotive as though he was as perfectly familiar with the work as an experienced locomotive engineer. These men compelled the engineer to bring the train to a full stop. They then made the engineer and fireman accompany them back to the rear end of the last mail car, when the engineer was forced to disconnect the two mail cars from the rest of the train. Then the engineer and fireman were marched back to the engine, and after all four men had again entered the cab, the short man took charge of the engine, and pulled the express and two mail cars to a point about three miles east of where the rest of the train had been left with the crew. They stopped at this point on the main track and began rifling the sealed mail pouches in one of the mail cars, continuing this for several minutes, cutting open the sealed pouches and taking therefrom all the registered mail. They finally concluded that

they were consuming too much time, as trains were liable to approach from the east. They, therefore, seized a number of large mail pouches filled with registered mail, and, after instructing the engineer and fireman to back the engine to Glencoe and take up the rest of the train again, the men left the railroad on foot, each of them being loaded down with the registered mail pouches, which they had taken from the car. They hid these mail bags in a stack of corn-shucks in a cornfield near the bank of the Meramec River. They had previously stolen a skiff, or rowboat, which they had hidden in a clump of bushes on the bank of the river near the cornfield. They took this rowboat and made their way down the Meramec River a few miles, where they left the boat and made their way overland back to St. Louis.

On the morning of February 22, I happened to be in New York City and upon picking up a morning paper I read the account of the train robbery and the description that had been given by the train crew of the robbers. I immediately telegraphed to the manager of my office in St. Louis to go and tell Mr. Dixon, of St. Louis, Postoffice Inspector in charge of the district of Missouri, that I knew who the train robbers were, and where they could be found, and that I would be in St. Louis the following Saturday and that I would get the guilty men and turn them over to him or to his assistants in case he, Mr. Dixon, and his force had not succeeded in locating and arresting the guilty men before I returned to St. Louis.

On my return the following Saturday I found Mr. Dixon awaiting me. I told him that I was satisfied, from the description of the robbers, that Billy Lowe was the leader in the Glencoe Train Robbery. I told about having arrested Lowe eleven years before for having taken part, with others, in the Leads Junction Train Robbery, which had occurred on the Missouri Pacific Railroad just east and south of Kansas City. He with the others had held up the train and had blown the express car to pieces with dynamite. I also told him that I had finally succeeded in obtaining from Lowe a complete confession as to the part he had taken in the Leads Robbery, and also the names of his associates in the crime.

Some of his other companions were also arrested at the time. Lowe took the witness stand and by his testimony fully substantiated the confession that he had made to me in the presence of John Hayes, who was then Chief of Police of Kansas City, Missouri, and D. F. Harbaugh, one of my men at that

time. Lowe afterwards reiterated this confession to the prosecuting attorney of Kansas City. The prosecutor's name I do not now remember.

Lowe having taken the witness stand and having promised the Chief of Police and Prosecuting Attorney and myself that he would thereafter lead an honest life, the prosecuting attorney annulled the proceedings against him and after the trial of his associates Lowe was dismissed. He was a thorough railroad man. He came to St. Louis and obtained employment as a switchman in the yards of the Iron Mountain Railroad, where he met and formed the acquaintance of one George Ebberling, also a switchman. He and Ebberling became fast friends and continued to work for the Iron Mountain for several years, when they left the company's service and went to St. Paul, Minnesota, where they obtained employment in the train service of the Great Northern Railway Company, and finally worked their way to Spokane, Washington.

In the meantime I kept track of them, believing that it would be only a question of time until Lowe would become a train robber again. During the years of 1908 and 1909 a number of trains were held up and robbed in the vicinity of Spokane, and I, knowing that Lowe was there, wrote the officers of the Great Northern Company that I believed that I knew who the guilty parties were and where they could be found. But these officers apparently did not deem the information I had sent them worth answering, as I did not hear from them.

I knew that both Billy Lowe and Ebberling were in St. Louis prior to the Glencoe Train Robbery. They had returned early in January and I immediately had placed a shadow on their movements, and when I read the description of the men who had robbed the train at Glencoe I at once became satisfied that Lowe was the man who had handled the engine. He had visited my office the day preceding the Glencoe affair, and his right hand was bandaged by reason of boils that he had on his wrist just above the hand; and then the description in the New York papers was almost a perfect description of Lowe, and also the description of the tall man given in the paper was that of Ebberling.

As soon as they arrived in St. Louis, Lowe had rented an office room on the upper floor of the Granite Building, on the southwest corner of 4th and

Market streets. Lowe furnished his office and had a number of maps and charts of mining lands in Alaska, and offered mining stocks for sale in that country. Ebberling left St. Louis immediately after the Glencoe robbery.

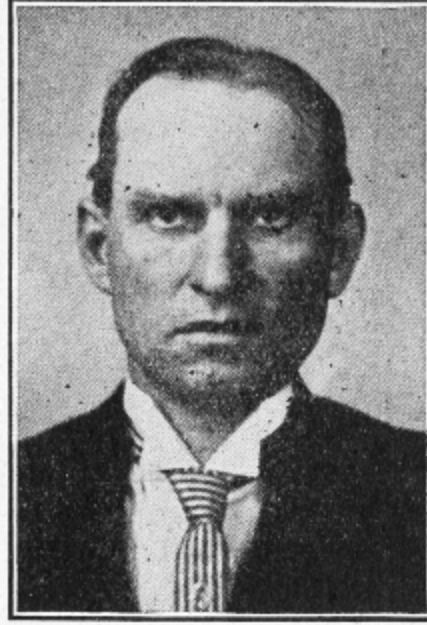
A day or so after the robbery, a country merchant, who resides in a small town near Kansas City, furnished the postoffice inspector with a clue which afterwards proved that I was right in suspecting Lowe and Ebberling of the crime. This merchant owed a St. Louis wholesale house a bill in the neighborhood of \$100.00. He had, on the day before the robbery, remitted the amount by registered letter, keeping a memorandum of the size, series and numbers of the bills. When he first heard of the robbery, and knowing that his package was probably a part of the loot, the merchant sent a copy of the memorandum to the postoffice inspector. The inspector had several hundred copies of the memorandum printed and forwarded to the officials of the banks within a radius of five hundred miles of St. Louis. Within twenty-four hours after the distribution of these circulars, one of the bills, a ten-dollar gold certificate, was presented at the receiving teller's window of a Hot Springs National Bank, by one of its lady depositors—the keeper of a rooming house in that city. On being questioned as to where she had obtained the bill, the lady told the teller one of her roomers, Mr. George Ebberling, had given it to her in exchange for a week's room rent.

In the meantime, I having learned that Ebberling had gone to Hot Springs and his address there, notified Inspector Dixon, who immediately sent one of his assistants to Ebberling's lodging place, where he secured an adjoining room to enable him to keep a closer watch on the suspected mail robber. The teller of the bank reported the finding of the bill to Inspector Dixon promptly, and we immediately planned the arrest of Lowe.



WILLIAM W. LOWE.

Train robber and thief now doing
a long sentence for robbing
a mail train near St. Louis.



GEORGE EBBERLING.

Train robber and thief who assisted
Lowe in many of his robberies,
also doing time.

The following morning accompanied by two of Mr. Dixon's postoffice inspectors, James Smith, Chief of Detectives of St. Louis, and two of his men, and my Assistant Superintendent, J. S. Manning, I went to Lowe's office in the Granite Building, having previously been advised by Mr. Manning that the man under suspicion was in his office. I pointed Lowe out to the city officers, who arrested him promptly. He was locked up and after his arrest, Mr. Dixon telegraphed his inspector at Hot Springs to arrest Ebberling immediately and bring him to St. Louis. After Ebberling had been arrested at Hot Springs, when he was asked how he got possession of the ten-dollar note, before mentioned, he confessed that he had gotten it from Billy Lowe and made a further and full confession as to how he and Lowe had robbed the train at Glencoe.

Lowe did not make a confession, nor did he make any admission as to his connection with the robbery; on the contrary, he strenuously denied everything.

In his confession, Ebberling stated that Jimmy Lowe, a younger brother of Billy's, knew all about the robbery, and would have taken part in it but for the fact that he became intoxicated on the evening the robbery was scheduled to take place and could not make the trip. Ebberling also stated that James Lowe had visited the cache in South St. Louis where the guns and masks had been hidden, and brought them to St. Louis and delivered them to Billy Lowe at his mother's house.

The amount of money secured from the rifled mail pouches, according to Ebberling, was between six and seven hundred dollars, but the pouches which had been "stashed" in the cornfield by the robbers, and afterwards recovered by the officers, contained a great deal more than this amount.

Ebberling and Lowe were tried in the April term of the Federal Court at St. Louis and were convicted—Lowe being sentenced to forty-three years at Leavenworth, United States Penitentiary, and a fine of \$3,000.00, or the equivalent of two years in prison. Ebberling was sentenced to eighteen years in Leavenworth Prison, and fined \$3,000.00. Jimmy Lowe, who had laid in jail for months and had taken the witness stand for the Government, was released and is now leading an honest life, so far as I know.

After arriving at the penitentiary Ebberling made a further confession in which he stated that he and W. W. Lowe had held up and robbed eleven trains at different points on the Great Northern and the Northern Pacific Railway lines in the vicinity of Spokane, during 1908 and 1909, and in this statement he described so accurately the places at which he and Lowe had hidden certain property they had secured in these robberies that the United States authorities went to the places designated and recovered the property. Lowe and Ebberling have since been indicted for these robberies, proving conclusively that I was right when I wrote the officers of the roads named that I believed I knew who the parties were who had been holding up and robbing their trains.

The Great Northern and the Northern Pacific had offered rewards for the arrest and conviction of the parties who had committed these depredations, which aggregate, I understand, \$20,000.00; but, as I have always strictly adhered to a rule that I formed early in my career, never to work for or receive rewards that might be offered for the arrest and conviction of any

person, I did not claim the rewards offered by the two railroads. My reason for not accepting rewards is fully explained in another portion of this book.

RUNNING DOWN THE REVOLUTIONISTS.

DIFFICULT PIECE OF DETECTIVE WORK PERFORMED FOR THE MEXICAN GOVERNMENT—SENSATIONAL SCENES ATTENDING THE ARREST OF THE LEADERS.

Early in the Twentieth Century a movement, which had for its object the overthrow of the Diaz government in Mexico, crystalized. The revolutionists went about this work very quietly at the beginning, but later became more bold, and finally the majority of the leaders in the movement were driven from that country. Headquarters were first established at Laredo, across the border, but afterwards at El Paso and at Tombstone, Arizona.

As this was a violation of the neutrality laws, at the instance of the Mexican government the El Paso and Tombstone junta were broken up, and its officers disappeared. Within a few months the Mexican government learned that the revolutionists had again gotten together, and were once more flooding that country with inflammable literature. I was employed in 1907 by Enrique C. Creel, at that time Governor of Chihuahua, to locate the new headquarters of the junta, and find out what was going on. I soon went to work on the case, and found that the new headquarters of the revolutionists had been established in St. Louis, in the 900 block on North Channing avenue. Ricardo Flores Magon was the president, Antonio I. Villerreal, Vice-President, and Labardo Rivera, Secretary, of the junta. I also learned that Ricardo Flores Magon was editing and publishing a scurrilous and inflammatory paper in St. Louis under a fictitious name. The paper was supposed to be published monthly, and was called the Mexican Regeneracion. Magon's staff consisted of his brother, Enrique Flores Magon, Antonio I. Villerreal, Labrado Rivera, and a number of lesser lights, among them Munwell Lo Pez, Manuel Sarabia, Tomaso Sarabia, and a number of women, two of whom were sisters of Villerreal.

Villerreal's father, who was a very old man, sold newspapers on the streets of St. Louis for a living. Villerreal's sisters were named Andrea, the elder,

and Teresa, the younger.

Antonio de P. Araujo used the following aliases, German Riesco, Alberto M. Ricaurte, Joaquin P. Calvo, Luis F. Carlo, and A. G. Hernandez. Tomaso S. Labrado was a protege, a sort of a "man Friday" for Antonio de P. Araujo. Araujo made his headquarters at Austin, Texas, for quite a while, but finally established his permanent abode at McAlester, Oklahoma, and was a live wire.

Villerreal's sisters lived in a basement with their old father for a while. Their place of residence was East Convent street, St. Louis. It was the basement of a rickety old tenement house, and besides themselves and their father, there was a woman who represented herself to be the aunt of Ricardo Flores Magon, and gave her name as LoPaz. I never heard of her claiming any relationship with Enrique Flores Magon, who was Ricardo Flores Magon's brother. The old mother of Juan Sarabia, and the wife and two children of Labrado Rivera, also lived in the same place. Juan Sarabia was the cousin of Manuel and Tomaso Sarabia, who were brothers. The entire furnishings of this hovel could have been moved in two good wheel barrow loads. The whole outfit was very poor and lived in what appeared to be abject poverty and filth. None of the members of the junta were in any way connected with the first families of Mexico.

To write up the characteristics, ideas, habits and the practices of the members of the St. Louis junta, I have material enough to cover reams of foolscap, much of which would be uninteresting to the American people. I will, therefore, confine myself to the final locating of Magon, Villerreal and Labrado Rivera, the originators and the ringleaders of the conspiracy, their arrest in Los Angeles and their extradition to Tombstone, Arizona, after they had been in jail for nearly two years, during which time they exhausted all legal resources in attempting to avoid extradition to Arizona, where they stood charged with having violated the United States neutrality laws. A large sum of money was raised and contributed by sympathizing Mexicans who resided in and about Los Angeles, as well as by the different labor organizations, to assist them in their defense. The laboring classes in California and throughout the United States sympathized with these so-called revolutionists, Magon and his party, as much as though they had been respectable, honest working people. If the Magons, or any of his followers,

mentioned heretofore, ever did a noble or patriotic act in their lives, either in the United States or Mexico, I have never succeeded in learning of the fact, and from the information I obtained I am satisfied that none of them ever attempted to earn a living by honest labor.

I succeeded in locating Magon, Villerreal and Rivera in a cabin in the western part of Los Angeles, where they were entire strangers and their real identity was known to but two people in the city. Magon had made it a rule to never trust his fellow countrymen, or any one else. Many Mexicans in Los Angeles knew Magon was in or near the city, and knew him as the leader of the Mexican rebellion, but did not know him personally, nor would he permit them to know him.

There was a man there by the name of Modeska Diaz, who knew Magon and his party was in the city and visited him in his sanctum, always between midnight and daylight. Magon used this man's name, Modeska Diaz, as the editor of his paper in Los Angeles. There was also a married woman, a Mexican, fairly good looking, thirty-eight or forty years of age, light complexioned and an admirer of Ricardo Flores Magon, and this admiration was reciprocated. She visited him occasionally, always at late hours. She and the man Diaz were the only persons in Los Angeles who were aware of Magon's place of abode. They were also the only people in Los Angeles who knew him personally.

After I had succeeded in locating the cabin where these men were living, I was fortunate in securing rooms just across the street and from my window was able to watch everything that went on in the retreat of the Magon party. I kept them under surveillance, day and night, for a month before making the arrests. They left in the day time and did all their work at night, beginning as soon as it got dark and keeping up their work until daylight.

I soon discovered that Villerreal was absent. He had been arrested by the United States authorities the year before at El Paso, Texas, and placed in jail, where he remained for months, and was finally put in charge of a deputy United States marshal, who started to escort him across the line, as an undesirable citizen, but en route he obtained permission from his guard to enter a telegraph office at El Paso, claiming that he wished to notify his sisters, by telegraph, that he was being deported. He left the officer standing

at the front door of the telegraph office and passed through the place and escaped by the rear door, and thereby established a great reputation for himself among the lower classes of his fellow countrymen. The newspapers made a great sensation of the affair, and referred to it as a hair-breadth and miraculous escape from the United States authorities. The facts are, that his escape was from one deputy United States marshal, a half-breed Mexican, who was almost immediately after Villerreal's escape dismissed from the service. It was afterwards rumored around El Paso that the deputy had been bribed. For this reason I decided not to arrest the others until Villerreal appeared on the scene. I felt sure that it would be only a question of time when he would join his master, Magon, in Los Angeles, as it would be necessary for him to make his report to Magon on the progress in the mission that had been assigned to him in Arizona.

Finally, on the night of August 22nd, about midnight, Villerreal was seen to enter the cabin. Satisfying myself as to his identity, I decided to arrest them the following day, August 23rd.

We had discovered that the inmates of the cabin used large coal-oil lamps, and, as I expected Magon and his companions would resist arrest, there was a chance that the lamps might be upset and explode. This would set fire to the place, and thereby destroy papers and documentary proofs, and for this reason I decided to make the arrests in daylight.

At five o'clock on the evening of the 23rd, we surrounded the cabin. I had with me two Los Angeles police officers and two of my own men. We found Villerreal and Magon asleep, and Rivera sitting in a chair, also in slumberland, although he was supposed to be on guard at the back door. Our appearance had been so quietly arranged that the parties were completely taken by surprise and did not have time to reach their arms. They fought hard, however, and continued to struggle all the way from the cabin to the jail, a distance of at least three miles. A wagon happened to pass the place at the time and I pressed it into service, and it kept us busy to keep the prisoners in the wagon, as they struggled and fought the entire distance, and kept up a continual squawking, which reminded one of a flock of wild geese. None of them spoke English, and the only things they could say were that they were being kidnapped and the words "help" and "Liberales."

It was just the time in the evening when people were leaving their places of work and going home, and the streets were thronged with people. We had to go north on Spring street, the principal street of the city. By reason of the continual uproar created by the prisoners it proved to be the most sensational arrest that had ever been made in Los Angeles up to that time.

We landed them safely in the city prison, and without any one sustaining serious injury, except a few teeth knocked out, bruised faces and black eyes. To my great surprise Villerreal, who had been so much lauded for his undaunted courage, was the easiest one of the party to subdue, and seemed to possess the least courage of anyone in the party.

A remarkable feature of this affair was that this party of agitators appealed to the sympathy of the working element. The laboring classes, nearly to a man, were in sympathy with them. I know that none of them had ever been connected with the working man's interests, nor were they laboring men themselves. They were simply agitators and people who were always trying to obtain something for nothing.

Guiterrez de Lara posed as a Mexican novel writer, and claimed to have been admitted to the bar as a lawyer in Mexico, and fled from there, going to Los Angeles, California, where he sought refuge. He obtained a meal ticket by marrying the proprietress of a lodging house, who was an American old enough to be his mother. He was not known to be connected with the revolutionary movement in Mexico, and was entirely unknown to the Magon faction until he broke into the limelight after Magon and his party had been arrested. De Lara was tall, inclined to be slender, had long, black, wavy hair, which he kept carefully parted in the middle, had some education, spoke no English, and was a typical agitator, and opposed to all law, order or government. However, he was not suspected by the people of Los Angeles as having either moral or physical courage.

Manuel Sarabia, one of their number, was a printer by trade. He had gone to Chicago during the printers' strike and took a position with M. A. Donahue, Hammond, Ind. He was a "scab" printer for one whole winter. I had him under surveillance all the time. Magon and the others all knew he was a strike breaker, as he had been in communication with them from time to time.

Rivera, after leaving his wife and children, started west to join Magon. He worked his way from Kansas City by stealing rides on freight trains, and in the same way from there to Denver, Colorado. Here he stayed around the Union depot, playing porter until the regular porters drove him away. He next made his way to Leadville and worked there, also as a "scab" porter. He was continuously on the lookout for detectives, and imagined that every person who looked at him was one, when, as a matter of fact, we knew his whereabouts continuously from the time he left St. Louis until he joined Magon in Los Angeles. In fact, it was by following him that we finally located Magon's place of abode.

Munwell LoPaz was commissioned by Magon as general organizer for the so-called revolutionary army. He went from St. Louis to San Antonio, Texas, where he commenced organizing volunteers for the "army," and had considerable success, until he received orders to go to Monterey, Mexico, for the same purpose. On receiving these orders he secured the services of Tomaso Labrada, and left him in charge of his affairs in San Antonio, while he went to Monterey.

One of our operatives, who was shadowing him, informed me of LoPaz's movements. I was in San Antonio at the time. I arrived in Monterey twelve hours after LoPaz reached there, and the following day I succeeded in capturing him at the postoffice in Monterey. I turned him over to the authorities, and some credentials and other papers found on him caused the authorities to send him immediately to the City of Mexico.

During the four years that I was employed by the Mexican Government to look after the Magon faction, I came in contact with a number of the leading officers of that government, among them President Diaz, Vice-President Corral, and Ambassador to the United States, Enrique C. Creel, and his successor, Senor De La Barra. I found them all gentlemen, good business men, honest, high-minded, and, I believe, thoroughly loyal to the people of Mexico. I found that the people of Mexico seemed to have great confidence in and respect for President Diaz. All the officials were very popular with the exception of Vice-President Corral. He was the most unpopular officer connected with the Mexican government, and I have no doubt that the dislike the people of Mexico bore for him was a great factor

in creating the disfavor that finally caused the overthrow of Diaz's administration.

Ricardo Flores Magon was a man of brain, well mannered, inclined to be courteous, and educated and undoubtedly intended for a leader of men, but he was unscrupulous and irresponsible, and was an anarchist at heart.

Enrique Flores Magon, his younger brother, was educated, with a disposition and manners similar to those of his brother, inclined to be timid, verging on cowardice.

Lebrada Rivera was forty years of age, small of stature, light weight, and from his appearance might have been mistaken for a Japanese. He was well educated in Spanish and was at one time connected with the university or school at San Luis Potosi. It was claimed by some of his friends that he had been a professor of this school, but, by his appearance and subsequent actions he was more like a janitor or assistant janitor.

Villerreal was about the medium height, well built and rather good looking, about thirty-odd years of age, had some education, and took great care of a luxurious head of black, kinky hair, and a pretentious mustache, which were, in my opinion, his most valuable assets.

Juan Sarabia was between thirty and thirty-five years of age, and fairly well educated, was quite an orator, thoroughly disloyal to his country and a violent agitator, although he possessed more courage than any of his associates.

Munwell LoPaz, Manuel Sarabia and Tomaso Sarabia, represented themselves as important factors in the revolutionary movement. They pretended to hold official positions of great importance in the junta, when, as a matter of fact, the importance of their positions in the junta would compare favorably with that of a bellboy in a first-class hotel to that of the manager, who was Magon.

Magon, Villerreal and Rivera were finally extradited to Tombstone, Arizona, where they were tried in the United States court, convicted and sentenced to the Arizona state prison at Yuma for a term of eighteen months each for having violated the United States neutrality laws, by having organized an armed body of revolutionists at Douglas, Ariz., from where

this expedition was sent to the Cannanea copper mines, in Mexico, about thirty miles from the south border of Arizona, with the intention of exterminating all Americans and other foreigners who were employed in and about the Cannanea mines.

Fortunately for the foreigners around these mines, the Arizona rangers, who were then an active body, pursued this mob of revolutionists, but did not overtake them, until they had reached there and began what might have been a massacre, but for the timely appearance of the Arizona rangers. They put the so-called revolutionists, but who should have been called bandits, to flight, capturing a few of the participants. It should be remembered that the Magons, Villerreal and Rivera, while not taking an active part in this raid, guided their adherents from a long, and what they considered a safe, distance.

In my judgment the penalty for the violation of the neutrality laws of the United States are not as severe as they should be.

Just as soon as these men had served their time out and were released (within two months) they had reorganized and started the rebellion in Mexico, that finally resulted in the overthrow of President Diaz's administration. However, this was not accomplished by Magon or his followers. It was accomplished by parties who were enemies of the Magon faction. They quietly organized and stepped in at the opportune time to reap the benefit of the turmoil, disruption and dissension that had been created by the Magon faction. This faction was headed by Madero, who had financial means and a somewhat better class of followers than Magon.

Madero's victory over the federal army was a comparatively easy one, as the government army had become completely honey-combed with disloyalty. When President Diaz became aware of existing conditions there was nothing left for him to do but leave his country to save his life.

It is to be hoped that the newly formed administration of Madero will bring peace and prosperity to the people of Mexico. However, at the present time, the writer has some doubts as to the fulfillment of this hope.

While the arrest and capture of Ricardo Flores Magon and his associates at Los Angeles, California, on the 23rd of August, 1907, may not interest the

American reader very much, I want to say that by reason of the shrewdness of Ricardo Magon and the secrecy that he engendered into his followers, the fact that none of them spoke English, and each and every one of them had many aliases, and did all of their important corresponding in various systems of cipher, and the further fact that the Magon brothers continually kept their Mexican followers from getting to know them personally, and from the secret methods employed by them on all occasions, I consider the final location and capture of these parties, under all of the foregoing circumstances, the most difficult, as well as one of the most important, cases I have ever handled.

As a matter of course, after these people had been arrested and had had various hearings in the courts of Los Angeles while they were fighting extradition to Arizona, the officers of this country, as well as of Mexico, had the opportunity of becoming acquainted with their faces and their methods, and, therefore, before they were extradited from Los Angeles, many of the police officers and others in that city and all along the Mexican border would tell people all about Magon and his followers, and have been known to say that they knew all about them and their methods; that their capture had been a very easy proposition, and that had I not succeeded in capturing them just when I did that they were about to have made the capture themselves, when as a matter of fact these officers did not have the slightest idea as to the whereabouts of this party, nor were any of these people known to any of the officers on either side of the line, nor their methods, until after the capture and the subsequent development in the courts.

A DALLAS MURDER AVENGED.

PROMPT ARREST AND CONVICTION OF THE MURDERER AND SUI- CIDE OF THE INSTIGATOR OF THE CRIME WHILE AWAITING TRIAL.

Early in the '90s, I received a telegram from James Arnold, Chief of Police of Dallas, Texas, and Ben Cabel, County Sheriff of Dallas, requesting me to come to Dallas immediately for consultation in a murder case. Knowing both gentlemen well, having done business with them before, I answered that I would start for Dallas the following day, which I did.

I arrived in Dallas late on Wednesday evening. I found Chief Arnold and Sheriff Cabel waiting for me at the depot. We went to my hotel immediately where we could have a quiet conference. For obvious reasons I will not give the true names of the principals connected with this dastardly crime, but will state the actual facts which led to the arrest and conviction of the murderer, and to the suicide of the real principal.

The Chief and Sheriff told me the nature of the case for which I had been summoned. They said that on Sunday night, preceding, a prominent citizen of Dallas (whom I will call Temple) had boarded a heavily loaded electric car, downtown, in front of one of the principal churches, for his home. The car had at least forty or fifty passengers, most of whom were returning home from the evening services, which Temple had attended. Temple lived on the outer edge of the city in the better residence portion. When the car reached his home he got off and started towards his front gate. There were a number of shade trees in front of his home; the street at this point was well lighted by arc lights, one of which was suspended above the point where he had left the car. As he stepped from the street to the edge of the side-walk, a colored man, who had been concealed behind a shade tree, sprang out and was seen by a number of passengers who were on the rear end of the car to strike Temple a powerful blow on the head with something like a baseball bat. After striking the blow, the negro dropped his weapon and his hat, and

fled into an alley, disappearing in the darkness. The people who had witnessed the assault, hastened to Temple, who lay unconscious on the sidewalk, picked him up and carried him into his house. Doctors were summoned, and found that Temple's head had been split from the crown to the level of the eyes. He was still breathing, but only lived a few moments, never regaining consciousness. The Chief and Sheriff were sent for and found that the weapon was a piece of 1½-inch gas pipe, near four feet long. The blow was so powerful that it bent the pipe, midway, to almost an L-shape. They also found the hat, which the murderer dropped, to be a new, cheap, broad-brimmed, black hat and was of unusually large size. It was too large for any ordinary sized head and indicated to me that it was probably too large for the man who had worn it, and for that reason had fallen off with the first violent move the wearer had made. The witnesses to the crime had all had a plain view of the slayer, and described him as a young negro, very black, about five feet eight inches tall, well built, and apparently well dressed. They all agreed that he had the features of a white man, thin lips, straight nose and regular features. In fact, a number believed him to be a white man who had blackened his face.

During our conference I learned that Temple had a brother, who was a prominent physician, and who lived in Springfield, Illinois. He had been sent for by his sister-in-law, arriving in Dallas on Tuesday. The doctor was anxious to have his brother's assassin brought to justice, if possible, and had asked them to recommend a detective to him for that purpose, so they had wired me to come on to Dallas. It was midnight by this time, and I was tired. After making an appointment with Sheriff Cabel to accompany him to the scene of the murder the next morning, I retired.

Next morning Chief Arnold, Sheriff Cabel and I went over the ground. I examined the hat and the piece of pipe, which the murderer had used, and I noticed that this pipe was new and had been cut from the end of a long joint. It was evident to me that it had been cut to the proper length so that he (the assassin) could conceal it in carrying it to the place of the murder. I then began my investigations.

There was a large colony of negroes in Dallas, as in other Texas towns, but no one seemed to know a colored man who had a white man's features. All the witnesses agreed that they had never seen any one who looked like the

murderer before. It was, of course, necessary for me to discover the motive for the murder, since in all crimes of this character there is a motive.

I found that Mr. Temple had been superintendent of a Sunday School. He was also in the wholesale lumber business, and was associated with two parties in the business. One of them I will call Smith and the other Perry. When the partnership had been formed they agreed to take out a ten thousand dollar life insurance policy on each other's life, and to carry these policies on the company funds. I learned that Temple had incurred the enmity of a number of citizens; among them was a brother-in-law, who at one time had been heard to threaten his life. Temple had had some litigation with a saw-mill proprietor who lived in east Texas. This litigation involved about fifty thousand dollars, and had been in court for several years. Finally a decision had been rendered in favor of Temple, a short time prior to his murder. The saw-mill proprietor of east Texas had the reputation of being a good citizen, honorable and reliable in business, but had killed two or more people, for which he had been exonerated by the courts. From the above the reader can understand that I had already discovered what might prove to be several "motives" for the crime.

At noon on the second day after my arrival at Dallas, I had eaten my dinner and walked out of the Grand Windsor Hotel, where I was stopping, to the corner in front of the hotel, where I stopped for a moment, as I was undecided whether to go up or down the street first, there being people in both directions whom I wished to see. It was raining. There was a fine-looking young woman coming across the street towards me. As she approached I noticed that she was a colored girl, but about as white as myself. Her hair was kinky and of a deep reddish color. Her eyes were large and blue. She was tall, well dressed, but had large brown freckles about the size of a little finger nail. Her carriage was graceful, and were it not for the freckles and kinky hair she would have been called a beauty. Her graceful movements attracted my attention, and as I looked at her a hand was laid on my shoulder. On looking around I beheld Doctor Temple. He said in an undertone, "What do you think of her?"

I said, "She is a freak of nature."

He answered, "Yes, she is a freak of nature. I noticed her yesterday in that building where my brother had his office. She appeared to be having an earnest conversation with the janitor." After a few other remarks the doctor left me and I concluded to go and see a party that I thought could give me some information. I could not get that colored girl out of my mind, and before I had gone a block I decided that I would go and find out who she was, and what her business was with the janitor of the building where the lumberman had had his office. I knew that Sheriff Cabel would know who this girl was, as he knew every one in Dallas. I turned around and went back to the court house, where I found the sheriff and said, "Sheriff, I saw a colored girl near the hotel a short time ago (here I described her) and I would like to know who she is and something about her."

The sheriff said, "That girl is known as Liza Johnson. You know Emma Johnson. She's the daughter of an old colored woman who lived for many years with Emma Johnson. Her mother died when she was a child and Emma raised her like her own daughter. She's a good girl and Emma thinks a great deal of her; Emma can tell you all about her, and I will take you over to Emma's if you want me to." This he did.

We called on Miss Johnson, and the sheriff introduced me, and told her I was a friend of his, asking her to treat me accordingly, to which she assented.

I said, "I want to know something about your maid, Liza. I understand that she has been seen in an office building over on Commerce St. and I am anxious to learn what business took her to that building."

She replied, "Why, I don't really know, but I reckon I can find out. About a month ago the negroes here in Dallas had a picnic and Liza went to that picnic. She met a young negro there and he brought her home. I saw him, and he was good looking, well dressed, and appeared to be fairly well educated. He was black as ink though, but had good features, like those of a white man. He had thin lips, small mouth and a straight nose. If he had been a white man he'd have been good looking." This was an exact description of the slayer of Mr. Temple. Continuing, she said, "He came here from some place down in the state. He is a stranger here and don't mix with the other

colored people. He's acting as a sort of body-servant to his master, who has an office in that building on Commerce St."

I then asked, "What is his name?"

She replied, "His first name is John, and his last name is the same as his master's. I can't recall it."

"Was his master's name Perry?" I asked.

"Yes," she answered, "That's it, John Perry. But John is not in town now. He left town last Monday. He came over and saw Liza, and told her he was going to San Antonio to attend the races there this week. He writes her every day, though, and she got a letter from him this morning."

I asked her if she could let me see the letter without Liza's knowledge. She said, "Oh, yes, I'll send Liza over to the drug store on an errand and I can get it then before she returns."

She sent Liza to the drug store, and got the letter and gave it to me. It was in the envelope and had been mailed the day before at San An—the balance of the word not appearing, because the mailing stamp had not touched the paper. I believe it to be San Antonio, since he was supposed to be there.

Upon receiving this information I asked Miss Johnson to treat my visit in confidence, which she promised to do. I then located a plumbing shop where I found the proprietor and his brother, about eighteen years of age, who at once recognized the piece of pipe, which he said he had cut from a large joint for a negro the Friday before the murder. He described the negro fully as Miss Johnson and others had done, and said he could identify him any place on sight. I immediately arranged with the elder plumber for his brother to accompany me to San Antonio at my expense, with the understanding that I was to pay him for his time. The boy put on his best clothes and we left Dallas that night for San Antonio, arriving there next morning. We went to the Menger Hotel, and while at breakfast the hotel clerk brought me a telegram from Sheriff Cabel, of Dallas, reading as follows:

"Go to San Angelo, Texas, at once."

Before leaving Dallas I had arranged with the sheriff and Miss Johnson to examine all letters received by Liza. On the morning of my arrival at San Antonio Liza received a letter from the San Angelo postoffice with the postmark plainly stamped upon it. I took the first train for San Angelo, which left that evening. We arrived at San Angelo next morning, Sunday.

San Angelo was, at the time, a small cattle shipping town, and within an hour after our arrival I learned that the negro, John Perry, had left San Angelo on Saturday evening, with a ticket to Lampasas, Texas. I also learned that I could not leave for Lampasas until Sunday evening, as there was only one daily train each day. Sunday evening we left for Lampasas, where we arrived about 8:00 a. m. Monday morning. Lampasas was the county seat and it was court week. The town was filled to overflowing by reason of the court. The depot was about one-half mile from the postoffice in the center of the city. Getting off the train the boy and myself walked over to the hotel, and as we neared the postoffice we noticed a large crowd around it evidently waiting for mail. The boy from Dallas called my attention to a colored man, who was wearing a light Fedora hat, with a blue serge suit, and was well dressed. He stood away from the crowd near the postoffice, evidently waiting for mail. The boy pointed to him and said, "That's the nigger that I sold that piece of pipe to."

We were in front of the store when he recognized John Perry, whom it proved to be. I told the boy to stay right there until I had captured the negro. He could then quietly follow us to the jail unobserved. I went over near the place where the negro stood and concluded that I would wait until he had received mail, which he was evidently expecting. In a few moments the negroes formed a line to the window where they received their mail. In a short time John reached the window and received a letter. He left the line and walked around the corner of the building, opened the letter and took from it a couple of bank notes, hastily placed them in his vest pocket and proceeded to read the letter, which was written in lead pencil. Meanwhile, I had gotten within reach of him without being noticed by him or any one else, when I suddenly threw a 41-calibre Colt revolver into his face, commanding him to throw up his hands. To my surprise he suddenly plunged his hand inside the waist of his trousers and attempted to draw a nine-inch barrel, 45-calibre Colts, concealed under his vest. Before he could draw it I seized his hand and his revolver and commanded him in forcible

tone to desist. The moment I leveled my revolver on him the crowd's attention was attracted. One of them, who was standing very close, was about six feet tall, and really the thinnest looking individual I had ever seen. He wore a hat with a very wide brim, making him look much thinner. He promptly threw a 45 Colt on both of us, and with a voice as shrill as a wild goose, yelled, "Heah, heah, I am the sheriff of this county and I command peace."

To which I replied, "Mr. Sheriff, take hold of this negro. I'm an officer from Dallas and have arrested him for murdering a white man there."

The sheriff grabbed one side and I the other, and we started for the jail, nearby. The crowd hearing that I had arrested him for the murder of a white man, talked of lynching, but the sheriff, whom they knew and respected, told them that the prisoner should be dealt with by law, and that he intended to protect him. We took him to jail, where I searched him. I took from him the letter which he had just received, and which he tried to tear in pieces. I also took the two bank notes which he had received in the letter. They proved to be two treasury notes. I placed the fragments of the letter together, which had been mailed from Dallas and which read about as follows:

"I enclose you one hundred dollars, on receipt of which you must go quietly and at once to the City of Mexico. I will join you there. Detectives are on to us, and you must not let them catch you. It would be fatal." (Signed) John Perry.

I took everything of a metallic nature from him, and had the sheriff lock him up in a cell, as I knew he would be compelled to remain in Lampasas for twenty-four hours, until we could get a train for Dallas.

By the time he was searched and locked up it was nearly the dinner hour, and I instructed the sheriff to feed the prisoner, but not to allow him a knife or any article with which he could do himself bodily harm. I explained to him that it was very important that I get the prisoner back to Dallas safely, as we wanted to get a statement from him as to why he had killed Temple.

I had just gone into the dining room to get something to eat, when a deputy sheriff rushed into the room and called my name, to which I answered. He

said excitedly, "Come to the jail at once. That nigger of yours has cut his damned head nearly off."

The hotel was just opposite the jail and it took only a short time to get there. I found the jailor, on discovering what the prisoner had done, had pulled him out of the cell into the corridor, where he was lying on the iron floor, with his throat cut almost from ear to ear. In the cutting he had not severed the jugular vein, but had cut the wind pipe. It was a tremendous gash. He could breathe fairly well, and could speak, but with difficulty.

Meanwhile the sheriff had summoned an old doctor, who arrived at the jail shortly. He looked at the prisoner and said, "Why, that nigger will die. I can't do a thing for him," and he positively refused to do anything. I pleaded with him to sew up the wound and save the life, as it was of great importance to the people of Dallas. It was all in vain. We finally succeeded in getting a young doctor of the town, who came and tenderly dressed the wound, and stated that with proper care the negro would live. I assisted the doctor all that I could, and stayed there with him from that time until we left Lampasas the next morning. I had my meals brought to the jail to me.

About the middle of the afternoon, after the wound was dressed, Perry began to feel better, and I presume, by reason of my kind treatment of him he told me that his young master, John Perry, had induced him to come to Dallas for the purpose of killing his partner, Mr. Temple; that he (his master) had paid his expenses and had been liberal in furnishing him with spending money, also that he was to give him five hundred dollars after he had killed Temple. He said he did not want to do it, and tried to get out of it after he had reached Dallas, but his master threatened to kill him unless he did so. He said he killed Temple because he feared his master would kill him. He said that on the Sunday night previous to the murder he was about to pounce upon another man of Temple's congregation. This man resembled Temple so much that he was about to kill him for Temple, and would have done so but for the fact that his master was in hiding across the street and rushed out and prevented his making a mistake. He also confessed that he had received a telegram on the day that he had left San Angelo, telling him to go to Lampasas and call at the post-office for a letter, which was the letter mentioned above.

Whereupon, I wrote a telegram to Sheriff Cabel, which read as follows: "Negro has cut his throat and is dying. Give this message to the newspapers and have them get out an extra at once, without fail. Will wire you explanation two hours later."

I sent this message to the telegraph office by the plumber boy.

After I had decided to leave Dallas to arrest Perry, I wired a code message to one of my operatives, D. F. Harbaugh, to come to Dallas on the first train and call for a letter of instructions that I left for him at my hotel. This letter was to the effect that he should carefully shadow the white man, John Perry, as soon as he arrived at Dallas, and keep him under continuous surveillance until further orders.

Harbaugh arrived at Dallas on Saturday and began shadowing Perry according to instructions. As soon as Cabel received my first message he called up the newspapers and they got out an extra at once. The white John Perry got one of the first extras. He read the account of the colored man having killed himself, and at once left his office and started for his lodgings, about a mile away. On his way he stopped at every saloon en route (they numbered thirteen in all) and took a large drink at each place. By the time he reached home he had taken at least thirteen drinks.

Two hours after sending the first message, I sent Sheriff Cabel a second one, which read as follows:

"Negro doing well; will recover. Leave here on morning train for Dallas. Treat this confidentially and meet me at Temple tomorrow morning. Arrest John Perry on charge of complicity in Temple murder. Have full confession of negro which justifies this action."

Sheriff Cabel did as directed, and met me at Temple the following morning, where we had to change cars for Dallas. We arrived in Dallas about 8:00 P. M. Tuesday, and during the long journey from Lampasas to Dallas the jolting of the cars, etc., caused the negro's wound to become inflamed, and he was suffering greatly when we reached Dallas. The sheriff had telegraphed ahead for a physician to await us at the jail. The negro was placed on a cot in the corridor where the doctor could redress his wound. While the doctor was so engaged the master, John Perry, who was a

prisoner in one of the cells on the upper floor of the jail, could plainly see all that was going on below. He recognized the negro and immediately attempted to kill himself by butting his head against the steel bars of his cell. The sheriff and his assistants and myself were attracted by the actions of the white man, and at once rushed to the cell. Here we found that the white prisoner had almost beaten out his brains against the bars of his cell. Medical aid was called and a guard placed inside the cell with him to prevent any further personal violence.

The following day the papers were full of what had occurred, and owing to the high standing of Perry, the jail was flooded with sympathizers, among whom were many leading citizens. Telegrams from all parts of the state, from influential people, poured in, tendering the prisoner all sorts of aid, financially and otherwise. An able counsel volunteered to defend him, and society ladies began to send him luncheons and delicacies of all kinds.

The prisoner had offered as an excuse for trying to commit suicide that he felt so humiliated by being charged with murdering his partner. He declared that he was innocent and that he would be exonerated in court; which I have no doubt he would, as the main proof against him was the testimony of a negro, which does not usually go very far in court in the south when it cannot be strongly corroborated.

The colored prisoner continued to improve, and the white man seemed to get along nicely for about five days, when a young society woman sent him a luncheon, in which was a cut glass plate containing delicacies. While he was eating this lunch, and the guard was at the far end of the cell Perry suddenly struck the plate on the steel floor of the cell, breaking it into pieces. He picked up a large, triangular-shaped piece of glass, with edges as sharp as a razor, and plunged it into his throat, at the same time giving the piece of glass a twist, which severed the jugular vein, causing his death in a few minutes. Thus ended the existence of the white John Perry.

The colored man pleaded guilty at his trial, and was sentenced to the state prison for life, where, I presume, he is at the present time.

I omitted to state that after I had searched the colored John Perry at Lampasas, and had instructed the sheriff and jailor not to allow him to have a knife or anything of the kind with his meal, Perry had called the jailor and

told him that he had gotten a sliver in his finger, and asked the jailor to lend him his knife to remove the sliver. The old jailor, having evidently forgotten my instructions, gave the prisoner his pocket knife, through the bars. As he stepped back from the bars Perry opened the knife and cut his throat before the jailor could get into the cell to prevent it. The skin on that darky's neck was as thick as ordinary sole leather and very tough. I held him while the doctor sewed up the wound, which was a hard job, but performed very nicely.

I arrived in Dallas on Wednesday night, made the foregoing investigation, located and arrested Perry, caused the arrest of the white John Perry, left Dallas and returned to St. Louis, arriving there on Friday evening of the following week, after having traveled nearly four thousand miles, which I believe to be the quickest time ever made in working up a case and capturing the guilty parties in a crime of this magnitude.

I can say that I have never doubted but that it was a case of remorse that caused the white John Perry to commit suicide, and not humiliation.

THE TOUGHEST OF TOUGH TOWNS.

EAST ST. LOUIS IN THE EARLY EIGHTY'S—HOW I HELPED TO
REFORM THE MUNICIPALITY—A SPECTACULAR RAID
ON "SURE THING" GAMES AND
"BIG MITT" JOINTS.

Dodge City, Kansas, and Corinne, Utah, have places in history for being tough towns in their infancy, but take it from me, Mr. Reader, that neither of these much-advertised burgs, in their palmiest days, were "in the running" for toughness with East St. Louis during the early '80s. The average St. Louisan, in those days, was entirely different in his make-up from the denizens of the cities further west, especially if he was in politics, his nature being more bloodthirsty than the bandit, or tough cowboy or buffalo skinner, who made the first named towns famous. It was a different sort of crookedness in East St. Louis. The little municipality was in the hands of crooks of the lowest degree. There was no crime to which they would not resort to gain a point of advantage over a rival. In other words, any crime was regarded as conventional, just so the man who committed it got the "mazuma." The principal city offices were held by gamblers and "sure-thing" men. The city councilmen were nearly all saloon or dive keepers, while the police department was recognized as the grandest collection of thugs, crooks and "strong-armers" that had ever been assembled together within the borders of one town. The fact that these alleged minions of the law were recognized as suspicious characters by the officers of other cities, and were shadowed whenever found out of their own bailiwick seemed to be regarded as a good point in their favor by those responsible for their being—the mayor and Board of Aldermen. Any crook, big or little, if he had the price for protection, could ply his chosen profession on the main streets of the town without molestation on the part of those sworn to enforce the law. A "peterman" (safe blower) was held in higher esteem over there in those days than a priest, a "porch-climber" regarded as an artist, and the monte and confidence men placed in the same class as are college professors and clergymen in other cities, while the men who received the

bribes were all looked upon as good fellows and smart, wide-awake business men.

Neither were the merchants and tradesmen all straight in those days. It has been said of some of them that they would refuse to take money in exchange for their wares when there was any suspicion in their minds that the money had been earned honestly. Crooks of all classes congregated there, because they knew they were safe from arrest. If they were broke on their arrival, after being chased out of another town, they knew there would be no trouble in getting some dive-keeper or proprietor of a fence to "go to the front" for them at police headquarters and square things so they could "go to work." It was everyday talk that aldermen had "big mitt" men and "strong-armers" out working on percentage.



FURLONG'S "FULL HAND."

Cartoon published in a St. Louis newspaper at the time of the East St. Louis gambling raid.

As in all such places, gambling flourished—that is, gambling of the crooked kind. The whirr of the roulette ball and the rattle of the dice in the "bird cage" could be heard on the street, when not drowned out by the voices of the cappers for "the old army game" (chuck-a-luck) or the paddle wheels or sweat board. Nobody had a chance to win, however, except the operators of the games, as they were all crooked.

Many of the merchants openly displayed in their shop windows the tools and devices used by the various "professions." The bully could buy brass knucks with which to knock the block off of his adversary; the hold-up man a sand bag to stun his victim, while he helped himself to his valuables; the card sharper could buy his "strippers" "bug" or "harness," while the safe blower could find any sort of "jimmy" or any quantity of "soup" he desired, or had the money to pay for. Then there were "fences" where a thief might

dispose of anything of value he might "find" on his excursions to the neighboring towns, which were not infrequent. The return of one of these marauding parties from a tour was always followed by an orgy, at which wine flowed freely, and the ill-gotten money tossed about with a lavish hand.

East St. Louis was then a wide-open town, with the accent on the words "wide" and "open."

Finally the good people of the town awoke to their responsibilities, as they always do in cases of this kind. Headed by an ex-mayor, John B. Bowman, editor of a newspaper, a fight was begun on the crooked officials. And it was a fight, a bitter one. A number of aldermen who had been under suspicion of being partially responsible for the bad state of affairs, were beaten for re-election, and an attempt was made to get possession of the city funds in the city treasury, which was in the hands of Thos. J. Canty, gang city clerk, who had usurped the office of treasurer. After much delay, he having resorted to the courts to prevent his being ousted, he was finally ordered to turn over the funds to the treasurer on the morning of May 21, 1884. The night before the date set for the transfer, the vault in the City Hall, in which Canty claimed to have kept the funds, was robbed, an entrance having been effected by digging a hole through the brick wall which enclosed the safe.

A few months before the robbery, Mike Coleman, alias Charlie Clark, a noted "peterman" of that city, had come down to St. Louis from Jefferson City, where he had been doing time for a safe-blowing job in Monroe County, Missouri. I had known Coleman for years and had been instrumental in "settling" him on more than one occasion. He called upon me at my office, which, at that time, was in the Allen Building, Broadway and Market Streets. "I am through with crime, Mr. Furlong," he said, "and I have secured a good job with the Hamilton-Brown Shoe Company as a cutter, at a salary which will permit me to take care of my wife and child, and I want to know if you will allow me to live in St. Louis—that is, not tip me off to the St. Louis police, none of whom know me."

I told him I was truly glad to hear of his reformation, and that I would not tell any one of his presence here as long as he continued to work and

behave himself. He seemed pleased to hear this, and told me he would not only live straight in the future, but would "put me next" to any one he knew to be crooked should they attempt to do any work in St. Louis. He further voluntarily promised that he would report to me at my office every Saturday afternoon. I then introduced him to my chief clerk, Edward Dawson, and told him to report to Mr. Dawson in case I did not happen to be in the office when he called.

We shook hands and he took his departure. He reported to the office every Saturday promptly for about three months, at which time I was called south on a train robbery case, and was absent from St. Louis for several weeks. During my absence an epidemic of safe robberies occurred in St. Louis. As many as three "boxes" were opened in a single night. One night the "petermen" would operate in north or south St. Louis, the next night they would be down in the business district, or out in the west end. The work of the gang caused a panic at police headquarters. Chief Harrigan had his men working night and day, and the detective force was augmented by patrolmen in plain clothes, but still the bursting of "boxes" continued nightly. During my absence from the city I was enabled to get the St. Louis papers once in a while. These papers were full of the accounts of the robberies. From the description in the papers of the way the work had been done, I was satisfied that Coleman was either doing the work or directing it. Nearly all of the places robbed had been entered from above. I knew this skylight stunt was one of Coleman's specialties. He never broke a door or forced a window to get to a box. His method was to reach a fire escape and make his way to the roof of a building. He would then descend to the floor on which the safe was located, and after detecting and fixing a side or back door, through which the "get-away" was to be made in case of an interruption on the part of a watchman or officer on the beat, would go to work.

I returned to St. Louis one night, and in discussing the robberies with Mr. Dawson, I learned that Coleman had not reported at the office during my absence. The next morning I called on the foreman of the Hamilton-Brown Shoe Company, by whom Coleman had been employed, and who was the only man in St. Louis besides Dawson and myself who knew the ex-convict's record. The foreman told me that Mike had left his position about a month before, without making any explanation. He had simply drawn his

week's wages and had failed to show up again. On learning these facts, I was more than ever convinced that Coleman had gone wrong again. I was very busy in my office that day looking after matters that had accumulated during my absence, and did not leave for home until after 5:30 P. M. On my way to the car I passed a doorway, in which was standing a man whom I recognized as Pat Lawler, the best detective on the city force, and with whom I was on very friendly terms. On approaching Lawler I found him to be asleep. After I had awakened him he told me he and his partner and several other men in the department had been on continuous duty for over 36 hours, trying to get a "line" on the men who were "blowing up the town" as he expressed it. He then told me that the men in the department were still at sea, having no clue as to who was doing the work. "I am going to bed and get some rest, at any rate," said Lawler, "and I do not care what 'the big finger' (Chief of Police) says about it."

I then told Lawler I believed I knew who was doing the work, or at least directing it, and told him that if he and his partner would meet me at Twelfth and Olive Streets at 5:30 the next morning I would help them find the man I suspected. After telling me that he and his partner would be at the rendezvous at the appointed time, Lawler and I parted company.

Coleman, under the alias of Charlie Clark, was living at that time on the second floor of a house fronting on Biddle Street, between Ninth and Tenth Streets. The entrance to this flat was made from the alley in the rear. I knew Coleman's wife, or the woman he claimed to be his wife. She had formerly been the wife of Tom Gosling, a noted crook, who was at that time in the Missouri penitentiary, doing a ten year stretch. Her first name was Annie, and she had a son about 6 or 7 years of age.



MIKE COLEMAN, alias CHAS. CLARK.

Daring burglar and "peterman" employed to blow the
City Hall vault, East St. Louis.

Lawler and his partner were at the corner of Twelfth and Olive Streets promptly at 5:30 the next morning, according to appointment. I then told them all about Coleman, and we proceeded to the latter's flat. On reaching the head of the stairway, I knocked at the door. Mrs. Coleman, garbed only in a night robe, came to the door and opened it a few inches. I stuck my foot in the door to keep her from closing it.

"I want to see Charlie," I explained to her.

"He is not here, Mr. Furlong," she replied, after recognizing me and permitting us to enter. "I do not know where he is," she continued. She then told me that Charlie had gone to drinking and had quit his job about a week before, and she did not know where he was or what he was doing. I knew she was not telling me the truth, as Charlie had quit his job at least a month previous, and did not drink at all. In fact, he never had been known to drink to excess. While we were talking I noticed a large-sized picture of Coleman hanging on the wall. This I told the officers to take, and commanded her to dress.

"What are you going to do, Mr. Furlong?" she asked.

"I am going to take you down to police headquarters for lying to me," I replied.

Both she and her boy began to cry and make a scene, but she finally began dressing. While this was going on I heard a slight noise in the front room.

"Who is in there?" I asked, jumping to the door.

"A couple of friends of Charlie's from Hannibal," she replied.

Lawler and I entered this room and found a couple of men in bed. After placing them under arrest we recognized them as a couple of crooks, both of whom were heavily armed. Under the bed was a gunny sack, which, on investigation, we found to contain a safe-blowing outfit, including a sectional jimmy, a pair of "come-a-longs" (tool used to pull the knob or "ears" off of a safe), a new hammer and other tools. These men had evidently returned to the room late and being tired threw the sack under the bed and went to sleep.

Just as we were about to take our departure from the room with the prisoners a mail carrier arrived with a letter for Mrs. Clark. I took charge of the letter and saw it had been mailed at Springfield, Mo. I handed it to Mrs. Clark and she opened it and read its contents. The letter was from her husband, and stated he was in Springfield, and for her to answer it at once as he was only going to remain in Springfield a couple of days, and he wanted to hear from her before leaving there. We then took our prisoners, including Mrs. Clark, to the Four Courts. Some small pictures of Clark were taken from the large one we had found in his home, and Chief of Detectives Burke, armed with one of these pictures, left at once for Springfield to try and effect his capture. In this Burke was successful, as Clark appeared at the post-office to get his mail and was recognized and placed under arrest. Clark was brought back to St. Louis. He would not talk to the St. Louis officers, although the latter used every art known to them to make the prisoner "cough up." Clark told Chief of Police Harrigan he knew nothing that would do them any good, but that he had some information that was very valuable for me, and asked that I be called. At that time the relations between the chief and myself were some strained, to express it mildly, but the Chief finally sent for me. "This thief has some information for you," said Harrigan to me on my arrival at his office. "I do not believe he is much

of a thief, either, as I know all the good ones," continued the chief. After shaking hands with Clark he told me the city officers could not connect him with any of the jobs pulled off here, as he had nothing to do with them, but declined to talk further in the presence of the chief, we being in the latter's office at the time. As Harrigan did not seem inclined to let me interview Clark privately I left, and returned to my office.

Later in the day Clark employed a lawyer, and sent him to me to tell me that if I would get him across the river he would tell me all about that job, meaning the looting of the City Hall vault. I referred Clark's lawyer to Prosecuting Attorney Holder of St. Clair County, Illinois, and later the latter made a demand on the St. Louis police for the possession of Clark. The St. Louis officers, thinking that they might secure at least a part of the reward which had been offered for the apprehension of the men who committed the East St. Louis crime, took Clark over the river, where he was locked up. I then called on him and he told me all about the vault robbery.

According to his story, which was later verified by his two assistants, Clark was employed to do the job by Thos. A. Canty, acting city treasurer, to hide an alleged shortage in Canty's accounts. The latter was, it was claimed \$60,000 short, having lost the money at poker. The money had to be turned over the next day, and Canty could not do it, because he could not raise that amount. Clark had been introduced to Canty by Patrick Eagan, who was at that time running a saloon in East St. Louis, and was one of the city's aldermen. Eagan was regarded as a friend of crooks of the higher class, such as confidence men, safe blowers and "big mitt" men. Coleman claimed he was told by Canty that ten thousand dollars would be left on the top of the safe, which was the amount he was to receive for doing the work. Coleman was also introduced to Lieutenant Duffy, acting night chief of police of the East St. Louis department, who was to act as lookout while the work was being done. The ten thousand dollars was to be divided equally between Duffy, Eagan and Coleman. A few days before the time set for doing the job Canty became ill and was taken to Hot Springs. This did not interfere with the plans, however, D. J. Canty, according to the testimony, taking his brother's place in making the final arrangements for the entering of the vault. Coleman did the real work, assisted by Eagan, while Duffy, in full uniform, stood guard on the outside. A box, in which was supposed to be \$10,000, was found on top of the safe, as had been promised by Canty.

This box was taken by the three men to Duffy's home and its contents poured out on the kitchen table, but instead of \$10,000 there was only \$3,000. This money was divided equally among the three men, after which all went downtown again. It was then about 2:30 A. M. Duffy, not wishing to carry so much money around with him, placed his part in the safe of a saloonkeeper friend, who was also an alderman. The lieutenant in his testimony at the trial of the Cantys, two years afterwards, declared that his \$1,000 decreased to \$700 during the night. In other words, some one had touched the roll for \$300.

I told Prosecuting Attorney Holder and the Citizens' Committee about Coleman's confession, and was employed to secure corroborating evidence, which was done. Eagan and Duffy were arrested, convicted and sentenced to five years each in the penitentiary. They appealed the case, but at the next term of court withdrew their appeals, after a conference with Prosecuting Attorney Holder, and entered pleas of guilty, and received two years each. The Canty brothers were arrested, but notwithstanding the fact that Coleman, Duffy and Eagan testified for the state, and there was much corroborating evidence, the jury failed to agree, standing seven for conviction to five for acquittal. At the time it was alleged that money had been expended very freely to clear the brothers.

Coleman was not prosecuted. He left the city for the west, and the next I heard of him he was conducting a saloon on Geary Street, San Francisco. Later he and Henry Schultz, another noted peterman, formed an alliance and opened a half dozen "boxes" in the country surrounding the Golden Gate metropolis. They were finally settled for one of their jobs by Capt. Leas, of Frisco. Later Coleman was released, but was soon afterwards killed at Houston, Texas, while attempting to rob a bank. He was acting as lookout, while his pals were at work on the vault. The first explosion attracted the attention of the police, who opened fire on Coleman and his death was instantaneous; thus his long career of crime ended.

Chief of Detectives Burke, of the St. Louis Police Department, afterwards claimed the reward for capturing the vault robbers, and I believe secured a part of the money, but he was really not entitled to a cent, as he had done none of the real work on the case.

The next sensation in East St. Louis was the assassination of Ex-Mayor John B. Bowman, which occurred about 6:30 o'clock on the evening of November 20, 1885. The assassin did his work well. It can be described in a sentence—a shot was fired, and the corpse of the leader of the reformers was found lying near the gate leading to his residence, alone with the secret. I was employed by the son of the dead man to try and unravel the mystery, being given complete charge of the case. I had known Bowman for years, and was acquainted with his past life, which had been a very turbulent one. He had always been a fighter, one of the kind who never knew when they were whipped. He settled in East St. Louis in the latter part of the '60s, and acquired a large amount of property. He was one of the few men who recognized the fact that East St. Louis would later become a great industrial center. Because of his large interests he took an active part in municipal affairs, which, of course, brought him in contact with the politicians. Bowman knew all about politics, even what is called the "practical" side of the game, but he was a poor diplomat—one of the kind of men who always called a spade a spade, consequently he was often in trouble with those who opposed him or his plans. He was often deserted by men whom he had practically made politically, because of his radical views on some question at issue. This was the beginning of a bitter war on the person so offending, by Bowman. He never forgave a man who had deserted him or his cause.

On taking charge of the case the day after the diabolical crime had been committed, I was not surprised to learn that several of the dead man's enemies were busy preparing alibis. Another thing that impressed me as a little peculiar was that the police department was making no effort to find the perpetrator of the crime. After considerable hard work by both myself and my men, I succeeded in finding a couple of parties who claimed that they had seen the fatal shot fired. They were Christian A. Schmidt and William Banks. These men were returning from the country, where they had been to secure some tobacco which had been stolen from a freight car and hidden in a hay stack. As they neared the Bowman home they saw a flash from across the street, and saw Bowman fall. They recognized George W. Voice, a member of the police force, as the man who did the shooting. Later some more evidence was obtained, which, it was thought, would corroborate the statements of Schmidt and Banks. This corroborative evidence implicated another police officer named Patrick O'Neil. Voice was

arrested at once and taken to Belleville and locked up. Later O'Neil called on Voice at the jail, and he, too, was placed behind the bars, he having been indicted as an accessory that day. These arrests caused a great sensation, not only in St. Clair County, but on the other side of the river as well.

At the preliminary hearing of Voice, Schmidt and Banks went on the stand and told their story in a straightforward manner, and the defendant was returned to jail without bail. The friends of the prisoners then began harrassing the state's witnesses. The cases against the men were continued from time to time until April 3, 1887, when the prosecuting attorney dismissed the charges against the accused because he could not obtain service upon the state's witnesses, they having left the county because of the threats made against them.

The outcome of the case caused great rejoicing among the crooks and plug-uglies in East St. Louis, and they began again to show their hands.

The Wabash Railroad, at that time one of the Missouri Pacific properties, had rather large interests over on the east side of the river. It was a nightly occurrence for our cars to be broken open and looted. It was no trouble for us to locate the thief, or thieves, who did the work, but it was another thing to have them arrested by the officers who were receiving pay for protecting them. My activity in trying to cause the arrest and conviction of these car robbers, and in the other cases mentioned, earned for me the ill will of the police department. While they never attempted to harm me, the police would pick up my men and lock them up on trumped up charges, convict them in the police court, which was of the "kangaroo" type, and put them to work on the streets with a ball and chain attached to prevent them from **running away**. After the police over there had turned a few tricks of this kind, I decided to put a stop to it by "reforming" the police department. To do this I had to shut off the source of revenue from which the officials were being corrupted, for I knew, even at that date in life, that it took bribe money to create such a condition of affairs. The men higher up, in this case, were the proprietors of the gambling houses. They were paying \$1,000 per week for protection. This was a nice little "bit" to be split up by a few aldermen and city officials and the heads of the police department.

I called on Prosecuting Attorney Holder at Belleville, and asked his co-operation in bringing about a change in the state of affairs. I was not very well acquainted with Mr. Holder at that time, but I knew he was honest and a man who would do his duty. After I had entered his office and introduced myself, a dialogue something like this, as I remember it, took place:

"Do you know that the gamblers of East St. Louis are putting up \$1,000 per week for protection?" I asked.

"I have heard they were putting up money," he replied, "but I have no real evidence as to how much."

"Are you and the sheriff getting your part of it?" I continued.

The question had hardly left my lips before I saw the prosecuting attorney was beginning to make arrangements to throw me out of his office. Before he had time to begin the work, however, I explained that I was joking, and we both had a good laugh. Getting down to business again, Mr. Holder told me that he would "go after the gamblers with hammer and tongs" if he had the evidence.

"I will get you that evidence, and pay the expenses out of my own pocket," I replied.

The prosecuting attorney then assured me that the sheriff could be relied upon to do his part. I already knew this, for I had investigated both men's character before I had decided to make the move that I had. The sheriff was called upon, and he, too, promised to aid me in every manner possible. After asking both officials to keep the matter a secret until I had worked out the plans fully, I returned to St. Louis.

I sent a number of my men across the river, and it did not take long to get all the evidence needed. After arranging this evidence, I took it to Prosecuting Attorney Holder and secured the necessary warrants. Sheriff Ropiequet was called over to St. Louis and plans for raiding the houses simultaneously were made. I secured and paid for out of my own pocket an engine and two coaches from the Cairo Short Line Railway, and had them in readiness to take my men and the people we were to arrest from East St. Louis to the county seat at Belleville, after the raid. While there were over thirty open gambling establishments in East St. Louis, I knew I could not

raid all of them at one time, so I decided to raid the four largest, the ones whose owners were the most active in bringing about the crooked state of affairs. On the afternoon preceding the raid, I sent four trusted men, all armed, over the big bridge, with instructions to separate on the other side, one going to each of the four houses to be raided. These men were instructed to stay in the houses until the raids were made, to prevent the gamblers from locking their vaults and thus hiding their tools and other evidence. I then hired a big moving van, in which I placed eighteen of my men. Sheriff Ropiequet and I occupied the seat, I doing the driving. We had a number of fishing poles in the wagon to give the outfit the appearance of a fishing party. On reaching the other side I divided the men into four squads, placing a captain in charge of each. The squad I was to lead stayed in the wagon. After giving the other squads time to reach their houses I drove the van to Colonel Claude Cave's famous resort. I handed the lines to the sheriff and ran up the stairs, followed by my men. We gained an entrance without any trouble and found the games running in full blast. The gamblers were taken completely by surprise, but submitted quietly to arrest. The spectators and players were not molested, but many of them became panic-stricken when it dawned upon them that a raid was being made, and sought to make their escape by jumping from the windows to the alley in the rear of the building, many of them actually making their escape in that manner. The gambling paraphernalia was taken down to the wagon, while the gamblers and their employes were marched to the waiting train. The wagon was then driven to the other houses, which had been raided at the same time by the other squads of my men, and the gambling tools found there hauled to the train. In making the raid every kind of gambling device known to the profession was captured, including faro boxes and layouts, dice, roulette wheels, sweat boards, keno balls and cards, and something like four bushels of poker and faro chips. All of this stuff was burned on the public square in Belleville after the conviction of the gamblers. Most of the men arrested pleaded guilty, and those who did not were convicted and the county was made some \$22,000 richer by the fines.

The raid created a great sensation in East St. Louis. It was the biggest stunt of the kind that had ever been pulled off over there, and I received much praise from the law-loving people of the city for doing the job. As I had anticipated, it ended open bribery in East St. Louis, and later to the ousting

of the crooked officials, for at the next election the good people triumphed and succeeded in electing men who would do their duty.

The new Mayor was Col. M. M. Stevens, and as he had the co-operation of an honest Board of Aldermen, it did not take him long to finish the cleaning of the police department I had begun. My men were then enabled to go about their work of arresting car thieves without being interfered with by the police.

If my memory serves me right, Mayor Stevens served six or seven terms, and did much to make East St. Louis the city it is today. But this work was not accomplished without much hard labor on his part and on the part of those who assisted him, for the gamblers and crooks did not give up without a struggle. Mayor Stevens, however, made it as law-abiding a place during his administration as any other city in the country of its size.

No man deserves more credit for the ending of gang rule in East St. Louis at that time, however, than does J. W. Kirk, editor of the Signal. This paper fearlessly exposed all of the gang's methods, and to this fact was really due the awakening of the public conscience over there.

THE ROHAN EXPRESS ROBBERY.

THE THIEVES ARE TAKEN AFTER A FOUR MONTHS CHASE, AND
ALL
PLEAD GUILTY—THE MESSENGER DUPED.

The Rohan Pacific Express robbery occurred near Rohan, Indiana, on what was then a part of the Wabash Railroad. The Pacific Express Company had one of their cars attached to the Wabash train, which was running between Detroit, Michigan, and Indianapolis, Indiana. It left Detroit in the evening and should have arrived at Indianapolis at about two o'clock the following morning.

One night in October, 1883, the train stopped at Rohan, a small, local station, and the train was boarded by two men. They entered by the front door of the express car, and overpowered Bert Lumas, the express messenger, stuffing a large roll, consisting of two handkerchiefs, into his mouth. After tying another handkerchief around his face, and then tying his hands behind his back, he was leashed with a rope to the express company's safe. They took the keys to the safe from the messenger, after overpowering him, and looted the safe of its contents. There were, besides much jewelry and other valuables, about \$4,100.00 in the safe. They left the car at a point between Rohan and Peru, Indiana.

When the train halted at Peru station the expressman rapped on the car door, and receiving no reply, he and others forced entrance into the car door, where they found Lumas lying on his back with his arms and shoulders tied to the safe, and unconscious. They found indications of a struggle. There were three or four bullet holes in the side and roof of the car, the shots evidently having been fired from within. They discovered the safe open and the contents gone. Medical aid was summoned, and the doctor, after considerable trouble, succeeded in restoring Lumas to consciousness. He bore no marks of violence other than what he had suffered from the gag that had been forced into his mouth. This gag had almost cost him his life, as the ball was so large that it had prevented him from breathing hardly at all.

When restored to consciousness he stated that as the train was leaving Rohan he was busy writing out his report, and while thus engaged he was pounced upon by two powerful men who were wearing masks. They felled him to the floor, gagged him and bound him as he had been found, and took his keys and robbed the safe. While they were doing this he became unconscious from the effect of the gag. He said that they had taken his pistol, which was lying on a table in front of him, and fired two or more shots at him, but none of the shots took effect. I was Chief Special Agent for the Wabash Railroad, which was a part of the Gould System. The case was reported to me by wire the following morning. I went to Rohan at once, and was unable to obtain any information. It seemed that the robbers had not been seen by any one in or near Rohan. They had probably been in hiding and boarded the train unobserved, just as it was leaving the station. I then went to Detroit, where I saw and interviewed Lumas, the express messenger. Lumas was a young man about twenty-six years of age, fine looking, about six feet tall, and weighed about one hundred and eighty pounds. He was born and raised in Vermont. He had an older brother, who was a passenger conductor on the main line of the Wabash Railroad, who had been in the service of the company for many years, and afterwards remained in the service about thirty years, or until his death. They had a widowed mother, who resided in Vermont. Bert, the messenger, had always lived with his mother until he took service with the Pacific Express. His standing with that company was first-class.

While I was making my investigation at Detroit, I met Mr. Brazee, superintendent for the Pacific Express Company of the Wabash division, with headquarters at Decatur, Illinois. Mr. Brazee told me of Lumas' good standing with the company, and spoke of him in the highest terms. I told Mr. Brazee that I was inclined to believe that Lumas might have been connected with the robbery. He vigorously discredited the idea. "Why," he said, "Lumas, you should remember, was almost dead when he was found in his car at Peru. The robbers, doubtless, tried to kill him, and would have succeeded had it not been for the timely assistance rendered by the doctors, and, of course, if he had been connected with the robbery in any way the robbers would not have tried to kill him."

I knew Mr. Brazee personally, and I knew him to be a kind-hearted man and a thorough gentleman, and I appreciated very much the stand he had taken

for one of his subordinates. I interviewed Mr. Fuller, the general superintendent of the Pacific Express Company, and all the other officers who would have been likely to know anything about Lumas. They all spoke of him in the highest terms, and of his brother they spoke equally as well. I did not know that Lumas was connected with the robbery in any way, and they speaking of him in such high terms, I did not deem it advisable for me to inform the express authorities that I believed the express messenger was implicated, so I decided to put a shadow on Lumas' movements on each end of his route. I placed two of my operatives on the work; one at Indianapolis, and one at Detroit. The operative at Detroit was told to take up Lumas when he left his train at Detroit, and not to lose sight of him until he left on his train for Indianapolis. The operative at Indianapolis was likewise instructed; thus Lumas was kept under observation at each end of the road. This was kept up continually for about four months. The operative at Detroit had discovered that Lumas was drinking heavily while in that city, and that he was a habitual frequenter of saloons and places of ill repute. Our operative at Indianapolis reported that Lumas, while there, would leave his train and go direct to his rooming house, retire almost immediately and remain there until time to leave for Detroit. I explained this to myself in this way: He needed the sleep and rest after his carousing in Detroit. My operative secured a room adjoining the room occupied by Lumas at Indianapolis, and the other one in Detroit was just as fortunate, and in a short time my Detroit man made the acquaintance of Lumas, became his chum, and was with him almost continually in Detroit, and in that way became acquainted with most of Lumas' friends.

At this time there was a private detective in Detroit, whose name was Pat O'Neal. O'Neal was a widower and lived with a widow sister who kept a rooming house, and Lumas and my operative both roomed with this widow. O'Neal did not know either of them personally, but doubtless learned from his sister that Lumas was employed by some express company, and that my operative was, as he represented himself, connected with some advertising concern of the east. There was also a noted thief known as Jim O'Neal, who was no relation to Pat O'Neal, but one being a thief and the other a detective, they knew each other.

One night, while my man in company with Lumas was sitting at a table in a beer garden in Detroit, they were approached by a man about medium size

and plainly dressed. He appeared to be about forty years of age, five foot eight inches tall, and weighed about 145 or 150 pounds. He was light complexioned, sandy haired and smooth shaven. He evidently knew Lumas well, for he sat down at their table, and after they had had several drinks they engaged in a conversation in an undertone, evidently not intended for the operative's ears. However, the operative managed to hear a good deal of what was said. The stranger was evidently trying to convince Lumas that everything would be all right. Lumas was heard to say, "I have not been treated right, and this is why I have been drinking so much of late." The other man was heard to caution him about drinking so much, and to keep quiet, telling him that "everything would be all right later on." After hearing this conversation, my operative located the intruder and found that his name was Denny Downer, a barkeeper at a prominent saloon on Griswold Street, Detroit.

While the above conversation was going on between Lumas and Downer, Jim O'Neal, the thief, was seated at a table very close to our party, with some of his friends. O'Neal knew Lumas to be an express messenger, and knew that he lived at the house of Pat O'Neal's sister, and hearing a part of the conversation he concluded that possibly Lumas was implicated in the robbery of his car, and when he met his namesake, Pat, the private detective, he told the conversation he had overheard between Lumas and Downer, whom Jim O'Neal did not know.

On the evening of the following day I received a report telling me of the happening, and on the next day I received a report from the operative, telling me that he had located the intruder and learned what his name was. On receipt of this report I at once decided that Denny Downer, whom I had known for years as a thief, was undoubtedly one of the parties who had participated in the Rohan robbery. I had known Downer in Pittsburg, Pennsylvania. In fact, I was in criminal court in Pittsburg on one occasion when Downer was convicted of burglary, and received a sentence of five years. I knew his criminal record. The description I had received tallied perfectly with that of Denny Downer, of Pittsburg memory, therefore I felt sure of my man.

I decided to go to Indianapolis and take with me all of the daily reports received from my two operatives. I notified Mr. Brazee of my intention, and

requested him to accompany me to Indianapolis, telling him that I expected important developments there. He wired that he would join me at Decatur, Illinois, and go with me to Indianapolis. On arrival there we secured adjoining rooms at the Spencer House, which is just across the street from the Union Station, Indianapolis. We arrived there in the evening, and Lumas' train was to arrive at two o'clock the next morning. I instructed my operative at Indianapolis to be at the Union Station when Lumas' train arrived and to bring him from his car over to my room just as soon as he arrived. I had had one of my operatives meet him at his train several times before and take him to see different parties for the purpose of identifying them as one of the express robbers, but Lumas, on each of these occasions, failed to identify them, and he had always declared that he could not identify any person, nor give any accurate description of the men who had attacked him in his car at Rohan. I never expected him to identify any one, but he had been told by the express company to go with me or any of my men any time that we might need him for the purpose of identification, so I knew the operative would have no trouble in getting him to come to the hotel.

On this particular morning I learned from the dispatcher that Lumas' train would arrive on time, and I prepared my room for his reception. I set a table in the middle of the room and spread the daily reports of my two operatives over the top of this table. They filled it completely. I told the operative to tell Lumas that he had a party that he wanted him to see, in my room.

Mr. Brazee was occupying a room next to and opening into mine, and I arranged to leave the door partly open, and he was to sit alongside of the door in such a manner that he could hear everything that was said. He considered the whole thing would be a failure, as he firmly believed in Lumas' innocence, as did all the other officers of the express company.

The train arrived, and the operative got Lumas, who grumbled a little about going to a room at that hour of the morning, but nevertheless he came over. The operative rapped at my door, and I bade him enter. I was sitting at the table containing the reports when he opened the door and came in accompanied by Lumas. I asked Lumas to be seated, and told the operative to retire to the hall until I might need him.

I began by saying, "Lumas, I want to call your attention to these reports that are spread out on this table. They are the daily reports of my operatives who have shadowed you and those associated with you, for the past four months. These reports set forth everything you have done in those four months, and every one you have associated with. I can tell you how many cigars you have smoked, how many drinks you have taken, whom you have talked with, and what you talked about. I find that your mother is a fine old lady and stands high in the community where she resides, in Vermont. I find that you have respectable connections, and that you were well raised. I know all about your brother and his high standing on the Wabash Road, and that your character heretofore has been good. Also that the officers of the Pacific Express Company have had the highest regard for you and your integrity, and for these reasons I have taken it upon myself to give you the opportunity of telling the whole truth about this express robbery, but I want you to understand distinctly that if you do not tell the truth, if you say one word that is not the truth, I shall stop you and turn you over to the officers of the law. But, if you do tell the whole truth, and nothing but the truth, I will do all that I can to secure the extension of leniency to you for your part in the crime. I can also say that if you tell the whole truth, that Mr. Brazee and the other officers will be as lenient with you as the law will allow. So now I want you to answer my questions truthfully or not at all. Now, sir, I want you to tell me how much money you received from the proceeds of that robbery."

He said, unhesitatingly, "Mr. Furlong, I only received ten dollars."

Long before I asked this question I could see moisture in Lumas' eyes, and he finally began to cry. When he stated that he had received but ten dollars, I said to him, "Now, Lumas, wait a moment until I call in Mr. Brazee, who is your friend."

Mr. Brazee had heard every word, and I went to the door and asked him to come into my room. As he entered I also noticed moisture in his eyes. I asked Mr. Brazee to write down what Lumas said, and he complied.

"Lumas," I said, "who were the two men who robbed your car?"

He replied, "Denny Downer and a friend of his whom he called Little Al. I never did know his real name." Lumas went on and stated that he had met

Denny Downer in a saloon in Detroit and that Downer had evidently known that he was an express messenger; that as he had gotten well acquainted with him and had got to drinking considerable, Downer had induced him to let him know when he would be carrying a large sum of money, or what they called a "big run," and that Downer had explained that he would have a party with him and would board his car at an out-of-the-way station and bind him, without injuring him, and shoot a few bullets through the side of the car so as to make it appear that he had made a fight, and that they would divide the spoils and nobody would even suspect him (Lumas) by reason of his good standing with the company. He finally agreed to enter the plot, and learned that there was to be a safe containing a sum of money, nearly four thousand one hundred dollars, and some other valuables, on the day of the robbery, shipped over on his train. This might not be considered a big prize, but it was above the average. He notified Downer, and he and Little Al took a train from Detroit and reached Rohan a little ahead of his train. After the robbery, and he had returned to Detroit, Downer sent him a letter containing ten dollars, with the understanding that he would give him more later on, but that he had never received any more. He had become sorry that he had gone into the plot, and had begun drinking. He further stated that he was now positive they had tried to kill him by strangling him with the gag.

Mr. Brazee and the express company officials were all surprised at Lumas' confession. I turned Lumas over to my operative, and took the first train for Detroit, where I arrested Denny Downer. On being arrested Downer acknowledged his connection with the robbery, and told me that Little Al was Al Perry of Boston, Mass., a noted porch climber and thief.

I lodged Downer and Perry in the county jail at Wabash, Indiana, where in the course of time both were put on trial, pleaded guilty, and were sentenced to six years in the penitentiary at Michigan City, Indiana.

Their sentences were made lighter by reason of their having pleaded guilty. Lumas also pleaded guilty and was used as a witness before the Grand Jury against Downer and Perry, and it having developed that Lumas, who was much younger than the other two, being inexperienced in crime, was persuaded by them to do this thing, sentence on him was suspended.

After the robbery the express company offered a reward for the arrest and conviction of each of the robbers, and after they had been arrested and convicted Pat O'Neal, the private detective, filed a claim against the express company to recover the reward. He had nothing whatever to do with the obtaining of the information which led to the arrest and conviction of these two men, and, therefore, his claim for the reward was nothing more than an attempt to obtain money under false pretense.

ARREST OF LAWRENCE POYNEER.

A CROOKED YARDMASTER'S CRIME—BOLD ATTEMPT TO
THROW

HIS CAPTOR OVERBOARD FROM A STEAMER.—HIS
CONVICTION, SENTENCE AND A LATER ESCAPE.

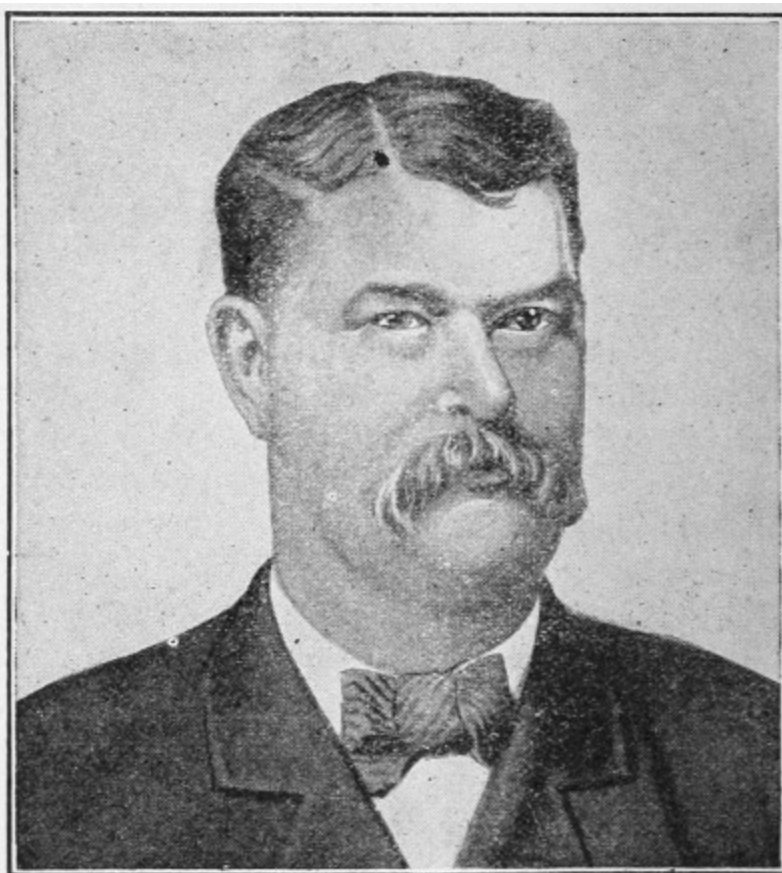
Lawrence Poyneer was a young man about twenty-eight years of age in 1881. He was a railroad man and was employed as yardmaster by the Texas & Pacific Railroad Company at New Orleans, La., where he had performed the duties of his position in a satisfactory manner for about two years. He finally went crooked and formed a conspiracy with the proprietor of a cotton pickery in New Orleans to defraud his employers. There are a large number of cotton pickeries in that city. Their business is to buy up damaged cotton, such as has been through a fire and has been water-soaked, or otherwise damaged. They pick this cotton over very carefully, eliminating the parts that have been damaged by fire, or some like cause, and sell the salvage for a good price. In other words, these cotton pickeries conduct a business similar to that of junk dealers in other cities.

Poyneer ran a car load of cotton into one of these pickeries and sold it much below its market value. It was promptly unloaded by the pickery men, who destroyed the marks on the bales. The empty car was located after some time and trouble, by me, but it took a long time to locate the cotton.

After I had ascertained what had become of the cotton and who had bought it, I set about to find Poyneer, who had stolen it. I learned that he had left the service of the company of his own accord, about three weeks after the cotton in question was missed. I tracked him from New Orleans to Palmyra, New York, where his parents resided. In Palmyra I succeeded in obtaining a good photograph and a good description of him. He was almost a giant in stature, being nearly six feet, six inches in height, splendidly built, weighed two hundred twenty-five pounds, and wore a number eight shoe. He was a fine looking fellow and an expert railroad train service man.

From Palmyra I traced him to Buffalo, New York, from there to St. Paul, Minn., from St. Paul I traced him to Portland, Oregon, and from Portland to Wallah-Wallah, Washington. From Wallah-Wallah back to Ladales, Washington, which is about midway between Portland and Wallah-Wallah, and on the Columbia River. Here I found him in the service of the Northern Pacific Railroad Co., engaged in painting box cars. I obtained the necessary requisition papers from the Governors of Louisiana and Oregon, and arrested him at Ladales, took him to Portland (the head of navigation on the Willamette River), where I took passage for myself and prisoner on the steamship Columbia for San Francisco.

There was no one on the steamer, not even the officers, who knew that Poyneer was a prisoner. He had promised me that he would go with me quietly and I did not place him in irons. I could not have hand-cuffed him with any ordinary hand-cuffs for the reason of the enormous size of his wrists.



LAWRENCE POYNEER.

The giant switchman who attempted to hurl Furlong from
the deck of an ocean steamer.

After we had left Astoria and were out several miles on the Pacific, we were taking a walk for exercise on the upper deck, and when we were nearing the stern end of the vessel, and there were no other passengers, or even any sailors, Poyneer suddenly seized me by the neck and body and attempted to throw me over the rail into the sea. I grabbed him tightly around his neck and under one of his arms so tightly that he could not shake me off. I lustily called for help and one of the cabin boys heard me, gave the alarm, and the captain and officer on the lookout in front of the vessel came rushing to my assistance. When he heard them coming, he let go and tried, in vain, to make it appear that he had been joking. I explained the situation to the captain, who promptly placed Poyneer in irons and placed him below in what is called the brig in a ship, where he remained until we arrived in San Francisco. There I had him taken to the city jail, where I kept him for two or three days until I had gotten thoroughly rested. I borrowed a set of irons from Chief of Police Crowley, placed these irons on Poyneer, and took him on board a Southern Pacific Railroad train, and in due time lodged him safely in the Old Parish Prison in New Orleans.

He was tried, convicted and sentenced to four years in prison in Baton Rouge, where he served his term out. After this I lost track of him until about ten years ago, just before the Olive Street Cable was changed to an Electric Street Car Line, in St. Louis. I boarded a grip car on Olive Street one morning, and to my surprise, I recognized Lawrence Poyneer, acting as gripman on the car I had boarded. Poyneer recognized me on sight, but he did not speak and seemed to be very much confused. I left the car near the turning point. Later I was informed that "Jones" had left his grip car at the foot of Olive Street that morning. "Jones" was the name that Poyneer had given when he had secured the position from the company as gripman about three weeks prior to my having recognized him. He left St. Louis and has not been heard from since, to my knowledge.

TICKET FORGERS RUN DOWN.

ARREST OF LOUIS RICE AND TOM LANDS AFTER A LONG CHASE

—
THE FORGERS ACQUIRED ALMOST A FORTUNE.

During the early '80s the officials of the passenger department of several Western trunk lines made the discovery that they had been defrauded out of thousands of dollars by the means of forged railroad tickets. These tickets had been distributed or put on the market by ticket scalpers, who then thrived in all the large cities.

These tickets were gotten up on what appeared to be regular paper and in regular form, with the exception of the serial and form numbers, which were necessarily duplicated. The tickets read from Boston, New York, Chicago, Philadelphia and other prominent points on the east to the principal points on the Pacific Coast in the west. The forms were pronounced perfect and the signature of the various railroad officials were imitated admirably on them.

The discovery of the forgeries were first made by one of the assistants of C. G. Warner, general auditor of the Missouri Pacific Railroad at St. Louis. The assistant auditor discovered the forgeries, he having noticed the numbers on the tickets were irregular.

At this time I was Chief Special Agent for the Missouri Pacific, and the case was placed in my hands for investigation, by General Auditor Warner.

After a lot of tedious work, the details of which would not interest the reader, I, with the help of some of my assistants, learned that Rice and Lands were railroad ticket scalpers and had offices in several cities in the middle west, from which they had supplied other scalpers with large quantities of these forged tickets. I also learned that Rice and Lands had established a private printing office in a small town in western Illinois, in which the counterfeit tickets were printed; the forms of which had been arranged by Rice, who had been a chief clerk for a number of years for a

General Passenger and Ticket Agent of one of the large railroad systems of the West, and was, therefore, thoroughly conversant with the details of all of the ticket business.

Lands was a crooked lawyer, who had married into an eminently respectable family of the State of Indiana. Rice was a single man, but was engaged to a young lady, whose family was of considerable prominence. He was also of a good family and had always borne an excellent reputation, and was considered a bright, affable young business man.

After learning all of these facts and reporting them to the proper officials of the Missouri Pacific System, I was instructed to locate and arrest Rice and Lands, charging them with having made and issued the counterfeit railroad tickets. I had but little trouble in locating Lands, but, as I considered Rice the principal, knowing that he was the man who had gotten up the forms of the counterfeit tickets, I decided to quietly place Lands under surveillance, by one of my operatives, and then took up the search for Rice, as I desired to arrest him first, being very sure that I could apprehend Lands any time that I wanted to do so.

I traced Rice from Kansas City to Denver, Salt Lake City, San Francisco to Portland, Oregon, but lost trace of him there, and after consuming several days with no results, I decided to return to St. Louis, and to visit the town in Iowa where Rice's betrothed resided with her parents, which I did.

After spending several days near the home of this young lady, I was finally rewarded by learning the alias that Rice had assumed, and his whereabouts at that time, and I immediately, as the traveling men say, "doubled back" to the Pacific Coast, boarding a steamship at San Francisco for Victoria, B. C., and from there went overland to a camp in the Kassiar Mountains, British Columbia, which is about 357 miles from Victoria.

On arriving there I learned that Rice had left but a few days before my arrival, and that he had undoubtedly passed me on my way to Kassiar. He had left word with friends there that he was going back to Portland, Oregon. He had been prospecting in the mountains for gold and had been unsuccessful, and had exhausted his funds, so he had concluded to go back to Portland and seek employment there.

I, therefore, returned to Victoria and boarded a vessel for Seattle and from there I went to Portland, where I succeeded in locating Rice. He was working as a day laborer in a bed-spring factory. He was clad in a suit of greasy overalls, when I found him, needed a haircut and a shave, and did not in any way resemble the dapper and stylishly dressed Louis Rice, whose photograph I had in my possession.

I brought Rice back to St. Louis, and while en route he made a full confession to me as to his and Lands' connection with the counterfeit tickets. He told me about the printing office and gave me the names of various scalpers throughout the country who were engaged with them in handling the bogus tickets.

On arriving in St. Louis I secured a lodging house for Rice in the suburbs of the city, placed him there, by his consent, in charge of one of my operatives. I did this so that the scalpers who were in collusion with the fraudulent scheme would not become aware of his capture until I would have time to arrange for indictments and arrest all the parties connected with the fraud. I also wanted to arrest and bring Lands to St. Louis before he had learned his partner was in custody, and proceeded to Indiana and took him in charge. His relatives, who were well-known and influential, immediately applied for a writ of habeas corpus, which prevented me from removing Lands from the state until permitted to do so by due process of law.

The judge before whom this writ of habeas corpus was returnable was a lifelong personal friend of the family of Lands' wife, and the judge, therefore, released Lands from custody on the grounds that forged railroad tickets had no intrinsic value.

This was the first and only prisoner that I have ever had released by such a procedure. However, Lands was sick at the time of his arrest, and lingered along for a few months after his release, and died, which was the ending of his part of the crime.

In due time Rice's trial was called in St. Louis, and the judge before whom the case was tried decided the same in this case as had the judge in Indiana on the Lands case; and, therefore, the ticket forgers went unpunished.

The state laws in nearly every state in the Union have since been revised so as to make the forgery of railroad tickets a felony, with the same penalty attached as that of forging any other document or valuable paper.

The farcical termination of the case also caused the passage of laws which have put the ticket scalpers out of business in almost the entire country. Prior to that time, every city of any size was infested with numerous ticket scalping offices. The men engaged in the business were usually of the unscrupulous kind, and their crookedness caused the railroads no little amount of trouble.

In working up this case and apprehending Lands and Rice, I personally traveled, in all, about eighteen thousand four hundred miles, and consumed nearly six months' time, did a lot of hard work and incurred considerable expense.

I will say here that the attorneys of the legal department for the Missouri Pacific Railroad Company were fully advised as to all the facts connected with this case and they advised that the parties be located and apprehended: and the work involved in the location and arrest of Rice and Lands was as good as any work ever done by any one in a similar case. Under the laws then existing the cases of Rice and Lands could not be reached.

After Rice's final release he went to the state of Iowa, where he engaged in the insurance business. He was successful and finally married the young lady he was engaged to, and when last heard of by the writer, was a prosperous general insurance agent, raising a nice family and respected in the community in which he lived.

CONVICTION OF JOHN COLLINS.

HOW THE CLUES, WHICH LEAD TO THE ARREST OF THE YOUNG MAN FOR HIS FATHER'S MURDER, WERE OBTAINED—
KANSAS' MOST SENSATIONAL MURDER CASE.

No crime committed in the West in recent years was surrounded with more mystery than was the murder of J. S. Collins, which occurred in Topeka, Kansas, in the spring of 1898. Mr. Collins was slain while asleep beside his wife in their home. The weapon used was a shotgun, and one or two of the shot struck the shoulder of the wife, making slight, though painful wounds.

The murdered man had been a prominent insurance and real estate man of the Kansas capitol, where he had lived for many years, and was well and favorably known to the citizens of that city, as well as throughout the entire state; in fact, he was considered one of the state's most prominent citizens. At the time of his murder he was about fifty-five years of age, had a wife, one daughter and a son, John.

The Collins' occupied a comfortable home in Topeka. John, the only son, was a student at the State University at Lawrence, Kansas, where he was being prepared for the ministry. He had been a student at Lawrence for two or three years before his father's murder. He boarded at the school and occasionally visited his home in Topeka, usually on Sundays and holidays. The Collins home, which was one of the best on one of the capitol's most prominent residential thoroughfares, was disturbed early one morning by the discharge of a gun in the sleeping room occupied by Mr. Collins and his wife, which was situated on the ground floor. Mr. Collins had been shot and died instantly, and his wife, as stated above, received one or two grains of coarse shot in her shoulder. Other occupants of the house that morning were Miss Collins, a young lady about eighteen years of age, and John Collins, Jr. Both of them occupied rooms on the second floor of the house. There was also a servant girl in the house. It was in the early part of the summer and the windows were all screened with wire. John, apparently aroused by

the shot which killed his father, dressed himself hastily and aroused the nearest neighbors. It was at an early hour in the morning, but after daylight.

The police were sent for, and on their arrival ascertained that the doors of the house were all intact and carefully locked; but a window screen in the rear of the house on the second floor was found to have been cut, leaving a hole large enough for the passage of a human body. This window was immediately above a one-story addition to the main building in the rear. After the police authorities had finished their investigation of the premises they arrived at the conclusion that the murderer must have entered the house by means of a key, and after having shot Mr. Collins escaped, going up the main stairs from the lower hall to the second floor and then gone to the hall at the end of which they found the window before described, had cut the wire screen and jumped out of the window onto the roof of the one-story addition, and then to the ground, a distance of about ten or twelve feet, and in that way made his escape.

The murder created a great sensation by reason of Mr. Collins' high standing in the community. A number of the more influential citizens of Topeka who were friends of his, formed a committee for the purpose of locating the murderer and causing him, or them, to be brought to justice. These gentlemen wired me at St. Louis, asking me to come to Topeka to investigate the case. I went to Topeka at once, arriving there, if I remember aright, the third day after the murder had been committed. I reported to the gentleman who was chairman of the committee, and at once began my investigation, by examining the premises at which the murder had been committed. I interviewed the widow, who, by the way, was Mr. Collins' second wife, her step-daughter and step-son, John Collins. Mrs. Collins was a woman between thirty-six and forty years of age, of the brunette type, rather above the medium height and inclined to be slender. She was very attractive and considered a good-looking woman, intelligent and refined.

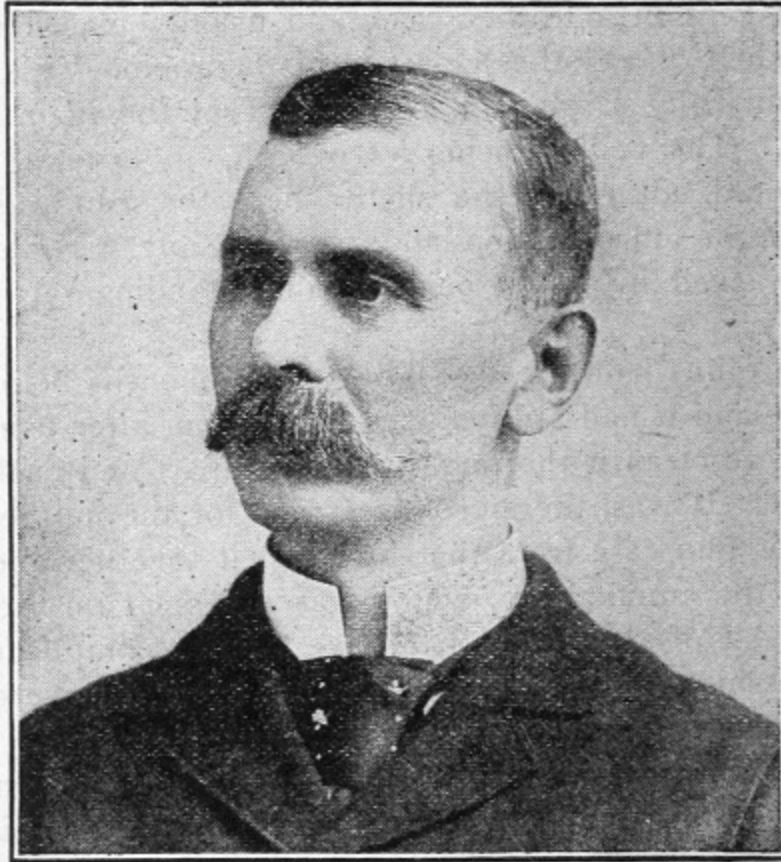
Miss Collins was also above the medium height, nice-looking, well educated and intelligent.

John Collins had just passed his twenty-first birthday, was about five feet, eight or nine inches tall, light brown hair, fair complexioned, well built, pleasing in manner and a very fine looking young man.

After I had consumed about four days in my investigation, I became satisfied in my own mind that the murder had been committed by some person who belonged in the house, and that the house had not been entered by an outsider. I had discovered that Mr. Collins had been killed with his own shotgun, a high priced firearm, which he always kept in a leather case, and usually placed on the upper shelf of a clothes closet in his bedroom. This closet was unusually large and extended from the floor to the ceiling. The ceiling being very high, an ordinary sized man could not reach the shelf where the gun was kept without the aid of a step-ladder, or possibly it could have been reached by a tall person while standing on a high table.

Mr. Collins had not used his gun for months before the murder, and it had always been his custom after using the weapon to clean it thoroughly, take it apart and pack it in the case. It was, therefore, necessary for the murderer to take this gun case from the shelf, put it together and load it with the ammunition, which was also kept on the high shelf. All of this could not have been accomplished by any outside person without having been discovered by some one of the inmates of the house.

I also learned that John Collins had left his lodgings at Lawrence on the evening preceding the murder, going to Topeka and directly to his home, where, he claimed, he retired for the night at an early hour. He also claimed that he remained there until aroused by the shot that killed his father. I also learned that the young man had formed the acquaintance of a very estimable and wealthy young lady at Lawrence, with whom he had become infatuated. He had paid much attention to her for months, and finally she had informed him that her mother had decided to purchase or lease a cottage at Long Branch, in which to spend the summer months. I surmised that when he learned that she intended to accompany her mother to Long Branch for the summer, young Collins decided that his sweetheart was liable to meet some of the many fortune hunters who frequent the resort during the summer months, thus endangering his chances of winning her, so he had made up his mind that he would arrange, if possible, to spend the season at Long Branch too, so that he might guard the affections of his good-looking, or I might truthfully say, beautiful young lady friend.



J. S. MANNING.

Superintendent of the St. Louis Office of the Furlong Secret Service Company who did some clever work on the Collins case.

The elder Mr. Collins had been considered to be more wealthy than he really was at the time of his death. He had met with financial reverses, and really had but little more than his home in Topeka when he was murdered, but he was carrying thirty thousand dollars insurance on his life, ten thousand to his wife and ten thousand to each of his children.

Having secured the above information I sent one of my operatives, J. S. Manning, to Lawrence, Kansas, with instructions to quietly ascertain all that he could as to the habits of the young man Collins and his associates. Mr. Manning's investigation there developed that young Collins had been spending considerable money in buying flowers, carriage hire and entertainments. He had no means of defraying these expenses other than twenty-five dollars a month allowed him by his father for that purpose. Mr.

Manning also learned that there were a couple of colored hack drivers in Lawrence, who had been patronized by the younger Collins. Upon receipt of this information from Mr. Manning, I sent D. F. Harbaugh, who was then in my employ, to Lawrence. Mr. Harbaugh had lived in Lawrence, Kansas, for a number of years before he entered my service. He had been in the livery business there, and had been a hack driver. He was personally acquainted with the colored drivers before mentioned, but these men did not know that he was in the secret service work. For this reason Mr. Harbaugh found it easy to find out everything that the hack drivers knew about John Collins. After renewing their acquaintance Harbaugh learned from them that Collins had approached them and entered into a verbal contract to kill his father for a certain sum of money, part of which he had paid at the time the agreement was made, he agreeing to pay the balance after the murder had been committed.

They told Harbaugh that they had no intention of attempting to murder Mr. Collins, but had promised John they would do so to work him for what money they could get out of him, knowing, as they did, that he dare not expose them when they failed to carry out their agreement. The murder was to have been committed on or before a certain date. The date passed and Mr. Collins still lived, whereupon, John became anxious and expostulated with the colored drivers. They told him that they were entitled to more money than what he had agreed to pay them, and he gave them an additional one hundred dollars, as well as a gold watch his father had presented to him on his twenty-first birthday. This money young Collins had secured by borrowing from his friends and through drafts he had drawn on his father, as we afterwards learned. There was then another date set for the murder to be committed by the hack drivers. When that day arrived and passed young Collins again remonstrated with the drivers for not having carried out their agreement, and they coolly informed him that they had concluded that if his father had to be killed that he had better do the killing himself, that they positively would not commit the crime, and that they had never intended to do so. Learning this, young Collins became desperate and left Lawrence and went to Topeka, as before stated, and without doubt killed his father with his own gun.

When this evidence was obtained I reported it to the gentlemen who had employed me, and they then decided to hand my report over to the

prosecuting attorney at Lawrence. At the request of the prosecuting attorney the county commissioners at Topeka employed me to complete the evidence, so that Collins might be arrested and prosecuted for the murder of his father.

John Collins was immediately arrested, placed in jail without bond, and in due time the case came to trial. The trial caused a great deal of interest in the community, by reason of the fact that the elder Mr. Collins was so well known, and the killing had been done in such a mysterious manner. The trial attracted great attention throughout the entire country. All of the leading western papers had special reporters present, and all the sensational features were "played up" (as newspaper men call it) as they developed. The court room was crowded, and many noted lawyers were also in attendance to watch the legal battle, which at times waxed very warm, as all the counsel on both sides were very able men. Prosecuting Attorney Jetmore was at his best, making one of the greatest fights I ever saw to get his evidence before the jury. Among the spectators during almost the entire trial was the late Justice Brewer, of the United States Supreme Court at Washington, who was visiting his daughter, who was the wife of the prosecuting attorney, Mr. Jetmore, in Topeka at the time the trial was on. At the close of the case Mr. Justice Brewer complimented me very highly for my work in solving the mystery.

During the trial a great many people got the idea that I had been employed by the insurance companies, believing that the companies were trying to avoid payment of the thirty thousand dollars insurance, by proving that the son had killed his father. This opinion was erroneous. The people who employed me in this case were citizens of Topeka and lodge friends of the murdered man, and were in no way connected with the insurance companies interested in the case, and were merely acting as good and law abiding citizens, and just as soon as I had satisfied them that John Collins was the murderer, they immediately turned the evidence, as far as had been obtained, over to the proper state authorities.

The trial lasted more than a week. Collins was defended by two of the most prominent attorneys at that bar. They labored earnestly and to the best of their ability to clear him, but he was found guilty of murder and sent to the state prison to await the governor's action in fixing the date of his

execution; but, in as much as it has always been the custom in Kansas for the governor to never fix the date for execution of a person found guilty of murder, the prisoners are usually kept in the prison, and a sentence of death in Kansas usually means a life term in the penitentiary.

There has been an effort made by friends of young Collins and the family to obtain a pardon for him, but up to this writing I understand it has been unavailing.

I will say here that the colored hack drivers, before mentioned, from Lawrence, took the witness stand for the state against John Collins, and produced the watch that he had given them, which had been presented to him by the elder Mr. Collins upon the anniversary of John's 21st birthday. This watch, with the testimony of the colored hack drivers, in which they detailed the contract they had made with the younger Collins, all of which was corroborated by circumstances that were not, or could not be, contradicted, led to the conviction of the son for the murder of his father.

FRED ERFERT'S FALL FROM GRACE.

A TRUSTED EMPLOYEE OF A JEWELRY FIRM ROBS HIS
BENEFAC-
TOR—QUICK CAPTURE OF THE THIEF AND
RECOVERY OF THE LOOT.

The arrest of Fred Erfert, who had been a trusted clerk in the jewelry house of John Bolland & Company, of St. Louis, occurred in the latter part of 1892.

Erfert had been employed by the company since his boyhood. At the time of his arrest he was about twenty-two or three years of age, and had become a trusted employe, and carried the keys of the establishment. He was the first man to open the store in the morning, and the last man out at night, closing and locking the store himself.

The firm was rated among the first establishments of the kind in the city, and was doing a large business. A large quantity of valuable goods were mysteriously disappearing and could not be accounted for, and finally the manager, Mr. Clarence White, called at my office one afternoon, and stated the facts in the case as he knew them. He stated, further, that Mr. Bolland had requested him to come and see me and tell me of the state of affairs, and ask me to take the matter under advisement, and that Mr. Bolland would call on me the following day for a conference, which he did.

Mr. Bolland stated to me that they had been missing goods from time to time for the past two years or more and that these losses had grown to alarming proportions. In an effort to clear up the mystery he had secured the services of another local private detective agency, at a considerable expense, but who apparently had not been able to fasten the numerous thefts on any person. He further stated that the losses seemed to be increasing, and that he would like to have me make an investigation and apprehend the guilty party, or parties, if possible. He said that in view of the amount of money he had already spent in attempting to locate the thief he did not feel as though he was justified in spending much more money, but he wanted

me to make an investigation and see what I could do. He stated that he had also consulted the Police Department of the city, but they had failed to apprehend the thief. Mr. Bolland instructed me to proceed at once, saying that he did not believe that they had any one in their employ who was dishonest or disloyal, to which I answered, "It is evident to me, Mr. Bolland, that you believe all of your employes to be honest and faithful, or you, of course, would not have them in your employ." Mr. Bolland replied, "You need not spend any time in looking after Clarence White, Fred Erfert or (laughingly) myself, but you may use your own judgment as to the other employes, although I want you to understand that I have the utmost confidence in all of them."

A short time before this interview took place, the Bolland company had purchased a large stock of jewelry at Sixth and Locust Streets, at a bankrupt sale. On purchasing this stock the Bolland Company sorted out the most desirable parts, which they removed to their own store, and then culled out from the stock in the main store, stuff that was growing stale, and placed it with the bankrupt stock. They then started to auction off the surplus stock. They placed Erfert in charge of this auction store, with a number of clerks and a professional auctioneer. This auction was running full blast at the time of my interview with Mr. Bolland.

Mr. Bolland stated to me that goods were also being missed from the auction store, as well as from their regular store. So the following day I instructed one of my operatives to carefully observe all that he could about the auction store, from the time the store opened in the morning until it was closed at night, which the operative did. After he had spent the first day at the auction store the operative reported to me that he had noticed a number of what appeared to him to be irregularities, especially on the part of Erfert, the manager of the place. He reported that on the evening of his first day on the job he had seen Erfert and the other clerks leave the store. Erfert, being the last man out, locked the door, put the key in his pocket, and the whole party walked to the corner of 6th and Olive Streets, where they separated, taking different cars presumably for their homes. He said that Erfert, however, did not take a car, but walked west a block on Olive Street to 7th Street, then north on 7th Street to Locust Street, and east on Locust Street to the side entrance of the auction store, where he unlocked the door, entered the store and immediately returned to the sidewalk carrying a couple of

large and heavy packages, which were fastened with shawl-straps. He then went back by the same route to 6th and Locust, where he boarded a car and carried these two heavy packages, one in each hand, to his home in South St. Louis, where he resided with his widowed mother and his sister. He entered the dwelling with these packages.

On learning this, I told the operative to carry out my instructions on the previous day, telling him that in case Erfert doubled back on that evening after closing the store, and repeated the actions of the previous evening, that after he had emerged from the store the second time, as he had the night before, the operative should then approach him and say to him that I was in my office in the Chemical Building and wanted to see him at once, and to bring him up without delay. I remained in the office that evening, so as to be on hand in case Erfert repeated his actions of the previous evening, and that is what he did.

It was in the winter time and dark about 5:30 p. m., when Erfert closed and locked the store and left the other employees, apparently starting for home. He accompanied the others, as he had the night before, to 6th and Olive, then left them, they going home and he making a circuitous route, the same as the night before, and went back to the store, letting himself in, and emerging almost immediately again, carrying two heavy packages, heavier than those he had taken the night previous, and fastened with the shawl-straps. After he had locked the door and had picked up the packages, which seemed very heavy, my operative approached him unobserved, and touched him on the shoulder, saying, "Mr. Furlong is at his office in the Chemical Building and wants you to come over and see him at once."

Erfert replied, "What does he want to see me for?"

The operative said, "I do not know. He will explain that when he sees you."

Erfert replied, "I am in a hurry and haven't time. I'm late anyway, and will call and see him tomorrow."

The operative said, "You can either go with me right now and see Mr. Furlong, or I will call the policeman (pointing to a policeman who happened to be standing diagonally across the street from where they were) and have him take you to police headquarters, and probably Mr. Furlong

will go there and see you. Now it is up to you. If I take you to police headquarters your name and picture will appear in the papers in the morning and you will probably get a lot of undesirable notoriety."

"I don't want any notoriety," replied Erfert, "but I can't understand what Mr. Furlong wants to see me for tonight. However, I will go with you, but I will put these packages in the store."

The operative said, "No, take these packages with you. What is in them?"

Erfert replied, "I have two fine clocks that were sent over to my store by mistake and are too expensive to sell at auction, and I intend to take them back to the main store, where they belong."

"Well," said the operative, "you take them up to Mr. Furlong's office, and after you have seen him he will probably allow you to take them to the main store."

The operative brought Erfert to my office, packages and all. I had known Erfert since his boyhood, and on his entering the office I took him into my private office.

Here I will say that on the second day I had put another operative to work on this case, unknown to the first operative, who had been shadowing the first operative and had witnessed everything that had occurred, and had reached the office a few minutes ahead of the first operative and Erfert, so that I was fully aware of all that had occurred.

When we were seated in my private room, I said to Erfert, "Fred, what have you in those two packages?"

He answered, "They are two clocks, which were sent over to the auction store by mistake. They are expensive clocks and I will not sell them at auction, and intended to take them home tonight and return them to the main store in the morning, before I opened the auction store."

"What other stock have you on your person which was sent over to the auction store by mistake?" I asked.

He replied, "I have only a few stick pins, and a few other small articles of jewelry."

I said, "Put them on my desk."

He did so, and the articles that he had concealed in his pockets, according to the prices marked on them, amounted in all to nearly four hundred dollars. There were gold rings, stick pins, and other small pieces of good jewelry. Thinking that possibly he had not emptied his pocket, I inspected them myself. I found a memorandum book, in which he had kept an accurate account of all articles that had been taken from the jewelry company, the cost price of each article to the company, and the price he had received for a large lot of articles that had already been disposed of. This book was written in cipher. I also found a key to a safe deposit vault that he had in some safe deposit company.

I then informed him that thousands of dollars' worth of stuff had been stolen from his employers, that he had been practically raised by them, having been in their service nearly all his life, and that the company had always treated him well and justly; all of which he admitted, and that now, as he had been caught red-handed, I thought that it was his duty, and to his interest, to tell the whole truth as to what he had taken, and do all in his power to return as much of the property as possible.

At this time my office was on the fourteenth floor of the Chemical Building. My private office fronted on Olive Street, and Erfert made a sudden lunge for the window and attempted to jump out. I prevented him from doing this, and after talking to him for a few moments, he admitted that he had been stealing from the company for the past two years. Recently he had been assisted by another of the employees. His grandfather was conducting a jewelry and novelty store in South St. Louis, and nearly all the stock in this store had been stolen by himself and his confederate from the Bolland establishment. He also stated that he had a quantity of the stolen property concealed in the attic of his mother's house, where he lived, and agreed that he would go with one of my men at once and deliver all the stolen goods that he could to me, and he faithfully kept his word. At the conclusion of his statement, I sent a messenger to Mr. Bolland, telling him that I wished him to come to my office at once, as I had succeeded in capturing the culprit. (It should be remembered that the above all took place on the second day that I was working on the case).

Mr. Bolland arrived at my office about ten o'clock, accompanied by his wife and Clarence White. I met them in the front office.

Mr. Bolland said, "The messenger told me that you had captured the party who has been robbing us."

I said, "Yes, that is why I sent for you."

"Whom have you caught?" he asked.

I replied, "Fred Erfert is the principal party."

Mrs. Bolland and White simultaneously exclaimed, "Why you have surely made a mistake."

Mr. Bolland said, "I told you not to bother with Erfert; that I believed he was all right."

At this juncture White (using a slang phrase) "butted in," and said, "Why, Furlong, you have got your foot in it sure. Erfert surely had nothing to do with these thefts, and you have made a great mistake by even accusing him. He has been practically raised by Mr. Bolland and in his service for many years, and we've always had implicit confidence in his honesty."

I replied, "Yes, I understand all of that; but Mr. Bolland employed me to apprehend the party, or parties, who were robbing him, which I have done. Erfert knows that he is guilty and he has fully admitted his guilt, and I am satisfied from the evidence that I have found on his person that he told the truth when he said he was guilty. I, of course, realize Mr. Bolland's disappointment in finding that Erfert was the guilty person, but I cannot help his feelings. I have simply done my duty in the matter, and now it remains with Mr. Bolland as to what shall be done with Erfert."

"Where is Erfert?" Mr. Bolland asked.

I pointed to my private office and said, "He is there and waiting to see you. He has promised me that he will tell you what he has already told my assistant and myself, and that he would at once return a considerable quantity of the stolen property to you, which I have advised him to do."

I then conducted them to the private room where Erfert reiterated the statement that he had made to me. He admitted everything. Then I, with some of my assistants, immediately procured a hack and went with Erfert to his mother's house, where we found about two hack loads of stolen goods, consisting of clocks, silver plate, fine umbrellas, and various articles of bric-a-brac, all valuable stuff.

I had these goods hauled direct to the Bolland store. We then visited the store of the grandfather, in South St. Louis and recovered about four hack loads of goods from there. By the time we had hauled the last load away from there it was nearly daylight.

While this loot was being removed from Erfert's house, by Erfert himself and two of my assistants, I was standing outside guarding the hack into which the goods were being placed. A police officer came along. He knew me and was somewhat surprised to see me at that time of night in that locality, and asked me, in a friendly manner, what I was doing there. I told him that there had been some stuff stolen from a jewelry store, and that it had been taken to this house, and I thought it advisable to remove the goods after night so as not to attract the attention of the neighborhood, as I felt sure that the women of the family were not aware of the fact that the property which had been placed in their house had been stolen.

The policeman later reported having met me and what I had told him, to his captain at the Soulard Street Station, and, of course, this report reached the Chief of Police Harrigan, the following morning. Whereupon, the chief became exasperated and ordered the policeman suspended immediately, assigning the reason for so doing the fact that the officer had not arrested the hack-driver and myself. He also suspended one or two of the officers connected with the station who were on duty that night.

The next morning, about ten o'clock, a city detective called on me at my office and said to me, "I have been sent down by the chief to see you. The chief understands that you arrested a young fellow by the name of Erfert last night, and that you recovered a lot of stolen property. Is this report true?"

"Part of the report seems to be true, while the larger part is not true," I replied. "You know, and the chief should know, that I have no legal right to

make arrests, and therefore, I have made no arrest, nor have I caused any to be made within the city of St. Louis, but I did recover a large quantity of stolen goods last night and early this morning. I have delivered them to the owner."

"Where is Erfert now?" he asked.

I replied, "I do not know where Erfert is at the present time. Why do you want to know this?"

"Because the chief instructed me to come down here and get him, and bring him to headquarters at once," he said.

"Have you any charges against him at headquarters?" I asked.

"I don't know," he replied. "All I know is that the chief sent me down here to get him and bring him to headquarters."

I said, "I do not know whether there will be any charges preferred against Erfert or not. His employer seems inclined to sympathize with him and more especially with his family. I do not believe that he cares to have him prosecuted for these thefts. I expect Erfert to call at my office some time during the forenoon, and I am looking for Mr. Bolland here at any moment. When Erfert comes I will tell him that the chief wants to see him."

The detective said, "No, you need not do that. I will wait here and when he comes I will take him up with me."

I turned to him and said slowly, "If Erfert calls at this office while you are here, and if you have a warrant for his arrest, charging him with any crime, you may take him to headquarters; but, unless you have a warrant, I will not permit you to take him out of this office. I think, perhaps, you had better go and communicate this to the chief."

This city detective and myself had been friends for a number of years prior to this occurrence, and I must say that I did not like the idea of him coming to my office and attempting to have me admit to him that I had violated the law by having unlawfully detained a citizen, thereby laying myself liable to prosecution. However, not having violated the law, I felt perfectly safe. I

knew that the chief was over-anxious to make me trouble as he had made others in my line of business in the past.

The detective left my office and went to report to his chief. In the meantime Mr. Bolland came to my office and I told him of the visit of the city detective and what had been said. Mr. Bolland said that he did not care to prosecute Erfert; in fact, preferred not to do so, but, as the police had the right to prosecute the case, he was really undecided as to what was the best course to pursue.

I advised Mr. Bolland to quietly take Erfert up to police headquarters and tell the chief what he had said to me, as it occurred to me in all probability the chief would insist on having Erfert prosecuted.

Mr. Bolland accompanied Erfert to police headquarters, where the chief and the detective who had called at my office took charge of him and put him through a series of questions, which were principally concerning what Furlong had done. They tried to make him say that Furlong had arrested him and forced him to make a confession of the thefts, and Erfert afterwards told me that they never did ask him whether or not he was guilty of having robbed his employer. They bent their efforts to try and make a criminal case against me, and had gone so far as to prepare a statement, which they urged Erfert to sign, declaiming that I had violated the law, instead of Erfert, by having arrested him and then forcing him to make the statement admitting his guilt, all of which would have been a violation of the law on my part. Erfert refused to sign this statement on the ground that it was untrue. I will state right here that the foregoing is a sample of how criminal cases were handled at police headquarters about that time. However, all these efforts were in vain, as Erfert truthfully replied to every one of their questions. He told them that I had explained to him in the beginning of our interview that I had no legal right to arrest him, and that I had advised him that it was optional with him whether or not he returned the stolen goods, but that if he did not stay with me and help me that it would be my duty to turn him over to the police, and he then would be written up in the newspapers and would get a lot of undesirable notoriety that he wished to avoid.

The chief became very much exasperated with Erfert's statement, by which he could make no case against me. However, he later made a complaint himself against me, charging me with running a private detective agency without a license from the Police Board. He had a warrant issued for my arrest. I waived a hearing, and in due time my trial was called before Judge Murphy. I was placed on the witness stand and asked if I was engaged in the detective business in St. Louis. I replied that I was. I was then asked if I had a license from the Board of Police Commissioners. I answered that I had not and had never applied for one. I was then asked by what authority I was conducting my business. I stated that I was conducting my business by the authority of a charter from the State of Missouri. I was asked to produce the Articles of Incorporation. I did, and after the Judge had carefully read them and had examined my charter, he dismissed the case and assessed the cost of court on the complainant.

The Chief of Police insisted on a prosecution in the Erfert case. Erfert was out on bond, and in due time appeared in court, pleaded guilty and received a minimum sentence, which, if I remember correctly was two years in the penitentiary. I understand that he was a model prisoner and was released under the two-third rule.

The stolen property that had been recovered amounted to several thousand dollars. I have learned that since Erfert was released from prison he has been leading an exemplary life and is respected in the neighborhood where he resides. His confederate was a mere boy and was not prosecuted, it being understood that he had simply been a tool for Erfert, and he had not been concerned in many of the numerous thefts.

BATTLE WITH WOULD-BE BANDITS.

HOLD-UP OF A MISSOURI PACIFIC TRAIN FRUSTRATED—JAMES WEST, ENGINEER, AND ELI STUBBLEFIELD, EX-CONDUCTOR, CAUGHT WITH THE GOODS ON THEM.

With the assistance of Joseph S. Manning, of my St. Louis office, and three special agents regularly in the employ of the Missouri Pacific Railroad, I prevented the holding up of a passenger train on the Lexington Branch near Sedalia, on the night of November 29, 1898. This was only done after quite a revolver battle between my posse and the robbers, resulting in the wounding of one of the latter.

A few days before the attempted train robbery occurred, Horace G. Clark, then General Superintendent of the Missouri Pacific, with headquarters at St. Louis, summoned me to his office. On arriving there Mr. Clark told me that a former employee of the company, who resided at Sedalia, had just informed him that a plot had been formed by six railroad men, including himself, James West and Eli Stubblefield, to hold up and rob one of the company's trains at some point near Sedalia, Missouri. The exact date and point had not been definitely fixed, but the informant was to furnish a team and conveyance with which to take the would-be train robbers to the point at which the holdup was to be made, and after they had succeeded in robbing the train he was to take them back to the city of Sedalia. He further informed Mr. Clark that when the date and point of attack had been settled on he would at once advise him, as he, the informant, had only agreed to furnish the conveyance and assist in the robbery so that he might have the guilty parties caught and handed over to the officers of the law.

I listened to the foregoing statement and called Mr. Clark's attention to the fact that I never placed much credence in the information given by any man who would deliberately enter into a scheme of this kind with his former comrades.

Mr. Clark replied that he had known his informant, who was an ex-engineer named Adams, as a faithful employee of the road for a number of years, and he was in good standing with the company. Adams had met with a serious accident, having lost one of his arms while in the company's service, and since the accident he had engaged in a legitimate business in which he had succeeded and had accumulated considerable property within a few years. I had known Mr. Clark for a number of years, and had done considerable business with him while I was chief special agent for the Missouri Pacific road, with which company he also held an official position. It was on account of our close friendship that Mr. Clark had sent for me, for at this time I had severed my connection with the Missouri Pacific road and was conducting a secret service company in St. Louis.

Mr. Clark said to me, "Furlong, just as soon as the time and place for this holdup has been fixed I will notify you and I want you to take measures to prevent that train from being robbed, and catch the guilty parties."

Early on the morning of Nov. 23rd, I received a message from Mr. Clark, stating that he had just learned from Adams that the passenger train on the Lexington Branch was to be held up and robbed that night, at a point nine miles north of Sedalia, and instructing me to take immediate steps to protect the train and prevent the robbery. Mr. Clark placed W. W. Kay, his special agent, at my disposal, and, on consulting the official time card of the Missouri Pacific road, I found that in order to protect the Lexington Branch train against the contemplated robbery, I must leave St. Louis at 8:45 that morning, so that I might board the endangered train at Independence Junction, Missouri, that evening, as that train was due to leave Kansas City on its east bound trip before the one I was obliged to take from St. Louis arrived at Kansas City. I found that if both trains were on time I would have three minutes at Independence to make connections, and I succeeded by hustling—to use a western expression. I only had time to catch the train from St. Louis, and barely time to get word to my assistant superintendent, J. S. Manning, who accompanied Kay and myself to Independence, where we boarded the threatened train.

I told the conductor in charge of the train of the instructions I had received from General Superintendent Clark, and instructed him that when the train was flagged and stopped not to pay any attention to the parties who

attempted to stop the train, but to devote his whole time to keeping his passengers quiet and to keep them in their seats in the cars, and to see that none of them raised a window and put their heads out. I then went over to the engineer and told him what was liable to happen, and told him that when we arrived at a certain curve, at which the information indicated we were to be flagged, and he saw the signal, which would be a red light shown across the track, he should stop the train immediately, and by all means he must not run beyond the danger signal. I told him that after he had stopped the train he and his fireman could squat down on what is known as the hearth of the engine, in front of the boiler, where they would both be entirely safe, and could not be reached by bullets fired from the ground, as the sides of the cab, up as far as the window sills, were steel, and by stooping down below the level of the window sills both of them would be perfectly safe from any shots that might be fired. The engineer and fireman understood my instructions perfectly, but I noticed that the engineer, who was a big, husky, middle-aged man, acted as though he was an arrant coward.

When we arrived at the first station north of the curve, which was about two miles, I placed Mr. Manning on the front platform of the express and baggage car immediately behind the engine. He was armed with a .44 Colts. Detective Frank Barnett, of the Missouri Pacific, with headquarters at Ossawatimie, Kansas, and whose home was at Sedalia, and who had joined my party at Independence, was placed on the rear end of the express car, armed with a repeating Winchester shot gun. I boarded the engine and took a seat on the engine box. I placed Mr. Kay on the fireman's box on the opposite side of the engine. The fireman gave Kay his cap to wear and I had the engineer's cap on, so that any person on the ground, it being after dark, would naturally suppose that I was the engineer and Kay the fireman. The real engineer and fireman stood on the hearth in front of the boilerhead. They could attend to their duties standing where they were as well as though they were seated on their respective boxes. We proceeded south from the last station in this order.

When we reached the curve, I being on the inside of the curve, saw the signal first. It proved afterwards to be a white lantern with a red handkerchief tied over it, which gave it the appearance of a real danger

signal. It was swung back and forth across the track, vigorously. I called the engineer's attention to it, while we were at least two hundred yards away.

We were running then at a speed of about thirty miles an hour. I told the engineer to slow up, get his train under control and by all means to be sure and come to a full stop before passing the signal. There was a slight grade to the curve, and although he shut off his steam, he did not apply the air-brakes, so that the train slackened its speed but very little. I saw that we were bound to pass the signal, and again commanded him to stop the train, but he seemed to be bent on passing that signal. It appeared that he was too frightened to think of the air-brakes at all. Whereupon, I threw on the reverse lever myself, or "plugged the engine" as the engineer would say, which caused the wheels to slip, although they did not hold to the rails or stop the speed of the train but slowly.

Meanwhile the party who was swinging the signal light stood in the middle of the track until the train was almost on top of him; in fact, I thought he was going to be run down, but he did manage to leap from the track just in time to save himself. He jumped to the left hand side, which was the opposite side of the engine to where I was stationed. When we passed him we were running at least fifteen miles an hour, and he immediately opened fire on the engine with what we afterwards learned to be a .45 Colts revolver. He riddled the upper part of the cab with bullets. The moment the firing began I sprang from my side of the engine to the gang way on the opposite side. It did not take me an instant to get to that position. The gang way was just passing the fellow who was doing the shooting and I had time then to take but one shot at him. I knew that I hit him, for I saw him fall into the ditch. About the time the shooting began, another would-be robber was discovered on the right-of-way. He also began firing at the officers, sending a couple of shots at Manning, who was on the front end of the express car, and both of which only missed Manning's head by a margin of a few inches.

On account of the grade the train did not come to a full stop until we had passed the place where the signal had been shown, probably a distance of fifteen hundred feet or three train lengths. I had instructed Messrs. Kay and Manning and Barnett that if any shooting occurred to open fire on any person they might see on the ground, knowing as I did that they would obey orders. I had also told the conductor to be sure and see that none of the

passengers or his crew got on the ground, and for this reason we dare not leave the train until it came to a full stop. After we came to a stop Kay, Manning and myself got off of the train and started to the place where we expected to find the dead or wounded man whom I had shot and had seen fall into the ditch. After we had left the train the engineer began backing up, and nearly ran over us as the train was backing faster than we could either walk or run.

At Lexington, Missouri, the train had picked up an extra coach, containing about twenty passengers, members of a local theatrical troupe bound for Sedalia to give a performance there. They were what theatrical people would call "barn stormers." Every one of them had a popgun of some sort with them, and they began shooting out of the car windows. When we reached the spot where I had seen the robber fall we found that he had disappeared. There had been a light fall of snow, probably two inches, on the day preceding the holdup, and the tracks of this man were plainly visible, and there was also a streak of blood about two inches in width, which led across the track from the east to the west to a road running north and south. The wounded man had taken this road, which led to Sedalia. While we were trying to find the trail we saw another man attempting to get through a barbed wire fence, which was on the right-of-way of the railroad on the east. His clothing became fastened in the wire. He struggled, however, to extricate himself, and finally succeeded, just at the time that Manning and I reached the place where the other man had fallen. We saw him as he was getting through the fence, and he started to run in an easterly direction through a large newly plowed field. To make matters worse the ground was covered with snow.

Discovering that our wounded man was gone, and spying the other one running across the field, we gave pursuit. Manning succeeded in jumping over the fence, but I thought I could get through where the robber had, believing that he had sprung the wires and it would be easy, but I also got caught on the barbs and it was only with difficulty that I finally released myself. By this time Manning had got quite a lead, but soon, however, after getting away from that fence, I overtook him, and so it was a neck and neck race between us for at least 150 yards. After leading us a merry chase for that distance, the robber fell, and we, having gained on him, were close to him when he fell, and we sprung upon and disarmed him. His hands and

face were covered with blood. He lay on the ground moaning, and we believed that he was badly wounded. There was every possibility of his being seriously hurt, because several shots had been fired at him by Manning and myself during our chase across the field. The "barn stormers" had taken the matter as a general jubilee, and had begun firing at friend and foe alike. They all had shooting irons of some sort and threw open their windows and began firing as soon as we began to pursue the robber. Even the express messenger, who knew that Manning and myself were running across that field, opened fire with a Winchester rifle from his car. Just before the robber fell, a bullet, which had evidently been fired by the express messenger, struck the handle of the revolver that Mr. Manning was carrying in his right hand, splintering the handle and nearly paralyzing his hand and arm with the concussion. If the bullet had hit Manning's hand it would have ruined it forever.

Just as Manning and myself had grabbed and disarmed the fallen man, Detective Barnett reached us, and jerking the handkerchief, which had been used as a mask, from the would-be robber's face, exclaimed, "Why, hello, Jim." We all knew then that we had captured West, whom we had known to be in the conspiracy. "Is that you, Frank?" exclaimed West, after which he feigned unconsciousness. West was at that time in the employ of the Missouri Pacific, with a run out of Sedalia, where he had resided for a number of years. He had been at one time superintendent of a Sunday school, and stood well in the estimation of the business men of that town. He also had a reputation among persons who knew him better than the church people, as being a fairly good poker player, and exceedingly fond of the game.

Manning, Barnett and myself were finally joined by the conductor and members of the train crew, and we succeeded in carrying West back to the train. He appeared to be unable to walk, so we had to carry him. We laid him down in the express car, examined him for wounds and found that he had not been shot, but he had severed some small blood vessels on his wrist while struggling to get through the fence and had smeared his face and clothing with blood from these wounds. He shammed being drunk, but he was not at all under the influence of liquor.

Thinking that the wounded man could be found later, and not wishing to delay the train any longer, we boarded the train and were soon in Sedalia. I was personally acquainted with Eli Stubblefield, and being pretty sure he was the man I had wounded, when we arrived in Sedalia I sent Manning and Detective John Jackson, of the Sedalia police department, out to watch his brother's house, where he made his home, in the hopes that they could intercept and arrest him. Frank Barnett and myself secured an engine at Sedalia and returned to the scene of the attempted hold-up. Picking up the trail of the wounded man, from his tracks and the blood in the snow, we followed it out to the main road and on towards Sedalia. We came to a house occupied by a negro family, which stood near the road. There the negroes told us that just after they had heard the shooting a tall slender man, about middle aged, had stopped in front of their house, coming from the north, and was going south, and yelled to the occupants, stating that he had been hurt and would give them ten dollars if they would hitch up and drive him to Sedalia. They told him that they could not get a horse at that time of night. He departed for Sedalia holding his right arm, and leaving a trail of blood along his tracks. Satisfying ourselves that Stubblefield was sure to show up at Sedalia, Barnett and myself abandoned the hunt, returned to our engine and were again soon in Sedalia. We were right in believing Stubblefield would soon show up in Sedalia, for about two or three hours later the wounded man, who sure enough proved to be Eli Stubblefield, turned up in Sedalia and near his home, where he was captured by Manning and the Sedalia police officer, who were waiting for him, according to my instructions. He was taken to the county jail, where West had been incarcerated, and physicians called to dress his wound. It was then learned that I had shot him in the right arm, the ball entering and breaking the bones at the elbow. The wound soon healed, but Stubblefield never had the use of the arm again, it always hanging limp at his side.

Early the next morning West was released on a bond signed by a couple of prominent and wealthy Sedalia business men, but later in the day, on learning all the facts in the case, the bondsmen surrendered him to the sheriff and he was again locked up, where he remained until his trial.

Adams, the informant, stated to me the following morning, that at the last moment the other four who had promised to join in the robbery, had weakened, using his expression, and therefore Stubblefield and West were

the only two he had to take out, and that after the firing had commenced he did not wait for them, but hastily drove his rig back to Sedalia.

In due time both Stubblefield and West were tried and convicted of the attempted holdup, and sent to the penitentiary, if my recollection serves me right, for ten years each. They have served their time out, and, I believe, are at large at the present time.

We found two six-shooters in the possession of West, and also two revolvers in the possession of Stubblefield. Stubblefield was well known as a freight train conductor, and was in the service of the Missouri, Kansas & Texas Railroad Company, popularly known as the "Katy." West had always been an engineer and had been in charge of a freight engine on the Missouri Pacific for a number of years. The others who had promised to participate in the train robbery were all ex-employees of some railroad with the exception of one, who was a butcher. I withhold the names of the other four, as they did not appear on the ground nor participate in the robbery, and were not arrested or tried in connection with the crime.

I will state here for the benefit of the reader that Adams, the informant, had been in the employ of the Missouri Pacific Railroad Company for a number of years as a locomotive engineer, had a good record with the company and stood well in the community where he resided, as a sober, reliable and intelligent man, and a good citizen. While oiling around his engine one day at a station the throttle began leaking, thereby admitting steam to the cylinders, which caused the engine to move suddenly while his arm was extended through the spokes of the drive-wheels. The sudden movement of the engine tore his arm from the shoulder and thus terminated his career as a locomotive engineer. The railroad company settled with Adams for the loss of his arm without a suit, paying him quite a sum of money. It was with this money that he began business in Sedalia as a money lender. West and Stubblefield were among his clients, each owing him quite a sum. It was while talking with them about their indebtedness to him that West and Stubblefield first approached the subject of robbing the train to Adams. "We will have plenty of money to pay you all that we owe you in a few days," said one of them to Adams, and then they asked him to join them in pulling off the job, which he agreed to do for the reason before stated.

THE GREAT PITTSBURG STRIKE.

THRILLING SCENES DURING THE RIOTS—ATTACK ON THE
STATE
MILITIA—SENSATIONAL ARREST OF ONE OF THE
RIOT LEADERS.

In July, 1877, during the railroad strike on the Pennsylvania Railroad, at Pittsburg, Pa., a riot was in progress on Sunday, the 21st, which had started on the day previous. The rioters were led by the loosest characters in and about Pittsburg. A great many of them were rolling-mill employes and miners from mines and mills adjacent to Pittsburg, who were in sympathy with the railway employes, who had gone out upon a strike on all the lines operated by the Pennsylvania Company. All of these lines were tied up. Not a car or locomotive had been moved for several days prior to the breaking out of the riot. The police force of Pittsburg was disorganized, many of them being in sympathy with the strikers. The railroad company's officers then applied to the sheriff of Allegheny County. The sheriff being unable to cope with the rioters or to protect the company's property, called up Gov. Harttranft, then governor of Pennsylvania. The state militia of Pennsylvania was ordered to Pittsburg and placed under the command of Gen. Nagley. Many of the militia were in sympathy with the strikers and laid down their arms and joined the rioters, whereupon the Governor ordered re-enforcements from Philadelphia. The re-enforcements consisted of two regiments, the first and second regiments of state militia. They arrived in Pittsburg on Saturday afternoon, July 20, from Philadelphia, and were in charge of Brig. Gen. Brinton. These men left the passenger coaches at Union Station at Pittsburg, and were marched north to the railroad yards, which were full of freight and passenger cars, up to 28th Street. At 28th Street there was a mob from eight to ten thousand men, armed with guns, pistols and clubs, who closed in on the Philadelphia troops, opening fire upon them and disarming a number of them with their overwhelming force. These troops displayed great coolness and nerve under the circumstances, but the numbers were so overwhelming against them that they were forced to take refuge in the Pennsylvania Railroad Company's roundhouse at 28th

Street. Here they held the position until a late hour Saturday night. In the meantime the rioters had found a number of carloads of crude petroleum oil, which were on a side track north of the company's roundhouse, where the soldiers had taken refuge. The roundhouse being on a lower spot of ground than the main grade of the yards, the track where these cars were standing formed a down grade, running directly into the roundhouse. The mob released the brakes on two of the cars filled with oil, there being a number among them who knew just how to operate the cars and switches. These cars were turned loose down the grade, were set on fire, and ran into the roundhouse, where the oil exploded, thereby setting fire to the roundhouse, and the troops who had taken refuge there were compelled to flee for their lives, although they retreated in fairly good order. Their line of retreat was through a portion of Pittsburg then known as Pipe Town. The troops were assaulted from windows and roofs of houses with bricks, guns and pistols. Many of them were maimed and wounded. Thus they found their way to the Sharpsburg Bridge, which crossed the Allegheny River north of Pittsburg. The remainder of the Philadelphia troops formed a camp on the hills just outside of Sharpsburg, on Sunday morning, where they remained until a sufficient number of re-enforcements had assembled in Pittsburg to control the situation, when the Philadelphians were again ordered back to Pittsburg. Here they remained with the other troops until the trouble was over. In the meantime, on Saturday night, after the annihilation of the Philadelphia troops, the rioters went through the business portion of Pittsburg, breaking into hardware stores, pawnshops and in fact any other establishment they were liable to find firearms or ammunition. A reign of terror existed in Pittsburg from the fatal Saturday until late Sunday evening. During the forenoon of Sunday the rioters turned their attention to the other cars in the railroad yards. The writer saw men and women breaking into cars, and in many instances saw them leaving the yards; some instances they would have a bolt of silk, fine laces, or other fine dress goods in their arms, with possibly a ham or side of bacon on top. They, being heavily laden with this loot, would attempt to climb the abrupt bluffs which bordered the railroad yards on the east side, would lose their foothold on the steep bluffs and come tumbling down, and women and men, bacon and silk, would be found in a heap at the bottom.

About ten o'clock on Sunday morning the mob found a carload of tinware in the yards, and about the same time they also discovered two carloads of liquor nearby. They at once captured all of the tin cups and other vessels that would hold liquor from the carload of tinware. They also dumped out the barrels of liquor on the ground, turned the head up and used coupling links to knock the head out of the barrels. They then helped themselves to the liquor with the tin vessels which they had taken from the carload. The liquor consisted of brandy, whiskey and other strong liquors. Having been engaged in rioting the night before, probably not having stopped long enough to get any breakfast, they drank this liquor like thirsty people, and were soon overcome with the effects of it. In a short space of time the more violent of the mob fell by the wayside, stupefied with the overdose of liquor. The citizens learning of the general drunk, got together all sorts of wagons, carts, and other vehicles that could be found and commenced to gather up these drunken people, who were utterly helpless, and conveyed them to the jail and lock-ups. These places were filled with them in a short time. In fact, this was the first and only time in which the excessive use of strong drink was instrumental in quieting one of the most desperate and destructive riots ever engaged in in Pittsburg, or any other city.

At about eleven o'clock on Sunday morning, a man by the name of James Boyd, who hailed from Mansfield, Pa., which is a small place about seven miles from Pittsburg, at which place his father kept a hotel, or what was called in those days, a tavern (James Boyd had been in Pittsburg a short time prior to the time of the railroad strike, working as a barkeeper for Charlie DuChon, whose place of business was directly across from the Union Station at Pittsburg), with a number of others was seen by the writer to roll a barrel of refined petroleum oil into the waiting room of the Union Station. There he turned the barrel up on end and knocked out the head, then turned the barrel down again, letting the oil run all over the floor of the waiting room. He then took a handful of waste that he had secured from one of the engines, set fire to it and threw it into the oil on the floor, which ignited instantly, enveloping the entire inside of the Union Station in flames. The writer witnessed this, and the direction taken by Mr. Boyd. That evening Boyd, with others, set fire to a large grain elevator, which was situated just south of the Union Station at that time. The roundhouse and general offices of what was known as the Pan Handle Railroad were also

burned in the same manner. All this occurred on Sunday and before the carloads of tinware and liquor had been discovered and the general drunk had occurred.

Boyd left Pittsburg Sunday evening, after the citizens had summoned courage and had begun to gather up the drunken rioters, as before mentioned. He hurried to Mansfield to his father's house. The writer quietly followed him to Mansfield, and after locating him at that place returned to Pittsburg. After things had quieted down, and martial law was being rigidly enforced, the following Wednesday I went to a livery stable where I hired a pair of horses and a light spring wagon, with top and side curtains, which would readily be taken for a country man's huckster wagon, with a seat in front, and also a seat in the middle of the wagon. The side curtains were drawn down. I called upon Sol. Colson, who was a roundsman, or what is now called a sergeant of police. He was big, strong and courageous. I told him that I had Boyd located, and proposed to go down to Mansfield and arrest him on a charge of arson, as I had witnessed his actions on the Sunday previous. I will say here that at that time I was special agent for the Allegheny Valley Railroad, which is now a part of the Pennsylvania System, as it was at that time, but operated separately from the other Pennsylvania Lines. I also told Colson that many of the parties who had taken part in the riots belong in and around Mansfield (which is now known as Carnegie) and that they would, doubtless, be making their headquarters at the Boyd hotel. Whereupon Colson said that he would be glad to go with me to assist in the arrest, but that we ought to have another man with us, and he suggested a policeman by the name of John Moran. We found Moran. Both Colson and Moran were dressed in citizens' clothes. We placed Moran on the rear seat of the vehicle, Colson occupying the front seat with me, and I did the driving. It was raining when we left Pittsburg, it being about eleven o'clock on Wednesday. We drove down to Mansfield, a distance of seven miles, and located on the bank of a creek.

In going from Pittsburg to Mansfield the ground is rolling and hilly, and near Mansfield we came to the top of a hill, which is at least a mile long and quite a steep grade from the top of this hill all the way into Mansfield. The road being fairly straight, we could see a large crowd of men assembled in front of and near the Boyd tavern. As we neared the crowd I recognized many whom I had seen rioting in Pittsburg on the Saturday and Sunday

before. They were apparently prolonging the spree that they had begun in that city, whooping, hollering, wrestling and fighting. They were a motley crowd, and in fact what might be called a dangerous looking crowd. We drove up to within a hundred feet of the front of the Boyd tavern. Right here I want to say that Moran, the patrolman we had brought with us, was not occupying the rear seat in the wagon. He had been on duty continuously since the beginning of the trouble, and was without doubt much fatigued. When we had gotten almost to Mansfield I heard a thud in the rear of the wagon. Turning around I noticed that Moran had gotten down from the seat he had been occupying and was lying on the bottom of the wagon. Colson thought that he was exhausted and had fallen from the seat. I went to arouse him, and to my surprise found a pint bottle which had been filled with whiskey. Moran had this bottle of whiskey with him and had doubtlessly drank copiously of the contents. He was dead drunk, but on account of our close proximity to Mansfield at the time of this discovery, it was too late for either Colson or myself to change our plans, so we drove up to the place before mentioned, and leaving Colson, after turning the team around and facing them towards Pittsburg, I went into the Boyd tavern to reconnoiter. In the barroom I found men standing at the bar three and four deep, and trying to elbow up to get drinks. Old man Boyd (Jim's father), Jim himself and two other barkeepers, sleeves rolled up and perspiring—you will remember this was in July—were serving cheap whiskey as rapidly as possible. I elbowed my way up to one corner of the bar where Jim Boyd was working. I caught his eye and said to him in an undertone that I had a friend in my wagon just outside in front of the house, who had been suddenly stricken with the cramp colic, and asked him if he would kindly fix me up a good big drink of brandy and Jamaica ginger, and that I would appreciate it very much if he would. I handed him a two dollar note, telling him to keep the change. He placed the two dollar note in his white vest pocket and good naturedly said, "I will fix something warm and bring it out right away." He fixed up a drink, and in the meantime I went back to the wagon, and as the curtains were all buttoned down, of course Moran was out of sight. Returning to the wagon I hurriedly told Colson that when this man came out with the drink I would be busily engaged fixing the harness and I would tell him (Boyd) that the sick friend was in the wagon. When Boyd came out I told him to hand the drink to Colson. Colson told him our friend was in the bottom of the wagon, whereupon Boyd raised himself up

on the front wheel to see the sufferer. Colson caught him by the collar, and I boosted him by the heels into the wagon at the same time. Colson released his hold on the reins and I had hard work to grab the front end of the wagon, but somehow managed to land on the front seat. Colson had dragged Boyd into the wagon box and was holding him down on top of Moran, who was still soundly sleeping. Colson had fallen into the wagon with Boyd and he let the reins go down between the horses. By the time I got on the wagon the horses were running away at full speed towards Pittsburg right through the crowd that was standing around the tavern.

In the meantime, the drunken rioters on the outside, thinking the team was running away, started in pursuit. It was all the way uphill, therefore I had but very little trouble slowing the team down to a natural pace, as they soon became winded.

As the team started old man Boyd and some of the soberer spectators had noticed Boyd being pulled into the wagon, and immediately procured horses and started in pursuit. Our team being winded on account of the steep grade, the men on horseback were gaining on us rapidly. All this time Colson was holding Boyd down on top of Moran, and Boyd was making a desperate fight. He was a wiry young fellow, although no match for Colson. However, it was just about all Colson could do to keep him in the wagon. The writer had to do the driving and look after the team, and was not prepared to engage with the pursuers, who were armed with pistols and guns, but fortunately, by the time we had reached the grade, half a mile up the hill, one of those terrible Pennsylvania thunder showers burst forth with wind and rain, and it struck us fair in the face; in fact, with such force that our horses stopped and would hardly go against the storm. Of course, when this storm struck us it also struck our pursuers, compelling them to go back. The result was that we arrived in Pittsburg in due time with our prisoner and lodged him in jail.

Moran had never once become cognizant of what had happened, and was still in oblivion when Colson and I delivered him to his wife in Pittsburg.

Colson was Moran's superior in rank, but in view of the fact that Moran had always been faithful, and was overcome by fatigue through overwork during the several days and nights preceding the occurrence just related, did

not prefer charges against him. Moran sobered up and did many years of good service on the police force afterwards.

This, I think, was one of the most exciting arrests I ever participated in. Boyd was tried in the courts of Pittsburg in due time, and was sentenced to the penitentiary for fourteen years.

The Pennsylvania Railroad Company brought suit against the county of Allegheny and the city of Pittsburg for damages to their property sustained during the riots in Pittsburg. This case was later tried in Beaver County, Pa., and the railroad company was awarded a judgment against the county of Allegheny and the city of Pittsburg for \$2,000,000 damages.

The railroad company, needing ready cash at the time, sold this judgment of two million dollars to a syndicate, which consisted of Wm. H. Thaw, of Pittsburg, and nine other representative men of Pittsburg for \$1,600,000 ready cash. The city of Pittsburg and county of Allegheny then issued bonds for the two million dollar judgment. These bonds were to mature in twenty years, with legal interest payable annually, so that the purchaser of these bonds made four hundred thousand dollars net on the purchase, as well as the interest on the bonds, all of which has long since been payed by the tax payers of the county of Allegheny and the city of Pittsburg.

MURDER OF CONDUCTOR FRAZIER.

A TERRIER BEATS A PACK OF BLOOD HOUNDS ON A MAN TRAIL

—

ARREST AND CONVICTION OF A PAIR OF REALLY BAD
TEXANS FOR THE CRIME.

In 1885 an attempt was made by two masked men to hold up a passenger train on the International & Great Northern Railroad, at a point south of Overton, Texas. It was in the month of February and about midnight, and the weather was quite cold, and the ground covered with about two inches of snow and sleet in the vicinity of Overton. The train, bound south from Longview to Galveston and San Antonio on that night, was in charge of Conductor Frazier.

When this train was about to pull out of the small station of Overton, the colored porter, whose duty it was to see that no tramps or other intruders boarded the train when leaving stations, noticed two men climb upon what is known as the blind end of the baggage car, from the north side, and the opposite side of the train from the station. The porter, upon seeing the men, boarded the baggage car at its rear end, and, as the baggage cars of that period all had doors at each end, he entered the car by the rear door and opened the front door from the inside, he having a key. The train had not got fully under headway as yet. He peered out and ordered the tramps, as he supposed them to be, to get off the train; whereupon the men, who were on the front platform of the car turned upon him, each of them holding two large Colt revolvers. He then noticed that they were wearing masks, and it is needless to say that he was frightened. Slamming the door shut, he fastened it and rushed back into the car where he met Conductor Frazier, and informed him that there were two tramps on the front end of the baggage car, whom he had ordered off, but that they had refused to leave and had pointed guns at him. He did not tell the conductor that the men were wearing masks. The conductor, believing them to be merely tramps who had gotten onto the car for the purpose of stealing a ride, and the night being very cold for that section of the country, he concluded that he would

go and bring these men into the smoking car, carry them to the next station and there put them off. They would be more comfortable in the smoking car than out on the front platform. He went to the front end of the car, accompanied by a brakeman by the name of Powers. Frazier opened the front door, and the men on the outside immediately opened fire on him. He fell forward dead, and his body rolled off the train into the ditch. They now caught sight of Powers, the brakeman, who was behind the conductor, but as soon as the firing commenced he (Powers) turned to run back into the coaches. They shot him in the body, wounding him seriously. The affair was promptly reported by telegram to the Vice-President and General Manager, Mr. Hoxie, whose headquarters were in St. Louis, Mo.

On receipt of this report Mr. Hoxie notified me at once, instructing me to proceed upon the first train to Overton, and investigate the case. I left St. Louis early the morning following the hold-up, arriving at Overton eighteen hours later. Here I learned, in addition to the facts before mentioned, that there was a north bound passenger train from Galveston that night. There was a water tank about three miles south of Overton. This north bound train was to meet and pass Conductor Frazier's train at the water tank, and the masked men, who later proved to be John Knight and John Price, intended to steal a ride on the south bound train to the water tank, and there to board the north bound train from Galveston, hold it up and rob it between the water tank and Overton, but owing to the fact that they had been discovered on the south bound train as it was pulling out of Overton, and that they had shot and killed Conductor Frazier and wounded Powers, they left the train, and, taking a circuitous route, made their way back to their homes in the little town of Overton. Owing to the coating of snow on the ground they were easily traced to Overton. Of course, when they reached the main street their tracks were lost among the numerous other tracks there. Having learned all this I concluded that these men were residents of Overton and not tramps. I therefore went on with my investigation, which consumed about two days of my time.

In the meantime, as soon as it became known that Conductor Frazier had been murdered, a special train was sent from Marshall, Texas, to Overton with a pack of bloodhounds, which were owned and kept by the Texas and Pacific Railroad Company, and were in charge of a man by the name of Mundon, who accompanied the dogs everywhere they went. Mundon had a

posse of several men with him, and at Overton their numbers were augmented by the citizens of that place.

The dogs were taken to the spot where the masked men had left the train, which was about a mile and one-half south of Overton. Here the dogs went upon the tracks and followed them, in a circuitous route, to Overton, where the dogs became more or less confused by the large number of tracks they found on the street. However, there was one old dog in the pack called Lee. Lee finally scented a track in the street, began bellowing, and continued until he arrived at a high picket fence which surrounded the home of John Price. The dogs were being followed by a large crowd, and when the dogs arrived at the fence, which was too high for them to jump over, old Lee kept up his howling until Mundon silenced him. The dogs were then taken back to the spot at which Lee had scented the first track that led him to the home of Price, where, after a lot of barking and capering on the part of the dogs, old Lee scented another track which he followed to the house of John Knight.

Knight and Price were brothers-in-law, and both of them were among the crowd who were following the dogs, and by reason of their presence the crowd burst into jeers and laughter when the dogs led them to the houses mentioned. Again the dogs were taken away and put on other tracks, which led out into the country.

While this was being done and the dogs were being followed over the country by nearly every man and boy in Overton, I was quietly making the investigations, the result of which I have told before. I really feared that the dogs were liable to locate some poor unfortunate, but innocent person, who would be more than likely to be subjected by the mob to violent treatment. So I went to Palestine, which is a division and headquarters of the International and Great Northern Railroad. Palestine is about forty miles south of Overton. Here I found the colored porter, who was a light and rather handsome mulatto. He wore short sideburns and a mustache, of which he took great care. He had previously stated that he would be able to pick out the men whom he had seen board the train at Overton, and who had killed Frazier, on sight, providing they were wearing the same clothing that they had worn on the night of the tragedy.

Meanwhile, I had telegraphed to St. Louis for Mike McCabe, one of my men, and McCabe had arrived at Palestine on the same train that I was on. I took the porter, whose name was Davis, to a colored barbershop in Palestine where I had the barber shave off his sideburns and elegant mustache, to which Davis protested vigorously. I then had Davis don the suit of a common field hand and a soft hat such as are usually worn by colored field hands in that section. After I had gotten Davis shaved and decked up in his new outfit, the change in his appearance was so great that I am satisfied his own mother would not have recognized him.

I then placed him in charge of my man McCabe, who was unknown in that part of the country. I instructed McCabe to take the first train the following morning for Palestine to the water tank before mentioned, near Overton, and there Davis and himself were to leave the train and walk from there into Overton, and there to go around the town and look carefully over every person that came in contact with them. In case Davis could recognize one or both of them he was to quietly inform McCabe and McCabe was to report to me at once. This program was carried out.

In the meantime, I had arrived at Overton before McCabe and Davis and watched and waited for developments from them.

A short time after McCabe and Davis arrived they were passing a blacksmith shop when Davis, the colored man, noticed and recognized John Price, who was in the blacksmith shop, had on an apron and was shoeing a horse at the time. Davis instantly recognized him as one of the men, from the opposite side of the street. It was then near noon, and the bloodhounds and the mob following them were seen coming down the hill into town, evidently for their dinner. Davis caught sight of and recognized John Knight among the front rank of the mob following the dogs. This fact McCabe promptly communicated to me. I then instructed McCabe to send Davis back to Palestine and to instruct him to await there for further orders from me.

Powers, the wounded brakeman, had been taken to the railroad hospital at Ft. Worth, Texas, where he was supposed to be lingering between life and death from the wounds he had received. I had been informed that Powers could also identify the men who had assailed him. As Davis had identified

Knight and Price, and his identification of them being corroborated by strong circumstances, I concluded to arrest Price and Knight and immediately take them to Ft. Worth, so that Powers might have an opportunity of seeing them. I therefore telegraphed from Overton to Major Jos. Merron, general Superintendent of the International & Great Northern Railroad, and located at Palestine. We had a cipher code. I requested Maj. Merron to send a special engine with a coach to Overton that night and to arrive at about eleven o'clock, which would be after the citizens had retired. I also asked him to send my man McCabe to me with this special train. Maj. Merron replied that he would comply with my request and that he would come himself and bring another man with him if I desired. I asked him whom he proposed to bring. He wired back that he would bring Chris. Rogers, who at that time was city marshal of Palestine, a position he had held for a number of years, and he was a terror to the evil doers of the community, having killed no less than seven or eight men during his term of office. I wired the Major "O. K.," requesting him to instruct his engineer to approach the station at Overton quietly and without ringing his bell or blowing his whistle. The train arrived at eleven o'clock, bearing Maj. Merron, Chris. Rogers and McCabe. I met them and we at once went to the house of John Knight, where I rapped for admission. My knock was answered by John Knight himself, whom we quickly seized. Cautioning him to keep quiet, which he did, we then proceeded to the house of his brother-in-law, Price. Here we expected to have some trouble as Price bore a very bad reputation, he having been mixed up in a number of shooting scrapes, and was considered by the people of Overton "the bad man of the community." Arriving at the Price house I sent McCabe, who, by the way, was not a very large man, but thoroughly game, to the back of the house, while Rogers and myself went to the front door, rapped for admission, and were promptly answered by a man's voice from within, asking who was there and what was wanted. I stated that we were officers of the law and had a warrant for his arrest. I omitted to say that I had obtained warrants for both Price and Knight, charging them with the murder of Conductor Frazier. Price replied that if we were officers we might call in the morning, after he had his breakfast, and that if he felt like going with us he would do so, but that if he did not feel like going he would probably not go.

Price lived in a small, one-story cottage or shanty, and at one end of the sleeping room there was a large fire place, in which there was a large fire burning, which heated and at the same time illuminated the room. This fire place was built up against the outside of the house, and there was a crack extending along the chimney probably one-half inch wide. By looking through this crack, and by the light of the fire, a good view was to be had of the interior of the sleeping room. The bed was standing directly in front of the fire place and facing it. Over the head of the bed was a shelf extending along the partition, and upon this shelf Price kept a Winchester rifle within his reach as he was lying in bed.

When Price made the above reply, I left Rogers at the door and went to the crack near the chimney, where I got a view of the inside of the room, as above described. I saw Price sitting up in bed with his Winchester in his hand, and while he was still talking I went back to the door and hurriedly told Rogers of conditions on the inside. Whereupon Rogers said, "Price, your house is surrounded and you had better put that Winchester you have in your hands back on the shelf. Come to this door and open it at once or let your wife and babies come out before we set fire to the place and burn you out. You have been bluffing the people of Overton, but you cannot bluff us. We are officers and if you come to the door and surrender we will protect you. If you do not we will get you, if we have to burn you out." His wife pleaded with him to open the door, which he did. We took our prisoners to the special car and immediately started for Fort Worth, arriving there late that evening. We went to the railroad hospital, where I arranged with the surgeon in charge to have Powers brought out of his room, which was small, and placed in a larger room. We then had a party of probably twenty-five or thirty railroad men, and other men who lived near the hospital, file into the room and form a semicircle around Powers' cot. He was placed so that by merely turning his head he could have a good view of the people who were lined up in single file, forming the circle before described. Knight was standing in the circle near one end of the line and Price was stationed in the line about midway between the center and the other end of the line. Their dress and general appearance was very similar to many of the others present. After everything was arranged the doctor in charge told Powers to look over the line and see if he could recognize any persons there. Powers at once pointed his finger at Price and said, "That is one of the men who

was on that train." He then turned his head and looked along the line, and without hesitation pointed to Knight, saying, "There's the other."

We then took Knight and Price to Tyler, Texas, where they were both locked up in default of bail, to await their trials on the charge of murder. The Knights were an old respected family of Russ County, Texas, and Price had married John Knight's sister a few years before the occurrence heretofore related.

Col. Spivey, a prominent criminal attorney, was employed by the defense. The railroad company employed Capt. Jas. Hogg and his law partner, John M. Duncan, to assist in the prosecution.

In due time the day of the trial arrived, Circuit Judge McCord presiding. The defendants demanded separate trials. Col. Spivey proposed to try Knight first for the reason that it was generally understood that Knight being the younger man of the two had been influenced by his brother-in-law, Price, and also that he had always borne a good reputation prior to that time. Knight's trial lasted about two days, when the jury returned a verdict of guilty of manslaughter. His punishment was fixed at ten years in state prison. His counsel immediately served notice that he would apply for a new trial, and also asked the continuance of Price's trial until the next term of court. The continuance motion was granted and Price was released on bail.

While the question of Price's bond was being arranged by the lawyer and the court, I, in company with Master of Transportation, Wm. Boyd, left the court room and walked out into the grounds in front of the courthouse, where we stood conversing for a few moments relative to the result of the Knight case. I had noticed a rather singular looking young man who had been apparently following me almost continuously during the trial. He was a good sized man, probably thirty years of age, in his shirt sleeves, and was wearing an extra wide-brimmed Texas hat, no collar, and had the appearance of being slightly under the influence of liquor, all through the trial. He promptly followed Boyd and myself from the court house into the grounds, and appeared to be trying to hear our conversation. I noticed him so often that I had become accustomed to looking for him myself. I did not know him. He looked to me as if he were looking for trouble.

After standing within a few feet of where Boyd and myself were talking he approached us and said, in rather a gruff manner, "Furlong, I know you, and I want to tell you all dat you will never convict John Price, and I am mighty glad he is going out on a bond."

I replied to him that it did not make any difference to me whether Price was ever convicted or not; that I had only done my duty in causing his arrest and having him prosecuted; that the matter was now in the hands of the court and that whatever the court saw fit to do with Mr. Price would be satisfactory to me.

He then said, "I was afraid that Price would have to stay in jail until the next term of court. Now that he is going to be let out on bail I intend to kill him before that time comes. He shot my brother some time ago, in a very cowardly manner and without any cause. My brother will die from the effects of the wound before long and I intend to kill him."

I said to him, "If I were in your place I do not believe I would talk about what you intend to do, as you are liable to get into trouble."

"Well," he said, "I am just telling you this, and I don't propose to talk any more about it. I just want you all to know how I feel in the matter."

As a matter of fact I felt greatly relieved when this man told me what he did, as I had feared that he contemplated making trouble for me. As he concluded his remarks he extended his hand to me, and as he was departing said, "Watch out now, and remember what I have told you." About four or five weeks later Price came out of his house. It was early in the morning, and he was standing on a platform, that extended from the rear of his house, washing his face. This platform stood about three feet above the surface of the ground, and a man who was under the platform crawled from his concealment and with a gun shot Price through the head. He fell dead where he stood. A party was arrested for the shooting but there was no conviction, and up to the present time no one has been convicted for the shooting of Price.

After the arrest of Knight and Price, I returned to St. Louis, Mo., where I reported in person to Mr. H. M. Hoxie, Vice-President and General Manager of the Gould System. When I entered Mr. Hoxie's office to make

my report of the Knight and Price affair, the Hon. John C. Brown, then General Solicitor of the Gould Railway System, was in his office, and he remained there by invitation to listen to my report of the case. At the conclusion of my report Mr. Hoxie turned to Ex-Governor Brown and said, "Governor, this is a remarkable case, and the only case that I know of where a terrier had beaten a pack of blood hounds on a man-trail."

I, being Irish, presumed that I was the terrier referred to by Mr. Hoxie, in his joking, but complimentary manner.

All this occurred while I was Chief Special Agent for the Gould Railway system.

FIGHT WITH A MANIAC.

DESPERATE ENCOUNTER WITH A GIANT BLACKSMITH, WHO
HAD
SUDDENLY LOST HIS MIND AND BECAME VIOLENT.

Mr. Hoffman, I believe his first name was John, was a blacksmith, and about thirty years old, six feet in height and weighed over two hundred pounds. He was a powerfully built man, quiet in demeanor and good natured. He was employed in the blacksmith shop of Trax & Cramer, which was the largest establishment of its kind in or about Oil City, Pennsylvania. They employed a large number of mechanics and their helpers.

It was a very warm morning in July and the men were hard at work at the shop, when suddenly the big man, Hoffman, attracted the attention of his companions by his actions. He was known to them as a sober man, and his sudden and strange conduct was a great surprise to all around him. He became violent without any apparent provocation, and all in a moment. He began throwing things, hammers, tongs, and large sized pieces of iron and steel, in fact anything he could get hold of, through the shop. His fellow workmen were unable to get to him. He began foaming at the mouth and making a noise like the muttering of thunder in the distance. In short, he had evidently become violently insane within a few moments.

The City Hall was situated on the opposite side of the street, and but a short distance north of the blacksmith shop. The messenger from the shop was sent, posthaste, for police assistance. I was the only officer there when the messenger arrived, and being the only one, I responded to the call.

On reaching the shop I found Hoffman occupying the building alone. He was standing near the center of the shop with a sledge hammer in one hand and a large piece of steel in the other, and apparently ready to attack any person that might appear within his range. The other occupants were all in the street and outside the door and out of his reach. A large crowd of passers-by had been attracted by the excitement, and were blocking the sidewalk in front of and near the place.

On taking in the situation, as above described, I concluded that the only thing that could be done was to seize and overcome Hoffman as soon as possible, so as to prevent him from injuring himself or others. The question then arose as to how this giant could be overcome and subdued without injury to any one. The bystanders were all anxious to see him captured, but there was none present that appeared willing to assist.

I noticed at once that Hoffman was watching the crowd and that his attention was in that direction, so I went around to the rear door and approached him from behind, being unobserved by him. I seized him around the waist and threw him down on the floor, but as he was like a rubber ball and strong as a lion, and perspiring as though he had been sprinkled with a hose, he soon squirmed himself out of my grasp and sprang to his feet. I again grabbed him by the legs and threw him to the floor. Although I was strong and a pretty good wrestler, I found it easy enough to throw Hoffman to the floor, but it was impossible to keep him there, he being so strong and active. He had scarcely any clothing on, and by reason of this and his perspiring so freely, he was as slippery as an eel, and I could not keep my hold on him.

After I had thrown him down several times, which required every ounce of strength that I possessed, I found myself becoming exhausted, and finally in desperation I summoned all my strength and power and succeeded again in throwing him down, and this time I was fortunate enough to secure what the wrestlers would call the strangle hold, or neck grip, on him, thereby succeeding in shutting off his wind. I then yelled to the bystanders to help me, and finally a couple of them did.

With their assistance I succeeded in holding him down until another bystander brought a coil of clothesline from a grocery store, which was directly across the street. I took the clothesline while the citizens, who had volunteered to assist me, were holding him, and commenced to wind it around his legs from his feet to his body, and then his arms, fastening them so that he could not move. I then procured a wheelbarrow, patrol wagons not being known then, and placed him in it and wheeled him from the shop to the lock-up, where he was examined and pronounced violently insane. In due time he was placed in a straight-jacket and taken in safety to the county

institution for the insane at Sugar Creek, Pennsylvania, where he died in a few months without having recovered his mind.

This, I believe, was the most desperate and dangerous position I was ever called upon to face during my whole life.

The reader should remember that the blacksmith was almost a Hercules in stature and strength, and being insane his strength really had no bounds.

DECOYING A BAD MAN.

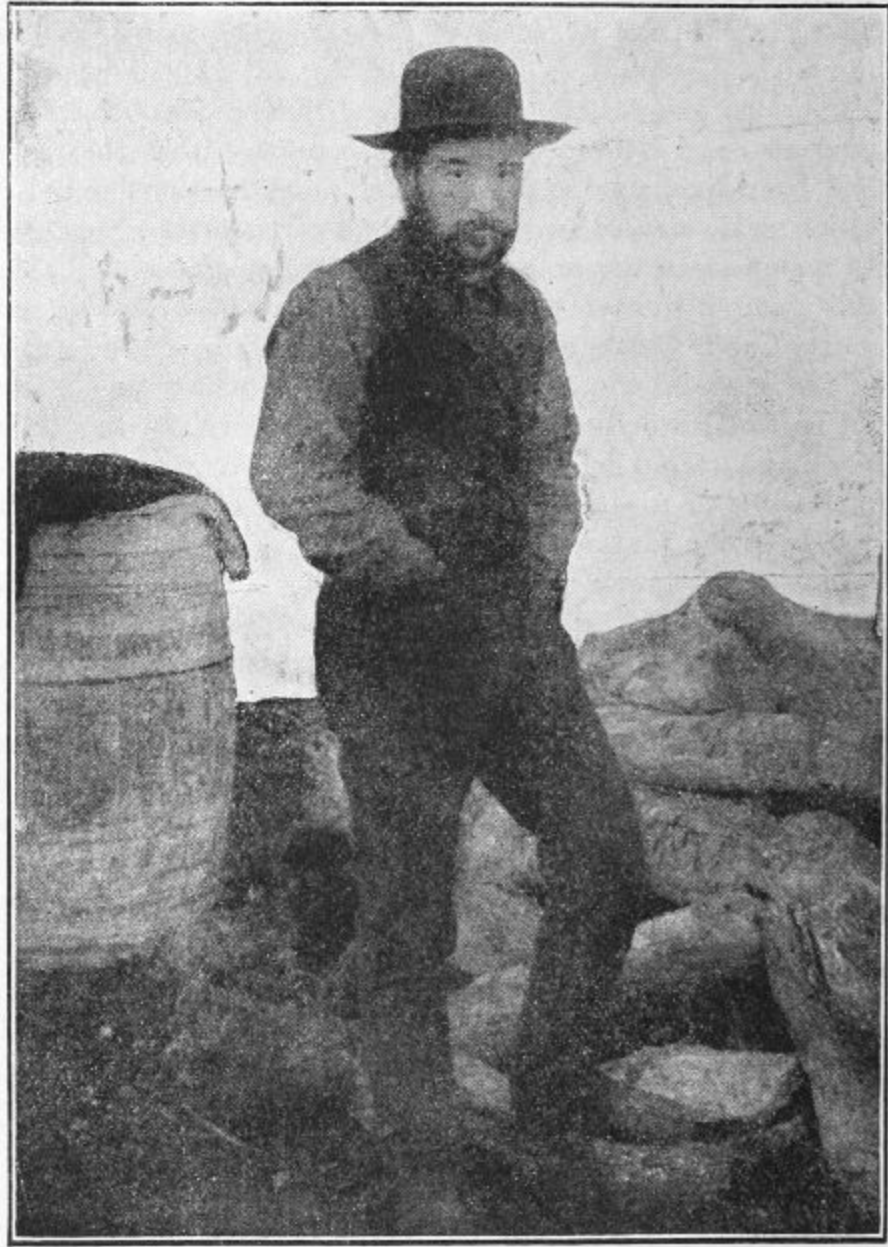
**BARNEY SWEENEY "FALLS" FOR A BIT OF STRATEGY, AFTER
KILLING HIS PAL IN A FAKE HOLD-UP DOWN IN
INDIAN TERRITORY.**

The old Indian Territory, now the eastern portion of the State of Oklahoma, was the scene, or stage, of many daring hold-ups and brutal murders, during the early days, but no crime committed there was surrounded with more mystery than the one of which I am going to relate the particulars.

On the night of September 13th, 1882, as a north-bound M. K. & T. passenger train was being moved out onto the main line from a siding about a mile north of Vinita, two men climbed onto the front platform of the smoker. "Chick" Warner, the conductor, espied them and opened the door. Before a word had been spoken, one of the men shot the conductor in the cheek with a small caliber revolver, making a painful and dangerous wound. The man who is said to have done the shooting, was then shot and instantly killed by his companion, his lifeless body falling across the platform of the car. The man who did the killing stepped from the train and walked back to Vinita station, where he reported to the station agent, who also represented the express company, that the train had been held up by the famous James brothers and Ed Miller. He named others who had often been mentioned as members of the notorious James gang. He stated that this gang had been camping in the woods, or brush, on Little Cabin Creek, about four miles to the north and east of the scene of the alleged hold-up. He had known them all personally before coming to the territory, having been born and raised in Clay County, Missouri, near the former home of the James boys. He also said that he was a cousin of the Jameses. When the gang went into camp on Little Cabin Creek, it was near to a farm where his sister lived, and where he was staying. They met him and had told him that they intended to hold up and rob, not only that train, but other trains on the "Katy," and invited him to join them. He also told the express agent that he was an expert marksman with a revolver and rifle, and that he had been practicing shooting with his gang, and had beaten them all shooting at a target, and

that he agreed to aid them in holding up the train near Vinita for the purpose of causing their arrest and punishment later on.

I was Chief Special Agent of the Gould System at that time, and the M. K. & T. was one of its leased properties. Col. Eddy, the General Manager, wired me to go to Vinita at once and investigate the affair, and instructing me further to prosecute all parties connected with the crime. I arrived in Vinita the next day. I had no difficulty in establishing the identity of the man who had done the killing. His name was John B. (or Barney) Sweeney, formerly a resident of Clay County, Missouri, and whose reputation was all bad.



WILLIAM (BARNEY) SWEENEY.

Murderer, train robber and monumental liar who claimed kinship with the James Boys.

I ascertained that during the afternoon preceding the affair Sweeney had been at Vinita, and while standing on the platform of the railroad station he, with others, had seen the special train bearing General Manager Eddy pass, south bound. The telegraph operator, of course, knew it was Col. Eddy's

train and that the Colonel was aboard, and had conveyed the news to the spectators.

I learned that the man who had been killed was an unknown young man who had appeared at Vinita but a few days before the trouble had occurred. He succeeded in making the acquaintance of a brother-in-law of Sweeney's, who lived on a farm near the alleged camping place of the James gang on Little Cabin Creek, and with whom Sweeney was making his home. This brother-in-law needed help to work his corn field and employed the young man to go to work for him as a farm hand. The young man, who appeared to be a Swede, or Norwegian, and spoke but poor English, accompanied this man, whose name, I think, was Powell, to his home and there met Sweeney for the first time. I also learned that the latter had afterwards induced this unknown farm hand to accompany him and assist him in this attempted hold-up near Vinita. Sweeney had furnished the unknown with a little, light calibre, toy pistol, which was afterwards picked up near the scene of the killing. Sweeney was a man about five feet seven inches tall, stout, stocky built, and about twenty-eight or thirty years of age, dark complexioned, dark small eyes, a luxurious head of black hair, a rather pretentious, long, dark mustache, and weighed about one hundred and seventy to eighty pounds. He was very quick and active in his motions, was a great braggart, and whenever occasion presented itself, never failed to tell people of his great marksmanship and how fearless he was. He was raised near Missouri City, Clay County, Missouri, where his father owned a farm in what was known as the Missouri River bottom. He had a sister, a young woman, who kept house for the father, his mother having died prior to the occurrence of which I write.

Sweeney's father bore the reputation of being an honest, hard-working man, while his son had the reputation in Clay County of being a suspected horse thief, a notorious liar, absolutely unreliable and a treacherous coward. He had been arrested and tried for the murder of a reputable farmer of the neighborhood, who was shot and killed one evening while sitting on the porch of his home with his infant baby in his arms. The shot was fired from behind a thick hedge, from the opposite side of the road, and from a distance of perhaps seventy-five feet from where the farmer was sitting. Sweeney was seen going towards the farmer's house a short time before the shooting had occurred. He had also been seen returning to his home from

the same direction some time after the shooting. He was carrying a rifle. He was arrested and tried for the murder of the man, and it was proved at the trial that he had once threatened the life of the murdered farmer, who lived but a short distance from his father's place, but he was acquitted, there being no direct evidence of his guilt. However, a great many people of Clay County believed then, as they do up to the present day, that "Barney" Sweeney, as he was familiarly called, had been the murderer of the farmer.

A short time after this, by reason of his unpopularity, he left that part of Clay County and went to live with his sister on Little Cabin Creek. Knowing the facts about Sweeney's bad reputation, and after hearing the story he had told about the affair at Vinita, I concluded to place him under arrest, charging him with having shot and seriously wounded Conductor Warner, as well as having murdered the man who he claimed was Ed Miller, or Wilson, thinking, as I did, that I would surely be able to find out who this unknown man was. I knew that it was not Ed Miller, because I knew that he was dead, having been killed while attempting to rob a bank in a little town in Minnesota. I also knew that at this time the James boys were not in or about the Indian Territory. Frank James was living peaceably, as a good citizen, in Tennessee. Jesse, his brother, was also supposed to be somewhere in that vicinity. I knew where Dick Little, another member of the outfit, was making his home, and thus knew that Sweeney was deliberately falsifying all the way through. To use stronger language, he was a deliberate liar.

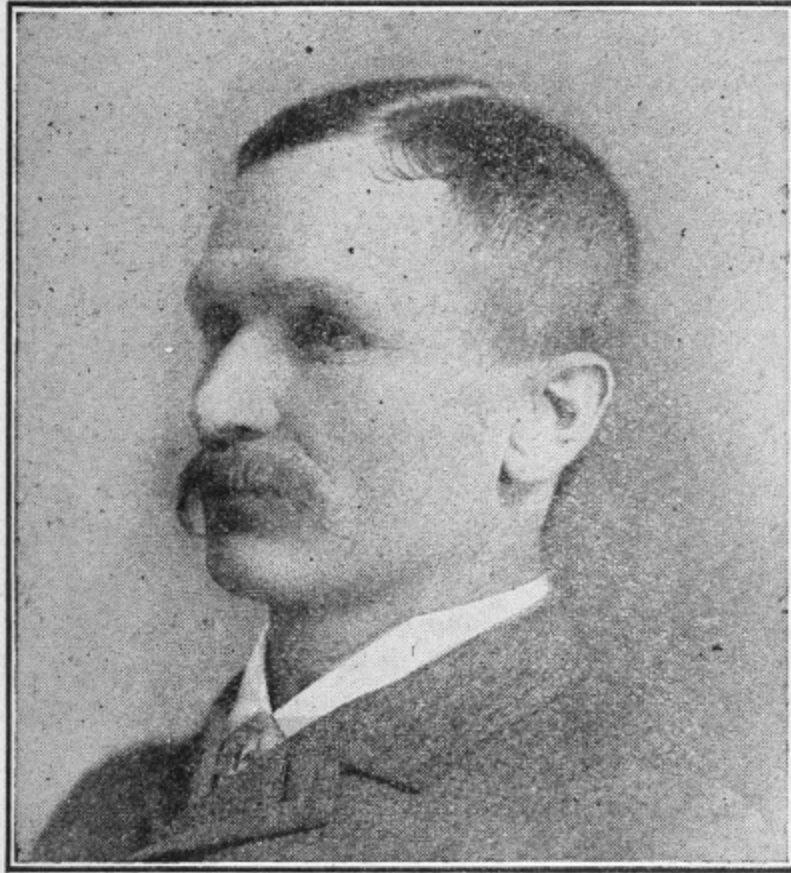
At the time of which I write, Captain Sam. Sixkiller, a full-blooded Cherokee Indian, was the Chief of the United States Indian Police, and lived at Muskogee. This police force was maintained by the United States Government, and consisted entirely of Indians of good reputation, and it was their duty to patrol the Indian Territory. They were armed and mounted, and were there to protect the law-abiding Indians and other residents and their property, especially from whiskey peddlers, of which there were a great many plying their nefarious trade, selling the Indians cheap whiskey at exorbitant prices, which was strictly prohibited by the Federal laws governing the Indian Territory.

Sixkiller and his force had all authority to arrest any person charged with a crime, on sight or on complaint. So after deciding to arrest Sweeney, I wired from Vinita to Capt. Sixkiller, at Muskogee, requesting him to join

me at Vinita for the purpose of arresting this law-breaker, without mentioning Sweeney's name.

In a short time I received an answer from Sixkiller's physician stating that Sixkiller was confined to his bed with a severe attack of fever. Upon receipt of this information, I reported to Luke Sixkiller, a brother of the Chief, who lived at Vinita, and who was a member of the United States Indian police force. I requested Luke to accompany me to where Sweeney was living with his brother-in-law to arrest him. Luke promptly told me that he would not dare arrest Sweeney unless his brother, the Chief, was present. "Why," he said, "this man Sweeney is a terror. He is a wonderful shot with either rifle or pistol, and it will take at least a half-dozen men, well armed, to capture him. He is a desperate man, and so we will have to wait until the Chief gets well enough to come and help capture him."

I had been accompanied to Vinita by one of my assistants, whose name was William H. Bonnell. He was a little fellow, only weighing about one hundred and thirty pounds, inclined to be tall, but slender, had plenty of nerve, and was a remarkably good marksman, always willing and anxious to do his duty, and would take as many chances as any man I ever knew. He had helped me to get the information which led me to the decision of arresting Sweeney, and on hearing that Sixkiller was sick he at once suggested that he and I go to the Little Cabin Creek farm and capture Sweeney ourselves. Our conference took place in the evening, and I told Bonnell that I would sleep over the matter and would decide by morning what should be done.



WILLIAM H. BONNELL.

For many years one of Detective Furlong's trusted operatives
and noted for his fearlessness.

I had seen Sweeney but once in my life, and that was about a year before in Kansas City, he having been pointed out to me by an officer, but I was satisfied he did not know me, so after carefully considering the matter next morning, I decided that I would take a horse and ride over to the Little Cabin place alone. I felt sure if Sweeney did not know me, or recognize me, that I would be able to bring him into Vinita alone, with less trouble than if I was accompanied by another stranger, knowing, as I did, his treacherous and cowardly disposition. I reasoned that if he saw two strangers approaching his brother-in-law's house he was liable to open fire on us and might kill one or both of us before we could reach him, and that he would be less liable to open fire on a lone man. Bonnell demurred, saying that I would probably get killed going over there alone, but for the reasons above stated, I decided to go alone.

I procured a horse from a livery stable and started. I reached the farm-house about 9:30 o'clock in the morning. I took a course across the open prairie, a distance of about four miles. On the other side of this I came to Little Cabin Creek. There was a heavy growth of timber and thick underbrush on every side. The trail to the farm led directly through the brush timber for about two or three miles. At last I reached a set of bars that served for a gate directly in front of a two-story, frame farm-house, which stood in an open field, and about one hundred feet from the bars. The thick timber and undergrowth shut out a view of the house, and I did not see it until my horse had reached the bars. When I reached there I discovered the house and saw Sweeney sitting on the porch in plain sight, and a Winchester rifle was leaning up against the building near him. I got off my horse, placing the rein over the bar post, let down one of the bars and crawled through. As soon as I had got inside the bars Sweeney commanded me to throw up my hands, and looking up at him I found that he had risen and was holding the Winchester pointed at me. I halted. He said, "Who are you and what do you want?"

I replied, "My name is Foster, and I want to see Mr. John B. Sweeney."

"I am John B. Sweeney," he said, "What do you want with me?"

I answered him by saying, "I beg your pardon, Mr. Sweeney, but is that gun loaded that you have pointed at me?"

He laughed and replied, "What the h—I do you think I would be doing with this gun if it were not loaded?"

"Well," I said, "if that gun is loaded I wish you would turn the muzzle of it in some other direction. That horse that I have down there is one that I borrowed from the livery man at Vinita to ride over here on, and if that gun would accidentally go off it might scare the horse and cause him to break loose or maybe hurt me. If the horse got away I would have a lot of trouble catching him, and if I did not catch him the livery man would make trouble for me. Furthermore, I did not come over here anyway to get shot. If I had expected there would be any shooting I wouldn't have come."

"What did you come here for?" asked Sweeney.

I said, "Col. Eddy, General Manager of the M. K. & T. road, went south last night, passing Vinita on his special train (said this, knowing that Sweeney had been standing on the platform when the Colonel's train had passed) and he wired me from Eufaula, in a cipher, to come out here and see John B. Sweeney and ask him to come over to Vinita and meet him on his return north to Parsons. He said in the message that he expected to arrive at Vinita about eleven-thirty today, and that he wanted to have a private talk with you to arrange with him for your services in assisting in the capture of the parties implicated in the holdup that occurred at Vinita a few days before. If you are Mr. Sweeney, and will accompany me back to Vinita we will just about have time, by starting soon, to reach there before Col. Eddy's train arrives. The Colonel does not want the people at Vinita to know that you have met him, as he has been led to understand that the people of that town do not like you, so he will run his train onto the siding about a quarter of a mile from Vinita, and we can leave our horses at the livery stable and walk to the side track, each of us taking different directions, and the people will know nothing about your having met the Colonel."

Sweeney replied, "I know them fellows at Vinita are all afraid of me, and if Col. Eddy will give me a job and pay me enough I will get those train robbers for him. I will go with you."

He called his brother-in-law and said, "Go and put the saddle on Baldy." Baldy was his horse. He turned to me and said, "Come up and take a seat here on the porch while I go up and get ready to go with you."

He took his rifle and went upstairs. I took the seat he had previously occupied on the porch, to await his coming. I asked his sister to please give me a drink of water. I was terribly thirsty, caused, no doubt, by looking into the barrel of that Winchester. I had only been seated a few moments when Sweeney appeared in the doorway carrying in his left hand his nine-inch .45 six-shooter, Colts, and in his shirt sleeves. He had left the Winchester in the house. He said to me in a commanding voice, "You have found the way out here, and now you can get on your horse and lead the way back."

While he was speaking the brother-in-law brought the horse around, Sweeney mounted it and I let down the bars. He motioned me to lead the way, which I did. He rode up close behind me, carrying his gun in his left

hand, and continuously telling about how he had practiced shooting with the James gang while they had been camping near his home, and that he had beaten them. He also pointed out a clump of bushes in which he said the gang had camped during the several days that they had been in that neighborhood. After we had left the covered ground and come out onto the prairie I told Sweeney that I occupied the corner room in the hotel at Vinita the night before. I said, "I have not settled my bill and my grip is still in the room, and I think we had better ride to the livery stable and leave our horses, and you had better go to my room direct, and I will go from the stable to the telegraph office and find out from the operator where Col. Eddy's special train is and at what time it will arrive at Vinita. I am getting hungry and if I find that we have time to get something to eat before the special arrives, I will order something. I will come direct to the room and tell you what I have learned."

We separated, Sweeney going to the hotel and I, apparently, going to the telegraph office, which was in the opposite direction to that taken by Sweeney. I did not stop at the telegraph office, but went around back of it, placing some buildings between Sweeney and myself. I crossed the street at a point west of the depot and went around to the rear of the hotel, where there was a flight of stairs leading from the back yard to the second floor of the hotel from the outside. I ascended these stairs and went to my room, where I found the door standing about half way open and could see, through a crack between the door and the jamb Sweeney lying down on my bed with his hat, boots and spurs on. He was taking things easy. I entered noiselessly, holding a small, double-barrel, Remington derringer that I had taken from my pocket as I entered the room. I was whistling, and suddenly thrust the derringer into Mr. Sweeney's mouth, breaking two of his upper teeth loose. I told him to throw up his hands, and he was not long in obeying. With my left hand I unbuckled his belt and removed it from him. It contained the holster in which he had placed the nine-inch Colts.

Bonnell had noticed us when we arrived, and when we separated and as I crossed the street going to the hotel I gave him a signal to follow me. He entered the room just as I had disarmed Sweeney. I told him to put handcuffs on the prisoner and to take him to the calaboose and lock him up. I had Sweeney's meals sent to the lock-up.

When the next train arrived there, who should be on it but Capt. Sam Sixkiller, who had left his sick bed and come up to Vinita to assist me in making the arrest. He told me, on his arrival, that it would not do to take Sweeney through Muskogee, as the railroad men there were aroused and would undoubtedly attempt violence, for they had all come to the conclusion that Sweeney was a fraud and was the man who shot Conductor Warner. Warner was very popular among the employes of the road. So we boarded the north-bound train and brought Sweeney to St. Louis, transferring there to the Iron Mountain for Little Rock, Arkansas. Here we changed cars for the Fort Smith and Little Rock Road, and thus reached Fort Smith, Arkansas, in safety with our prisoner and without any interference from the railroad men.

Sweeney never uttered a word from the time I disarmed him until we had boarded the train for St. Louis and were probably twenty miles north of Vinita. We were in the smoking car, Capt. Sixkiller and the prisoner ahead and I in a seat just behind them, when finally Sweeney turned his head around towards me and said, "Mr. Foster, I wish you would please show me that gun you stuck into my mouth."

I took the cartridges out of the gun and handed it to him. It was not more than five inches in length and of .41 calibre. He examined it critically, and without turning his head handed it back to me over his shoulder, saying in a disgusted manner, "H—I, I thought that gun was a foot long."

We lodged him in jail at Fort Smith in due time. He was indicted and finally tried, but, because I was never able to find out who the unknown farmhand was that he had killed and the motive for the crime, he was acquitted. However, he had lain in jail for nearly a year, and on his release he returned at once to Clay County, Missouri, and wrote a letter to A. A. Talmage, then General Manager of the Missouri Pacific, demanding that Mr. Talmage send him ten thousand dollars immediately, and threatening that if he did not that he would blow up the bridge on the Wabash Railroad and destroy property in general, and in any event he would kill Furlong on sight. He sent this letter through the United States mail. Mr. Talmage gave the letter to me, and I at once made a complaint to the United States commissioner, got a warrant for Sweeney's arrest and went to his father's farm near Missouri City, Clay County, accompanied by a deputy sheriff, whose name I don't remember,

but who was a brave and splendid officer. Sweeney was at home. It was after night and he had gone to bed. We rapped for admission and the door was opened by his father, to whom we stated that we were officers and had a warrant for the arrest of his son, "Barney." The latter was in bed upstairs, but heard us when we rapped for admission and had come to the head of the stairs with a shot-gun in his hand. He said, "I am here and I will kill any man who attempts to come up those stairs."

In an instant, and before I had time to think, the deputy sheriff, who had been standing beside me, sprang up the stairs. I followed him as quickly as possible, but before I had reached the top the officer had clinched with "Barney" and had thrown him to the floor. I picked up the gun that Sweeney had let fall, and in less time than it takes to tell it we had captured Mr. Sweeney without a shot being fired, so I feel safe in saying that he was an arrant coward as well as an inexcusable liar.

I took him to St. Louis, where he was tried and convicted for having sent the threatening letter through the mail. He was sentenced to either three or four years in the penitentiary. He served his time and again returned to his father's home at Missouri City. A short time later he held up and tried to rob a Wabash passenger train at Missouri City. In this attempt he was shot through the ankle by a telegraph operator. He tried to escape by running, but was captured by the train crew and the company's telegraph operator at that city. He was tried for this offense and sent to the penitentiary for fourteen years, and I had lost track of him until he recently turned up in St. Louis as a witness against the New York Life Insurance Company, in the famous Kimmel case. He claimed to have visited the wilds of Oregon with Kimmel, a man named Johnson and another party to search for some hidden treasure. A portion of the treasure was found. A row over its division resulted and Johnson shot and killed Kimmel. Sweeney avenged Kimmel's death by killing Johnson on the spot. Both of the dead men were buried near where they fell. On reading Sweeney's story in the papers, which was almost a repetition of the story of the fake hold-up down in the territory, as related to the express officials and myself, I will admit I really sympathized with the attorney who had gone to the trouble and expense of getting Sweeney here, knowing, as I did, that he was absolutely untruthful and unreliable.

I do not believe that I ever ran into as fun-loving a bunch of railroaders as the one which attended Sweeney's trial. Ft. Smith was crowded, as was usually the case when court was in session. At that time there was only one "leading" hotel in town. It was a three-story, old-fashioned structure, the top story of which was one large room, or hall. Social functions, such as balls and other gatherings, were usually held in this hall. When the railroad men arrived—there were about fifteen of them, including "Chick" Warner, Ed Smith, W. B. Maxwell, "Lute" Welch and Tom Hall, all passenger conductors on the Katy—all of the regular rooms had been taken. The proprietor, in order to take care of the boys as best he could, turned this large room, or hall, into a dormitory, placing therein several different kinds of beds and cots for them to sleep on. A large round table and a few rickety old chairs constituted the balance of the furnishings of the room. There was not much doing in the amusement line after dark in Ft. Smith in those days, so the railroaders retired to their rooms early—but not to sleep. The first seven or eight up the stairs, and there was always a race to see who would get upstairs first, would assemble themselves around the table and soon be busy playing a game of—well, there is no need of me naming it, as everybody knows the name of the game that usually interests the average railroad man most. I will add, however, that there was no "limit." By and by, those who were lucky enough to have to "sit out" would get sleepy and roll into their bed or cot, but they did not have a chance to get to sleep, the "I'll pass" or "I'll raise you" of the players keeping them awake until the game would break up, which was usually about the time the sun commenced to shine in at the windows in the early morning. The players would then retire and soon be snoring to beat the band. "Chick" Warner being a big, deep-chested man, had all his competitors skinned a mile at this snoring game. As soon as he hit the bed his snoring machinery would get in motion. Then the real fun would begin. The balance of the gang would throw pillows, or shoes, or any old thing they could find at his head to wake him up. These efforts would not always be successful, however, and the snore would either increase in tone or volume.

At the breakfast table one morning, after there had been an unusually long "sitting" the gang decided to get even with "Chick" Warner, who was still in bed, by holding an old-fashioned Irish wake at his bedside. Charlie Walters, an express company route agent, who was an artist of no mean ability,

procured a piece of chalk and in less time than it takes to tell it, had transformed the head of the bed into a monument with very appropriate inscriptions thereon. Some lumber was secured and a fence arranged around the bed, on which were placed a lot of empty beer bottles. A candle was placed in the neck of each bottle, and after these were lighted and the windows darkened, the bunch arranged themselves around the "bier" and commenced a weird chant. The noise made by the bunch attracted the attention of most of the people in the town, and the big room was soon filled. News of what was going on soon reached the court room and Judge Parker adjourned court and he and his officers and the lawyers and jurors rushed to the hotel to witness the fun-making. After an exceedingly loud and boisterous outburst of "grief" on the part of the "mourners" Warner awoke. It did not take him long to break up that "wake," as he at once began raising a rough house by throwing everything he could get hold of at his tormentors. The affair was the talk of the town for some time to come, and is to this day referred to when two or three of the gang happen to get together.

On the Sunday following, the citizens of the town, to show their appreciation of the bunch as good fellows, decided to give them a carriage ride and show them the places of interest. Judge Parker, in his private conveyance, was to lead the procession. As none of the vehicles had been decorated, as some of the railroaders thought they should be, they decided to do some decorating on their own hook. An empty beer keg was procured and with a rope it was anchored to the rear axle of the Judge's conveyance. As the Judge's abstemious habits were known to all the citizens of the town, the sight of the beer keg under his buggy created a great deal of amusement on the part of the citizens when they saw it as the carriage was drawn through the streets. The Judge did not discover the trick that had been played on him until after the ride was over, but he seemed to enjoy the joke as much as did the jokers.

TRAGIC DEATH OF BILL CASEY.

INCIDENTS ENCOUNTERED WHILE WORKING ON A CASE IN THE OIL REGIONS—CAPTURE OF A COUPLE OF CLEVER SNEAKS AND SAFE ROBBERS.

In 1872, a year after I had been elected Chief of Police of Oil City, Pa. (and, by the way, I had the distinction of being the first Chief of Police of that town), the safe in the store of Henry Fair, in South Oil City, was robbed late on a Saturday night. This safe contained a number of bonds, some cash and other valuable papers. The robbery was not discovered until the following Monday morning by Mr. Fair himself, who was the only person connected with the establishment who had the combination of the safe. Mr. Fair found the safe locked, as usual, and upon opening it found the bonds and cash missing from the safe. I was immediately notified of the robbery, and upon examining the premises found that no burglary had been committed. The safe and windows and doors of the store were all found to be intact on Monday morning. I also learned that the cash and bonds which were missed on Monday morning were known to have been in the safe as late as ten o'clock upon the Saturday evening previous. I further learned that at that hour quite a large crowd of people were in the store, all of whom were supposed to be customers, and at the close of my investigation there was no doubt in my mind but that the safe had been rifled of its contents by the sneak method. During the business hours prior to ten o'clock Saturday evening, the safe had not been locked and the door was left standing partially opened, so that clerks and others connected with the store might have easy access to it during the busy hours of the day to get change, to look at accounts, and other purposes, so it became apparent to me that there were probably at least two persons connected with the robbery, and that one of them had attracted the attention of the clerk nearest to the safe, while his partner quietly slipped behind the counter and to the safe and took the cash and missing papers unobserved. It was also apparent to me that this must have been done almost immediately before the store was closed for the night, as the cash box and some of the missing bonds had been out of the safe on the manager's desk until a short time before they were placed in the

safe by Mr. Fair himself at about ten o'clock. Upon further investigation I learned that two young men had visited the store about ten o'clock Saturday evening. One of them purchased a package of smoking tobacco, while the other consumed considerable time in trying to select a pair of shoes, which, by the way, he did not purchase. One of these young men was known as "Butch" DeWitt, then about nineteen years of age, the other was William Heilman, twenty-one years of age. The parents of these young men were respectable, hard-working people and both resided in Oil City. The boys both bore bad reputations, but up to that time were not considered thieves. Upon learning that they were at the store at a late hour Saturday night, I concluded that I would locate and interview them, but upon further inquiry I learned that they had not been seen since the Saturday night in question, and evidently had left town. I also learned that "Butch" DeWitt had a sweetheart, whose name was Hattie Bates, who was a professional dancer and was supposed to be at the time an employe of Ben Hogan, proprietor of a large dance hall at Petrolia, Butler County, Pa.

For the information of the reader, I will say that Ben Hogan was a prize fighter of note and a sporting character generally. He at one time fought the celebrated Tom Allen for the heavyweight championship of the world, near St. Louis. The fight was a draw and created a lot of bad blood between the two factions interested. Some time after Hogan's fight with Tom Allen he retired from the prize ring and became an evangelist, making his headquarters at Chicago, and up to a few years ago, the last heard of him, the writer has been informed had been very successful in his missionary work. Prior to the time Hogan established himself at Petrolia he had been engaged in the dance hall business at Tidicute, Warren County, Pa., which is also an oil town on the banks of the Allegheny River. While engaged in that business a party of roughs, who were looking for trouble, visited his place and started a disturbance in the dance hall, which resulted in one of the parties being killed and two or three of his companions being severely injured. Hogan was arrested charged with murder. Upon hearing of this trouble, and knowing as I did the character of the parties who created the disturbance, and that Hogan was entirely justified in protecting his premises against the violence of this gang, who had gone to his place in search of trouble, I assisted Hogan's attorneys by informing them as to the character and standing of the parties who created the trouble. Hogan was acquitted

and ever afterwards was very grateful and friendly towards me, and when I learned that "Butch" DeWitt's sweetheart was employed at Hogan's dance hall, I hastened to Petrolia, thinking that DeWitt might visit his sweetheart there. Petrolia was about sixty miles south of Oil City and I arrived there on the afternoon of Wednesday, after the robbery before mentioned. This was my first visit to Petrolia, which was a big oil town or more like a mining camp, located in a valley on a tributary of the Allegheny River, and the town consisted of one main street with buildings on both sides of the street running up and down the valley, all very close together and all frame. It consisted chiefly of boarding houses, saloons, dance halls and gambling houses. On my arrival at Petrolia I started up this street. I had had a description of Hogan's dance hall, which he had built a short time prior to my going there, and it was described as one of the largest buildings in town, and when I arrived in front of what I considered the largest building there I inquired for Hogan's place. The man from whom I made this inquiry pointed out the building, which I had selected as Hogan's, which was directly across the street from where I was standing, and told me that that was Hogan's dance hall. There were two buildings standing along side of each other, and as they were almost identically the same in size and appearance, and being anxious to make no mistake, I inquired again, and the man pointed out the building to my left, so I understood, as Hogan's, whereupon I crossed the street and entered the front door of the building, which was standing open. This was about four o'clock in the afternoon. I mention this fact for the reason that everything is usually very quiet about these dance halls until later in the evening, as places of this kind do all of their business at night. There was a screen, as there usually is, in front of bar-rooms, to shield the gaze of the passers-by on the sidewalk. As I entered the house supposed to be Hogan's, and went around the screen to my left, I found a bar standing right back of the screen and behind the bar was a large young man with blonde hair, rather fine looking, standing about six feet, one inch, in height, and weighing in the neighborhood of two hundred pounds, and about thirty years old. This man was the then notorious "Bill" Casey, who was also a heavy weight prize fighter, and the proprietor of this dance hall. I knew Casey upon sight, and he also recognized me. When I went around the screen I found myself face to face with him as he was leaning over with his elbows on the bar talking to one of his employes. He straightened up, looked at me for an instant, and exclaimed, "Why, hello,

Chief. What in the world are you doing down here?" at the same time extending his right hand. I shook hands with him and said, "I just happened to be passing through Petrolia on a little matter of business, and while on the opposite side of the street met a friend who told me that this was your place and that I would be likely to find you here at this time, so I just stepped in to pay my respects and shake hands with you." To which he replied, "I am mighty glad you did. You say that you are down here on a matter of business. You know that I am pretty well posted among the class of people that you are generally looking for, and if there is anything I can do for you I shall be glad to do so." I thanked him for his offer and told him that there might be some way in which he could assist me a little later on. He then said, "You know Kittie, don't you?" (Kittie was his wife), I said, "Yes, I remember her." "Wait a minute and I will call her," and he called to the rear part of the house for Kittie. When she appeared he said to her, "Kittie, you remember Mr. Furlong, don't you? He's Chief of Police at Oil City, and I want you to shake hands with him." Kittie came to where we were standing (in the meantime Bill had come behind the bar alongside of me) and good-naturedly said, "Oh, yes, I shall never forget Mr. Furlong." She then continued, "Mr. Furlong, Bill and I often speak of you. You did the best thing that ever happened that time that you arrested Bill in Oil City and he has often told me that he would always remember you with the kindest of feelings for the reason that you did not kill him at the time he was arrested. The manner in which he acted and the manner in which he abused your man Fry, if you had not appeared upon the scene as you did at that time he would have killed Fry and would probably have been hung. You know he was drinking at the time and was acting very badly, as he always did when he drank. He has never touched a drop of any kind of intoxicating liquor since that time, and it has made a man of him, and I give you credit for what you did. Bill has often said that you had a perfect right to kill him under the circumstances and has always felt very grateful." As she finished I said in reply, "Well, I am very glad that you and Bill feel as you do, and I appreciate your good will very much, although I regretted at the time what occurred, but knew that there was nothing else to do but what I did, and I am more than glad of the good results."

In this connection I will say that just prior to my arrest of "Bill" Casey at Oil City, which was more than a year prior to the time of the foregoing

interview, Casey and his wife had a quarrel and had separated. Mrs. Casey (or Kittie), as he called her, came to Oil City and was boarding with a woman named Mrs. Brown, who had sixteen or eighteen other female boarders. Casey, at this time, was living at Petroleum Center, in the oil country, and had heard that his wife was boarding with Madam Brown. He came to Oil City in search of her and visited Madam Brown's house one afternoon about two o'clock. Madam Brown's house was situated in Oil City in what is known as the "Red Light District" and was a large and well furnished establishment, in fact the finest of its kind in the oil regions of Pennsylvania at that time. It so happened that I was passing Madam Brown's house, when I heard a tremendous uproar in the house; women were screaming and shouting for help, and it was a general tumult. Some person I met on the street said to me, "You had better go into Madam Brown's house. Officer Fry has just gone in there and it seems as though he is in trouble," whereupon I hastened into the place, and in one of the parlors on my right as I went in I could hear Officer Fry calling for help. I ran into the parlor, where I found several women, all screaming at the top of their voices, and "Bill" Casey standing at one side of a large square, old fashioned piano, from which he had twisted one of the legs. He held this piano leg in his hand similar to the way in which a ball player holds his bat, and had Officer Fry backed up into a corner alongside of the piano and was about to bring the piano leg down upon the officer's head. Fry had his revolver in his hand, but was unable to raise it, as Casey had him covered with the leg of the piano. Casey was standing with his back to the door from which I entered, and, upon taking in the situation, I pulled my revolver from my pocket and struck Casey over the head with it just above the right ear, which cut an ugly gash and caused him to fall to the floor. I had dealt him a heavy blow, which took him completely by surprise, and before he could rally and arise from the floor he was seized by Fry and myself and subdued only after a vigorous rough-and-tumble fight. He was locked up, but owing to the fact that his wife had been found by him in this disreputable place, and that he was under the influence of liquor, the committing magistrate fined him \$200.00 and costs, with the agreement, on his part, that he was to leave town immediately, upon the payment of the fine and costs, which he did, and further agreeing that he would never again appear in Oil City, or any place else under the influence of liquor. That promise he always kept until the day of his death.

With the above explanation I feel that it is unnecessary for me to say to the reader that I did not enter "Bill" Casey's place voluntarily. I had not the slightest idea "Bill" Casey was there. The last time I had seen him was at Oil City on the day of his arrest, and he had said to me before leaving that he would get even with me if it took him the balance of his life, so the reader can imagine my predicament better than I can describe it, when I first found myself in the presence of "Bill" Casey and in his own place. It would have taken a good sized rope to have dragged me into that place had I known that Casey was its proprietor, but on confronting him I could think of no better way than to act boldly and act as though I had voluntarily come in to call and pay my respects, which worked admirably.

After ascertaining the friendly feeling of Casey and his wife towards me, I told them that I wanted to locate "Butch" DeWitt, who was a friend of Hattie Bates, who, I understood, was living next door with Ben Hogan. Mrs. Casey said to me, "I know Mrs. Hogan, and we are warm friends. I will go over and see her about this and see whether she knows anything about the whereabouts of DeWitt or not." She did so, and in a few minutes returned with Mrs. Hogan, who said to me, "'Butch' DeWitt and a young thief by the name of Heilman were here the night before last. DeWitt, you know, is a sweetheart of the Bates girl, who lives with me. DeWitt and Heilman had some money and left here yesterday morning at two o'clock for New Brighton, Pa., where they have a job of some kind that they expect to do, and intend to return here in a couple of days from New Brighton."

I took the first train from Petrolia to Pittsburg, and then from Pittsburg to New Brighton, Pa., where I arrived the following morning early. At New Brighton I learned that the night before my arrival the safe in a factory had been blown open by burglars and a quantity of money stolen. At New Brighton I received a good description of Heilman and DeWitt, and traced them down the railroad to Rochester, Pa., to a hotel. Upon entering this hotel I found that they had registered under fictitious names and were still in their rooms at the hotel. I went to their room, forced an entrance, and found DeWitt and Heilman there. I arrested them and took them to Oil City, and in the meantime Heilman made a clean breast of the robbery. He told me that while he was examining the shoes before mentioned, DeWitt sneaked around behind the counter and took from the safe, which was unlocked, the money and bonds that were missing. They took the currency

with them and secreted the bonds and other things stolen by them from the safe in a tin lard can, which they had buried on a farm south of South Oil City, known as the Faren Farm. They accompanied me to the place and we recovered the can and its contents. These boys were convicted and sent to prison.

The prize fighter "Bill Casey" continued as proprietor of the dance hall and saloon at Petrolia, where he did a profitable business, and where he had many friends among the drillers and tool dressers who were employed at the oil wells in the district which surrounded Petrolia. He was noted for being big-hearted, sociable and clever while sober, and it will be remembered he had quit drinking after his arrest at Oil City. He had accumulated a small fortune, and upon the Christmas Eve following my interview with him, as before related, he and his wife left Petrolia for the purpose of visiting his parents, who were living at the time at Lockport, N. Y. They boarded what is known as a mixed train, northbound, on the Allegheny Valley Railroad, bound for Buffalo. This train consisted of a number of freight cars, some of which were loaded with crude oil, a baggage car and two passenger coaches, which were at the rear of the train. The passenger coaches were crowded to their utmost capacity with passengers, as there were many people leaving the oil country to spend the holidays in other regions. As the train was rounding a very sharp curve near Scrubgrass a front axletree broke on one of the freight cars, which precipitated the entire train, behind the breakdown, over a high bank into the Allegheny River, which was at the time at high water mark. The crude oil ignited, by reason of the wreck, and set fire to everything. The oil spread out over the water, and, as crude oil burns just as fiercely upon water as it does upon land, the whole river was afire in a very short time from bank to bank, and the fire was carried down stream by the current at the rate of four or five miles an hour. Many of the passengers were drowned, or injured and burned to death by the flames, as it should be remembered that the oil cars were ahead of the passenger coaches, and as the train was running upstream the flames immediately enveloped small portions of the passenger coaches which remained above the surface of the water. Casey managed to escape from the wreck, and, being a very powerful man, took his wife with him and reached the bank in safety with the exception of a few burns. There was a crippled newsboy employed upon the train, and in the wreck he had

managed to get a portion of his body through one of the windows which was upturned and out of the water, while his lower limbs were fastened in the wreck, and he was about to be engulfed in a body of floating burning oil, which was rapidly approaching him, when Casey spied him. Casey immediately left his wife standing on the bank and rushed to the assistance of the newsboy, and while tugging away trying to extricate the boy from the wreck Casey was engulfed by the burning oil and lost his life, and thus died in the act of performing a humane and heroic deed.

SUBDUING A NOTORIOUS BULLY.

ONE OF MY EARLY EXPERIENCES WHILE CHIEF OF POLICE OF
OIL CITY—HOW A BAD MAN, WITH A LONG RECORD,
WAS TAKEN TO JAIL.

The notorious Tom Daly of Buffalo, New York, was arrested at Oil City, Pa., early in the summer of 1872. Daly had been regarded in and around the city of Buffalo for years, prior to his arrest at Oil City, as a desperate and bad character. He had a police record almost as long as the state statutes. He was a fighter and associated and lived with the most vile and vicious characters to be found in the city. He was never known to work at any legitimate trade or business. He did pretend to gamble. He drank at times to excess, and was known to the police as a strong-arm, or hold-up, man, and was considered by the police a hard and bad man to arrest—a task which they were frequently called upon to perform. But as bad as his general reputation was, he had what was called a political pull in the slums district, in which he resided. He had a following of his own class because he was more aggressive and more physically powerful than his associates and followers, and not for the reason of any superior intellect on his part.

A couple of days before his arrest at Oil City, complaint was lodged against Daly and some of his associates by a man in Buffalo, who charged them with having held him up and robbed him, by force, of a sum of money. The man also stated that Daly and his confederates had brutally beaten him, the marks of which he bore plainly. Two police officers were instructed to arrest Daly and bring him to headquarters. As all the officers who were located in and about the precinct in which Daly made his home knew him personally, the two officers who were detailed to make his arrest easily located him. When they approached him and told him that they had been instructed to arrest him he smilingly inquired on what charge, at the same time, as the officers were standing within his reach, he promptly struck first one and then the other terrific blows with his clenched fist, knocking both of them down. He then ran into a brothel, or dive, in front of which he had

encountered the police officers. He, of course, disappeared and escaped being arrested.

The part of the city was known, at that time, as Rock Street, or the Five Points, and was the worst and lowest district of not only the city of Buffalo, but probably as bad, if not worse, than any other in the country. It consisted principally of low dance halls and drinking places which were patronized almost entirely by the lower grade of sailors and canal boat men. As this district was bounded on the east by the Erie Canal and on the west by the Buffalo Creek, which is the lake harbor of Buffalo, it was consequently a peninsula, narrow, and frequented by the class before mentioned.

After his escapade with the police, Daly, on the same night, made his escape from Buffalo and went direct to Oil City, Pa., where he had some friends and acquaintances. He arrived at Oil City the next day about noon, where he met parties whom he knew and from whom he heard about the prowess of a valuable bulldog, owned by a respectable citizen named Ziegenheim, and who was connected with a meat market on Center Street. This man Daly was about thirty-five years of age, was over six feet in height and weighed at least two hundred pounds. He had an athletic build, was dark complexioned and somewhat marked by the after effects of small-pox. He had rather small dark eyes and the most villainous expression I think that I have ever seen. He was considered an expert boxer and was known to be a powerful man—at least by the two police officers whom he had knocked down and escaped from in Buffalo. I had heard of Daly and knew of his record, but I had never seen him until I was called upon to arrest him in Oil City, and I did not know who he was at that time.

When Daly had learned from the friends he had met in Oil City of the valuable fighting bulldog before mentioned, he at once went to the meat market, where he found Mr. Ziegenheim, and tried to purchase the dog from him for the purpose of using him as a fighting dog. Ziegenheim informed Daly, in a polite but firm manner, that his dog was not for sale, as it was a pet of his wife and children, and that he would not part with the dog under any consideration, and especially not for the purpose Daly proposed to use him. Daly became angry and assaulted Ziegenheim, who was fully as large a man as Daly, but was a gentleman, and not a fighter. Ziegenheim immediately sought refuge behind a large, round table, known as a meat

block, which is used in all meat markets to cut meat on. It was probably about four feet in diameter, and by keeping on the opposite side Ziegenheim was out of Daly's reach. Daly picked up a large cleaver, which he was holding in a threatening manner. At this juncture I entered the shop, having been summoned by Mr. Steele, Ziegenheim's employer, who had run from the meat market to my office, which was just around the corner in the same block, and told me, in a very excited manner, that there was a big man trying to kill Ziegenheim in the shop.

At the time that Steele came into my office I was talking with the Mayor, William M. Williams, and when Steele apprised me of Mr. Ziegenheim's danger I sprang to my feet and was about to leave for the meat market when the Mayor said to me, "Tom, you had better take a club or a gun with you. Steele has said Ziegenheim's assailant is a big, strong fellow." I hastily grabbed up a mace, or club, which was hanging on a rack near where I was standing, and hastened to the shop, where I found Daly standing in front of the meat block before described, with his back to the door. He was holding a cleaver, as I said before, and facing Ziegenheim, who was at the opposite side of the block. I approached him from the rear without being noticed by him, and placed my left hand upon the right collar of his coat as though I meant it, at the same time commanding him to drop the cleaver. Whereupon he immediately turned his head and looked down upon me with a very disdainful and defiant expression. I saw in his eyes the most vile expression that I have ever seen. I instantly realized that I was in for trouble. He was wearing a stiff derby hat set back fairly well on his head, and it seemed to be tight fitting. Upon noticing the expression on his countenance I instantly struck him as hard a blow as I could with the mace, which I held in my right hand, at the same time tightening my grip on his coat collar and vest. However, before I struck him he made a desperate backward lunge, evidently intending to get clear of me so that he might get far enough away from me to strike me with his fists. But, by reason of the strong hold I had on him I had drawn myself up close to him, and in his lunge he was so much heavier and larger than I that he carried me back with him, probably a distance of four or five feet. It was while he, or rather we, were making this lunge, that I struck him. My mace caught him, or more truthfully speaking, his hat, just above his forehead. It forced his hat, which was a stiff one, as stated, and drove it down over his forehead to his eyebrows. The hat was

tight and the lining was leather, and with the force of the blow the lining cut the skin clear across the top of his forehead, and as the hat was forced down the skin peeled down over his forehead, and of course, the blood spurted over both of us. He fell to his knees with the force of the blow, but immediately tried to rise, when I hit him a second time, which felled him to the ground. I was still holding on to his collar, and when he fell I started for my office, dragging him behind me. He was upon his back and therefore helpless so long as I kept him moving. He regained consciousness when he had gone about a hundred feet and began pleading with me to let him up, which I did, with the understanding that he was to accompany me peaceably. This he agreed to and did.

It being at the time of the day when the streets were crowded with people, an immense crowd was attracted by the excitement, and a great many comments were heard, many of them condemning my action as brutal and uncalled for. There was both a morning and an evening paper published in Oil City at that time. The evening paper got out an extra, which censured me severely, and was entirely in accord with the previous comments made by many of the crowd. They were, by the way, entirely ignorant of the facts which led me to act as I had found it necessary.

The crowd filled the Mayor's office to overflowing, and among those present were a few friends and former associates of Daly's, who succeeded in getting one of the citizens, a saloon proprietor and considered a good citizen and fairly well off, to come forward and intercede with the Mayor, who at that time, in accordance with the laws of Pennsylvania, was a committing magistrate. Daly's friends told the Mayor that they would pay his fine and the costs and would see that he left town within the hour, if he (the mayor) would let Daly go upon the payment of the fine and costs for his having assaulted Zeigenheim.

The Mayor assented and fined him one hundred dollars and costs, three dollars and fifty cents, making a total of one hundred and three dollars and fifty cents. The citizens before mentioned paid this fine and Daly left town immediately thereafter. He gave an alias to the Mayor, and his friends did not betray him, and for this reason the Mayor or myself did not know who he was until after he had departed.

Mr. St. John, who was the editor of the evening paper, and who had so unmercifully roasted me, had always, prior to this occurrence, acted in a friendly manner towards me. The write-up that he had given me that evening, therefore, hurt my feelings beyond description.

A Mr. Bishop, who was the editor and proprietor of the morning paper, had come from Buffalo, where he was born and raised, to Oil City, and he at once took it upon himself to investigate, through correspondents in Buffalo, by wire, what and who this man Daly was. The result of which was that he devoted the entire first page of his paper, on the following morning, to Daly's complete history, setting forth his police record, his vocation and his desperate character, as well as the full particulars and details of his most recent encounter with the two Buffalo police officers, his escape from Buffalo and his subsequent arrest by me at Oil City. The article wound up with the most complimentary comments that I have ever received, considerable space being devoted to the fact of my having succeeded in subduing and arresting Daly unassisted by any one. This article caused a majority of those who had so loudly denounced my actions of the previous evening to apologize for their hasty conclusions. Mr. St. John, of the evening paper, was among the first to approach me with an apology for his publication of the evening before.

If I had known that it was the notorious Tom Daly I had been called upon to arrest I don't believe that I could have been pulled into that meat market with a large rope attached to my neck; but I was fully convinced that prompt and decisive action was required on my part the instant that I saw that vicious, and I might say, hideous expression on Daly's face.

The result of this arrest had more to do with securing me the confidence and respect of the law-abiding citizens of Oil City than any other one arrest that I had ever made, and I had made many of them.

A RUSE THAT WORKED.

HOW EVIDENCE TO CONVICT AN ANONYMOUS LETTER WRITER
WAS OBTAINED.—TRAGIC DEATH OF TWO BROTHERS
AFTER THEIR ARREST AND AFTER BREAKING JAIL.

Early in the 1870s, Sam Ackert called at my office one cold winter morning in the month of February. I was then Chief of Police of Oil City, Pa. Mr. Ackert was known to me as the owner of a large oil lease, on what was known as the Towles Farm, on the Plummer Road, about eight miles north, and a little east of Oil City, and in Venango County. Mr. Ackert was considered at that time, one of the largest oil operators in that district. He was operating twelve or fifteen oil wells, all of which were producing large quantities of oil. Some were being pumped, while others were flowing wells. My recollection is that one of these flowing wells was producing four hundred barrels per day. Crude oil was selling at that time for about eight dollars per barrel at the well. Ackert employed quite a large number of men to attend to the wells and look after his interests in general. Some of these men were employed as engineers, which were commonly known in the oil country as pumpers. Two of these engineers, or pumpers, were required to operate each well, each man usually working from 12:00 noon until 12:00 midnight. These watches were morning and noon watches, and men so employed usually lived adjacent to the well upon which they were employed.

Mr. Ackert had a superintendent who had charge of the employes and who lived on the lease. His name was Joseph Sullivan. He also had two engineers whose names were George and Henry Book. George Book was a young man, married and lived in a cottage on the lease. His brother Henry was single and lived with George. George was the eldest. They were both employed on the same well as pumpers. George was on the noon watch each day and was considered a very good engineer. He was sober, competent and attentive to his business; while his brother Henry had also been considered competent and energetic, but not as reliable as George. He had been found asleep while on duty by Supt. Sullivan, on various

occasions, for which he was reprimanded and finally discharged from the service.

Some months after Henry's dismissal, Mr. Ackert received an anonymous letter through the mail. This letter threatened dire destruction to his property by fire, or other methods unless he (Ackert) would discharge Sullivan, his superintendent. This letter was followed by three other threatening letters, also anonymous, which were received at intervals of four or five days by Ackert. Sullivan being a very competent and reliable man of good character, Mr. Ackert at first did not pay any attention to the threatening letters, but laid them away in his desk.

A short time after the receipt of the last anonymous letter, one of his oil tanks, which at the time contained about four or five hundred barrels of crude oil, was emptied one night, between dark and daylight, by some person who had gone to the tank and opened what was known as the lower faucet. This faucet, two inches in diameter, entered the tank about one-half foot above the bottom of the tank, and was placed there so that by opening it the salt water could be drawn out of the tank. All oil wells in that particular locality, which had to be pumped, produced a percentage of salt water, this water coming up with the oil. Salt water being heavier than the oil, immediately settled to the bottom of the tank, and for that reason, as the tank would become nearly filled to its top, it was the duty of the pumpers to open this salt water faucet and let the salt water escape from the bottom of the tank, in order to make room for more oil above.

On the night that this tank was emptied in the manner above described, there was about three feet of snow on the ground. The weather was cold, and the snow had drifted around the tank so that it was about four feet deep above the faucet in question. I will state here that the constant drawing off of the salt water had thoroughly saturated the ground for a space of two or three feet square under the faucet, and for this reason, the ground was soft and a little muddy. The saturated earth would not freeze in cold weather on account of the large quantities of salt which had become impregnated with the dirt. At the time this tank was emptied by means of the opening of the faucet, the oil, which was very inflammable, ran down into a ravine, which was thickly dotted with oil wells and tanks for a mile or more. But, fortunately, the flowing oil did not happen to reach any of the fires that

were under the boilers of the pumping stations. If it had, it would have instantly burned everything within reach along the side of the ravine, thereby destroying hundreds of thousands of dollars' worth of property and in all probability many lives.

Mr. Ackert called upon me the morning after the occurrence above related and told me of what had occurred, stating at the same time, that he had no idea who was dastardly enough to perpetrate this malicious act. He knew of no enemy on earth and was more than anxious that I investigate the matter and locate the party, or parties guilty of the crime. He also told me of having received and retained the anonymous letters before mentioned. I instructed him to bring the letters to me at once, which he did. I noticed that the letters were written on the same brand of paper and in a legible and penmanlike manner and evidently by the same hand and pen. By the end of the third day of my investigation I had learned of the dismissal of Henry Book, and the difficulties he had had with Supt. Sullivan. I had also learned that his brother, George Book, was a good scholar, had been a country school teacher some years before in his native county, which was Crawford County, Pa. I had also found out that he was considered an extra good penman, and during my investigation was informed that there had been other loots of oil well tools and other valuable property on the Ackert and adjacent leases.

I decided to locate the writer of the anonymous letters. Being familiar with the manner of operating oil wells, I donned the suit of an oil driller, which usually consists of overalls. These overalls become spattered over with sand pumpings, giving the wearer the general appearance of a bill-poster. The weather was very cold, the thermometer standing below zero the night that I left Oil City to visit the Ackert Lease and the pumping houses where I knew George Book would be on duty until midnight.

That evening, preparatory to my departure, I visited a meat market kept by a Mr. Steele, on Center Street, where I purchased five cents' worth of liver, telling Mr. Steele that I wanted it for a pet cat that stayed around my office. I dressed myself in heavy, warm clothing, which I wore under the overalls before described. Taking a small slice of the liver, I placed it in the hollow of my right hand. I then placed another piece of the liver on top of the same hand and tightly bandaged the hand with a piece of white muslin. The liver

placed on my hand as described, soiled the tightly drawn bandage, which gave the hand the appearance of being very swollen and inflamed. I then improvised a sling around my neck by tying two handkerchiefs together so that I could place my right hand in the sling at the proper time. I started from Oil City, unidentified by reason of my costume, at about 7:00 o'clock in the evening, arriving at the Ackert Lease a few minutes after nine. I went direct to the engine house in which George Book was employed, found him sitting alone there in a large easy chair, in front of the boiler, which was being fired with natural gas and well lighted by the same, was warm and neatly kept. Book was reading a novel when I entered, and as the engine house was located but a few feet off the main road from Oil City to the town of Plummer, it was not an unusual thing for oil well men to stop at the engine house, while passing that way for the purpose of getting warm or getting a drink. So Book was not at all surprised when I appeared at that hour of the evening. I asked his permission to stand by the boiler to get warm. He replied that it was cold, and that he would be glad of my company. He eyed me closely for a while and finally said, "Where do you work?" I replied that I had been working on the Foster Farm, which was about fifteen miles southwest of Oil City and on the Allegheny River. He then remarked, "How did you get hurt?" as he noticed that I was carrying my right hand in a sling. I replied, "You have been kind in allowing me to get warm in your engine house, and you look to me like you would not get a fellow into trouble by giving him away, and I will tell you all about it." I began by saying, "You see, I am a driller and I was working under a superintendent. We had trouble over a girl and he had a gun. He shot me through the hand." I pulled my hand out of the sling and he exclaimed, "Gracious! You have an awful hand there and you should have medical attention at once." To which I replied, "I am going to have it attended to when I reach Petroleum Center. You should see the other fellow. I shot him, but I don't know whether he is dead or not, as I left immediately and have walked the entire distance, only stopping long enough to get a cup of coffee at the eating-house in the depot at Oil City." He said, "You must be hungry." His sympathy was now fully aroused and he was really a good-hearted fellow. I then said to him, "I have some friends at Petroleum Center who will keep me under cover and get me a doctor, but what is worrying me most now is that I cannot write with my left hand, and my folks live at Ft. Erie, Canada, which is just across the Niagara River opposite Buffalo, N. Y.

I have been saving my money and sending it to my people at Fort Erie, and they have it deposited in a bank at Buffalo to my credit. I have a few hundred dollars there and if I could only write a letter to-night, and mail it on the early train to-morrow morning it would reach Fort Erie to-morrow night. My friends could then send me all the money that I need, which I would receive the day after to-morrow at Petroleum." To this he replied, "I am a pretty good penman, and would be glad to write the letter for you." On saying this, he excused himself and went to his house, which was close by, and returned in a few minutes with letter paper, envelopes, and a nice big lunch for two and a pot of hot coffee. We ate the lunch, and I had some cigars in my pocket. Then he started to write the letter at my dictation. In dictating the letter I used as many of the words as I could intelligently get in which had been used in the anonymous letters, the contents of which I had familiarized myself with. This letter of mine was not necessarily very long, as I discovered that he was using the same quality of paper upon which the anonymous letters were written. I also noticed before he had written three lines, that it was the same handwriting, and that he was using the same ink, and no doubt, the same pen, that he had used in writing the anonymous letters. He addressed the envelope, sealed and stamped it. I thanked him and departed for Petroleum Center, apparently, but in reality for Oil City, where I arrived about six o'clock in the morning.

During the forenoon I submitted my dictated letter, together with the anonymous letters, to an expert who was connected with the First National Bank of Oil City. He unhesitatingly stated that the letters were all written by the same person. I then went back in the afternoon to the Lease, knowing as I did that George, whom I had met the night before, would be off duty and probably in bed. I carefully shoveled the snow from around the faucet of the tank, and when I got down to the ground, I found two very distinct tracks of a No. 8 boot. The boots had been recently half-soled, the shoemaker who had made the repairs having placed three nails in a row across the center of the half-soles. This was his trade-mark. I soon located the shoemaker who had done this work. He remembered having repaired the boots for Henry Book a couple of days before the emptying of the tank.

I then returned to Oil City, procured a warrant for the arrest of the Book brothers, and that night about eleven o'clock I arrived at the Ackert Lease, where I found George on duty, as he had been the night before, and I found

Henry in bed at George's house. On this occasion I was accompanied by two of my officers. We drove out in a sleigh. After making the arrest, we searched the house which was a one-story building with an attic. In the attic we found wagon loads of loot, from the Ackert Lease and adjacent leases, that was afterwards identified by the owners, as having been stolen from time to time, as before mentioned.

The Book brothers in due time, had a preliminary hearing and were committed to the County Jail in default of bail.

In the meantime Henry Book had confessed to having emptied the oil tank and George admitted the writing of the anonymous letters. About a week before their trial was to take place, there was a general jail delivery at Franklin, Pa., effected one very stormy night. There were fifteen or more prisoners who escaped. The Book brothers were among them. They boarded a north bound freight on the A. & G. W. R. R. which is now known as the "Erie." When at a point about twenty miles north of Franklin this freight train collided with another train. In the wreck Henry Book was killed instantly and George was so badly hurt that he died the following day. Thus ended the Ackert case.

I consumed in all not to exceed six days in connection with this case, unassisted except upon the night of the arrests, when I was accompanied by two of my officers, whose names were George W. Frye and Max Fulton.

CHARLIE DALTON, OUTLAW.

SPECTACULAR ARREST OF THIS MUCH-WANTED MAN ON A CROWDED ST. LOUIS STREET CAR

The arrest, in St. Louis, on the evening of March 12, 1888, of the notorious Charlie Dalton, was accomplished in a rather unique, yet sensational manner. Dalton had been "scouting" for a couple of years, with a large reward offered by the state of Texas and the Missouri Pacific Railway hanging over his head. Almost every sheriff, police officer and detective in the country had his description and were looking for him. The charge was murder, and the crime was committed during the 1886 strike on the Gould properties. On the afternoon of April 3, 1886, a freight train pulled out of Fort Worth, Texas, for New Orleans, Louisiana. Besides the regular crew, the train carried a number of guards in charge of Jim Courtwright, a noted western officer, who had formerly been Chief of Police, Sheriff and Deputy United States Marshal at Fort Worth.

As the train neared the Fort Worth and New Orleans crossing, it was fired on by a gang of outlaws and cut-throats, headed by Dalton, who were in ambush behind a pile of ties on the Missouri Pacific right-of-way. Two of the guards were killed outright and several wounded. The crime created a great sensation throughout the entire country, because of its dastardliness.

The St. Louis Globe-Democrat of April 13, 1886, editorially referred to it as the "Fort Worth Massacre."

Dalton and some of his gang were indicted by the Grand Jury, but when the officers began a hunt for them they had disappeared. Circulars announcing the amount of the reward and giving a description of the men wanted, were scattered almost broadcast over the United States, Canada and Mexico.

I received one of them, studied it carefully and got into communication with the officers at Fort Worth. I had never seen Dalton, but I had seen his brother, Geary, who was connected with the track department of the Missouri Pacific Railroad, in St. Louis, where he lived. I noticed a

resemblance in the photo I had of Charlie to that of his brother, and had instructed my operatives to keep a sharp lookout for Charlie, as I had learned that his mother was then residing in Carondelet. In the latter part of February, 1888, one of my operatives reported that he had learned from a reliable source that the much-wanted man had been seen at his mother's home in Carondelet. Whereupon, I took measures to have the premises watched. I later learned that he had been making a practice of visiting the Standard Theatre nightly.

On learning this, I arranged with the Chief of Police of St. Louis to detail a couple of his men to visit the Standard Theatre nightly, where I should have one of my men, who knew Dalton, on hand, so that he might point him out to the officers, and they were to arrest him. These arrangements were all completed on the afternoon of March 12, 1888.

At about six o'clock that evening I left my office for home. I then lived at 2723 Walnut Street, and I walked to the corner of Eighth and Market Streets, where I boarded a horse-car for home. The car proceeded west and when we got to the corner of 10th and Market Streets, two good sized, rough-looking young men ran to the rear end of the car and swung themselves onto the platform, one of them lighting heavily on my right foot and hurting me very much. His partner followed him and stood on the lower step. This man, who had tramped on my foot, offered no apology for his rudeness, and, in fact, paid no attention to me or the injury he had done, but instead remarked to his partner that people ought to get out of the way when they saw a person wanting to catch a car. His partner said, "Charlie, we can't stay out at Geary's but a few minutes, as you know I have got tickets for the Standard tonight and we must get there early to get good seats."

"We won't stay out there only long enough to say goodbye, as we leave town in the morning," replied Charlie.

While they were talking I took a good look at the man addressed as Charlie, and from the conversation, and from the resemblance he had to his brother, I concluded that the man thus addressed was Charlie Dalton. I knew who Geary was, and I saw the resemblance that "Charlie" bore to him. I also knew that the car would necessarily have to pass what was then known as the Mounted Police Station, located between 27th and 28th Streets, on

Market Street, and before reaching Geary's house, and I decided that when we got in front of the station I would arrest Mr. Dalton and lock him up there. He was standing directly in front of me on the platform and had me crowded up against the rear dashboard. He was a burly fellow, considerably taller than I was, and would weigh one hundred and seventy-five pounds. Having become satisfied that I had made no mistake in his identity, I waited until we had arrived in front of the police station, when I seized him by the coat collar with my left hand, pulled the bell-cord, and after the car had slowed up I sprang to the ground, taking Dalton with me, but as he struck the street, he facing the car, he fell on his back, and I, still holding onto his coat collar, reached for his pistol, which I was sure I would find, and I was not disappointed, for there it was in the waist band of his trousers, and proved to be a 41 Colts. Dalton then made an attempt to rise, but I took all of the fight out of him by giving him a blow over the head with his own weapon.

"What is this for?" he asked.

"Your name is Charlie Dalton and you are under arrest for murder," I replied.

"My name is Charlie Dalton, all right, by G-d, partner," he exclaimed.

I then took him by the collar and assisted him to his feet. I took the prisoner over to the police station and had him locked up, and later wired the Fort Worth authorities that I had arrested Charlie Dalton, and he was being held by the police of St. Louis, subject to their orders. In due time I received a reply from the Chief of Police of Fort Worth, requesting me to bring Dalton to that city, providing he would go without waiting for requisition papers. Dalton, having already informed me that he would go to Texas without requisition papers, I left with him for Ft. Worth the following evening. On our arrival there the prisoner was lodged in jail, and remained there a number of months without bond.

Between the date of the crime and the arrest of the cutthroat a number of witnesses against him had died. Others had left the state, and the result was that when his trial was called the state was unable to produce its evidence and the defendant was finally released from custody.

While it is true that I was anxious to apprehend this outlaw for the Texas authorities, and had just finished making preparations to do so should he visit the Standard Theatre that night, because of his known desperate character, and the further fact that he was accompanied by a big, husky pal, I doubt that I would have attempted his arrest single-handed, had it not been for the incidents enumerated. I know I would not have recognized him on this crowded car had not his rudeness attracted my attention especially to him. The remarks of his pal settled the question of his identity in my mind, and the pain in my foot and his insolence aroused my ire. The arrest followed, and it has a moral—"People should be careful as to whose toes they trample on."

CONSPIRATORS HANDED A LEMON.

**SENSATIONAL ENDING OF AN ATTEMPT TO BRIBE ONE OF FURLONG'S OPERATIVES IN THE NOTED MILES WILL CASE.
HOW THE CONSPIRACY WAS EXPOSED.**

In the latter part of the '90s, Stephen B. Miles, a wealthy resident of Nebraska, died, leaving an estate consisting of lands in Nebraska and Kansas, bank stocks and bonds, and other property valued at several millions of dollars. He was survived by a wife, from whom he had been divorced, two sons, Joseph H. and Samuel, and a daughter, a number of nieces and nephews and several grand-children. One of the sons, Joseph H., was a prominent banker and business man of Falls City, Nebraska, and also had large interests in other towns in that state. He had been a telegraph operator in his younger days, and was highly esteemed by all who knew him, not only as a good citizen, but a wide-awake, clean business man.

The other son, Samuel, was about forty years of age, and resided with his family on one of his father's ranches over the Nebraska line in Kansas. He had been rather wild in his younger days and had caused his father much trouble because of his dissolute habits.

Shortly after the death of the elder Miles, a will was found in an old suit case, the provisions of which made Joseph H. Miles executor and trustee of the estate, and the chief beneficiary, Samuel being left, besides some money, a life interest in the ranch on which he and his family were living. At the death of him and his wife the ranch was to be deeded to Samuel's children. The will also plainly provided that Samuel could not either entail or dispose of the land.

The provisions of the will were very unsatisfactory, of course, to Samuel Miles, and, at the suggestion of his counsel, he began court proceedings to prevent the probating of it, and, not succeeding in this, later brought suit to have the will set aside.

In 1900 I had in my employ an operative by the name of D. F. Harbaugh. This man had become well known and had obtained considerable newspaper notoriety in and about Kansas City through cases he had worked on under my instructions. One day Harbaugh was approached in Kansas City by one of the lawyers employed to break the will, and asked if he (Harbaugh) could find a man whose former reputation had been good, who would go on the witness stand and testify to having drawn up and witnessed a will made by the elder Miles, while on one of his numerous trips to St. Louis during his life time. During the talk the lawyer told Harbaugh all about the conspiracy that had been formed to break the will—by "finding" a later will, and gave the names of all connected with the scheme. One of these men was a prominent lawyer in Falls City, Nebraska, another a man of great prominence at Omaha, and who had a big political pull throughout the state, while another was in good standing at the bar in St. Louis at that time. Harbaugh was further told that he would be paid a fee of \$10,000 for his part when the will was broken, and as a further compensation the lawyer would send him to the Paris Exposition and back, paying all expenses up to the sum of \$5,000. Harbaugh agreed to give the lawyer an answer in a few days, and left that evening for St. Louis.

The next morning Harbaugh told me all about the proposition that had been made to him, and asked for my opinion as to the best thing to do. I at once said, "There seems to be but two things to do in this case. One is, for you to completely ignore the proposition, as there can be no doubt as to the rascality of all the parties who are in any way connected with the scheme. The other, and in my opinion, the right thing to do, is for us to try and locate this man Joseph H. Miles, and appraise him of the conspiracy that is being worked up by these lawyers and his own brother against him. For, if we keep quiet and ignore the matter, they will, in all probability secure a man who will accept the proposition and we would be parties to this conspiracy for not having exposed it."

"Well," replied Harbaugh, "you are the boss, and it is up to you. I have told you all I know about the matter. I told this lawyer that his proposition was very important, and coming to me suddenly I would need a few days to think the matter over, and it would require at least a few days to select the right kind of a man—one that could be trusted. He approved of this and expects an answer from me in a week or ten days."

I at once undertook to locate Joseph H. Miles, and succeeded in twelve hours. I found that he lived at Falls City, Nebraska, that he was president of the First National Bank of that place, had a bank in another Nebraska city, and had a large interest in a bank in York, Pa., that he was a respectable citizen and prominent business man, and very well known. After locating him I wrote him a letter, which read about as follows:

Mr. Joseph H. Miles,
Falls City, Nebraska.

Dear Sir:

If you are the son of the late Stephen B. Miles, and have a brother by the name of Samuel Miles, and a number of nephews and nieces who reside in Kansas and Nebraska, I have important information for you, and will impart it personally if you will come to St. Louis.

I would suggest that you bring your lawyer, as I believe my information important enough to justify you in so doing.

On receipt of this I wish that you would telegraph me, stating when you will leave Falls City, and at what time you will arrive at St. Louis. On arriving at St. Louis, go to the Planters Hotel, look at the register where you will find my name, and you can then come direct to my room, where I will be waiting for you and your attorney.

I am using a fictitious name, for reasons that I will explain to you when I see you.

Yours very truly

On receipt of the above letter Mr. Miles wired me promptly that he would leave Falls City the same evening and would arrive at St. Louis the following morning, via the Burlington Route, and would carry out instructions as per my letter.

I went to the Planters Hotel that evening, registered under the name I had given Mr. Miles, and was assigned to a room on the fourth floor.

The next morning about eight o'clock, Mr. Joseph H. Miles, accompanied by his lawyers, Ex-Judge Gillespie of Falls City, and Ex-Judge Martin, of the same place, and the latter's son who was a stenographer. I admitted them, and Mr. Miles stated his name, and asked if I was Mr. Foster, to which I replied in the affirmative. He introduced the other gentlemen and after they were seated I began my story by saying:

"Gentlemen, my name is Thomas Furlong, and I used the name of Foster in writing to Mr. Miles, because my name and business are known to a great many people in Nebraska, and a party connected with what I know to be a conspiracy against Mr. Miles, resides, and is an old citizen of Falls City, and would probably know my name if he heard it, and I did not know but what he might be connected with or know people connected with the telegraph office, and would thus learn that I had communicated with Mr. Miles, so I deemed it advisable not to use my own name. Now, gentlemen, before I give you the information that I have promised I wish that you would call on any of the general managers of any of the railroads that enter St. Louis, or the president of any bank in the city whom you may know, and ask him as to my character and standing."

Mr. Miles asked, "Does Mr. William Nickolson know you?"

I replied that Mr. Nickolson knew me very well. Mr. Miles said, "Mr. Nickolson is my correspondent here and has charge of more than a million dollars of our estate."

We walked over to Mr. Nickolson's bank and Mr. Miles entered the private office, leaving me standing in the corridor outside. As he entered the office he left the door open. Mr. Nickolson arose and greeted him, and at the same time spoke to me. After the greeting, Mr. Miles said to Mr. Nickolson, "I see that you know Mr. Furlong."

"Yes," replied Mr. Nickolson, "I have known Tom for years, and he is welcome to anything I have."

Mr. Miles said, "Mr. Furlong told me that you knew him and insisted on me coming down here and asking you about his standing in St. Louis."

After a little further conversation Mr. Miles shook hands with Mr. Nickolson and we returned to my room at the Planters, where Judges Martin

and Gillespie and the stenographer were awaiting us. I then related in detail the story that I had recently heard from Harbaugh. After I had completed the narrative, all of which was taken in shorthand by the stenographer, the younger Mr. Martin, Harbaugh was sent for and he verified the statements I had made to the gentlemen. The conference then adjourned, the luncheon hour having arrived. All parties again assembled in my room at the Planters at two o'clock, when Judge Martin said, "We have been considering this statement of yours, Mr. Furlong. We have known for some time that these lawyers you have named have been trying to make trouble, but did not know until you told us today just what they intended to do, and now I want to say that Mr. Miles and myself appreciate what you have done in this matter so far, and we are anxious for your opinion as to what you think is the best way to proceed."

To which I replied, "I believe the best way to proceed would be for Harbaugh to go to the lawyer in Kansas City and tell him that he would accept his proposition, and that he would secure a man who could be relied on, and who would assume that he had written the will for the elder Mr. Miles. I would then select a man that I could trust and turn him over to Harbaugh. Harbaugh would take him to Kansas City and put him under the guidance of the lawyer. After these conspirators had thoroughly posted and instructed this man, whom they will expect to deliberately commit perjury, they will probably have his deposition taken in St. Louis. He will take the stand and be able to answer all questions put to him until asked if he wrote the will. When he is asked this question, being under oath, of course, he will tell the truth. In this way we will be able to prove the enormity of the crime and the cool audacity of the parties connected with it."

I turned to Mr. Miles and said, "That is my opinion, but if you do not approve of it and prefer to employ some one else to handle this case for you, you, of course, are at liberty to do so. I felt that it was my duty to advise you of this conspiracy and the manner in which I had received my information."

Judge Martin said, "Mr. Furlong, we want you to handle this case for us," and Mr. Miles nodded his head and said, "Yes, I want you to handle this case for me, and to handle it in your own way, and I will pay you your regular charge, allow you the expenses incurred, and pay you extra for your

service." I told Mr. Miles that I did not expect anything of that sort, as I did not believe in rewards and never worked for them. He insisted, however, on paying me extra for my services, which he did, and I divided it equally with Harbaugh.

I instructed Harbaugh to go to Kansas City and get in touch with the crooked lawyer, which he did. I selected a man whom I knew well and believed to be honest. I instructed him as to what I wanted him to do, and in due time he was introduced to the Kansas City lawyer, by Harbaugh. The lawyer began instructing him and gave him a minute description of the deceased Stephen B. Miles, whom, of course, this man had never seen. He posted him as to a room in the old St. James Hotel that had been occupied by Stephen B. Miles in one of his trips to St. Louis. This was the place where the fake will was supposed to have been written. The lawyer was pleased with the man I had sent and feasted and dined him on several occasions when he was in Kansas City rehearsing the part he was to play in the conspiracy.

In the meantime Harbaugh had grown to be the apple of the crooked lawyer's eye, and from the good treatment he received from this creature Harbaugh had begun to admire him for his liberality.

At last a day was set for the taking of the deposition of the man who was supposed to have written the will. Due notice was served on the respective parties interested, and at the appointed time our man appeared at the office of the St. Louis attorney, and the taking of his deposition began. After being duly sworn, the St. Louis representative of the conspirators began to examine the witness in the usual way, asking a few preliminary questions, and at last reached the question, "Did you know Stephen B. Miles, deceased, and did you not write this will for him?" indicating a paper he had in his hand.

The witness said, "I have known a number of men by the name of Miles. Allow me to describe one of them and if his description suits I will be able to answer your question."

I had previously requested Mr. Miles' attorneys to let the St. Louis lawyer do all the questioning and examining, and not to object to any question that

he might put to the witness, unless it was entirely out of reason. Therefore, they merely sat still, carefully noting everything and objecting to nothing.

Of course, the conspirators were anxious to get a strong deposition from the witness, and, therefore, he was permitted to describe the man Miles, for whom he was supposed to have written the will. The St. Louis attorney kept nodding approval to his fine description of the dead man. When he had fully described Mr. Stephen B. Miles to the satisfaction of the conspirators, he took the purported will and examined it carefully, saying, "The handwriting on that document looks like my handwriting, but (in a loud, clear voice) I did not write this or any other will for Mr. Stephen B. Miles, or any other person. I have never met the man Stephen B. Miles, nor the man that I have just described. I was instructed to give the description that I have given here by these lawyers (pointing to the St. Louis and Kansas City lawyers, who were both present) and I was expected by them to testify that I had written this will, and I was promised five thousand dollars if I would."

The reader can easily imagine the consternation that reigned among the conspirators at this testimony from the one they trusted would be their star witness. Our man left the stand and the further taking of testimony was discontinued, it is needless to add.

Mr. Miles and his attorneys believed that these conspirators had ceased their efforts for a time, but later on they produced another man whom they claimed had written the second will for Stephen B. Miles. He was a young man, also a lawyer, and had at one time lived in St. Louis for a short time, married there, and had gone to Old Mexico. He was discovered in Mexico by the Kansas City outfit and induced to come back to Chicago, Illinois, where his deposition was taken. He claimed to have written the will for an old man in St. Louis, but he was either afraid to describe him or could not do so, therefore his testimony was worthless.

The conspirators continued to try to break the original will until it was finally pronounced legal and valid by the Supreme Court of Nebraska, and Joseph H. Miles' rights were thoroughly and legally established.

During this litigation, however, two of the parties in the conspiracy died, and the others were not prosecuted for complicity, although their actions had put Joseph H. Miles to considerable trouble and expense. They had

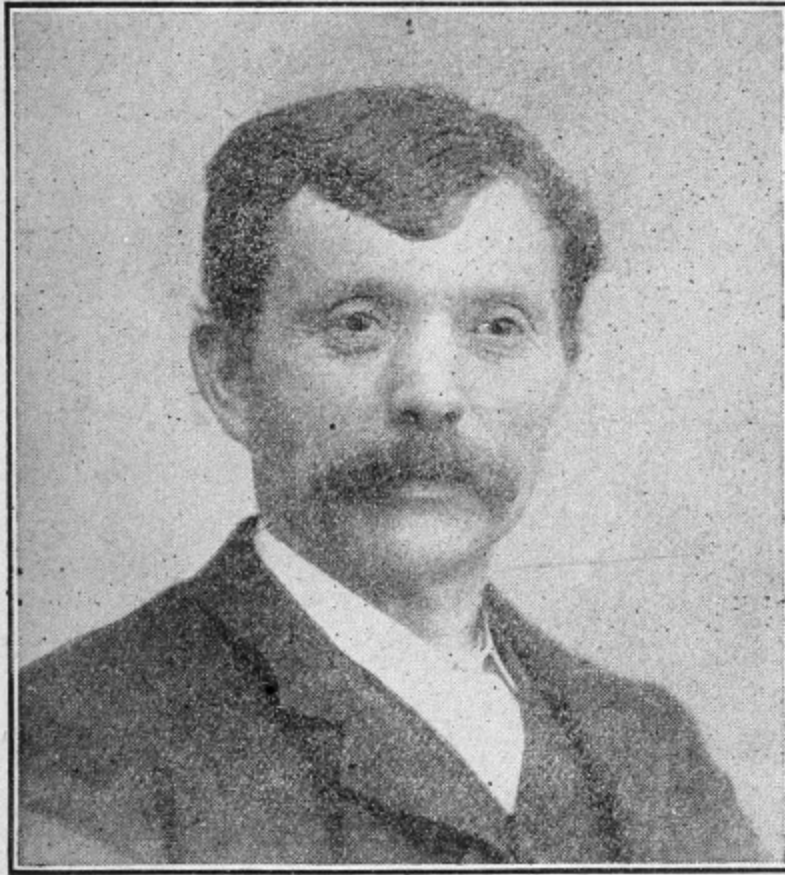
made several indirect propositions to Mr. Miles looking to a compromise, but he promptly repelled all of them.

Harbaugh's connection with my service has long since been severed, and he is now in the employ of Mr. Joseph H. Miles as manager of his large stock range in Nebraska, not far from Falls City, where the writer is informed he is doing well.

THE BIG SOUTHWEST STRIKE.

HOW THE BLOWS WHICH CAUSED THE DEATH KNELL OF THE
KNIGHTS OF LABOR WERE ADMINISTERED.—STIRRING
SCENES AND INCIDENTS CONNECTED WITH
THE BIG STRIKE OF 1886.

If you have an ambition to lead a strenuous life, young man, and feel that excitement would serve as a tonic for your nervous system, and you want to gratify your ambition and secure the tonic in greater than homeopathic doses, both at the same time, just get yourself appointed chief special agent of a big railroad during a general strike. I am "dopeing" you right, for I have been "on the job" on several occasions during a strike, consequently know what I am writing about. The most strenuous thirty days of my long career, however, were the thirty days in 1886, when the whole southwestern system of Gould roads were tied up, and there was nothing doing in the traffic line. While there had been differences between the shopmen and the company for some time, these differences were considered trivial, and neither side had expected that they would result in a strike, consequently neither the men nor the company were prepared for the struggle when it began—at ten o'clock on the morning of the 4th of March. The shopmen, as well as many other employes of the Gould roads, including engineers, firemen and trainmen, were nearly all members of the Knights of Labor. Organizers and professional labor agitators had been busy all along the line for months, coaxing and coercing the men into the order. Martin Irons had been selected as chairman of the grievance committee, and while in Texas attending a meeting of the committee, called the strike, without consulting the national officers of the organization, a violation of one of the order's most stringent rules. He afterwards admitted that he would not have called the strike had he been sober.



MARTIN IRONS.

Chairman of the Knights of Labor strike committee on
the Gould System in 1886.

Irons was a little weazen-faced Scotch-Irishman, with a past—as most of these professional labor agitators have. At the time of the strike he was on the payroll as a machinist of the Pacific Company at Sedalia, where he was living with what is now-a-days called an affinity, he having deserted his wife and several children in Ray County years before. He was thoroughly unreliable, a drunkard, and was hated by most of his followers. There were two redeeming things about him, however. A good voice was one of them. He could have earned a large salary as a train-caller or a barker for a tent show, and he was a good actor. Notwithstanding his repulsive appearance, and the fact that the shopmen did not like him, he could sway them as he pleased, if granted the privilege of addressing them—fill them with either tears or indignation, as best suited the occasion. He never made a speech in his life, though, during which he did not pay his respects to me and my

men, and tell how we were shadowing and hounding him day and night. He did this to create sympathy. As a matter of fact, there never was a time when any of Gould's c-a-p-i-t-a-l-i-s-t-i-c b-l-o-o-d h-o-u-n-d-s, to use his own favorite expression, were ever on his trail. He was always regarded by my men and myself as a harmless demagogue, and not capable of doing anything that would cause us much trouble. In fact, the only thing he ever did in which he did not leave a trail behind him as wide as a railroad right-of-way, was the wire-tapping job he supervised during the strike, which will be referred to later.

As stated previously, the strike was called at ten o'clock on the morning of March 4, 1886. The sound of the big whistle, the blowing of which was the signal for the men to quit work, had hardly died away before the main yards of the company at St. Louis, which were just west of the old Twelfth St. station, were filled with a mob of at least ten thousand Knights of Labor and sympathizers. The company's shops at Chouteau and 29th Streets were also at once taken possession of by the strikers and their friends. Notwithstanding the fact that many of the employes of the company were loyal, and did not want to leave their jobs, these demonstrations caused them to do so. A call was sent in to police headquarters by General Superintendent Kerrigan, who was in charge of the operation of the Missouri Pacific and Iron Mountain roads, in the absence of Vice-President and General Manager Hoxie, who was detained at his home on account of illness, asking for police protection for the company's loyal employes and property. Maj. Lawrence Harrigan, then chief of police, responded to this call by detailing Sergt. Jack Campbell, who was afterwards chief of police, and eighteen men for duty on the company's property. The reader can easily imagine the predicament in which this little handful of officers found themselves in attempting to handle a mob of at least ten thousand. On orders from Mr. Kerrigan, I secured three engines and crews, and we began to make up a train. At this sign of activity the mob became frantic. Two of the engines were soon derailed and disabled. I then placed my force of special officers, which consisted of but a few men, on the remaining engine, and attempted to continue the switching of cars in order to get out a train of perishable goods, but we could not make any headway, as the mob pulled the pins, threw switches, derailed cars and otherwise interfered with the work. After a couple of hours had been thus consumed, I suggested to Mr.

Kerrigan that we had furnished enough entertainment for the mob for one day, and told him I was going to take the engine to the round house to keep it from being disabled. "Do you think you can succeed in doing it, Tom?" asked Mr. Kerrigan. "I will do my best," I replied. "For goodness sake, do it, then, and when you get through come to my office as I want to consult with you."

The engine, which had been abandoned by the engineer and fireman, was standing just east of 12th St., a portion of it being under the viaduct which spanned that thoroughfare. The viaduct was lined with spectators and strikers and their sympathizers, many of the latter being armed with paving stones, links, pins, etc. As I climbed aboard the cab some miscreant hurled a paving stone at me. It came within a few inches of landing on my head. It is needless to state that if it had struck me I would not be writing this story. David R. Francis, at that time Mayor of St. Louis, was viewing the situation from the viaduct, and witnessed the attempt on my life. Turning to Robert S. McDonald, former Circuit Attorney, and a well-known lawyer, the Mayor exclaimed, "That man Furlong will get killed by that mob." After the incident, I espied the engineer standing in the crowd. I called to him in a loud voice, "Come here and let us take this engine to the roundhouse." On hearing this a mighty shout went up from the mob, and there was much rejoicing and clapping of hands, they thinking they had achieved a great victory—just what I wanted them to think. The engineer climbed on the engine and we made the trip to the roundhouse without molestation.

After the engine had been safely placed in its stall, I went at once to the office of General Superintendent Kerrigan. After thoroughly discussing the situation which confronted us, I suggested that he call on Judge Portis, at that time General Attorney of the Missouri Pacific, and insist on him preparing a legal notice to be served on the Mayor and Police Board and sheriff of St. Louis, setting forth that the company was being hindered in the operation of its property within the City and County of St. Louis, and State of Missouri, by a mob; that the company had many hundred thousand dollars' worth of perishable property in its cars in the yards in St. Louis, and also had plenty of competent and loyal employes who were willing and anxious to do the work of switching the cars and running the trains, but were prevented from doing so by said mob. Therefore, the company, after the serving of this notice, intended to hold the said city and county and state

liable for all damages sustained by the company by reason of said mob's interference, as aforesaid. Mr. Kerrigan, acting on this suggestion, immediately called in Judge Portis, C. G. Warner, general auditor, W. H. Newman, the general freight traffic manager, and some other officers of the road, and had me repeat the suggestion to them, which I did. The attorney did not take kindly to the proposition at first, but at the demand of Mr. Kerrigan the notices were prepared, and later served on the officials named.

The receiving of these notices by the officials awakened them to their responsibilities. That evening a meeting of the Police Board was called by President Blair, and at its close an order was issued to Chief of Police Harrigan, instructing him to don his uniform early the next morning and lead every available man in the department to the Missouri Pacific yards, where he was to so station his men that none but loyal employes could enter the yards. The board's orders were carried out, the chief causing a line of men to be formed around the yards before the strikers had entered upon the property of the company.

At the head of a force of twenty-eight men, including a full train crew, conductor, engineer, fireman and three brakemen, I made up a train of ten cars and started west with them. We were not molested until we arrived at the Compton Avenue crossing. At this point a number of strikers under the leadership of a notorious agitator named Geary, were seen on the track. Each striker carried a small American flag, which they stuck up in the middle of the track at the crossing, and then every one began signalling us to stop, shouting to us that "we did not dare run over an American flag."

I want to state right here, that no man in this country has a greater respect for Old Glory than I have. I put in four years, one month and eight days defending it on one occasion, and thus helped to make it what it is today, and it made me feel pretty bad to see it put to the use it was on this occasion, and it is the only time in my life that I failed to pay the flag the respect due it. To make the story shorter, we paid no attention to the flags, and would have run over the mob had they not skeedaddled out of the way of that train.

At the city limits, Sergt. Campbell, who had been riding on the engine with me, left the train, and we continued on our journey westward. Sitting on the

running board on either side of the engine I had two men, Billy Bonnell and Mike Gibbons, each armed with a shot gun. On the deadwood, or cowcatcher, in front of the engine, I had two other men, Jim McCane and W. K. Moir, each armed with revolvers, and each carrying a clawbar. We had expected to find some spiked switches, and these clawbars were to be used in pulling the spikes. The balance of my guards, all armed, were placed in the caboose and on top of the box cars. No trouble was encountered until we neared Pacific. We pulled into the town slowly, with all brakes set, so there would be no slack in the train, thus making it impossible for any one to dodge in between the cars and pull the pins, thus uncoupling the cars. We knew a lot of strikers had gone out to Pacific over the Frisco that morning, and expected trouble on arriving at that town. We were not disappointed. The first switch encountered had been turned for the side tracks and spiked, as had every other switch leading from the main line. My men who were armed with clawbars soon pulled the spikes and reset the switches and we slowly crept into the town. The strikers were holding a meeting in an old brick house on the first road east of Pacific, but on hearing our train coming the meeting was broken up and the men ran to a sand bin located just east of the depot and took refuge behind it. As our train pulled by this sand bin at least 100 shots were fired at the train. Strange to say, not one of my men was hurt, but the cab and caboose and some of the cars were badly splintered by the bullets. After pulling by the sand bin the mob ran after the train, and one of the leaders, named Davis, picked up a drawbar and rushed to the front of the caboose, which he was enabled to do as we were running so slowly, and attempted to throw the draw bar under the front wheels of the caboose, for the purpose of derailing it. He would probably have succeeded had not Marshall F. McDonald, the noted St. Louis attorney, who had volunteered to act as one of my guards, saw what the man was attempting to do. The lawyer was so enraged at Davis' audacity that he picked up a coupling pin, which was lying on the platform of the caboose, and hit the striker over the head with it. It is needless to add that we had no more trouble with Davis that day, as he went down for the count, as the sporting writer would put it.

When we were fired upon by the mob entrenched behind the sand bin, I had hard work to control my men, they wanting to return the fire. I had previously told them not to fire a shot without my orders, but in the event I

was compelled to order them to fire, I had instructed them to shoot to kill. After the first volley, and there being no return fire, the strikers concluded the guards were afraid to shoot, and immediately set about to uncouple the train. In this they were foiled, as they could not pull the pins. They then tried to climb to the top of the cars for the purpose of disarming the guards and throwing them from the train. In this they were again foiled, for the guards, using their weapons for clubs, beat them off. As soon as a striker's head appeared at the top of the ladder he received a blow over it that caused him to either fall to the ground or scamper back down the ladder. Many of them were badly injured, either from the fall or the blow from the weapon in the hands of the guards. One of the mob singled me out and kept peppering away at me with a revolver. One of my men, Mike Gibbons, from his seat on the running board of the engine, and who was armed with a shotgun, wanted to "get" this man, but I would not let him do it. The fight was fast and furious, however, and lasted until our train had passed through the town.

Our train met with no further trouble of importance until we arrive at Chamois, the end of the first freight division. Here the foreman of the round house had deserted his post and joined the strikers, and was acting as leader, and not one of the company's employes were on duty—that is, for the company. As soon as we pulled in the strikers surrounded the train, but attempted no acts of violence, they evidently being over-awed at the sight of the twenty-two armed guards. I made a short but "impressive" talk to the men, using as near as I can recall it, the following language:

"Gentlemen, I am special agent of the Missouri Pacific Railroad. These men you see with me here are in my department. We have no grievances against the company and are in no way interested in this strike, except to protect life and property. I want to convey to you, Mr. Foreman, the thanks of the management of the company to yourself and your associates for the good care you have taken of the company's property. I am here now with these men to relieve you of any further responsibility in the matter, and all of you are hereby notified to get off and stay off of the company's right-of-way until the trouble has been satisfactorily adjusted. If you attempt to get back on the right-of-way, or in any manner attempt to interfere with my men while in the discharge of their duties, or with the movement of trains, or commit other depredations, you are liable to get shot."

At the conclusion of my talk the strikers left the company's premises. On investigation I found 19 "dead" engines, that is, 19 engines from which the water had been removed. The supply water tank was also as dry as the proverbial powder horn, and the pumping machinery disabled, parts of the engine having been removed, and as I afterwards learned thrown into the little creek from which the water to supply the tank was obtained. As it was getting late in the day I went over to the hotel to make arrangements for getting supper for my men and crew. The proprietor told me there was nothing doing, as he did not want to take chances on getting his building burned down by the Knights of Labor. All of the balance of the regular eating houses and boarding houses in the town refused to accommodate us for the same reason. They had been notified by the committee not to do so. They would be boycotted if they did, and it had been intimated that even greater punishment might be meted out to them in case the committee's orders were violated. Later a good old German lady named Mrs. Stoeppleman, who had two sons who were loyal employes of the company, sent for me and told me she was not afraid of the Knights of Labor, and cared nothing about a boycott or what her neighbors might say, and she would feed us if we desired her to do so. It is needless to add that we accepted of her hospitality. After a good supper, I learned where the missing parts of the pumping engine had been thrown, and two of my men, Messrs. McCane and Moir, who were both good machinists and engineers, were set to work to repair the engine. The water in the creek, where the missing parts of the engine had been thrown, was about four feet deep, and was partially covered with ice. McCane and Moir entered the icy water, while I and others held torches, and fished out the missing parts. The engine was repaired, and by morning we had the supply tank nearly full of water.

Early the next morning, we fired up one of the dead engines, and attaching it to the train of ten cars, sent it on to Sedalia in charge of a crew and two guards. Leaving eleven men at Chamois in charge of Mr. W. K. Moir, I made up a train of 15 loaded cars, and with the remainder of my men started on our return trip to St. Louis. No trouble occurred until our arrival at Pacific, where the scenes attending our arrival there the day before were partially re-enacted. We got through Pacific without any serious trouble, however, and arrived in St. Louis about 2:00 P. M.

The St. Louis strikers had not been idle while I was out on the road, however. On pulling into the Chouteau Avenue yards the first thing I saw was that the big turntable had been put out of commission. The strikers had deliberately run an engine into the pit, not only blocking the turntable, but badly damaging the engine.

The next morning (Wednesday) Mr. Kerrigan sent for me to call at his office. On arriving I was told that the strikers had attacked the Washington accommodation, containing three coaches loaded with passengers bound for St. Louis, at Gray's Summit, a little station west of Pacific, and had run the train onto a siding and "killed" the engine. I at once repaired to the Chouteau Avenue yards, and taking an engine, attached it to a coach, into which I placed ten picked men, all well armed, and the run was made to Gray's Summit in fairly good time. The strikers and sympathizers soon dispersed when commanded to do so by me. One of my men, Jim McCane, who was an experienced engineer, disconnected the disabled engine, taking off the side rods, and in a remarkably short time we had coupled the disabled engine and the coaches on behind our coach. We then ran our engine to a "Y" west of the little town, and after turning it around brought the passengers safely to St. Louis, where we arrived a little before dark. The rescue of this passenger train was the entering wedge which broke the strike.

On arriving at the roundhouse that evening, a messenger was awaiting me with a note from General Manager Kerrigan, asking me to call at his office at Sixth and Locust streets to consult with the officers of the company. On arriving at Mr. Kerrigan's office I found Mr. Newman, freight traffic manager, and Mr. Werner, the general auditor, awaiting me. These three gentlemen were handling the strike situation for the company in the absence of Vice-President and General Manager Hoxie. They had learned of the conditions at the Chouteau avenue shops, of the running of the engine into the turntable pit, and also of the large number of men the strikers had on guard, both outside and inside of the fence which surrounded the shops. Mr. Kerrigan, recognizing the fact that we could do but little without engines, and as all the engines, save one or two, were safely locked within the round house, expressed himself as wishing to again get possession of the roundhouse. In discussing the best means of doing this the gentlemen thought it best to call on the police department for enough men to drive the

strikers away. I told them that it was not necessary to do that, as I could get possession of the shops at any time. "How can you do it, Tom?" asked Mr. Werner. "It will not take as long to do the job as it will to tell you about it," I replied, and further told them that we would be in possession of the shops again by daylight the next morning, if they so desired. They told me to go ahead and get possession of the shops in my own way. At that time I knew where I could get my hands on between forty and sixty of my men. I sent messengers to hunt up these men, instructing them to report to me on the Handlan lot, southeast corner of Grand and Laclede avenues, promptly at 2:30 the next morning. They were further instructed to slip into the rendezvous quietly, not more than one or two going in together at a time, and all were given a pass word by which they would be able to identify each other. At the time fixed, forty-six men had reported, all well armed. I formed them into a double line, and after cautioning them to be careful about stumbling or coughing, or making a noise of any kind, marched them down Grand avenue to the railroad track, and then down to the west gate of the fence surrounding the shops. On arriving there and finding the gate fastened on the inside, four men were boosted over the high fence. These men soon had the gate open and the balance marched in. Immediately on entering the shopyard the men split ranks, half going to the right and the other half to the left, Jim McCane heading one squad and I the other. The strikers had placed pickets every few rods all along the inside of the fence, but our entrance had been made so suddenly and noiselessly that these pickets had no time to sound an alarm. They were quickly disarmed of their clubs, or bludgeons, and taken along with us from one station to the other, until every picket in the yard had been captured. They were taken to the gate and boosted out. We then entered the shops, where we found many strikers asleep on benches and work tables. These were thrown out of the building before they hardly had time to get their eyes open. A good sized crowd of watchers and beer-canners were on the outside of the east gate of the fence. These men, too, were driven from the right-of-way. By daylight we were again in complete possession of the shops, as I had promised my superiors we would be, without a blow being struck or any one hurt.

I then sent trusted men down into the city to the quarters where men out of work usually congregate, with instructions to hire all the men they could find and quietly get them into the shops in small groups. I did not care what

the previous occupations of these men had been, just so they were able-bodied. It did not make any difference to me whether they had ever seen the inside of the railroad shop before. All I wanted was men—men who could make a noise. We soon had a sufficient number of these men inside of the shops to serve my purpose. Engines were fired up, fire was built in the blacksmith forges and the big engine in the powerhouse was set in motion. In fact, to those on the outside of the shop who could see the smoke coming out of the smoke stacks and hear the noise, and to those who could get a peep through the gates, the shops presented a scene of great activity. Men were pounding great molten pieces of iron on the blacksmiths' anvils, while others were pounding away on big pieces of boiler iron, but they were not blacksmiths or boilermakers; they were simply playing a part assigned to them by the master mechanic and myself. Other men represented machinists, while others were painters, car repairers and helpers.

Of course, all these actors and guards had to be fed, so we established a commissary and a kitchen and brought in a lot of cots for these men and guards to sleep on, which were placed in the building. To those who are not familiar with the handling of strikers, I will tell why we employed all those unskilled men. It was for the purpose of making the strikers believe that we were fast filling their places, which it did, for in the next day or so many of the men who went out quietly made application for reinstatement. In many instances these applications were acted upon favorably and the men put to work, and the backbone of the strike was thus broken.

As on all such occasions, many acts of violence were committed. When the strikers learned that men were being slipped into the shops they were very wroth. Now and then one of the strike breakers would stray away from the shops. They were fortunate, indeed, if they did not fall into the hands of the pickets, for if they did, and which was usually the case, they were badly beaten. Of course, we always attempted to prevent the men going out after they were once inside of the enclosure, knowing what they would be up against, but we were not always successful in keeping them inside. On the second day, after we had retaken the shops, a coach painter named Haller, who had been employed at the shops for several months, and who was at home at the bedside of a sick wife when the strike was called, showed up at the shops and resumed work. At quitting time that evening he picked up his dinner bucket and started down the track to Jefferson avenue, as had been

his custom. On arriving at Jefferson avenue he was approached by a number of pickets, who remonstrated with him for going to work. "I cannot afford to loaf now, as my wife has been sick a long time," said Haller; "besides, I am satisfied with the wages I am receiving and intend to keep on working," and started up Jefferson avenue towards his home, which was in the 2600 block on either Franklin or Easton avenues. The pickets began to assault him with rocks and clubs, and he sought to escape them by running. At every step, almost, the ranks of the mob were augmented. As Haller ran past the strikers' headquarters, which were in Eutopia Hall, at Walnut and Jefferson avenues, a crowd of several hundred joined in the chase. The long run up the hill had winded Haller. Besides he had been weakened by the blows which had been showered upon him. Seeing that he could not make his escape on account of his weakened condition, he backed up against a brick building at the northwest corner of the street named and stopped. A big bully rushed up to him and struck him, whereupon Haller jerked out a revolver and shot his assailant, who dropped dead in his tracks. This stopped the mob from doing further violence to him. The police from the mounted district rushed to the scene and placed Haller under arrest. No attempt was made to arrest any of the mob. Later in the evening he was removed to a cell in central station, from which the company's officials, at my request, secured his release on bond. He was later acquitted by a coroner's jury, and in a day or so thereafter was again back at work. After that, for quite a while, I sent a guard home with him each evening, but no attempt was made to molest him. This, I believe, was the only fatality growing out of the strike in St. Louis. Mr. Haller is now a prosperous business man in St. Louis, and is highly respected by all who know him.

Thursday afternoon the big crane at the shops was rigged up for business, and, under the guidance of skilled men in my employ, ran out to the edge of the roundhouse pit, into which the strikers had dumped an engine, as referred to before in this article. This engine so blocked the turntable that not one of the company's engines in the roundhouse could be taken out. The engine was lifted out of the pit, and in a short time the turntable was in working order. That same evening, I decided to straighten out things at Pacific. To do this I had made up my mind to place the ring-leaders of the mob which had attacked the train there earlier in the week under arrest. I knew it would take quite a force of men to do this, so I instructed twenty of

my men to assemble quietly in the neighborhood of St. Malachy's church, at 29th and Clark avenues, at ten o'clock that night. They were to come to the rendezvous in ones and twos, and instructed to do nothing that would attract attention. I had an engine and caboose in waiting at the shops, and when the men had all assembled they were marched to the caboose, and between 11 and 12 o'clock we started to Pacific. On arriving at the first cut east of the town the little train was stopped and left in the cut under guard of the engineer and fireman, and two of my men. The engine carried no lights, and no sound had announced our arrival near the town. In fact, we approached it as quietly as possible. The men were divided into two squads, one headed by Billy Bonnell and the other by myself. We then marched into town and to the homes of the men wanted. They were aroused from their slumber and placed under arrest. We had no trouble, except at the home of a big blacksmith, who had been especially prominent in the riot at the sand bin the day we ran the first train through the town after the strike had been called. He was soon subdued, however, and taken with the balance of the men arrested, to the caboose, which had been left standing on the track near the edge of the town. Many of these men were still suffering from the blows they had received at the hands of the guards who were on the train they had attacked. Davis, the leader of the mob, who was hit on the head with a coupling pin by Marshall F. McDonald, for attempting to derail the caboose of the train attacked, had his head still covered with bandages.

After all the men had been arrested, we boarded the train with our prisoners and ran to Washington, where we loaded them into hacks and wagons and took them to Union, the county seat of Franklin County, where they were placed in jail. In due time they were tried before Judge Seay, and vigorously prosecuted by Prosecuting Attorney Gallencamp, and all of them convicted. Davis, the leader, was given three years in the penitentiary, while the blacksmith and several others were let off with lighter terms, and the balance of the men, who proved to be mere tools of the leaders, at my suggestion, were given jail sentences. Davis, after entering the penitentiary, contracted consumption, and after serving a little over half his time, was pardoned so he might go home to die. He was released from prison one Saturday, returning to Pacific at once. The following Monday he died.

Two of the gentlemen connected with the trial of these strikers have since made reputations for themselves. Judge Gallencamp, who prosecuted the

cases, is now, and has been for several years, Surveyor of the Port of St. Louis, while Judge Seay, who presided, has received high honors at the hands of the people of Oklahoma, his new home, he having served as governor at one time. Mr. W. K. Moir, whom I left in charge of Chamois, proved to be a valuable man for the company. He being a good engineer and machinist he was retained there as general foreman for several years, until the division was removed to Jefferson City. He was then given an engine in the yards of the company at that point, but later resigned and moved to St. Louis, where he continued to reside until his death, which occurred a few years ago.

The St. Louis strikers made their headquarters in Eutopia Hall, Jefferson avenue and Walnut street, and an ex-convict named Martin O'Neal usually presided over the meetings. I lived, at that time, at 2729 Walnut street. My wife was very sick, being confined to her bed, and many of these strikers in going to and from their meetings always passed by the house, and never failed to jeer at the children, if they happened to be in the yard, and otherwise conducted themselves in a rude manner. One striker, a tough switchman named Duffy, went so far as to enter the yard and ring the door bell a couple of times, when he knew I was not at home, and when the door was opened by my little daughter, had forced his way into the house. He would then let on as though he wanted to see me, telling my daughter that he knew all about a conspiracy to take my life, and his call was for the purpose of putting me on my guard. His story and rudeness always frightened my family very badly, they thinking that possibly there might be some truth in his story. I knew Duffy and his reputation as a general bad man, and knew he had no business with me. I also knew he was aware of my whereabouts during business hours, and I decided to put a stop to his visits at my private home at the first opportunity. As luck would have it, I was at the house the next time he called, one night about ten o'clock. I had slipped home to spend a few moments with my sick wife, and had been in the house only a short time, when the door bell rang. My daughter saw him enter the yard from the window, and called me. I answered the ring of the bell by opening the door and grabbing Duffy by the collar and jerking him inside. I at once went to work on him with both fists. He was either too cowardly or his surprise was too great for him to make any resistance. After I had given him a few good stiff jabs, he began to beg for his life. "I am not

going to kill you, you cur," I rejoined, "but I am going to teach you better than to come to my home," and I lit into him again. After punching him until I was tired, I let up. I then issued a few orders for the cowering wretch's guidance in the future, and also sent a message to his followers, couched in about the following language, "You people can go up and down this street, of course, but don't any of you let me catch you on this side of it. Another thing, I will 'get' the next one of your cowardly curs who jeers at this house again while passing. I don't want any of you to ever even look at my house. If you do, and I find it out, there will be trouble." After making him promise to deliver the message, I again grabbed him by the collar, and pulling the door open, booted him into the street. I always gave Duffy credit for delivering the message, for that gang always behaved themselves when passing the house thereafter, and always kept to the other side of the street.

St. Louis was not the only scene of rioting and mob violence during the strike. At Sedalia, where the main engine building plant of the company is located, and where about 2000 machinists and other shopmen were employed, conditions were very bad. Sedalia was also the headquarters of the operating department of the "Katy," one of the Gould properties, and a division point for all Missouri Pacific lines at that time running through Missouri. In fact, it was what might be called a railroad town. It was also the main headquarters of the strikers. The Knights of Labor were very strong, even most of the business men of the city belonging to the order. The strikers had their own way for several days. Each attempt on the part of Superintendent Sibley to move trains was the signal for rioting. To illustrate the boldness of the strikers, I will relate one incident. Adjutant General J. C. Jamison, of Governor Marmaduke's staff, had been sent to Sedalia to investigate conditions there. He went to the yards and with two police officers, boarded an engine, attached to a train, which the officials were attempting to get out of the yards. The engine was given steam and the train started. Before it had gone a hundred yards, however, a mob climbed aboard the engine, stopped the train, uncoupled the engine from the train, put on steam, and ran the engine down the Katy track about two miles, and after letting all the water out of the boiler, ran the engine back to the yards and into the roundhouse. No attempt was made to harm the adjutant general and the police officers by the mob. Immediately on the arrival of the captured engine at the roundhouse, the leaders of the mob, who proved to be John

Perry and Fred Page, two of Martin Irons' most trusted lieutenants, were placed under arrest by Chief of Police Barnett of Sedalia and a couple of his officers. The arrest caused one of the worst riots ever witnessed in the little city. The men were finally locked up, however, by the plucky Chief of Police, but were soon released on bond. This riot caused a change of sentiment on the part of the business men, which up to this time had been with the strikers entirely, and within a few days enough volunteer guards had been secured to handle the situation. Traffic was then resumed on the roads. Many of the ringleaders were indicted by the Grand Jury, but none of them were tried, they being allowed to leave the county.

At Kansas City, Parsons, Denison, Ft. Worth, Palestine, Little Rock, and many other places much rioting was indulged in by the strikers, and much property was destroyed, and worse, several lives were sacrificed.

Martin Irons, after the strike, was completely deserted by the men whom he had led, and became a wanderer and an outcast, a veritable human derelict. His constitution had become so weakened by the excessive use of liquor that he could not hold a job as a machinist, although he was a good workman. He then tried lecturing, but in this he was not successful. Later he opened a lunch counter at Kansas City. This enterprise was also a failure. He finally wandered down into Arkansas, and one morning was found dead in a hovel. Never was the biblical admonition, "As ye sow, so shall ye reap," more plainly illustrated than in the case of poor Martin Irons.

WHY I OPPOSE REWARDS.

IT OFTEN IS AN INCENTIVE FOR UNSCRUPULOUS OFFICERS TO
CONVICT INNOCENT PERSONS—RULE REGARDING
DIVORCE CASES.

I do not believe in rewards, and in all my long career, have made it a rule to never work for, or receive one, no matter how great the amount offered for the arrest and conviction of the guilty party, or parties—this being the usual way that the heading of a reward is written.

Nor do I believe in or engage in procuring evidence in divorce cases.

However, I can see no objection to the offering of a reward for the apprehension or capture of a fugitive who is known to have committed a certain crime against the law, and for whom a warrant has been issued, and I believe the detective, or any other person, who makes the arrest would have the right to accept such reward.

Where the reward is offered for the arrest and conviction of some person, for a crime that has been committed, and the guilty party, or parties, is unknown, I, from personal experience, have been led to the belief that the offering of a reward, especially a large reward, is an incentive for unscrupulous people, and especially unscrupulous officers of the law, to fasten the crime on some unfortunate, or perhaps some dishonest or undesirable citizen, which can be found in almost any community, in order to obtain the reward. These unfortunate people are easier to convict of a crime than persons who have always borne a good reputation. Then, again, the offering of a reward for criminals whose identity is unknown, tends to keep a certain class of people from divulging facts that they may know, which might, if properly utilized, lead to the identity, arrest and conviction of the perpetrators of the crime for which the reward was offered.

To make it more plain, when a crime has been committed, and no reward is offered, this same class of people are more liable to "come out from under cover" and tell what they know about the facts in their possession, believing

them of no material value to the officers engaged in running down the culprit.

Experienced detectives have been very often handicapped by reason of a reward having been offered, and, for this reason, I have always made it a rule to pay no attention to rewards.

While I am satisfied that it is, in many cases, necessary for the purification and preservation of society, to thoroughly investigate divorce cases as it is to apprehend and convict people who have committed a theft or other crimes, by reason of the fact that there are so many crooked and unscrupulous men, who claim to be detectives, and who make the divorce business their specialty, in order to elevate myself and my service from the level of this class of people, I formed a rule, at the beginning of my career, not to have anything to do with divorce cases. This rule I have always rigidly enforced.

WHY I AM OPPOSED TO HANGING.

AVERSION TO THIS MODE OF EXECUTION WAS CAUSED BY AN
INCIDENT WHICH HAPPENED AT BELLEVILLE ILLINOIS,
YEARS AGO—THROUGH THE TRAP WITH
A MURDERER.

In my younger days I was a firm believer in hanging as a means of capital punishment, but I do not hold the same views now, and have not for a long time. As my friends have often asked me what caused me to change my mind on this matter, I am now going to take them into my confidence, and tell them all about it.

Several years ago I had some important business to transact with Sheriff Ropiequet of St. Clair County, Illinois. I went to his office in the Court House at Belleville. The deputy in charge informed me that the sheriff was over in the jail yard putting the finishing touches to arrangements for hanging a negro named Johnson, who had been convicted of killing his wife in a most brutal manner. The deputy further informed me that if my business was important, I had better go to the jail at once, as the sheriff would probably be too busy later to see me until after dinner. Acting on this tip, I at once went to the jail and was admitted. The sheriff told me he was too busy at the time to attend to the business, and would be until after the hanging, and invited me to witness the execution, which was to take place in a few moments. I cared nothing about this, as the witnessing of executions had long since ceased to be a novelty to me, but under the circumstances, I accepted the invitation.

The scaffold had been erected in the yard surrounding the jail. The platform, which was about eight feet square, rested on four upright posts, about six and a half feet from the ground. The trap door, which was about three feet square, was located in the center of the platform, and fastened to one end by two hinges, opening downward. The other end was fastened on the underside by a bolt, or trigger, the pulling of which would allow the body to drop down through the platform. On the center of the trap door was

a soap box, on which the culprit was to stand while awaiting the arranging of the noose, one end of which ran around a pulley fastened to a cross-beam above the platform, so that the rope could be adjusted to the proper length. A stairway, about three feet wide, had been built from the ground to the platform.

Within a few minutes, the sheriff and condemned man, accompanied by a priest and a deputy sheriff, appeared at the door leading from the jail to the yard in which the execution was to take place. As they marched toward the scaffold the sheriff commanded me to join the procession, which I did, following the party up the stairway to the platform. The condemned man appeared cool and walked with a firm step. I took a position to the right of him, while the sheriff stood at his left. The priest and deputy stood just back of us. After the man who was about to be hanged had taken his position on the box on the trap, he was asked if he had anything to say, as is usual on such occasions. The negro made a complete confession of his guilt, but claimed that the drinking of bad whiskey was the real cause of his committing the crime, and admonished all within the hearing of his voice to beware of strong drink. At the conclusion of his talk, the deputy bound his legs and tied his hands behind him, while the sheriff adjusted the black cap. The negro had an exceedingly long head and neck, and as a result the cap did not cover all of his neck, there being a space of an inch or two between the bottom of the cap and the top of his coat collar. Just as the sheriff placed the noose around the condemned man's neck, but before the officers had time to tighten the rope, it came in contact with the bare place on the negro's neck, and he fainted. The sheriff grabbed one arm and I the other to keep the fainting man from falling from the platform. In doing this we both stepped on the trap. The deputy became rattled and pulled the trigger at this moment, and all three of us started down through the trap together. Now the sheriff was a very large man, and I was no infant myself, so when all three of our bodies reached the level of the platform we became wedged in the opening. The noose had become taut, just enough to strangle the negro a little, and he commenced to kick and squirm. Finally his body squeezed on down, relieving the pressure on the sheriff and me, and we both, too, fell through to the ground. We were not harmed and were soon on our feet. Because of the fact that the rope had not been adjusted to the proper length, the negro's toes touched the ground, thus preventing the breaking of his

neck. He strangled to death, however, in a few minutes. Since this incident I have been opposed to hanging as a means of capital punishment.

A CROOKED DOCTOR'S CRIME.

ARREST OF THE CULPRIT, AND HIS CUNNING ATTEMPT TO PUT HIS CAPTOR OUT OF THE WAY IN AN EFFORT TO MAKE HIS ESCAPE.

In 1873, Mrs. Boardman, a widow woman with a large family of grown children, resided on a small farm in Venango County, Pennsylvania, a few miles east of Oil City. She became acquainted with a Hebrew doctor, who called himself Dr. Solomon Steinman. He practiced medicine for a short time in and about Rouseville, Pennsylvania.

There were a number of producing oil wells on Mrs. Boardman's farm, and she, from the royalty obtained from the products of these wells, had accumulated quite a sum of money. The doctor, representing himself as a bachelor, managed to grow into the good graces of the widow, notwithstanding the fact that she was the mother of two sons who were almost as old as himself. In a remarkably short space of time the doctor succeeded in obtaining ten thousand dollars of the widow's money, having represented to her that he would invest it for her in property that would yield fabulous profits; but instead of making the investment, he quite suddenly left for parts unknown.

The widow's sons, on hearing that their mother had been swindled, reported the matter to me, I being Chief of Police of Oil City. They requested me to locate and cause the arrest of the doctor on the charge of obtaining money under false pretense. I undertook the task of learning his whereabouts, and it seemed impossible to get any trace of him. He had disappeared from his boarding house, telling no person of his intention of leaving, and no trace could be found that would indicate where he had gone. He was at his boarding house for supper on the evening of his departure, and quietly left, after eating his evening meal, as though he was going to a cigar store or a barber shop, leaving what wardrobe he had, grip and other articles, in his room, and disappeared as effectually as though the ground had opened up and engulfed him.

The evening trains had all left the town before he had left his boarding house, so that he was obliged to have left the town on foot. No one around Rouseville had ever seen a picture of him. He was a small man, dark complexioned, about forty-five years of age, five feet, six inches in height, and weighed about one hundred and thirty pounds, was smooth shaven, had black curly hair sprinkled with gray, and had a decided Hebrew countenance. About five months after his disappearance, in looking over one of the morning papers, I noticed a short article, giving an account of a Dr. Lewis who had been arrested on the charge of malpractice, at Bay City, Michigan, the day before. This article gave a minute description of the man arrested, and from this description, which answered the one that I had of Dr. Steinman, I concluded that I had found the person I was looking for. I took the first train to Bay City and found Dr. Lewis in his office, he having been released on a two thousand, five hundred dollar cash bond, which he had placed in the hands of the committing magistrate. I also learned that the man giving the name of Dr. Lewis was none other than Dr. Steinman.

He had already been indicted in Venango County, Pennsylvania, for obtaining money under false pretense, and the prosecuting officer of Bay City, being willing to surrender him to me, I had no trouble in obtaining the necessary requisition papers. After getting the papers I left Bay City with my prisoner.

I searched him carefully and took charge of all his personal effects. We took the train for Detroit, Michigan, arriving there in the afternoon. I locked him up in the police station until ten o'clock that evening, when I took him to the dock and boarded a steamer for Cleveland, Ohio. It was the old steamer Northwestern, and our state room was on the upper deck, pretty well forward.

We left Detroit about ten-thirty o'clock that night, and were due to arrive at Cleveland in the morning between four and five o'clock. We retired about midnight. I assigned the upper berth to the prisoner, while I occupied the lower. As I said before, I had searched him thoroughly before leaving Bay City.

About two o'clock in the morning, after leaving Detroit, I dozed off to sleep, when I suddenly awakened and smelled the strong odor of

chloroform. The stateroom was dark, but I reached up towards the upper berth and my hand came in contact with the doctor's. He was holding a cone that he had made from a towel, and had reached down from his berth and was holding this cone over a four ounce bottle of chloroform, and was trying to put me to sleep for good, but the first breath that I had inhaled, after he had placed the chloroform over my face, aroused me. I grabbed his arm, pulled him out of his berth onto the deck in front of the room, and would have thrown him into Lake Erie, were it not for the fact that he yelled at the top of his voice, and aroused the lookout on duty at the forward end of the vessel, and also the wheelman, both of whom reached us in time to prevent me from drowning the doctor. If I had carried out my intention of throwing him overboard, nothing could have saved him from drowning. I then made him dress himself and took him down to the forecandle, where the captain placed two of the crew to guard him until we arrived in Cleveland.

I have never learned how, or where, the doctor secured the bottle of chloroform, as I had searched him thoroughly, and I am positive he did not have it on him when we left Bay City, and have come to the conclusion that he must have secured it while he was in the lock-up at Detroit. Of course, I did not search him there.

During the Civil War, on December 20, 1861, I received a gun shot wound above the right knee, at the battle of Drainesville, Virginia, and before the doctor began to dress the wound he administered chloroform to me. The after effects of the stuff were very disagreeable and I did not get over it for a long time, and resolved that I would never again take chloroform under any circumstances. I really suffered more from the nasty stuff than I did from the wound. This, I presume, accounts for the shock the odor of the chloroform produced on me.

I arrived with the prisoner at Oil City in due time. He was tried at the first term of court thereafter, and convicted and sentenced to the penitentiary for a term of ten years.

I succeeded in locating and recovering nearly five thousand dollars of the money the doctor had fraudulently secured from the widow. This was returned to her by due process of law.

CAPTURE OF A CLEVER SWINDLER.

SAM BENARD'S UNIQUE METHOD OF DEFRAUDING THE RAILROADS—HOW HE DID THE WORK—HIS CONVICTION AFTER A LONG CHASE.

Between the years of 1870 and 1876 the railroads of this country had been swindled, time after time, by some unknown person changing the address on an invoice of goods after it had reached the railroad office. This was done on an order which purported to come from the firm which had shipped the goods.

In February of 1876, a shipment of gentlemen's dress goods was sent to A. A. Alden and Company of Franklin, Pennsylvania, by Brock and Weiner of Buffalo. The consignment was valued at \$721.19. A few minutes after the goods had been delivered at the freight office, a man entered and told the agent that the boxes had been marked with the name of the wrong town; that they should go to Corry, Pennsylvania, instead of Franklin. The agent demanded an order from the firm, before making the change. The pretended clerk wrote out the order, signing the firm name to it, and the address, Corry, was substituted for that of Franklin. This being done, the supposed clerk went to Corry. Here he pretended that he was a merchant from New York, and that he was to open an auction store in the town. The merchant tailors did not like to have their trade injured in this manner, so offered to buy the goods. The pretended merchant sold them at a much reduced price, and received a check for three hundred fifty nine dollars and sixty cents. He indorsed the check with A. A. Alden's name, thus adding forgery to his other crimes. Then the case was given to me.

Two weeks went by without a clue to the swindler. I found that other detectives had been hunting for a man who had played the same game in other cities, but the culprit had guarded himself so well that even his real name was unknown. From the descriptions obtained and from his general manner of operation, it was known that the same person had been operating on all the roads where this swindling had occurred. One day while in

Buffalo, I chanced to go into a cigar store. At this time the newspapers were full of the swindle, and some of the people in the store were discussing the affair. An old gentleman who was among those present said that a young man who had been employed in the same store with himself, about six years previously, had swindled his employers in the same manner. This was in Rochester. I took the hint and after questioning the old man I found that the name of his former working companion was William Benard. I went to Rochester, and while there obtained the names of some of his acquaintances, and finally found a photograph of him. The description given me by the detectives tallied with the photograph of Benard. I therefore made up my mind that Benard was the man I wanted. After further inquiry I found that relations of Benard lived in Detroit, Michigan. I went there and obtained information as to the whereabouts of the swindler. I followed him through Montreal, Canada; Cincinnati, Cleveland, Indianapolis, Toledo, Chicago, to St. Louis. He was known in all these places as "Jew Harry." It seemed that it was impossible to find a detective in any one place who had not at some time or other been on Benard's tracks.

On my arrival in St. Louis, June 26, 1876, I went to the office of Chief of Police McDonohue at once. I told him who I was and that I had information which led me to believe that Benard had worked in St. Louis. When the Chief, who was very portly, and somewhat gruff, heard this, he straightened up in his chair, and said, "It is impossible. That fellow would not dare to come to St. Louis. He would be afraid. He knows he could not work any such game in this town. My police would be sure to get him." I then told the Chief that I had reason to believe that Benard had been in St. Louis within the last few days. This idea the Chief fairly ridiculed. Just at this moment a rather elderly man entered the office, in a very excited manner. He had brown hair, streaked with gray, and wore short side-burns, or galways, as they are sometimes called. He asked if he could see the Chief for a few minutes, so I at once rose to leave the office. The Chief told me to remain, then asked the visitor to state his business.

He told the Chief that his name was H. M. Smith, and that he was a pawnbroker, in business at Eighth and Morgan streets. He then went on to say that a man giving the name of Solomon, representing that he was from Cleveland, Ohio, had called on him a few days previous. He had represented himself as a pawnbroker, and had presented the business card of

Solomon & Company of Cleveland. Mr. Smith told him that he knew of the firm, but never had the pleasure of meeting a member of it. Solomon then told Smith that he had a nephew who had been in business with him for years, but that he had gone out west, in the mining district of Colorado, and opened up a pawnshop of his own. There was then a large demand for revolvers and pistols of heavy caliber, and that he had ordered about two thousand dollars' worth of heavy caliber guns and ammunition from the Simmons Hardware Company of St. Louis. After he had placed the order with the request that it be packed and shipped immediately, he had received a telegram from his nephew stating that he had gotten into trouble and had been forced to leave the country; and, therefore, could not take the order from Simmons. He requested Solomon to call at Simmons and cancel the order. The Simmons people informed Solomon that as the fire-arms were already packed and in the freight-house, preparatory for shipping, they could not cancel the order. Solomon then said to Smith, "I have no use for these pistols and guns, and I can't ship them to my nephew in Colorado since he has left there. I will have these goods brought up to your store and you can examine them. Then if you find them just as I have represented, I will let you have them at your own price. You can easily sell them and make some money on them."

Mr. Smith assented. Solomon then went and got a drayman and had the fire-arms brought to Smith's office from the freight depot. Solomon got there about the time the goods did and had the cases opened. Smith found the goods were just as Solomon represented, so he told Solomon that he would give him eleven hundred dollars for them, which was about half their value. Solomon, with tears in his eyes, accepted Smith's check for that amount, and left for parts unknown. On the morning of my arrival and while I was talking to Chief McDonohue, Smith had received by mail, a bill for the goods from Simmons Hardware Company which extended to him the privilege of discounting the bill, and that upon making immediate payment, he might deduct the usual percent. Whereupon Mr. Smith called upon the Simmons Hardware Company, and was there informed that a man resembling him very much, had called there and selected the bill of goods, and had also presented Smith's business card. They thought it was Mr. Smith, and, upon finding him all right formerly, had unhesitatingly packed and shipped the goods as directed.

Smith and Benard looked very much alike, wearing the same style of beard and having about the same complexion. Smith's description of Solomon, who was really Benard, was very accurate; and finally wound up by saying that Solomon looked enough like him to be his younger brother.

While Smith was telling the Chief this story I was listening, and when he began to describe Solomon, I asked the Chief if I might be permitted to ask Mr. Smith a few questions.

"Why, certainly," replied the Chief.

"Do you think," I then said to Smith, "that you would know this man, Solomon, if you should see him again?"

"Surely!" answered Mr. Smith. "I would know him anywhere."

I then took Benard's picture from my pocket, and asked Smith if that resembled Solomon. He threw up his hands, and exclaimed:

"Why! That is him! That's an excellent picture of him!"

I then turned to the Chief and said, "Chief, it seems that Benard was not afraid to come to St. Louis, after all."

I then got busy and learned that Benard had left St. Louis over the Burlington and had gone to Quincy, Illinois, a few days before my arrival. I then took the first train for Quincy. There I learned of a similar swindle with a case of goods shipped to Edina, Missouri.

I left at once for Edina. There the freight agent informed me that a man named Solomon, and answering to the description of Benard, had called for a case of goods; but the agent, who was a relative of the party to whom the goods had been originally consigned, had refused to deliver them until presented with some identification. Just about this time I received word that Solomon was walking out of town. I pursued him, arrested him and brought him back to town. At first he denied everything, even his photograph, but finally consented to go with me when I brought out other proofs. I at once applied for a requisition from the authorities.

After the capture of Benard at Edina, by me, Benard's lawyer insisted that he could not be taken to Pennsylvania while he stood charged with a felony

in Missouri. Therefore, when he made his plea, I telegraphed a friend in St. Louis to employ a good criminal lawyer, and have him report to me at Edina. My friend employed Col. Nat. C. Claiborne, of St. Louis. At the same time I wired Mr. Smith to come at once, or send his son, Sam, to Edina, for the purpose of identifying Solomon. In due time both Sam Smith and Col. Claiborne arrived in Edina. Col. Claiborne was an old citizen, and was well known all over the state. He was acquainted with the Judge of Knox County, and had him convene a special term of Court and empanel a special Grand Jury. I arranged to have witnesses appear before the Grand Jury, which immediately indicted Benard for the Edina swindle, Col. Claiborne assisting the Prosecuting Attorney at Edina, for the State. Benard was convicted and sent to the penitentiary at Jefferson City, Mo., for four years. I accompanied him to Jefferson City, where I procured a duplicate of the receipt for the body of Benard, from the Warden of the Missouri Penitentiary, and previously a certified copy of the proceedings at the trial and conviction in Knox County, which I turned over to the officers of the Allegheny Valley Railroad on my return to Pittsburgh. This satisfied them, but not so well as if I had extradited Benard and brought him back to Pennsylvania for trial.

I omitted to say that on the night that Sam Smith arrived in Edina, from St. Louis, that the small hotel was filled to overflowing and the landlord was obliged to assign Smith to my room, which was in the front of the second story, just over the office. About ten o'clock that night, just as Smith and I had retired to our room, preparatory to turning in for the night, a shower of missiles such as rocks, stones and pistol shots were fired through the window of our room from the opposite side of the street. Upon investigation I found that Benard had enlisted the co-operation of some sympathizers, through a lawyer in the town, whom he had employed to defend him, and at the instance of whom this mob was formed with a view to frightening Smith and myself and the other witnesses, who were to appear in the case, out of town. We were so badly frightened that we did not leave town until Benard had been tried and convicted, and when we left Benard left with us.

LONG HUNT FOR A DEFAULTER.

INCIDENTS CONNECTED WITH THE ARREST OF E. T. SIMMONS,
WHICH IS ACCOMPLISHED AFTER MUCH HARD WORK—
HIS CONVICTION.

In 1873, E. T. H. Simmons was employed as book-keeper in the Oil City Savings Bank, at Oil City, Pa. Simmons was about 28 years of age, and married. He had borne a good reputation, was cultured, pleasant and mild mannered, and also was known to be very industrious, and his associates were the best young people in the community. By perseverance and his strict attention to business he had risen from a messenger boy in the bank to head book-keeper. He married a young and handsome lady, who was an adopted daughter of a prominent citizen of Oil City, by the name of Hiram Hoag. This young woman had been raised by her adopted parents in luxury, and was stylish and naturally extravagant. After her marriage to Simmons her extravagant habits seemed to increase, to the extent that her husband's salary was not large enough to supply her demands. His affection for her and his desire to satisfy her every wish led him to steal the funds from the bank. At first he took the money in small amounts, which he covered by falsifying the accounts. The authorities of the bank noticed that there was something wrong in the accounts, and immediately and quietly employed the services of an expert accountant, unbeknown to Simmons, the head book-keeper.

On the morning that the expert accountant appeared at the bank and took charge of the books Simmons suddenly feigned illness, and left the bank for his home, from which he immediately disappeared for parts unknown, his wife remaining in her home in Oil City.

Mr. John Mulwheeney, president of the bank, promptly engaged the services of what was then considered the greatest detective agency in the United States, to locate and apprehend Simmons. However, the operatives of the detective agency referred to, after a number of months had been consumed and a large amount of expense incurred by them, had failed to

locate the fugitive. Finally the president, Mr. Mulwheeney, requested me to try and locate Simmons. In the meantime Simmons' wife had quietly left Oil City, unbeknown to any person outside of the family who had raised her, it being but natural for that family to keep her whereabouts a secret.

I undertook the case only after the earnest entreaty of President Mulwheeney. As a matter of fact, I thought that the bank authorities should have applied to me in the first place, after Simmons had disappeared, and before they had engaged the detective agency. By reason that the then far-famed detective agency had incurred an enormous bill of expenses and finally failed, I bent all my energy towards the task, and succeeded in a remarkably short space of time in tracing Simmons' movements from the time he left Oil City. I found that he had gone to New York City, found there that he had boarded a ship for Panama, Central America, and learned there that he had crossed the Isthmus to Aspevall, and again boarded a ship from there for San Francisco. At San Francisco he landed, I learned, and had gone across the bay to Oakland, California, where he engaged lodgings, and a short time after having arrived there he had obtained a position on board a steamship as assistant purser. This ship was then plying between San Francisco and Victoria, British Columbia.

I also ascertained that a wealthy old bachelor uncle of Simmons resided in San Francisco, and was a large stockholder and director in the steamship line by which Simmons was employed as assistant purser. I afterwards learned that it was through the influence of this uncle that Simmons had secured the position with the company. This uncle was about seventy years of age, and was what was known as a '49er. He was among the earliest of the mine prospectors who had gone overland to California in the year 1849.

At the conclusion of my investigation I found that the steamship on which Simmons was an officer was due to arrive in San Francisco a few days later. In the meantime, I ascertained that Simmons' wife had joined her husband in Oakland, and that they had fitted up a comfortable little cottage in the suburbs of that town, so I quietly awaited the arrival of the ship Mr. Simmons was employed on.

In due time the ship arrived, and I took up a position where I could plainly see every one that left the ship. Finally, after all the passengers had left, the

officers began to leave the ship for their homes, and among them I noticed E. T. M. Simmons. Simmons had changed his uniform for a suit of plain business clothes, and it being after dark in the evening I had but little trouble in following him unobserved. I shadowed him until he reached his residence on Tenth street, in Oakland, where he was met at the door by his wife and his mother, who appeared to be on a visit at his home. I then withdrew and learned that the ship would remain in port forty-eight hours.

The following morning I took a train from Oakland for Sacramento, California, for the purpose of procuring the necessary requisition papers, which would authorize me to arrest and convey Simmons from California back to Venango County, Pennsylvania, as the authorized agent for the state of Pennsylvania. This I accomplished in a few moments, having already procured all the necessary papers with the exception of the signature of the Governor of California. I returned to Oakland the same day, and about ten o'clock, after first having ascertained that Simmons was at his home, I, accompanied by Detective James Coffee, of San Francisco, whom I had requested to assist me, approached Simmons' cottage. I requested Officer Coffee to ring the front door bell while I took up a position on the porch at the back door. Coffee, as instructed, vigorously rang the front door bell. When Simmons, who had gone to bed, heard the bell he at once sprang from his bed, and wrapping his clothes in a bundle, not waiting to put them on, ran to the back door, hastily opened it, and ran headlong into my arms. I heard him instructing his wife, or mother, as he left his room, not to open the front door until he had time to get out of the back door.

This cottage, being in the suburbs, there was a large open space of ground at the rear of the cottage, which was thickly covered with live-oak trees, and if Simmons had succeeded in getting away from the cottage and among the live oaks he would have effectually been hidden by the dense foliage, and would, in all probability, have made his escape.

We at once took him to San Francisco, and by reason of my having known him so well and favorably, I did not lock him up, but instead took him to my room, where I kept him until train time, when we took the Overland train for Omaha, Pittsburg and Oil City, where we arrived in due time and safe, with but a single incident of importance on the trip. Before leaving San Francisco I told Simmons that if he would stay close to me during our

trip homeward I would not place him in irons, and that no person on the train, not even the crew, would know that he was a prisoner. He agreed to this and everything went along swimmingly until after midnight on the second night out of San Francisco. Simmons and I occupied a lower single berth in the Pullman. Simmons was sleeping next to the window, and I occupied the side next to the aisle. I had made it a rule not to let Simmons go to sleep, and kept talking to him just as long as I could keep awake myself. The result was that Simmons got to the point that he was ready to drop into slumber as soon as I would allow him to do so by stopping talking to him. In those days I could stand the loss of sleep if it was necessary. On the second night, as I said, while I was feigning sleep I noticed Simmons was also playing "possum." Finally he quietly turned the bed-spread down off of himself and then noiselessly took his wearing apparel from the hammock, which was above him, and proceeded to creep over me into the aisle with his clothes under one arm. I lay perfectly quiet and did not disturb him until he had succeeded in reaching the aisle, when I suddenly grabbed him by one of his limbs and threw him back into the berth. He strenuously denied that he was trying to escape, and protested that he was merely restless, and thought he would sit up a while and not disturb me, but, as a matter of fact, he was really attempting to escape from the train. This occurred in a desert in Utah, but after that he behaved himself and made me no further trouble.

After we arrived in Oil City he was locked in the county jail, in default of bail, and when his case was called he pleaded guilty to the charge of embezzlement and was sentenced, by the Hon. John M. Trunkey, at Franklin, Pa., to a term of ten years in the Western Penitentiary of Pennsylvania, which is at Allegheny City.

However, after he had pleaded guilty and received his sentence, and before he had been taken to the penitentiary, he received a letter from his wife, written from Oakland, California, in which she coolly and heartlessly informed him that as he had pleaded guilty to a charge of felony, and had been sentenced to a term in prison, that she had decided to avail herself of her legal privilege, under the existing conditions, and apply for a divorce from him, which the law would grant her on the ground that he was a convicted felon, and that she had made up her mind to marry his wealthy old uncle, the "forty-niner" who had procured Simmons his position on the

steamship. She immediately proceeded to carry out her plans. She wound up her letter by saying that she would rather be an old man's darling than a felon's slave.

The contents of this letter almost broke poor Simmons' heart. Every person in and about Oil City, who knew him, knew that it was through her extravagance and love of luxury that he had committed the crime, and when the contents of this letter became known the sympathy of all who knew Simmons was aroused in his favor, and the best people in the community, including the officers of the bank whose funds he had embezzled, filed a petition with the governor of the state for a pardon for him. This petition was later signed by the prosecuting attorney and by Judge Trunkey, himself.

Meanwhile Simmons had been taken to the penitentiary, but he only remained there a short time until the governor of the state pardoned him. On his release he went immediately to California to find his former wife, now the wife of his old uncle, and at once instituted proceedings for the custody of their child, which he easily obtained. The child was born a short time after his father's arrest, and Simmons had never seen his son. Simmons obtained employment in the passenger department of a large railroad company. This position he filled creditably for a number of years.

His former wife visited Oil City about two years after her marriage to the second husband. She was accompanied by a couple of maids and a number of trunks, which contained many costly robes and gowns. During her stay in Oil City she called on a number of her girlhood friends and acquaintances, but it so happened that they were all out when she called and finding it impossible to meet them she, as the soldiers say, "hiked" from Oil City, and so far as the writer knows has never been heard of in that city since.

GEORGE HERSOGG'S DOWNFALL.

FACTS REGARDING THE CONVICTION OF AN INTERNATIONAL AND GREAT NORTHERN BAGGAGEMAN OF MANY CRIMES.

Early in the '80s the railroad companies of the Southwest were troubled very much by the continued receipt of complaints of passengers from all quarters of the United States, and some from foreign countries, and their filing claims for articles which had been stolen from their trunks and other baggage while in transit.

The Iron Mountain Railroad Company and the International & Great Northern Railroad Company were both parts of the Gould System, and formed a through and direct line between St. Louis, Galveston and San Antonio, Texas in the winter season both Galveston and San Antonio were winter resorts, largely patronized by health seekers. The complaints became so numerous that they were turned over to my department for investigation.

I took the matter up and after a long and tedious investigation decided to pay special attention to one George Hersogg, who was employed as train baggage-master, running between Longview and San Antonio, Texas. In my investigation I had noticed that nearly every case of lost articles from baggage were traced to the train on which Hersogg was baggage-master, therefore I concluded to test him first.

Hersogg occupied a room in a private boarding house when at Longview, where he had a twenty-four hour layover. I sent one of my operatives, George Herbert, to Longview, who represented himself as a railroad man, and he secured a room in the same boarding house where Hersogg was stopping. After remaining there for a few days Herbert became acquainted with Hersogg and with his runs, and when he would be absent from his room. Having accomplished this, Herbert became indisposed, and for that reason was compelled to remain in his room for a few days.

In the meantime impressions of certain keyholes had been taken, and a number of skeleton keys had been sent to Herbert at Longview. He had

noticed that Hersogg had two rather large trunks in his room, and when the proper opportunity presented itself he examined the contents of Mr. Hersogg's trunks, unbeknown to the inmates of the boarding house, and to Herbert's great surprise he found in one of the trunks a silver mounted Smith & Wesson, pearl handled revolver, which he immediately recognized as the property of the Hon. Joseph Harris, who, at that time, was Circuit Attorney for the City of St. Louis, but was in San Antonio for his health. Herbert also found a number of articles of jewelry, which he knew to be the property of Mrs. Harris. In this connection I will say that Herbert had been a member of the St. Louis police department prior to his entering my service, and while there he had been on detached service at the Circuit Attorney's office, in which capacity he had acted for about two years, thereby meeting Mr. Harris daily, and seeing his wife very frequently, and becoming familiar with both Harris' revolver and Mrs. Harris' jewelry.

Upon the discovery of the revolver Herbert promptly reported to me by wire code. Up to that time we had had no report of the Harris robbery, and, in fact, did not know that Mr. Harris had gone to San Antonio. On receipt of Herbert's report, I at once got into communication with Harris at San Antonio, and he verified the loss of the articles which Herbert had reported he had found in the trunk of the baggageman at Longview.

Herbert also found other articles, the loss of which had been reported from various sections of the country. The most valuable article was a diamond and emerald ring, which contained one large diamond and two small sized emeralds. This ring was the property of a lady who lived at Peoria, Ill., and who had gone over the route to San Antonio some months before the discovery of it in Hersogg's trunk. She valued the ring at about \$800.00.

We arrested Hersogg, and he was tried in due time convicted and served four years in one of the state prisons of Texas.

Many of the stolen articles which were recovered were fully identified, and returned to their owners.

It developed that Hersogg had provided himself with skeleton keys of all sizes and styles. Having a whole baggage car to himself, he was thus able to open and inspect all the baggage at his leisure. He was afforded ample time between stations in which to loot the contents of the baggage car, and strap

and lock them up again, leaving no trace on the outside of the baggage having ever been tampered with.

The capture and conviction of Hersogg was not only a source of relief to the Gould System, but was an equal relief to all connecting lines.

(THE END.)



ORGANIZED AT ST. LOUIS, 1880

INCORPORATED 1891

Furlong Secret Service Company

SUITE 1206 CHEMICAL BUILDING

St. Louis, Mo.

THOMAS FURLONG, President and General Manager.

JOHN U. MENTEER, Vice-President and Ass't Gen. Manager.

E. D. DAWSON, Secretary and Treasurer.

J. S. MANNING, Superintendent, St. Louis, Mo.

W. E. WARD, Superintendent, Chicago, Ill.

L. I. ZIEGLER, Superintendent, Cincinnati, O.

Suite 205 Lyric Theatre Building.

J. E. SMITH, Superintendent, Houston, Tex.

Correspondents and Resident Operatives in all the principal
cities of the United States and all foreign
countries.

This Company furnishes competent and reliable operatives
to railroads, corporations, lawyers and firms, to
do all kinds of legitimate detec-
tive work.

We do not handle divorce cases or work for rewards.

CONTENTS

	PAGE
Preface	<u>3</u>
Sidelights on the Business	<u>5</u>
The Preller Murder Case (<i>Illustrated</i>)	<u>9</u>
The Big Cotton Swindle	<u>39</u>
A Remarkable Case (<i>Illustrated</i>)	<u>66</u>
Tracing Train Wreckers (<i>Illustrated</i>)	<u>76</u>
"Moonshining" in the Oil Regions (<i>Illustrated</i>)	<u>91</u>
The Capture of Wess Watts (<i>Illustrated</i>)	<u>98</u>
Solving a Trunk Mystery (<i>Illustrated</i>)	<u>123</u>
The Glencoe Train Robbery (<i>Illustrated</i>)	<u>130</u>
Running Down the Revolutionists	<u>137</u>
A Dallas Murder Avenged	<u>148</u>
The Toughest of Tough Towns (<i>Illustrated</i>)	<u>162</u>
The Rohan Express Robbery	<u>180</u>
Arrest of Lawrence Poyneer (<i>Illustrated</i>)	<u>190</u>
Ticket Forgers Run Down	<u>193</u>
Conviction of John Collins (<i>Illustrated</i>)	<u>198</u>
Fred Erfert's Fall From Grace	<u>207</u>
Battle With Would-Be Bandits	<u>219</u>
The Great Pittsburg Strike	<u>229</u>
Murder of Conductor Frazier	<u>238</u>
Fight With a Maniac	<u>249</u>
Decoying a Bad Man (<i>Illustrated</i>)	<u>252</u>
Tragic Death of Bill Casey	<u>269</u>
Subduing a Notorious Bully	<u>279</u>
A Ruse That Worked	<u>285</u>

Charlie Dalton, Outlaw	<u>293</u>
Conspirators Handed a Lemon	<u>297</u>
The Big Southwest Strike (<i>Illustrated</i>)	<u>306</u>
Why I Oppose Rewards	<u>328</u>
Why I Am Opposed to Hanging	<u>330</u>
A Crooked Doctor's Crime	<u>332</u>
Capture of a Clever Swindler	<u>336</u>
Long Hunt for a Defaulter	<u>343</u>
George Hersogg's Downfall	<u>349</u>

Transcriber's Note:

Obvious typographic errors have been corrected.

*** END OF THE PROJECT GUTENBERG EBOOK FIFTY YEARS A
DETECTIVE: 35 REAL DETECTIVE STORIES ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the

collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with

this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official

version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.

- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES

EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a)

distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact

links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility: www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.